December 3, 2020

Region 7
Full Maintenance Statement of Work

Adapted from the
National Custodial Specification
and the
National Operations & Maintenance Specification

SOLICITATION NUMBER: 47PH0220R0014

SERVICE: FULL MAINTENANCE SERVICES

LOCATION(S):
Columbia Port of Entry, Termination of I-35 Laredo, TX 78041
Convent Port of Entry, 100 Convent Ave, Laredo, TX 78041
Juarez-Lincoln Port of Entry, Termination of I-35, Laredo, TX 78041
World Trade Port of Entry, Termination I-69 W, US59, Loop 20, Laredo, TX 78045
Border Patrol Sector Headquarters,207 W. Del Mar, Laredo, TX 78041
George P. Kazen Building/U S Courthouse, 1300 Victoria Street, Laredo, TX78041

PERIOD OF PERFORMANCE:
One Year Base Period, with Four One-Year Option Periods

Base Year:	**06/01/2021 – 05/31/2022**
Option 1:	**06/01/2022 – 05/31/2023**
Option 2:	**06/01/2023 – 05/31/2024**
Option 3:	**06/01/2024 – 05/31/2025**
Option 4:	**06/01/2025 – 05/31/2026**

SOLICITATION ISSUE DATE: December 3, 2020
OFFER RECEIPT DATE/TIME: January 4, 2021 at 3:00 p.m. CST

Note: This procurement is restricted to Small Business Program 8(a) Competition.

IMPORTANT DATES

***** **Pre-Proposal Meeting** *****

Pre-Proposal Meeting: Monday, December 14, 2020, 9:00 a.m (CST).
The Pre-Proposal Meeting will be held electronically at 9:00 a.m. via Google Meeting Space. It is estimated that the Pre-Proposal Meeting will last 2 - 3 hours. **Each attendee MUST send an email to the Contracting Specialist (CS) Carmen Weathers at carmen.weathers@gsa.gov and provide email address(es) for all attendees in order to register for the meeting no later than Wednesday, December 9, 2020 - 3:00 pm.** The CS will send you the meeting link and invitation prior to the meeting. (Reference Section L.7)

***** **Site Visit/Walk-Through Tours** (Reference Section L.8 for full details) *****

Site Visits: Monday, December 14 through Wednesday, December 16, 2020

CONTRACTORS MUST RSVP for each site visit no later than Wednesday, December 9, 2020 - 3:00 pm. Due to COVID-19 procedures, the number of attendees allowed on the walk through may be limited. It is requested that **only one representative** from each offeror attend each site visit. **Please email the COR, Gabriel Vargas at gabriel.vargas@gsa.gov to reserve a spot**. Please allow enough time to pass the security checkpoint in the building lobby. The meeting will begin promptly as scheduled. In addition to social distancing, all attendees must wear face masks and take any and all necessary precautions for your own protection and those around you.

Offerors MAY NOT ASK ANY QUESTIONS during the Site Visit(s). Reference L.9 for submission of questions.

***** **Questions** (Reference Section L.9 for full details) *****

All questions must be submitted in writing to the Contract Specialist, Carmen Weathers at carmen.weathers@gsa.gov not later **close of business on December 23, 2020 - 3:00 pm**. Questions received after this date may be answered at the discretion of the Contracting Officer.

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SECTION A: SOLICITATION

SOLICITATION, OFFER AND AWARD

1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) ▶ | RATING | PAGE 1 OF 1 PAGES

2. CONTRACT NUMBER	3. SOLICITATION NUMBER	4. TYPE OF SOLICITATION	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
	47PH0220R0014	☐ SEALED BID (IFB) ☒ NEGOTIATED (RFP)	12/3/2020	

7. ISSUED BY	CODE	8. ADDRESS OFFER TO (If other than Item 7)
ACQUISITION MANAGEMENT DIVISION ACQUISITION SERVICES BRANCH 819 TAYLOR ST 12B01 FORT WORTH, TX 76102 USA	7PQB	7PQB ACQUISITION MANAGEMENT DIVISION ACQUISITION SERVICES BRANCH 819 TAYLOR ST 12B01 FORT WORTH, TX 76102 USA

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

SOLICITATION

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in Item 8, or if hand carried, in the depository located in FORT WORTH, TX until 3:00 PM (Hour) local time 1/4/2021 (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS) AREA CODE	NUMBER	EXTENSION	C. E-MAIL ADDRESS
	Carmen Weathers	817	8508142		carmen.weathers@gsa.gov

11. TABLE OF CONTENTS

(X)	SEC.	DESCRIPTION	PAGE(S)	(X)	SEC.	DESCRIPTION	PAGE(S)
		PART I - THE SCHEDULE				PART II - CONTRACT CLAUSES	
	A	SOLICITATION/CONTRACT FORM			I	CONTRACT CLAUSES	
	B	SUPPLIES OR SERVICES AND PRICES/COSTS				PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACH.	
	C	DESCRIPTION/SPECS./WORK STATEMENT			J	LIST OF ATTACHMENTS	
	D	PACKAGING AND MARKING				PART IV - REPRESENTATIONS AND INSTRUCTIONS	
	E	INSPECTION AND ACCEPTANCE			K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	
	F	DELIVERIES OR PERFORMANCE					
	G	CONTRACT ADMINISTRATION DATA			L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	
	H	SPECIAL CONTRACT REQUIREMENTS			M	EVALUATION FACTORS FOR AWARD	

OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8) ▶	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS(%)

14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NO.	DATE	AMENDMENT NO.	DATE

15A. NAME AND ADDRESS OF OFFER-OR	CODE 7PQB	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)
	ACQUISITION MANAGEMENT DIVISION ACQUISITION SERVICES BRANCH 819 TAYLOR ST 12B01 FORT WORTH, TX 76102 USA		

15B. TELEPHONE NUMBER AREA CODE	NUMBER	EXTENSION	☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.	17. SIGNATURE	18. OFFER DATE

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION

22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION: ☐ 10 U.S.C. 2304 (c) ☐ 41 U.S.C. 3304(a) ( )	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) ▶	ITEM

24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE

26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable

STANDARD FORM 33 (REV. 6/2014)
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

SECTION B: SERVICES, ORDERING AND PRICES

B.1 Description of Services

The General Services Administration (GSA), Public Buildings Service (PBS), has a need for Operation and Maintenance, Custodial, and related services for **Multiple locations in Laredo, TX**. Under this contract, the contractor shall provide all management, supervision, labor, materials, supplies, repair parts, tools, equipment and subcontracts necessary to provide Operation and Maintenance, Custodial Maintenance Services, and related services described in this solicitation including inspection, testing, and maintenance.

B.2 Pricing of Services

Figure B-3, Pricing of Services, must be completed by the contractor and submitted to the Contracting Officer (CO) as part of the Price Proposal. At time of award, Figure B-3 will be incorporated into the contract. **Pricing must be submitted for a 5 year contract term.**

Offeror must submit offerors for all locations under this contract to be considered for award. Offerors must submit prices for all of the option periods, in addition to the initial period, to be considered for award. Renewal options shall be priced using the wage determination contained in this solicitation. Upon exercising a renewal option, the contract price will be adjusted in accordance with FAR 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts).

Offerors should visit the building and become familiar with existing conditions; examine all contract documents relating to this work, and carefully review the requirements contained in this solicitation. Offerors shall determine any conditions which affect the work and make a thorough site investigation before submitting an offer. No allowances will be made for failure of an offeror to avail themselves of such information.

B.2.1 Basic (Standard) Services:

This is a Firm Fixed Price contract and will not be changed unless there is a change in the scope of work. Standard service is defined as all services that are included in the monthly price and are defined in the contract document. The monthly price shall include all applicable labor, materials, supplies, training/certifications, equipment (except as otherwise provided), supervision, and management. **A blank Figure B-3 in Section J is included as part of the solicitation for the purpose of submission of the offeror's price proposal.**

B.2.2 Above Standard Services

Additional services (or Above Standard Services) may be ordered at the discretion of GSA for work relating to the scope of the facilities listed above, but not covered in the basic services of the contract.

Above standard services in this contract may include the following as specified in Section C.9.6:
Carpet Extraction
Window Washing (Exterior Surfaces or Windows)
Washing Blinds and Coverings
Tree Thinning
Snow and Ice Removal
High Cleaning Above 12 feet
Mosquito / Termite Treatment

B.2.2.1 Overtime Services
Offerors are cautioned not to confuse overtime services with additional services. Additional services are defined as work requested by the Government that is within the scope of this contract but is in addition to the contract requirements. Overtime services are defined as work within the scope of the contract originally intended to be performed during normal working hours, where the Government requests the work be performed outside of the normal working hours to expedite the return of a piece of equipment to operating condition or to minimize disruption to tenants.

B.2.3 Markup Coefficient for Service Task Orders
Markup coefficient includes all material handling fees, including General and Administrative (G&A) fees, and profit. No additional markup coefficient is allowable under this contract. The markup coefficient rate is fixed and applies to supplies, materials, equipment, and subcontractors only on reimbursable repairs or when additional services are ordered. The proposed markup coefficient **shall not exceed 10%**. The markup coefficient does **not apply to in-house labor**.

B.2.4 Markup For Construction Services
Pricing for any construction conducted under this contract will be based upon the 2020 Facilities Construction Cost with RSMeans Data (hereafter referred to as the RSMeans data). The RSMeans data will be used for the duration of this contract unless otherwise directed by the CO or designee. The Government reserves the right to change from RSMeans data to an equivalent matrix. Compensation may be negotiated if an equivalent matrix is required.

The version of RSMeans data that is current at the date of contract award shall be utilized until each option period is exercised. Thereafter, the calendar year edition/version of RSMeans data that is current on the date that each option period is exercised shall be utilized. This data (hard copy or ebook) may be purchased through:

RSMeans
1099 Hingham Street, Suite 201
Rockland, MA 02370
1-800-334-3509
https://www.rsmeans.com/products/books.aspx

The “Total Incl O&P” cost from the RSMeans data, when multiplied by the Offeror’s percentage, will establish the Task Order pricing. The “Total Incl O&P” cost of a unit of work will be determined by the RSMeans column entitled “Total Incl O&P”, NOT the column entitled “Bare Cost”.

The City Cost Index from the RSMeans data will NOT be applied to the “Total Incl O&P” costs. Any adjustment for location must be included in the Offeror’s percentage.

EXAMPLE: A percentage of 0.85 would result in 85 percent of the listed “Total Incl O&P” cost when establishing pricing with the Task Order; and 1.00 would leave the actual “Total Incl O&P” cost values as your proposed pricing.
Firm-Fixed Price Job Order Example: The following sample calculations illustrate how Task Order pricing will be established using the RSMeans data and contractor’s percentage. All percentages, “Total Incl O&P” costs, and dollar figures are fictitious and only used to demonstrate this example.

“Total Incl O&P” Cost (Labor, Material and Equipment)	$10,000.00
Percentage (Base Year) - @ 85%	x 0.85
TOTAL JOB ORDER PRICE	$8,500.00

The Contractor’s percentage (in decimal form) shall be an increase or decrease to the RSMeans data. The offeror shall limit the percentage to two (2) decimal places.

B.3 Contractor Staffing Declaration
Figure B-1, Contractor Staffing Declaration, must be completed by the contractor and submitted to the Contracting Officer (CO) **21** calendar days prior to the contract start date. This form must also be submitted to the CO when any modifications to the contract by GSA result in changes in staffing. A blank Figure B-1 is included as part of the solicitation.

B.4 Wage Adjustment
Wage adjustments will be considered at the beginning of each renewal option period, if exercised, in accordance with FAR 52.222-43 Fair Labor Standards Act and Service Contract Act – Price Adjustment (Multi-year and Option Year).

Figure B-2, SCA DOL/CBA Combination Wage Adjustment Spreadsheet is a sample worksheet to illustrate how wage adjustments will be calculated as a result of changes in wages that result from Department of Labor Wage Determinations or Collective Bargaining Agreements. A blank Figure B-2 in Section J is included as part of the solicitation.

Wage adjustments will be considered for disciplines as proposed and approved

B.5 Addition/Removal of Buildings

GSA may add or remove buildings from this contract at any time. For a building to be added to the contract, GSA will provide the building information to the Contractor and request a price proposal from the Contractor for the requested services in line with the current pricing. At this time, there is no anticipation to add or delete any additional facilities to this contract. However, if there are any facilities added, they will not exceed **20%** of the total contract dollar value, including options.

B.6 Addition/Reduction of Staffing

Staffing levels proposed and accepted at the time of award shall not be reduced through the life of the contract (unless adjusted by contract modification due to change in scope, such as discussed in B.5). At the end of each contract year, and at the request of the contractor, GSA will consider a request from the contractor for a reduction in staffing, and will be based on contractor performance.

B.7 Secondary Area of Performance

a. On an occasional basis, or in an emergency situation, work may also include locations in the Secondary Contract Areas. The Secondary Contract Areas consist of the States of Arkansas, Louisiana, New Mexico, Oklahoma, and Texas. The Secondary Contract Areas are, or may be, awarded as Primary Contract Area(s) under separate contract(s) to other contractors. In addition, the Secondary Contract Areas of this contract may also be Secondary Contract Areas under other contracts.

b. Services shall be provided under this contract within the Secondary Contract Areas only if ordered by the Government. However, the Government shall have no obligation to order services to be performed under this contract within the Secondary Contract Areas, and its failure to order any such services shall not breach or otherwise violate this contract. The contractor is not obligated to perform work within the Secondary Contract Areas, and its failure to accept any such services shall not breach or otherwise violate this contract.

SECTION C: DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

SECTION C1
GENERAL INFORMATION

C.1.0 General

This is a Performance Based Work Statement (PBWS) for Services which may include Custodial and Facilities Engineering: Operations, Maintenance, and Related Services defined under the scope of this contract. This PBWS describes the minimum requirements of the U.S. General Services Administration (GSA) and acceptable outcomes to be performed by the Contractor. All, or part of, the successful offeror's Management Plan shall be incorporated into the contract.

GSA seeks to establish a partnering relationship with the Contractor to accomplish the program objectives in this contract. The objective of the partnering process is to provide an effective problem-finding/problem-solving management team composed of personnel from both parties, thus creating a single culture with one set of goals and objectives. Partnering requires that both parties recognize and address those opportunities and challenges that shall be confronted to help maintain the health of the Contractor/GSA relationship. The relationship is based on trust, dedication to common goals, and an understanding of each other's individual expectations and values. The team shall consider utilizing a facilities engineering and systems thinking approach to provide solutions from a global perspective. The outcome of this initiative is for GSA to leverage Contractor expertise to assist GSA in accomplishing these goals and objectives.

GSA intends to purchase Contractor provided technical and managerial expertise to assist in the holistic management of assets over the long term. This program strategy has taken the name "*facilities engineering*" and has proven to be a successful model resulting in efficient and effective management of assets while maintaining a lower overall cost of operations. The facilities engineering model is dependent upon an effective partnership with a highly skilled Contractor whose objectives are based on mutual understanding of the stated requirements and objectives. A higher level of effective communication between the Government and Contractor is essential for partnering and for this performance based service contract to succeed. More emphasis is placed on the Contractor's self-management of quality, not the usual inspection by Government inspectors, although that is a part of this contract as well. All parties shall act proactively to reduce service cost.

To establish a standard of facilities engineering practices, thought processes and problem solving throughout the model, GSA established a program philosophy rooted in "*systems thinking*" whereby the means and methods for providing building operations and maintenance and custodial services are established through investigations, metrics, and feedback loops, and by establishing a partnership between the Government and Contractor to achieve joint performance objectives. The goal of applying systems thinking to facility management is to see that every action or decision in operating,

maintaining, retrofitting and cleaning a building shall result in an impact (financial, environmental or human resource, or any combination thereof), and to evaluate the “full circle” implications. Long term application of systems thinking throughout GSA has resulted in both Contractor and Government joint command of short-term and long-term cohesive management of real property assets.

GSA is committed to Federal leadership in the design, construction, and operation of high-performance and sustainable buildings. A major element of this strategy is the implementation of common strategies for cleaning, operating and maintaining buildings. As a result, this contract requires the Contractor to participate and partner with the Government in the initiative of obtaining high performance and sustainable operations, inclusive of initiatives to conserve energy and water consumption, recycling programs, meeting or exceeding specific environmental, regulatory, or performance standards, and the utilization of green products and services. The following sections detail the GSA minimum requirements and acceptable outcomes. The Contractor shall closely monitor all aspects of the work, identify deficiencies and implement corrective action, without reliance on Government oversight.

The work specified in this specification shall be in accordance with all Federal, State, county and city laws, codes, and ordinances and shall follow the more stringent of them. In addition to compliance with these laws, the Contractor shall follow all applicable standard industry practices including, but not limited to, the Occupational Safety and Health Act (OSHA) and NIBS.

To the extent possible and consistent with EO 13788, the Contractor shall maximize the use of goods, products and materials that are produced in the United States.

C.1.1 Scope of Work

The Contractor shall provide management, supervision, labor, materials, equipment, and supplies (shipping & handling) without interrupting tenant operations and shall be responsible for the efficient, effective, economical, and satisfactory operation, scheduled and unscheduled maintenance, repair of equipment and systems, custodial, grounds maintenance, and all related services located within the property line of the following locations. The term and effects of ‘Lifecycle’ does not reduce or prevent the contractor’s responsibility to repair and maintain all equipment, buildings, appliances or any other requirement under this contract.

FULL MAINTENANCE REQUIREMENTS:

Columbia LPOE Termination of SH 255, Laredo, TX Bldg. No. 07020836
Convent LPOE

100 Convent Ave,Laredo, TX Bldg. No. 07020837
Juarez-Lincoln LPOE Termination of I-35, Laredo, TX Bldg. No. 07020841
World Trade LPOE 715 Bob Bullock Loop, Laredo, TX 07020849
Border Patrol Sector HQ 207 W. Del Mar, Laredo, TX Bldg. No. 07020824
U S Courthouse 1300 Victoria Street, Laredo, TX Bldg. No. TX0311ZZ

Additional services (or Above Standard Services) may be ordered at the discretion of GSA for work relating to the scope of the facilities listed above, but not covered in the basic services of the contract. Government furnished items are specifically excluded in this contract, except as specified in C.3.

C.1.1.1 Discrepancy in the Specifications
In any case of discrepancy in the specifications, the matter shall be immediately submitted to the Contracting Officer (CO). The decision of the CO as to the proper interpretation of the specifications shall be final in accordance with the Disputes Clause of this Contract.

C.1.2 Personnel
The Contractor shall adhere to the submitted staffing plan and subcontracting plan that was submitted prior to award as part of the initial proposal. Contractor shall submit the staffing/subcontractor plan that provides sufficient numbers of staff at the various levels of expertise to ensure all scheduled and unscheduled services are performed and conditions are maintained to avoid any disruption to the tenant.

Figure L-1 indicates the government's baseline manpower projection. The projection is not intended to mandate the **staffing plan and/or labor mix** utilized to fulfill this requirement. The offeror may elect to propose any alternative that will fulfill the requirement of this solicitation. If the offeror elects to deviate from the government's manpower projection, the offeror must submit a Worksheet Narrative explaining how their proposed manpower approach will meet the requirements of the solicitation.

The staffing/labor mix proposed in the Management Plan Worksheet **are the minimum labor/staff requirements of the contract and must be adhered to for the contract period of performance.** The offeror may request an annual review of the staffing plan, labor mix or any changes to the proposed staffing levels, qualifications of proposed staff or key personnel, or the areas of expertise or disciplines of the proposed staff shall be submitted for review and approval from the CO or their designee **60** days prior to issuance of the first Option Period. Any requests for changes to the Management Plan Worksheet may be submitted and considered at that time. Any approved adjustment to the labor mix will not result in an increase in price. However, any request to reduce manpower may result in a lower price to be negotiated at time of request. Any deviation from the accepted/approved Management Plan Worksheet may result in deductions.

If the offeror proposes to use any employee from the incumbent's staff in a supervisory role, the offeror must provide a statement in lieu of resume at the time of proposal submission. The government has the right to accept and/or reject any proposed personnel and/or key personnel based on past performance under any contract that the government is aware of or becomes aware of, and/or lack of qualifications.

C.1.2.1 Contractor Key Personnel

The intent of this paragraph is to be for informational purposes only and is not to be considered prescribed positions by the Government. However, the Contractor shall adhere to the below minimum qualifications when the positions are utilized and proposed in the Management Plan. Resumes for supervisory Key Personnel shall be submitted with the contractor's proposal as described in Section L.12.

The Contractor agrees to assign the contract tasks to those persons whose resumes were submitted with the proposal, or who were approved by the COR and who are necessary to fulfill the requirements of the contract as "key personnel". No substitutions may be made except in accordance with this section.

The Contractor understands that during the first ninety (90) days of the contract performance period, no personnel substitutions will be permitted unless these substitutions are unavoidable because of the incumbent's sudden illness, death or termination of employment. In any of these events, the Contractor shall promptly notify the Contracting Officer and provide the information described in the paragraph below. After the initial ninety (90) day period the Contractor must submit to the Contracting Officer all proposed substitutions, in writing, at least thirty (30) days in advance (sixty (60) days if security clearance must be obtained) of any proposed substitution and

provide the information required by the paragraph below. A vacancy of any position may result in a price deduction in accordance with Section G.

Any request for substitution must include a detailed explanation of the circumstances necessitating the proposed substitution, a resume for the proposed substitute, and any other information requested by the Contracting Officer. Any proposed substitute must have qualifications equal to or superior to the qualifications of the incumbent. The Contracting Officer or his/her authorized representative will evaluate such requests and promptly notify the Contractor of his/her approval or disapproval thereof.

In the event that any of the identified key personnel cease to perform under the contract and the substitute is disapproved, the offeror must staff the vacancy within 30 calendar days. A vacancy of any position may result in a price deduction in accordance with Section G.

The government may evaluate any proposed key personnel using corporate knowledge of performance and experience to determine acceptability. Any proposed personnel with negative performance history known to the government or failure to meet the qualifications will be considered unacceptable.

The Contractor will provide to the Contracting Officer the names, titles, e-mail addresses, and phone numbers of key personnel at time of award.

To be considered similar, the project experience for key personnel provided should demonstrate:

- Performing required services for site(s) with approximately 125,000 square feet or greater
- Experience with operating and maintaining facilities with operation hours of 24/7
- Perform required services for multi-storied/multiple buildings in a complex/multi-tenant facilities
- Ability to perform schedule and unscheduled maintenance and repair of equipment and systems
- Ability to operate and maintain Electrical Systems & Equipment
- Ability to operate and maintain mechanical, plumbing, BAS, HVAC (Boilers, Chillers, AHU’s) in commercial buildings.
- Ability to operate and maintain fire protection and life safety systems and equipment
- Experience with building automation control systems such as Schneider, Niagara Tridium JACE (Java Application Control Engine), Public Address, and Computerized Lighting Systems
- Ability to operate and maintain architectural and structural systems, fixtures and equipment
- Ability to conduct Service Request Desk Operation to include NCMMS
- Maintenance of landscape irrigation systems

- Ability to operate and maintain egress and access systems to include: Locks, keys, keycard system, vehicle barrier system, static and dynamic bollard systems, dock levelers and bumpers, roll-up and sliding garage doors.
- Experience with Storm Drainage System
- Ability to operate and maintain sanitary sewage equipment and systems
- Custodial and Grounds Maintenance
- Ability to maintain or clean facilities designated as Historic by the Historic Building Society and/or contain historic components.

For Custodial Qualifications of key personnel see Section C.9.3

Contract Project Manager

The Contractor shall designate a Contract Project Manager in writing and provide the name and contact information to the CO. The Contract Project Manager is considered essential to the work being performed under this Contract.

The Contract Project Manager shall possess at least five years of recent (within the past seven years) experience in the management and supervision of building mechanical operations and maintenance for buildings of the approximate size, complexity and characteristics of the buildings to be covered by this Contract. A detailed resume shall be submitted to the CO or their designee for approval prior to the assignment of the project manager to the Contract. Both new and replacement project manager's shall meet these qualification standards. Minimally, the resume shall contain:

a. The full name of the proposed project manager.

b. A detailed description of the proposed project manager's employment history for the previous five years. The names and addresses of the companies for whom the proposed project manager worked for the past five years, along with the names and telephone numbers of the immediate supervisors.

Onsite Chief Engineer

The Chief Engineer position is considered a "working supervisor". The Chief Engineer is responsible for all working matters in the operations of the facilities. This is a master level position with responsibilities that include but not limited to:

- Training of journeyman and apprentice level personnel
- Inspection and oversight of PMs and mechanical repairs
- Critical Equipment Condition Assessment Repair and Reporting to Project Manager

This position shall possess at least 5 years of recent (within the past 7 years) experience in directing operation and maintenance of equipment in a supervisory capacity, knowledge of the operation of site specific major pieces of equipment and system operation. Also must possess verifiable understanding and experience in troubleshooting, repair and replacement of building specific equipment. A minimum of 2 years of recent (within the past 5 years) experience in Schneider, Niagara Tridium Jace, 200T or greater Chillers and CW systems, Raised Floor Data Center, Condensing

Boilers, VRF Systems and components, NCMMS, boilers, and chillers over 200 tons and other characteristics of the equipment to be operated and maintained under this Contract. A detailed resume containing the information specified in this document shall be submitted to the CO or their designee for approval prior to the assignment of any supervisor to the Contract. Both new and replacement Chief Engineers shall meet these qualification standards. Minimally the resume shall contain:

a. The full name of the proposed supervisor.
b. A detailed description of the previous 5 years' employment history of the proposed supervisor.
c. The names and addresses of the companies for whom the proposed supervisor worked for the past 7 years, along with the names and telephone numbers of the immediate supervisors.

Onsite Supervisor

The Onsite Supervisor is considered a "Working Supervisor". The Onsite Supervisor" shall also possess at least 5 years of recent (within the past 7 years) experience in operation and maintenance of equipment in a supervisory capacity experience in Schneider, Niagara Tridium, 200 ton or greater Chillers and CW systems, Raised Floor Data Center, Condensing Boilers, VRF Systems and components, NCMMS, boilers. A detailed resume containing the information specified in this document shall be submitted to the CO or their designee for approval prior to the assignment of any supervisor to the Contract. Both new and replacement onsite supervisors shall meet these qualification standards.
Minimally the resume shall contain:

a. The full name of the proposed supervisor.
b. A detailed description of the previous 5 years' employment history of the proposed supervisor.
c. The names and addresses of the companies for whom the proposed supervisor worked for the past 7 years, along with the names and telephone numbers of the immediate supervisors.

General Maintenance Worker (GMW)

Qualifications Requirements: High School Diploma or equivalent (GED).

Experience Requirements: The GMW is not an on-call position for after hour service calls. This position must be able to follow instructions from supervisors or senior maintenance workers. General Maintenance Worker maintains, services, and conducts minor repairs on facilities, buildings, grounds, and equipment at various sites. Performs a variety of semiskilled duties in the areas of plumbing, carpentry, electrical, painting, grounds, escorting and other duties assigned. Worker assists Maintenance Mechanics, HVAC Technicians and other workers with their tasks.

Administrative Support

At a contract minimum, the Contractor must operate a service call and administrative

support function **on site at Juarez - Lincoln LPOE for the hours of 8:00 AM CST to 5:00 PM CST,** to act as a central point of contact for the Government and building occupants to take service calls, track and maintain service call records in the NCMMS. This includes other service calls from other building service providers such as Elevator, Custodial (Ref C.9.7), Maintenance, regardless if those services are covered under the subject contract. In addition, this includes service calls for work not under the scope of this contract (i.e.,performing a central service call desk function for the facilities, regardless of who is responsible for responding to the service call.)

The Contractor shall provide a means to immediately receive service requests twenty four (24) hours a day by means of a live person via telephone call(s). For after core coverage hour calls, this shall result in coordination and approval from the COR to provide immediate response by the contractor as applicable. (Ref. C.5.12.2.2)

The contractor shall provide adequate administrative support to fulfill the functions listed below. The function may require on-site personnel, depending on the requirements on the contract. The contractor shall provide (at a minimum) NCMMS functions as detailed below:

Print and issue work orders
Close work orders
Accept and input service calls and work orders from other service contractors
Receive and process tenant service requests
Update and maintain inventories
Address GSALink spark data (If added in future)
Create reports as requested.
Attend GSA training (usually on site or via computer online)

C.1.2.2 Authority

The Contract Project Manager shall have complete authority to act for the Contractor in every detail during the term of the Contract, and shall have the authority to exercise financial expenditures and controls, accept notices of deductions, inspection reports and all other correspondence on behalf of the Contractor. This Contract requires onsite managerial supervision. The Contractor can fulfill this requirement by having the Contract Project Manager located onsite or having an additional onsite Supervisor. If the Contractor decides that the requirement is to be filled with an onsite supervisor, the above requirements for Contract Project Manager shall be the same.

C.1.2.3 Communication Equipment

The Contractor shall provide key operational personnel (Managers, Supervisors, and Mechanical Engineers, Mechanical Supervisors, Operating Engineers, Heating, Ventilation and Air Conditioning (HVAC) Mechanics) with portable electronic means to communicate with GSA for all work covered under this Contract (Work Orders, emergencies, status of projects). Outside of normal working hours, the Contractor shall maintain some designated form of communication with on-call staff to allow the CO or their designee to contact such on-call staff at any time for emergency response. Electronic communication methods are the following:

- Phone/Emails/Text messaging smartphone or tablet devices. The Contractor is responsible for all initial and monthly costs associated with the device(s). In areas where cellular service is unavailable, or unreliable, special exceptions shall be made by the CO or designee on a case-by-case basis. Such devices shall be on the list of GSA- approved devices and are to be processed through GSA's procedures for remote mobile management. This shall allow for mobile access to GSA email, the National Computerized Maintenance Management System (NCMMS) mobile environment and Building Automation Systems (BAS) alarms. The process for this and the list of currently approved devices is available upon request. Contractor personnel under this Contract must obtain and maintain an official GSA ENT account (this is your enterprise account for signing into systems administered by GSA) and monitor their GSA email account for all notifications.
- Fax. Receiving and sending faxes is acceptable as a secondary communication method for locations that have problems with wireless device signal strength. However, delaying faxes because of combined usage of voice and fax on the same line is not acceptable.
- Administrative Station – Government shall provide at least one Desktop/Laptop device per each contract group of buildings for NCMMS.Contractor shall maintain the device per GSA IT requirements, including patching and security software. Contractor shall provide and maintain core Operating Systems, updates, revisions and Microsoft Office (MS Office) tools.

C.1.2.3.1 CIO 2100 IT Security Policy

The Contractor shall ensure compliance with GSA Order CIO 2100.1K. Contractor core personnel under this Contract must obtain an official GSA email account. Employees must have clearance before they shall access GSA email, NCMMS, or other Government systems. The GSA Order CIO 2100 prohibits an employee or Contractor supporting GSA from creating or sending information using a non-official GSA electronic messaging account (*i.e*., company or personal email account). The Contractor shall ensure compliance with the Department of Homeland Security ICS-CERT cyber security guidance and recommendations. Guidance can be found at the web site in a document titled "Web Links" at: Operations and Maintenance Specification.

C.1.2.4 Language

On-site personnel and the Contractor's Point of Contact (POC) for GSA need to be proficient in English, and must be able to read, write, speak, and understand English.

C.1.2.5 Employee Suitability

The GSAR 552.237-71 Qualifications of Employees (1989) clause shall be followed at all times during the performance of this Contract (Ref H.1) In addition, the contractor shall follow the following:

a. All Contract employees requiring routine unescorted access to federally controlled facilities or information systems, or both, for more than six months (Regular Employees) shall be required to undergo a suitability determination before a personal identification verification (PIV) card is issued. Prior to the time that an identification card is issued, such Regular Employees shall be required to

comply with normal facility access control procedures, including recording presence, temporary badging, and escorted entry, as applicable.

b. Failure of a Regular Employee to receive a favorable suitability determination shall be cause for removal of the employee from the work site and from other work in connection with the Contract.

c. The Government, at its sole discretion, may grant temporary suitability determinations to Regular or Temporary Employees. However, the granting of a temporary suitability determination to any such employee shall not be considered as assurance that a favorable suitability determination shall follow.

d. The CO or designee shall provide the Contractor with the required clearance procedures for obtaining necessary clearances. The Contractor shall comply with these clearance procedures.

e. The Contractor shall be responsible for planning and scheduling its work in such a manner as to account for facility access issues. Difficulties encountered by the Contractor in gaining access to facilities by its employees and subcontractors shall not be an excuse for any lack of Contractor performance under the Contract.

C.1.2.6 Employee Technical Qualifications

Employees or subcontractors performing Contract work involving the operation, maintenance or repair, inspection, or testing of any piece of equipment or system shall be trained and possess the knowledge, experience and skills pertinent to the equipment or system as demonstrated by a current training certificate from an equipment manufacturer or a certificate by an organization acceptable to the CO. Contractor personnel shall have NCMMS skills sufficient for “Use of NCMMS” as described in this subsection. All personnel or sub-contractor personnel shall possess all certifications and licenses required by Federal, state and local jurisdiction and National Fire Protection Association (NFPA) 72, National Fire Alarm Code, section 10.5, for equipment that they shall be operating, maintaining, repairing, inspecting or testing. At a minimum, a mechanic in each trade (*e.g.,* electric, HVAC, plumbing) shall be a licensed journeyman grade in the local municipality in which they are working. All personnel under the team leader or sub-contractor personnel shall have the experience and skill set knowledge as described in the Service Contract Act (SCA) Directory of Occupations, Fifth Edition or later.
https://www.dol.gov/whd/regs/compliance/wage/SCADirV5/SCADirectVers5.pdf For example, HVAC mechanics need to be as proficient as dictated by the 23410 series and general maintenance mechanic shall be as proficient as dictated by the 23370 series.

C.1.2.7 Certifications

Copies of all certifications for Contractor employees shall be kept on-site and provided to the Government upon request. The Contractor shall provide to the CO or their designee documentation of the certificates of training, licenses, and permits for all new employees **no later than seven business days** prior to that person beginning work

under the terms of this Contract. The Contractor shall ensure that all certificates of training, licenses, permits, and bonds are current and valid and are loaded in NCMMS.

C.1.2.7.1 Qualifications of Fire Alarm System Technicians

a. Technicians performing contract work involving the inspection, testing, and preventive maintenance or repair of fire alarm systems shall be certified by the National Institute for Certification in Engineering Technologies (NICET) and possess at least a NICET Level 2 (Associate Engineering Technician) in Fire Protection Engineering Technology, Fire Alarm Systems. The Contractor shall submit to the CO or designee the NICET level certification number and expiration date for each field technician and inspector responsible for performing fire alarm system preventive maintenance and repair services required under the terms of this Contract.

b. Technicians modifying the programming software of the fire alarm system shall also be factory trained and certified by the system manufacturer for the specific type and brand of fire alarm system being serviced. The Contractor shall submit to the CO or designee the factory trained certification number and expiration date for each specific manufacturer's equipment for each technician responsible for performing programming of the fire alarm system.

C.1.2.7.2 Qualifications of Water-Based Fire Suppression System Technicians

Technicians performing contract work involving the inspection, testing, and preventive maintenance or repair of water-based fire suppression systems shall be certified by the National Institute for Certification in Engineering Technologies (NICET) and possess at least a NICET Level 2 (Associate Engineering Technician) in Fire Protection Engineering Technology, Inspection, and Testing of Water-Based Systems. The Contractor shall submit to the CO or designee the NICET level certification number and expiration date for each field technician and inspector responsible for performing water-based fire suppression system PM and repair services required under the terms of this Contract.

C.1.2.7.3 Qualifications of Technicians

Technicians (not identified elsewhere in the specifications) shall be trained and possess a current training certificate for inspecting, testing, and maintaining these components from an equipment manufacturer or a certificate by an organization acceptable to the CO. The Contractor shall submit to the CO or designee the certification document and expiration date, issued by the equipment manufacture or organization confirming the technician has been trained, for each field technician and inspector responsible for performing the inspection, testing, and maintenance of such systems/equipment under the terms of this Contract.

C.1.2.7.4 Qualifications for Electrical Technician

Technicians performing Sub-Contract work involving inspections, testing, and maintenance for the electrical switchgear shall meet the qualifications by the American National Standards Institute/International Electrical Testing Association ETT-2015, Standard for Certification of Electrical Testing Technicians or qualifications by the National Institute for Certification in Engineering Technologies (NICET) and hold at least

a Level 3 certification.

The Contractor shall provide documentation to the CO or designee on qualifications identified in this standard. Certification can be obtained through; the ANSI/NETA Certification program or Electrical Testing Technician Certification Institute. Guidance can be found at the web site in document titled “Web Links” at: Operations and Maintenance Specification

Alternate certifications presenting evidence of equal or greater skills and qualification may be substituted; however, the burden to evidence the quality of such certification falls fully upon the vendor.

C.1.2.7.5 Qualifications for BAS Technician
Work requiring preventive maintenance, repairs, troubleshooting and programming shall be accomplished by a 3rd party BAS firm specialized in the work described in the PWS. This firm must have the capability to perform the work on both the proprietary (i.e. Siemens Apogee Insight, TAC I/A, unitary layer direct digital controls) and non-proprietary (i.e. Niagara Framework supervisory layer direct digital control) systems in the facilities that are identified in the PWS. Contract technicians shall have a minimum of three (3) years full time Niagara Framework experience as shown on professional resume and factory certification on the brand controllers that GSA has installed in the facilities. Contract technicians shall have a minimum of three (3) years full time Siemens Apogee Insight, TAC I/A, unitary layer direct digital controls experience as shown on professional resume and factory certification on the brand controllers that GSA has installed in the facilities. However, the CO and R7 BAS Program Manager may make exceptions, if the O&M provides a resume of the technician(s) that reflects the individual or individuals has the credentials required to perform the work described in this paragraph and PWS.

The Contractor shall provide to the CO or their designee documentation of the level of experience, including any certificates of training, for all employees who will be involved in this function.

C.1.2.7.6 Qualifications for Photovoltaic Inspector
Work associated with Photovoltaic inspection services shall be completed by Licensed Electricians that possess an active NABCEP PV System Inspector certification, or equivalent certification, and must be able to provide a copy to the CO or designee.

C.1.2.7.7 Submission of Resumes for New Employees
The Contractor shall submit to the CO or their designee the resumes of all personnel before they begin work during the performance periods of the Contract. Resumes for supervisory Key Personnel shall be submitted with the contractor’s proposal as described in Section L.12. The CO or their designee may deny permission to employ personnel if qualifications indicate a material degradation from the skill levels indicated in the Contractor’s proposal for the Contract, or if skills or reliability concerns are such that the CO or their designee believes the protection of building equipment may be jeopardized.

C.1.2.8 Employee Training

The Contractor shall submit a training program to ensure employees working in a Federal building have the experience, knowledge, skills and abilities to perform the work required by this Contract. The Contractor shall document training and provide documentation to the CO or designee.

C.1.2.8.1 Asbestos Awareness Training

The Contractor shall ensure that all employees, including replacement workers, receive asbestos training and refresher training in accordance with 40 C.F.R part 763 and 29 C.F.R. part 1910. The Contractor shall follow all instructions for each asbestos class job as outlined in 29 C.F.R. part 1910. The training shall be conducted, at no additional expense to the Government, within 60 calendar days of Contract start date. The Contractor shall submit written certification to the CO or designee within five business days of the completion of training.

C.1.2.8.2 Re-Tuning Training

The Contractor shall ensure that all Mechanical Engineers, Mechanical Supervisors, Operating Engineers, HVAC Mechanics, and Control Technician employees, including replacement workers, receive Building Re-Tuning Training, (guidance can be found at the web site in document titled “Web Links” at: **Operations and Maintenance Specification** a five (5) to six (6) hour online course) and refresher training every two years. The training shall be conducted, at no additional expense to the Government, within 60 calendar days of the Contract start date. The Contractor shall submit written certification to the CO or designee within **five (5) business days** of the completion of training for each employee identified above.

C.1.2.8.3 Education Requirements and Certifications

All personnel designated, to operate, maintain, and/or repair, or any combination of HVAC equipment or systems shall maintain a minimum of 16 hours of continuing education per year from either NATE, HVAC Excellence, or UA Star recognized provider program. Personnel shall possess EPA 608 Certification, A/C Refrigeration Operator Certification, and one or more of the following certifications or equivalent experience:

- North American Technician Excellence (NATE) HVAC Service Technician Certification
- HVAC Excellence Professional Level Certification
- UA Star HVAC Mastery Certification
- Union workers provide Journeyman certifications

A **Chief Engineer** shall possess EPA 608 Certification, A/C Refrigeration Operator Certification, and one or more of the following certifications or equivalent experience:

- N.A.P.E. Certification Air Conditioning III – Operations and Management (National Association of Power Engineers)
- Advanced Boiler Operator Certification
- International Union of Operating Engineers (IUOE) class 3 stationary engineer

The Contractor shall submit written certification to the CO or designee.

All personnel shall be licensed and certified at the beginning employment.

C.1.2.8.4 NCMMS Training
The Contractor shall ensure that all staff and replacement staff using the NCMMS receives virtual NCMMS Training, which takes approximately 12 hours to complete and can be found at the folders indicated below at the following web site: https://sites.google.com/a/gsa.gov/national-cmms/training-and-support-docs.

In the link above the following are required courses for certification:

Folder 14- Live Video NCMMS Training

User Training Session - Basic Navigation and Work Order Processes
User Training - Advanced Work Order Processes
User Training Session on Searches, Reports and Ad Hoc Reports
User Training Session - Assets, Meters and Locations
User Training Session - Advanced Topics
User Training Session - Work Centers, Inspections and Service Requests

User Manuals

BASIC GSA Process Flows and Procedures Manual - V7.6.1.docx
ADVANCED GSA Process Flows and Procedures Manual - V7.6.1.docx
Or current version

The training shall be completed at no additional expense to the Government, during Contractor's inbound transition period and shall be completed within 30 calendar days. The Contractor shall submit written certification to the CO or designee **within five (5) calendar days** of the completion of training for each employee who uses the NCMMS. Additionally, follow up and refresher training will be provided by the Government as needed and requested.

The PM/On-Site Supervisor, Chief Engineer, and any Data Entry Clerk are required to complete the training.

C.1.2.8.5 Lead Awareness Training
The Contractor shall ensure that all employees, including replacement workers, receive lead awareness training and refresher training in accordance with 29 CFR 1910.1025(l)(1)(i). The training shall be conducted, at no additional expense to the Government, **within 60 calendar days** of Contract start date. The Contractor shall submit written certification to the CO or designee **within five (5) calendar days** of the completion of training.

C.1.2.9 Appearance
Contractor personnel shall present a neat appearance and be easily recognized. This

shall be accomplished by wearing uniforms bearing the name of the company and employee name. Uniforms shall be regularly laundered, consistent among personnel classifications, and maintained presentable to tenant personnel during all working hours.

C.1.2.10 Standards of Conduct

The Contractor shall be responsible for maintaining satisfactory standards of employee competency, conduct, appearance, and integrity and shall be responsible for taking disciplinary action with respect to its employees, as necessary. The Contractor is responsible for ensuring that its employees do not disturb papers on desks, open desk drawers or cabinets, or use Government telephones, except as authorized. Each employee must adhere to standards of behavior that reflect favorably on his or her employer and the Federal Government. Smoking is only allowed in designated areas on the property and no smoking is allowed within the Facility.

C.1.2.11 Recording Presence

Each contract employee and subcontractor must sign in when arriving and departing each building in facilities with multiple buildings as well as single buildings not in a facility daily and follow card access requirements as directed by the CO or designee. The Contractor shall accumulate GSA Form 139 (Record of Time of Arrival and Departure from Building) or other designated form for use in recording presence each calendar week, and certifies in writing on each form that the information shown is true and correct **within 3 business days** of the end of the work week. The Contractor shall provide copies of these records to the CO or designee upon request, but no less frequently than monthly.

C.1.2.12 Personal Identity Verification Requirements

Contractor employees that require access to GSA-controlled facilities or information systems to perform Contract requirements shall comply with GSA personal identity verification requirements, guidance can be found at the web site in a document titled “Web Links” at: Operations and Maintenance Specification. The Contractor shall insert this clause in all subcontracts when the subcontractor is required to have access to a GSA-controlled facility or access to a GSA-controlled information system.

C.1.2.13 Credentials and Identification

Contractor personnel with credentials shall be required to comply with all access security screening procedures applicable to Government or other personnel possessing similar credentials, or as determined by the building practices as defined by the Facility Security Committee. All Contractor personnel possessing credentials (PIV or otherwise) shall visibly display their credentials at all times while in the building(s) where work is being performed.

The Contractor shall be responsible for ensuring that all identification credentials are returned to the CO or designee whenever its employees leave the Contract (*i.e.,* when the Contract has been completed, employees leave the company, employees are dismissed or terminated or the Government determines that the employee is to be

removed from the contract). The Contractor shall notify the CO or designee whenever employee badges are lost.

The Contractor shall be responsible for paying the Government for replacement credentials at the current cost per badge.

C.1.2.14 Escorting
Temporary contract employees who do not have favorable preliminary or final suitability determinations and need to work in non-public federally-controlled space must be escorted. In those cases, the Contractor shall comply with the security clearance procedures for Escort Only Contractors. All uncleared contract employees shall be escorted in non-public space by a Government employee or another responsible cleared contract employee who is approved by the CO or designee. Other Government agencies shall have specific agency security requirements for their own space that shall only allow escort by Government employees or those designated by their agency. Government employees or approved cleared contract employees who provide escorts for uncleared contract employees shall always be within eyesight of the uncleared contract employees. The Contract Government escort shall watch uncleared employees and remain with uncleared contract employees for the entire time they are in non-public federally controlled space. Any security violation of escort requirements by a cleared and approved contract employee shall result in the immediate removal from the Contract of all contract employees involved, *i.e.,* escorts and uncleared escorted contract employees. Also, violations of escort requirements by subcontract employees in accordance with security requirements shall be grounds for loss of facility access for those individuals or grounds for termination of Contract, or both.

C.1.3 Quality Control Program
A Quality Control Program (QCP) shall be developed and implemented by the Contractor. The Contractor's QCP shall ensure Contract compliance, and act to ensure that potential problems with building services, equipment and systems are identified, documented, and resolved prior to failure. In the event the Government Quality Assurance Program identifies deficiencies the Contractor shall implement progressively responsive quality control measures commensurate with the severity of the Government's deficiencies. Deficiencies identified by the QCP or QASP shall be recorded in the NCMMS and corrected.

C.1.3.1 Quality Control Plan
The "Quality Control Plan" (QC plan) is the Contractor's complete written system for identifying and correcting deficiencies in the quality of services. **Preparation of the QC plan is the responsibility of the Contractor and must be submitted with the initial offer.**

The QC plan, revisions or updates shall be submitted for approval by the CO or designee. A review of the QC Plan can be initiated by direction of the CO or designee.

C.1.3.2 Quality Control Plan Contents

The Contractor shall establish and implement a complete Quality Control Plan (QCP) to ensure the requirements of the contract are met. The QCP is a written document that specifies a system for determining whether or not service requirements are being met and identifying and correcting deficiencies in the quality of services before the level of performance becomes unacceptable. The QCP also identifies opportunities where the Contractor can make improvements in how services are provided.

The QCP is a living document and may be subject to change depending on the needs of the contract. When the contract is revised, the Contractor is required to provide an updated QCP, maintenance schedule and listing of current employees to the CO or their designee for acceptance.

The QCP shall include the following, at a minimum:

(1) Detail the Contractor's methods, frequencies, documentation, and remedies for ensuring that work performed is of the highest quality.
(2) Describe procedures for correcting problems and addressing quality assurance findings **by the Government**.
(3) How Contractor shall monitor deficiencies of work output in relation to the performance standards, methods of informing employees of deficiencies in their area(s) of responsibility, and a process to ensure that the deficiencies are corrected and do not reoccur.
(4) Contractor's overall approach, service calls and preventive maintenance/inspection schedules, and roles and responsibilities as it relates to quality control.
    a. How the Contractor will control quality and quantity of supplies and services.
    b. Define the roles and responsibilities of the Contractor's operating personnel and explain how and identify who management will allocate Quality Control personnel.
    c. How project management, inspections, plan implementation, process improvement changes and correction of deficiencies of this contract will be accomplished to include how a Contractor shall measure and document performance against the scope of work. (ie Ref. C.5.12 Work Orders, C.9.7 'Custodial Service Calls)
    d. How the Contractor will utilize the Government's approved tenant survey results and/or customer complaints to improve the delivery of custodial and related services.
(5) An inspection plan or checklist tailored to the specific building(s) being operated, cleaned and serviced under this contract. The inspection plan or checklist shall detail how services at the work site shall be inspected to ensure that the outcome of the work meets all the quality standards set forth in the contract and shall include, but is not limited to: Date of inspection performed; Location of inspection; Description of findings; Description of action(s) taken (if necessary); Signature and date of completion.

C.1.3.2.1 Inspection Program

The Contractor shall develop an inspection program that ensures a safe and efficient level of operation of all equipment and services required in this PBWS. It shall specify the areas to be inspected on a scheduled or unscheduled basis, how frequently inspections shall be accomplished, and the title of the individual(s) (third party or corporate) who shall perform the inspections. The inspection program shall provide for a written record of inspections and results. The inspection program plan shall be planned, scheduled, tracked, and reported via the NCMMS.

C.1.3.2.2 Methods

The Contractor shall identify its methods for identifying and preventing deficiencies in the quality of service performed before the level of performance becomes unacceptable.

C.1.4 Quality Assurance

GSA's role in quality assurance is to ensure that the Contractor is achieving the quality levels established in the operation and maintenance services contract and focuses on the Contractors' QC plan. GSA periodically validates the execution of the Contractor's QCP by reviewing such areas as the Contractor's inspection forms, service request logs, tenant reports, tenant satisfaction surveys, the NCMMS surveys, and the timeliness of corrective actions.

As part of the Government's quality assurance program, the Government may:

a. Review and, if warranted, reject any reports or other submittals required from the Contractor.
b. Review performance and service records, including monthly progress reports, BAS data, NCMMS data, and any computerized or hard copy records maintained by the Contractor documenting performance under this Contract, and require correction of any unsatisfactory conditions noted.
c. Determine the adequacy of the Contractor's QCP and documentation and the overall success of this program. The Government shall order improvements, if it determines the program is insufficient or ineffective.
d. Obtain tenant satisfaction and NCMMS survey information and require improvements in service on the basis of such information to the extent such results correlate with deficiencies in Contract requirements.
e. Conduct physical inspections of facility equipment and systems, including programs and files maintained on computers in Contractor onsite offices and work areas, and require correction of deficiencies noted.
f. Perform inspections with Government personnel or independent third party inspectors.

C.1.4.1 Contracting Officer's Representative (COR)

Contracting Officer's Representatives (COR) shall be appointed to monitor Contractor performance, and they have the right to inspect and accept or reject defective services. The COR has the authority to recommend deductions based on findings in the Quality Assurance Report. The name and telephone number of each COR under the Contract shall be furnished to the Contractor in writing by the CO.

C.1.4.2 Government Monitoring

The Government shall inspect the Contractor's performance using a quality assurance program (QASP) through random inspections, scheduled inspections, or any other method of inspection by the CO or designee that the Government determines reflects the actual performance of this Contract. Contractor performance shall be evaluated on the basis of the performance success or deficiencies, success or failure in meeting contract requirements, and the Contractor's record of correcting deficiencies when noted. While corrective actions shall be noted, a record of significant performance deficiencies shall lead to a performance evaluation that is less than satisfactory even if the Contractor takes corrective action.

The Contractor shall meet with the CO or designee and other Government representatives, at the discretion of the CO or designee, to review Contract performance.

Contract Partnering Meeting: The Contractor shall attend quarterly partnering sessions with GSA for the duration of the contract period of performance. Other sessions may take place during the course of the contract at the option of either GSA or the Contractor. The concept of "partnering" is working together towards a common interest or goal. Both parties will revisit the idea of having a partnering session on the anniversary date of the contract. Each partnering session will be held at a mutually agreed upon time and location. It is fully intended that the contractor's corporate leadership be included and involved in these sessions.

C.1.4.3 Performance Evaluations

Contractor performance shall be evaluated on the basis of the performance success or deficiencies, success or failure in meeting contract requirements, and the Contractor's record of correcting deficiencies when noted. A mutual good faith effort shall be made by all parties to resolve all issues. GSA uses the Contractor Performance Assessment Reporting System (CPARS) to evaluate the Contractor's performance. Evaluations are generally conducted annually on or about the anniversary date of the Contract and also at the end of the Contract period, but may be conducted more frequently if CO or designee determines it is needed.

C.1.5 Physical Security

The Contractor shall be responsible for safeguarding all Government property provided for Contractor use in accordance with the Government Property (GP) clause, Federal Acquisition Regulation (FAR) 52.245-1. Any loss of integrity in the lock and keying system shall be immediately reported to the COR.

C.1.5.1 Key Control

The Contractor shall follow the building's key control program; refer to Policy 5900.1ADM, Physical Access Control Systems in U.S. General Services Administration Controlled Space. Keys issued to the Contractor or the Contractor's personnel or subcontractors shall be signed for and not transferred to other personnel unless recorded in the key control log. All new locks shall be incorporated into the existing

grand master key system. The Contractor shall develop procedures covering key control that shall be included in the QC plan. Providing keys for tenants is reimbursable. The Contractor shall be financially liable and shall furnish locksmith services and key blanks for installation and removal of lock-sets and tumblers, and costs associated with re-keying due to the loss of a master key by Contractor or subcontractor. The Contractor shall also be financially responsible for duplication of keys, replacement of locksets, opening doors in the event of lost keys by employees or subcontractors, and replacement of keys and lock-sets, due to keys not being recovered from terminated employees or subcontractors.

C.1.5.2 Lock Combinations

The Contractor shall establish and implement methods of ensuring all lock combinations are not revealed to unauthorized persons. These procedures shall be included in the Contractor's QC plan.

C.1.6 Safeguarding Sensitive Data and Information Technology Resources

C.1.6.1 General

The Contractor is responsible to safeguard sensitive Government data, personal information and the integrity of Government information technology resources. This subsection applies to all users of sensitive data and information technology (IT) resources, including awardees, Contractors, sub-contractors, lessors, suppliers and manufacturers. Contractor personnel requiring access to GSA's Network shall comply with all Federal Information Technology regulations regarding Trusted Internet Connection (TIC) in conjunction with Public Buildings Service (PBS) and GSA Chief Information Officer (CIO) IT policies, *i.e.,* all PBS IT systems needing network connectivity shall reside on the GSA network. The following GSA policies shall be followed:

a. CIO P 2100.1K, GSA Information Technology (IT) Security Policy
b. CIO P 2100.2B, GSA Wireless Local Area Network (LAN) Security
c. CIO 2100.3C, Mandatory Information Technology (IT) Security Training Requirement for agency and Contractor Employees with Significant Security Responsibilities
d. CIO 2104.1A, GSA Information Technology IT General Rules of Behavior
e. CIO 2105.1 C, GSA Section 508: Managing Electronic and Information Technology for Individuals with Disabilities
f. CIO 2106.2, GSA Social Media Policy
g. CIO 2107.1, Implementation of the Online Resource Reservation Software
h. CIO 2160.4A, Provisioning of Information Technology (IT) Devices
i. CIO 2162.2, Digital Signatures
j. CIO P 2165.2, GSA Telecommunications Policy
k. CIO P 2180.1, GSA Rules of Behavior for Handling Personally Identifiable Information (PII)
l. CIO 2182.2, Mandatory Use of Personal Identity Verification (PIV) Credentials
m. CIO P 1878.2A, Conducting Privacy Impact Assessments (PIAs) in GSA
n. HCO 9297.1,, GSA Data Release Policy
o. ADM P 9732.1 D, Suitability and Personnel Security. The Contractor and

subcontractors must insert the substance of this order in all subcontracts.

These policies can be found at the website in document titled “Web Links” at: Operations and Maintenance Specification

C.1.6.2 Safeguarding and Dissemination of Controlled Unclassified Information

C.1.6.2.1 General

This subsection applies to all recipients of Controlled Unclassified Information (CUI), including offerors, bidders, awardees, contractors, subcontractors, lessors, suppliers and manufacturers. Dissemination of sensitive but unclassified paper and electronic building information shall be made on a need to know basis in accordance with GSA Order PBS P 3490.2, a copy of which shall be made available upon request.

C.1.6.2.2 Marking CUI

Contractor-generated documents that contain building information shall be reviewed by the CO/COR to identify any CUI content, before the original or any copies are disseminated to any other parties. If CUI content is identified the CO or designee shall direct the Contractor, as specified elsewhere in this Contract, to imprint or affix CUI document markings to the original documents and all copies, before any dissemination.

C.1.6.2.3 Authorized Recipients

Building information designated CUI shall be protected and controlled by strictly limiting access to those individuals having a legitimate business need to know such information. Those with a need to know shall include Federal, state and local Government entities, and non-Government entities engaged in the conduct of business on behalf of or with GSA. Non-Government entities shall include architects, engineers, consultants, contractors, subcontractors, suppliers, utilities, and others submitting an offer or bid to GSA, or performing work under a GSA contract or subcontract. Recipient Contractors shall be registered as “active” in the System for Award Management (SAM) database at the web site titled “Web Links” at: Operations and Maintenance Specification. If a subcontractor is not registered in the SAM and has a need to possess CUI building information, the subcontractor shall provide to the Contractor its DUNS number or its tax ID number, a copy of its business license and a valid state driver’s license with photograph or other valid IDs with photograph. The Contractor shall keep this information related to the subcontractor for the duration of the Contract and subcontract.

All GSA personnel and Contractors shall be provided CUI building information when needed for the performance of official Federal, state, and local Government functions, such as for code compliance reviews and for the issuance of building permits. Public safety entities such as fire and utility departments shall require access to CUI building information on a need to know basis. This clause shall not prevent or encumber the dissemination of CUI building information to public safety entities.

C.1.6.2.4 Dissemination of CUI Building Information

C.1.6.2.4.1 By Electronic Transmission

Electronic transmission of CUI information outside of the GSA network shall use session encryption (or alternatively, file encryption). Encryption shall be via an approved NIST algorithm with a valid certification, such as Advanced Encryption Standard (AES) or Triple Data Encryption Standard (3DES), in accordance with Federal Information Processing Standards Publication (FIPS PUB) 140-2, Security Requirements for Cryptographic Modules per GSA policy.

C.1.6.2.4.2 By Non-electronic Form or on Portable Electronic Data Storage Devices
Portable electronic data storage devices include, CDs, DVD, and USB drives. Non-electronic forms of CUI building information include, among other formats, paper documents.

C.1.6.2.4.2.1 By Mail
Contractors shall use only methods of shipping that provide services for monitoring receipt such as track and confirm, proof of delivery, signature confirmation, or return receipt.

C.1.6.2.4.2.2 In Person
Contractors shall provide CUI building information only to authorized recipients with a need to know such information.

C.1.6.2.5 Record Keeping
Contractor shall maintain a list of all entities to which CUI is disseminated. This list shall include at a minimum: (1) the name of the state, Federal, or local Government entity, utility, or firm to which CUI has been disseminated; (2) the name of the individual at the entity or firm who is responsible for protecting the CUI building information, with access strictly controlled and limited to those individuals having a legitimate business need to know such information; (3) contact information for the named individual; and (4) a description of the CUI building information provided. Once “as built” drawings are submitted, the Contractor shall collect all lists maintained in accordance with this clause, including those maintained by any subcontractors and suppliers, and submit them to the CO. For Federal buildings, final payment shall be withheld until the lists are received.

C.1.6.2.6 Safeguarding CUI Documents
CUI building information (both electronic and paper formats) shall be protected. GSA Contractors and subcontractors shall not take CUI building information outside of GSA or their own facilities or network, except as necessary for the performance of that contract. Access to the information shall be limited to those with a legitimate business need to know.

C.1.6.2.7 Destroying CUI Building Information
When no longer needed, CUI building information shall be destroyed so that marked information is rendered unreadable and incapable of being restored, in accordance with guidelines provided for media sanitization within GSA CIO 2103.1 Controlled Unclassified Information (CUI) Policy and Appendix A of NIST Special Publication

800-88, Guidelines for Media Sanitization. Alternatively, CUI building information may be returned to the CO.

C.1.6.2.8 Notice of Disposal
The Contractor shall notify the CO that all CUI building information has been returned or destroyed by the Contractor and its subcontractors or suppliers with the exception of the Contractor's record copy. This notice shall be submitted to the CO at the completion of the Contract to receive final payment. The Contractor may return the CUI documents to the CO rather than destroying them.

C.1.6.2.9 Incidents
All improper disclosures of CUI building information must be reported immediately to the CO. If the Contract provides for progress payments, the CO shall withhold approval of progress payments until the Contractor provides a corrective action plan explaining how the Contractor shall prevent future improper disclosures of CUI building information. Progress payments shall also be withheld for failure to comply with any provision in this clause until the Contractor provides a corrective action plan explaining how the Contractor shall rectify any noncompliance and comply with the clause in the future.

C1.6.2.10 Subcontracts
The Contractor and subcontractors shall insert the substance of these subsections 1.6.2, Safeguarding and Dissemination of Controlled Unclassified Information Building Information through 1.6.2.9, Incidents, in all subcontracts.

C.1.7 Hours of Operation

C.1.7.1 Normal Working Hours (Business Hours)
Normal Building Hours are the hours the building is open to the public.

Commercial is defined as import and export business to the USA and Mexico. Non commercial is defined as the general public entrance and exit to the USA and Mexico.

The Normal Working Hours shall be

- **Columbia Port of Entry 07020836**
  Non commercial hours:
  8:00 am to 12:00 am, 7 days a week, including Federal holidays.

  Commercial hours:
  8:00 am - 12:00 am, Monday - Friday, including Federal holidays.
  8:00 am - 4:00 pm, Saturday, including Federal holidays
  10:00 am - 2:00 pm, Sunday, including Federal holidays

- **Convent Port of Entry 07020837**
  Non commercial hours:
  24 hours a day, 7 days a week, including Federal holidays.

- **Juarez-Lincoln Port of Entry 07020841**
  Non commercial hours:
  24 hours a day, 7 days a week, including Federal holidays.

- **World Trade Port of Entry 07020849**
  Commercial hours:
  8:00 am - 12:00 am, Monday - Friday, including Federal holidays.
  8:00 am - 4:00 pm, Saturday, including Federal holidays
  10:00 am - 2:00 pm, Sunday, including Federal holidays.

- **Border Patrol Sector Headquarters 07020824**
  8:00 am to 5:00 pm, Monday through Friday, excluding Federal holidays.
  Radio Room: 24 hours a day, 7 days a week, including Federal holidays.

- **George P. Kazen Building/U S Courthouse TX0311ZZ**
  8:00 am to 6:00 pm, Monday through Friday, excluding holidays.

C.1.7.2 Core Coverage Hours

Core coverage hours are the hours when the Contractor is required to maintain Basic Services. The Contractor shall ensure employees maintain communications access with the CO or designee to allow contact by the Government at all times during core coverage hours and to communicate effectively with CORs/Facility Managers and Facility Manager Supervisors.

The **O&M/Mechanical** Core Coverage Hours shall be:

- **Columbia Port of Entry 07020836**
  George P. Kazen Building/U S Courthouse TX0311ZZ
  7:00 am to 4:00 pm, Monday - Friday, excluding Federal holidays.

- **Convent Port of Entry 07020837**
  Juarez-Lincoln Port of Entry 07020841
  World Trade Port of Entry 07020849
  Border Patrol Sector Headquarters 07020824
  8:00 am to 5:00 pm, Monday - Friday, excluding Federal holidays.

The **Cleaning** Core Coverage Hours shall be:

- **Columbia Port of Entry 07020836**
  World Trade Port of Entry 07020849
  6:00 am to 2:00 am, Monday - Sunday, including Federal holidays.

- **George P. Kazen Building/U S Courthouse TX0311ZZ**
  6:00 am to 8:00 pm, Monday - Friday, excluding Federal holidays.

- **Convent Port of Entry 07020837**

Juarez-Lincoln Port of Entry 07020841
24 hours a day, 7 days a week, including Federal holidays

- **Border Patrol Sector Headquarters 07020824**
  6:00 am to 11:00 pm, Monday - Sunday, including Federal holidays

Cleaning may occur after core hours:

- For after-hours cleaning requirements;
- For any cleaning or any contract requirement that disrupts tenant operations and creates tripping and/or fall hazards.

The hours shall not be changed unless authorized by the CO or their designee. Schedule of disruptive cleaning requirements will be coordinated with approval of tenants and the COR.

C.1.7.3 Recognized Holidays
Federal holidays for the purpose of this Contract are New Year's Day, Martin Luther King, JR. Day, Presidents' Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, and Christmas Day. When Federal holidays fall on weekends, a weekday is typically designated as the holiday. Holidays that fall on Saturday are observed on the previous Friday and holidays that fall on a Sunday are observed on the following Monday.

Unanticipated holidays declared by the President will count as Federal holidays. As long as the Contractor pays its employees as if it were an anticipated Federal holiday, the Contractor will be paid for the unanticipated holiday as if it were a normal Federal holiday.

C.1.7.4 Extended Operating Hours
The locations in paragraph C.1.7.1regularly operate during hours outside of Normal Working Hours as noted; supporting equipment shall be operated and maintained by the Contractor so as to support these extended operating hours.

Areas of the building with extended operating hours may change during the performance period of the Contract. The Contractor shall be notified by the CO in writing by modification of the Contract of these changes as soon as possible.

C.1.7.5 Building Access
The Contractor expects that tenants of the building will provide reasonable access to their space to allow the Contractor to carry out the task of providing those building services that are contracted for by GSA in this document. If the tenant does not provide reasonable and timely access to their space, the Contractor shall immediately notify the CO or designee. The Contractor is not authorized to negotiate or accept any changes, requested by the tenant, to the services required in this specification.

C.1.8 Conservation of Utilities

The Contractor shall be proactive in attempts to meet all current and future energy and utility goals of the Government. The Contractor must establish a Performance Plan addressing operational methodology for tracking, trending and improving facility efficiencies. They shall ensure, through use of operational logs, preventive maintenance, systems test and balance, and other necessary means, an effective controls sequence of operations best meeting the facility's current and future energy and utility goals. The Contractor must submit the Performance Plan to the CO or designee for approval. This Performance Plan shall be part of the Energy and Water Efficiency Monthly Report (**Ref C.5.6.3**). Continually and systematically performing these activities forms the backbone of a robust O&M contract and shall be a primary factor for assessing the performance of the Contractor.

C.1.9 Use of NCMMS

C.1.9.1 General

The contractor shall be responsible for completing all NCMMS actions in accordance with the National CMMS Policy Desk Guide (April 30, 2019 or newer version) which can be found at the website in a document titled "Web Links" at: Operations and Maintenance Specifications.

GSA will provide contractor access to the National Computerized Maintenance Management System (NCMMS) web based enterprise platform. The NCMMS houses equipment inventory, preventive maintenance plans, preventive maintenance schedules, and equipment maintenance history.

Contractor shall use the NCMMS for the capture of all work performed at all facilities covered by this Contract including sub-contract work, records documentation, equipment maintenance, locations and inventories, warranty information, job plans, preventive maintenance plans and tracking, O&M manuals, reports, systems inspection, tour sheets, operating logs, safety plans, quality control inspections, Work Orders, Work Order close out, miscellaneous hours information, Overtime Utilities information, all tests, equipment photos, certifications, meter readings, permits, existing deficiency reports, initial deficiency reports and other records required by current and future policies. This includes service requests for work not under the scope of this Contract which includes Elevator Maintenance and Repair contractor (all locations), (i.e., performing a central service request desk function for the facility, regardless of who is responsible for responding to the service request). The Contractor shall use the NCMMS to validate and update the equipment inventory and all locations where Contractor work occurs on a continuous basis and shall provide an annual certification that the equipment inventory and location data in the NCMMS are up to date and complete.

The Contractor shall provide all technicians mobile devices (smart phones, or tablets) for access to additional NCMMS mobile features and functionality. Mobile telephone devices shall conform and comply with GSA IT Bring Your Own Device policy, requirements, and must be listed in GSA list of approved devices.

The Government will provide access to the NCMMS website upon completion of required training.

NCMMS tasks include but are not limited to the following: identify, track, and schedule preventive maintenance work, service requests, and equipment inventory, confined space inventory, initial deficiency list, close out inspection, equipment hazards and precautions.

The Contractor shall track historical maintenance and repair activities, and provide minimally required data including but not limited to: work order log entries, failure codes, tasks, labor (man-hours), and other costs associated with work completion for each work order received during the performance of the contract.

Contractor shall demonstrate the required NCMMS skills and familiarity within the first 30 days of the contract start date, as measured by timely, accurate data entry in NCMMS, as defined elsewhere in this scope.

The contractor may utilize GSA-provided training, at no additional cost to the government, and help documents as part of their strategy to meet the NCMMS skills requirement.

C.1.9.2 Operations
NCMMS Basic Requirements

Upon satisfactory completion of NCMMS start up activities contractor shall use NCMMS in accordance with provided basic user training, standard operating procedures, NCMMS Policy Desk Guide, and process workflows provided by the Government. At a minimum, contractor shall perform the following within NCMMS:

a. Proactively manage user accounts and profiles, On/off board users in a timely manner.

b. Proactively manage asset inventory data.

c. Proactively manage preventive maintenance plans and schedules.

d.Process all planned and unplanned work orders providing minimally required data/information within three business days of work order completion or receipt of a service request, whichever comes first:

e. Process above standard work.

f. Include any and all repair data regardless of dollar value and regardless if it falls below the shared responsibility threshold. Data should include but not limited to labor hours, parts, materials, necessary to complete the repair.

g. Process miscellaneous work.

h. Capture above threshold costs as described in paragraph f of this section.

i. Provide contract-required, and adhoc reports to the CO or designee as requested.

j. Link assets to unplanned and proactive work orders.

k. Upload and maintain asset documents, including but not limited to, third party inspection certificates, calibration reports, testing reports, warranties, entry permits and other documents as requested by CO or Designee.

m. Upload and maintain location-based work orders and PM's, including but not limited to, tours logs, operating logs, and other documents as requested by CO or Designee.

n. Perform quality control inspection/review per guidance in PBS NCMMS Desk Guide, at least 10 percent of completed work orders of non-preventive maintenance type, and record results in NCMMS via NCMMS QC process.

o. Perform quality control inspection/review per guidance in PBS NCMMS Desk Guide, at least 10 percent of completed work orders of preventive maintenance type work orders, and record results in NCMMS via NCMMS QC process.

p. Manage asset and or location specific hazards (permit required confined space) and precautions.

q. Create asset specific lock out tag out procedures.

The Contractor shall use the NCMMS uploader templates to review and bulk update data in the NCMMS. The Contractor shall use the existing inventory and asset location list in the NCMMS. Any bulk data changes or additions shall be submitted to the COR, using the NCMMS generated/approved templates, small additions of up to 50 items will be added locally by the contractor after COR approval.

The contractor may create more effective job plans based on **manufacturer's** instructions or combine PMs in NCMMS by creating route plans in an effort to operate more efficiently.

C.1.9.3 Reporting
Contractor shall deliver upon request of the COR or CO, reports produced from the NCMMS and use the NCMMS to provide current Contract monthly submittal requirements, such as monthly reporting quality control reports; completion of scheduled Work Orders, and Contract reports of accomplishment of services.

C.1.10 Documentation and Records
All records and files that this Contract requires the Contractor to maintain shall be made readily accessible to Government representatives, including third-party contract inspectors, on request. All records, files, plans, and other Contract-related documents used or generated during the course of the Contract by the Contractor, including all standard operating procedures, preventive maintenance plan schedules and building

operating plans, shall become the property of the Government, (excluding, however employee personnel files and company financial information). Files are to be provided in both hard copies and electronic copies. All records are subject to the Freedom of Information Act and Privacy Act and any requests for release of any records shall be handled accordingly.

C.1.11 Ordinances, Taxes, Permits, and Licenses
Without additional expense to the Government, the Contractor shall fully comply with all local, city, state, and Federal laws, regulations, and ordinances. The Contractor shall also be liable for all applicable Federal, state, and local taxes and shall obtain and pay for all permits, fees and licenses governing performance under the Contract.

C.1.12 Other Contractors
The Government shall undertake or award other contracts for additional work, and the Contractor shall fully cooperate with such other contractors or Government employees. The O&M Contractor shall be responsible for entering work related data in the NCMMS performed by other contractors (*e.g.,* elevator services and janitorial). The Contractor shall carefully schedule its own work, in conjunction with the additional work, as shall be directed by the CO or designee. In addition, the Contractor shall not commit or permit any act that shall interfere with the performance of work by another contractor or by Government employees.

C.1.13 Government Forms
The various Government forms mentioned in this PBWS, such as recording presence forms, and inspection forms, shall be obtained from the CO or designee.

C.1.14 Contractor Maintenance Performance Plans
This Contract requires in sections C.5 and C.6 that the Contractor provides specific plans to ensure efficient and effective operation of equipment and systems. Plans that are required by this Contract must be submitted per the specified schedule (see Table of Deliverables) and shall be evaluated for completeness. Government approval is required before they are accepted and implemented. The Government reserves the right to require changes to the Contractor performance plans. All plans shall take into consideration the following:

a. Peak performance - The system as a whole shall be considered when designing a performance plan.
b. System longevity – Following the performance plan shall enhance the life of the equipment or a system and mitigate events that could shorten the life of the equipment or a system.
c. Energy Conservation – The performance plan shall support energy efficiency and reduction goals as much as is practical. Also include ongoing Energy Savings Performance Contracts (ESPC).
d. Conditioned space – The spaces served by the system shall be considered as to type and purpose in relation to system performance.
e. Variability - The plan format shall consider the various configurations of the building(s) and their systems and use specific templates for the standard

configurations such as systems in small remote locations, high rise structures or campus installations.

SECTION C2
DEFINITIONS

C.2 Definitions
This section is a list of definitions of certain terms used in this PBWS.

C.2.1 Above-Standard Services
Above-Standard Services are services such as Overtime Utilities or Agency equipment repair and maintenance not covered in the monthly price of the Contract and is normally funded by the agency requesting such services.

C.2.2 Acceptance
“Acceptance” means an authorized representative of the Government has inspected and agreed that the work meets all requirements of this Contract, including all documentation requirements. Government acceptance shall not relieve the Contractor of responsibility for complying with Federal, State, and local laws and regulations.

C.2.3 Additional Services
“Additional services” are services that the Contractor shall provide at an additional cost to the Government, including all labor, supervision, supplies and materials specifically identified as being outside the provisions of the basic services and pricing. The CO or designee shall issue a separate delivery order before work shall proceed.

C.2.4 Advanced Meters
Advanced meters are deployed in a building in addition to utility meters to measure and record interval data and communicate the data in a format that can be easily integrated into an advanced metering system.

C.2.5 Advanced Metering Systems
A system that collects time-differentiated energy usage data from advanced meters via a network system on a request or defined schedule basis. The system is capable of providing usage information on a daily basis and can support desired features and functionality related to energy use management, procurement and operations.

C.2.6 ~~Annual Child Care Facility Survey~~ - RESERVED - DOES NOT APPLY

C.2.7 Architectural and Structural
“Architectural and structural” systems include all building structure, envelope, building improvements and finishes, and site improvements (*e.g.*, paving, walkways and asphalt) to the property line.

C.2.8 Basic Services
Basic Services of the Contract consists of the recurring contract requirements for which the Contractor is paid as a base price, *i.e.*, the requirements established by the Contract, this PBWS and related general and administrative requirements that do not contain provisions for separate reimbursement. Indefinite Quantity services (Additional

Services and Reimbursable Repairs) are requirements outside of Basic Services for which payment is made on a case-by-case basis.

C.2.9 Building
A reference to ‘facility’ and ‘site’ is interchangeable with ‘building.’ A man-made structure or edifice which services are performed within or on the exterior of the formation and is intended to support or shelter any use or continuous occupancy.

C.2.10 Building Automation System (BAS)
The “building automation system” is a system controlling and monitoring building HVAC, and possibly other systems, including all BAS devices, field and global controllers, instrumentation, networking infrastructure, computers and peripherals, software, programming, database files, and licenses.

C.2.11 Building Operating Plan
The “Building Operating Plan” (BOP) is a mandatory plan requiring Government approval that the Contractor either develops for new buildings or reviews and updates for existing facilities that documents the procedures for the operation of all the mechanical and electrical equipment and systems covered by this Contract under normal circumstances and emergency contingencies.

C.2.12 Consumable Parts
“Consumable parts” are parts or components that customarily require regular replacement rather than repair in a maintenance program and shall be disposed of properly. Examples include: oil, grease, belts, filters, ballasts, and lamps.

C.2.13 Contracting Officer (CO)
Contracting Officer (CO) is a GSA employee who has the overall responsibility for the administration of this Contract. The CO alone, without delegation, is authorized to take actions on behalf of the Government to amend, modify or deviate from the Contract terms, conditions, requirements, specifications, details and delivery schedules. The CO shall delegate administration of the Contract to a Contracting Officer’s Representative.

C.2.14 Contracting Officer's Representative (COR)
Contracting Officer's Representatives (COR) shall be appointed by letter from the CO. CORs or designees shall be the primary Government representatives for the administration of Contract, shall have proper training and experience in inspecting contracts, but shall not have the authority to modify the Contract.

C.2.15 Contractor
“Contractor” as used in this PBWS refers to the company or firm awarded this Contract.

C.2.16 Core Coverage Hours
“Core coverage hours” are the hours when the Contractor is required to maintain Basic Services.

C.2.17 Corrective Maintenance

Corrective Maintenance is a term from the NCMMS tool that refers to any activity that is not previously scheduled per industry standards, the PBS-P100 Design Standard, PBS 2012 (or most current) Preventive Maintenance Standards, or other referenced standards. The term includes service calls, equipment problems, minor repairs or unscheduled maintenance activities.

C.2.18 Custodial

A reference to 'custodial' is interchangeable with 'janitorial'. Custodial and related services can include cleaning, window washing, trash removal, recycling, snow and ice removal, landscaping, and maintaining a building or area.

C.2.19 Custodial Service Calls

Custodial service calls are considered standard service requirements, such as non-recurring requests to replenish restroom supplies, police, spot cleaning, reported spills, biohazard cleaning, etc.

C.2.20 Demand Response Program

Demand Response Program is a load management program that usually offers the Government incentives to curtail energy demand during peak use periods to protect system reliability or respond to market conditions. This program requires that the Contractor perform specific requirements to satisfy the curtailment request (*e.g.,* using onsite generation, switching to different fuels, or turning off excess equipment).

C.2.21 Emergency Callback

An "emergency callback" is a Work Order for service placed outside of Normal Working Hours and of such a nature that response cannot wait for the resumption of the next day's Normal Working Hours. An emergency creates a life/safety hazard or immediate loss or damage of Government property and the event can disrupt the routine operation of the building, thereby preventing the tenants from working or the building from being secured.

C.2.22 Environmentally Sustainable Products and Services

Products or services that have a lesser or reduced effect on human health and the environment when compared with competing products or services that serve the same purpose. This comparison shall consider raw materials acquisition, production, manufacturing, products and chemicals, packaging, distribution, reuse, operation, maintenance, or disposal of the product or service. Attributes of environmentally sustainable products or services include those that are energy efficient, greenhouse gas reducing, water-efficient, biodegradable, environmentally preferable, non-ozone depleting, contain recycled content, non or less toxic, EPA-designated and bio-based. Refer to Section C.9.17 'Federal Requirements' for a list of environmentally sustainable attributes and certifying entities.

C.2.23 Exterior

The exterior is the area from the building or facility extending to the legal property line.

This includes but not limited to entrances, landings, steps, sidewalks, parking areas, arcades, courts, planters, lawns, irrigation systems, fountains, playground, security bollards, guard booths, gates, fences, flagpoles, building-mounted poles, and ground lighting located adjacent to the facility.

C.2.24 Federal Holidays
Federal holidays are New Year's Day, Martin Luther King Day, President's Day, Memorial Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. When Federal Holidays fall on weekends, a week day is typically designated as the holiday.

C.2.25 Fire Protection and Life Safety Systems
"Fire protection and life safety systems" are systems and equipment installed in the building to: detect fire and products of combustion, notify building occupants and emergency responders, initiate smoke control systems, initiate fire suppression systems, control or suppress fires and facilitate or enhance emergency egress. These systems also shall communicate with other major building systems for fire and smoke control, elevator recall and utilities control.

C.2.26 Green Procurement Compilation (GPC)
The GPC specifies requirements to use environmentally sustainable products and services.

C.2.27 Green Cleaning
Green Cleaning is a planned and organized approach to cleaning specifically designed to protect building occupants' and workers' health, while at the same time reducing environmental impacts.

C.2.28 GSAlink
GSAlink is a strategic software analysis platform to leverage automated building analytics technology to capture real-time building systems point data, apply rules-based analytics software to the data and spot trends and deficiencies while reporting actionable events via the NCMMS as a Work Order to building operators, O&M Contractors, and GSA Service Center Facility Managers.

C.2.29 Guiding Principles for Sustainable Existing Buildings
A practice of using processes that are environmentally responsible and resource-efficient throughout a building's life-cycle. The goal is to minimize and offset consumption of energy, water, and other resources and to eliminate all waste and pollution from building operations and activities. The result is to reduce the environmental impact of the Federal Government, which will expand and complement the building design economy, utility, durability, and comfort. See https://www.sustainability.gov/resources.html

The common objective is to reduce the overall impact of the built environment on human health and the natural environment by:

-Improving energy efficiency and reductions in greenhouse gas emissions.
-Reducing water consumption intensity.
-Acquiring green products and services.
-Implementing pollution prevention measures, including reduction or elimination of the use
of toxic and hazardous chemicals and materials.
-Implementing cost-effective waste prevention and recycling programs.
-Increasing diversion of solid/trash waste.

C.2.30 Indefinite Quantity
“Indefinite quantity” provisions in a Contract permit the Government to order work, in addition to the Basic Services, and upon acceptance permit additional payment to the Contractor.

C.2.31 Initial Deficiency Report
The “Initial Deficiency Report” is a listing of the deficiencies that exist in the equipment and systems covered by this PBWS, as well as the Contractor's itemized price (including, labor, materials, overhead, and profit) for correcting each deficiency. Initial Deficiency Report findings are logged in NCMMS.

C.2.32 Key Sustainable Product (KSP) Standards
KSP are those categories of products that the Government’s Contractor uses most frequently in the delivery of custodial and facilities related services. The KSP standards are the minimal attributes that the KSPs shall meet. Use of KSP’s in this contract is mandatory.

C.2.33 LEED-EB
The rating system encourages owners and operators of existing buildings to implement sustainable practices and reduce the environmental impacts of their buildings, while addressing the major aspects of ongoing building operations.

C.2.34 Miscellaneous Work
“Miscellaneous work” is additional labor, in addition to PM and equipment maintenance, that is performed at the direction of the COR or CO (*i.e.,* they are part of Basic Services). The Contractor shall also provide consumable materials to complete the request. Miscellaneous work is treated as a Service Call and is included in the Basic Operations and Maintenance price quoted per month on the bid sheet. During normal duty hours, minor requirements are considered "miscellaneous work" as it relates to routine, day-to-day operational requirements requested by the tenant in making door keys, changing locks, hanging pictures, maps and bulletin boards, trimming door bases, and other similar functions, as directed. Miscellaneous work shall be accomplished in the same time frame as routine service calls, unless otherwise directed by the CO or designee.

C.2.35 Modification of Contract

A modification is a change to the terms and conditions of the Contract. In accordance with FAR 52.212-4(c) – Changes, the parties must agree to any changes to the terms and conditions of the Contract via a written modification to the Contract signed by the Contractor and the CO. Notwithstanding the foregoing, the CO may modify the period of performance of the Contract via a unilateral modification, *i.e.,* without the consent of the Contractor, in accordance with FAR clause 52.217-8, Option to Extend Services, and FAR clause 52.219-9, Option to Extend the Term of the Contract, both of which are included in this Contract.

C.2.36 National Computerized Maintenance Management System (NCMMS)
A "computerized maintenance management system" is a database and application software package that automates the O&M and repairs record keeping requirements. GSA's National Computerized Maintenance System (NCMMS) is designed to enhance efficiency and effectiveness of service and maintenance activities. Typical features include planning, scheduling and monitoring of service Work Orders and maintenance. The NCMMS is a central repository (Database) for all service requests and maintainable GSA assets. The NCMMS provides a mandatory, agency-wide means and method for processing, analyzing and reporting all service and maintenance work, equipment, costs, and labor hours for all of GSA.

C.2.37 Non-Reimbursable Repairs
A "non-reimbursable repair" is a repair that is the Contractor's responsibility with no additional reimbursement from the Government.

Replacement parts, materials, any or all elements of such repair or replacement, shall be of equal or better material, quality, brand name where applicable, shall utilize manufacturer's parts/materials and shall be used for like materials. Under no circumstance shall any materials or replacement parts be of lesser quality than that of which is being repaired or replaced. Proposed improved materials shall be submitted to the CO or designee for approval prior to use or implementation.

C.2.38 Normal Working Hours
"Normal Working Hours" are the hours of building occupancy by the tenants (typically 10 hours) when all services shall be available to occupants.

C.2.39 Occupant Emergency Plan (OEP)
The lead agency (the largest agency in the building) in each building is responsible for development and enforcement of the building's "Occupant Emergency Plan" (OEP). The OEP details what the building tenants shall do in case of an emergency. The plan identifies floor wardens and shelter in place locations.

C.2.40 Ongoing Commissioning
A facilities management and technical approach designed to resolve operating problems, improve comfort, optimize energy use, and identify retrofits for existing buildings using data from multiple systems (*e.g.,* BAS, advance meters and GSAlink).

This process can identify equipment inefficiencies as they occur and allow for quick remediation and greater energy and cost savings.

C.2.41 Open Protocol Systems
The Contractor shall use an open source computer operating system typically composed of coordinated modular components from a number of sources and not reliant upon any proprietary elements. Characteristics of open protocol systems include the exposure of the source code, which is thus available for understanding and possible modification and improvement, portability, which allows the system to be used in a variety of environments, and interoperability, which allows the system to function with other systems. “Open” applies to communication protocols, software and business practices.

C.2.42 Operations
“Operations” is the continual process of using building equipment systems to accomplish their function, optimize building performance and improve energy efficiency. Operations includes analysis of requirements and systems capabilities, operating controls and control systems, responding to Work Orders, touring and observing equipment performance and condition, adjusting equipment, identifying needed maintenance and repairs to equipment, and maintaining lubrication and chemical treatments.

C.2.43 Ordering Official
Ordering Officials are appointed by letter from the CO. Ordering Officials shall be the Government’s representative for the ordering of supplies and services.

C.2.44 Overtime Utilities
“Overtime Utilities” (OTU) are utilities and services that are outside Normal Working Hours and are funded by tenant agencies. Contractor support for OTU shall be considered an Additional Service and shall be on a separate requirements Order. OTU are scheduled and approved in advance to provide lights and HVAC beyond Normal Working Hours.

C.2.45 Partnering
Partnering is a formal management process in which all parties to an endeavor agree at the outset to provide an effective problem-finding/problem-solving management team, composed of personnel from both parties, thus creating a single culture with one set of goals and objectives. Partnering also requires the recognition that risks and accountability shall be shared by both parties and that maintaining a healthy partnership is everyone's responsibility. The outcome of this initiative is for GSA to leverage Contractor technical, managerial and decision making expertise to assist GSA in accomplishing the Contracts performance goals and objectives.

C.2.46 Performance Based Service Contracting
This is a procurement strategy that seeks to issue technical requirements that set forth outcomes for performance instead of specific requirements on how to perform the

service. This strategy shifts the risk of performance to the Contractor by allowing the Contractor to design the methods of achieving desired results as defined by the performance quality standards established by the Government.

C.2.47 Performance Based Work Statement (PBWS)
The Performance Based Work Statement details the work requirement and can be referred to as the specification.

C.2.48 Predictive Maintenance
Predictive maintenance is a program of maintenance activities in which scheduling of maintenance is derived from monitoring the operating condition (or changes in the operating condition) of equipment being maintained.

C.2.49 Preventive Maintenance
Preventive maintenance is a program of scheduled maintenance activities performed based on a fixed schedule or on equipment runtimes.

C.2.50 Product Preference
Products that are identified as environmentally sustainable shall be selected over those which do not carry such designations. The following factors to consider when selecting products include: environmental performance, cost performance, bio-based, recycled content, biodegradability, technical performance, and availability.

C.2.51 Quality Assurance Surveillance Plan (QASP)
The QASP is the Government's surveillance and assessment method of monitoring and evaluating the Contractor's performance.

C.2.52 Quality Control Plan
The Quality Control Plan (QC plan) is the Contractor's complete written system for identifying and correcting deficiencies in the quality of services to prevent the level of performance in operations from becoming unacceptable or negligent.

C.2.53 Rapid Building Assessment Program
The Rapid Building Assessment Program is an electricity and water assessment program conducted by a third party, which provides features that allow GSA staff to improve electricity and water efficiency for assets that have access to interval electricity and water metering. It uses proprietary statistical methods and advanced data analytics to provide building-specific performance benchmarks for electricity and water savings.

C.2.54 Repair
A "repair" is an act of restoring inoperable, dysfunctional or deteriorated equipment, systems or material to a fully functional, non-deteriorated state. Repairs involve some combination of labor and repair or replacement of the equipment, parts, components or materials.

Replacement parts, materials, any or all elements of such repair or replacement, shall be of equal or better material, quality, brand name where applicable, shall utilize

manufacturer's parts/materials and shall be used for like materials. Under no circumstance shall any materials or replacement parts be of lesser quality than that of which is being repaired or replaced. Proposed improved materials shall be submitted to the CO or designee for approval prior to use or implementation.

C.2.55 Reimbursable Repair
A reimbursable repair is a repair that is reimbursable to the Contractor, in whole or in part, in accordance with the provisions of the PBWS.

Replacement parts, materials, any or all elements of such repair or replacement, shall be of equal or better material, quality, brand name where applicable, shall utilize manufacturer's parts/materials and shall be used for like materials. Under no circumstance shall any materials or replacement parts be of lesser quality than that of which is being repaired or replaced. Proposed improved materials shall be submitted to the CO or designee for approval prior to use or implementation.

C.2.56 ~~Source America~~ - RESERVED - DOES NOT APPLY

C.2.57 ~~AbilityOne Commission (the Commission)~~ RESERVED - DOES NOT APPLY

C.2.58 ~~Commission For Purchase For People Who Are Blind Or Severely Disabled~~ RESERVED - DOES NOT APPLY

C.2.59 Standard Services
A standard service is defined as all the services that are included in the monthly price or are defined in the contract document. Prices are to include all applicable labor, materials, supplies, training/certifications, equipment (except as otherwise provided), supervision, and management.

C.2.60 Stewardship
This is the responsibility for managing, conducting or supervising the quality, state or condition of a commercial or institutional building.

C.2.61 Vertical Transportation Systems
Vertical transportation systems are designed to transport persons or materials between two or more levels in a vertical direction, which commonly includes elevators, escalators, dumbwaiters, and lifts.

C.2.62 Watch
A watch involves performing certain requirements required for the operation of the HVAC equipment (central systems over 300 tons), boilers, compressors, and related equipment in a centralized location. Watches include, starting equipment, checking at designated intervals all operating equipment in the area, recording readings, shifting equipment and loads, making adjustments at the central control center, taking water samples, making tests, and adding chemicals, as required.

C.2.63 Work Order

A Work Order (Work Request/Work Order) is a documented response entered into the NCMMS to a request by GSA, the tenant or a Contractor's observation that some equipment, system or material covered by the Contract is inoperable, dysfunctional, deteriorated, or not within normal operating parameters, or that the performance standard of the Contract is not being met. Work Order response involves analysis of the problem and adjustment of operating or monitoring controls or other immediate corrective action. Work Orders may be generated automatically from interfaces to BAS, central communications service or diagnostic software.

SECTION C3
GOVERNMENT-FURNISHED PROPERTY

C.3.0 General
The Contractor or the Contractor's employees shall not use Government property in any manner for any personal advantage, business gain, or other personal endeavor. The Contractor will take appropriate precautions to safeguard and protect from damage, theft or misuse government furnished equipment. Government furnished property lost, stolen or damaged due to Contractor neglect shall be replaced at the expense of the Contractor.

C.3.1 Electric Power
The Government shall provide electrical power at existing outlets for the Contractor to operate equipment that is necessary in the conduct of its work.

C.3.2 Water Source
The Government shall provide hot and cold water as necessary, limited to the normal supply provided in the building. No special heating or cooling of the water shall be provided.

C.3.3 Contractor Office Space and Furnishings
The Contractor may use space in the building and furnishings, including locker rooms and lockers (not a part of any tenant rentable or commonly accessible areas) if available with permission from the CO or designee. Any existing equipment within GSA space, such as lockers, tables, benches, chairs, and appliances may be used by the Contractor during the term of the Contract, provided written authorization is received from the CO or the designee. Space in the building, furniture and furnishings, and equipment for Contractor use (including a supervisor's office) is to be used for official business only in the performance of this Contract. If the Government supplies telephones, they shall only be used for communication related to the Contract. Allocated space, furnishings and equipment shall be kept neat and clean and returned to the Government at the expiration of the Contract in reasonably the same condition as at the time of entering into the Contract. The Government retains the right to change permission for use of space and furnishings throughout the life of the Contract.

C.3.4 Storage Space
Space will be provided in the building for the storage of supplies and equipment that is to be used in the performance of work under the Contract. The Contractor shall maintain this space in a clean, neat and orderly condition. Contractor must store all flammable or combustible liquids in a UL- rated flammable storage cabinet or inside storage room as indicated in 29 C.F.R. 1910.106(d) and NFPA 30. The Government shall not be responsible in any way for damage or loss to the Contractor's stored supplies, materials, replacement parts, or equipment.

C.3.5 Network Equipment and Computer Hardware

Government-furnished network equipment and computer hardware shall be used in all cases for PBS IT systems. Network equipment- includes any equipment that has IT routing and switching functionality.

- Computer hardware includes PCs, laptops, and their peripherals (monitors, microphones and keyboards).
- Proprietary system hardware/software can be Contractor provided, but is subject to network and system testing, review and approval for connection to GSA's network and acceptance of the GSA IT.

Government-Furnished Equipment – GSA IT shall provide one laptop to newly integrated (to the GSA network) BAS sites for the purpose of giving all users access to the building monitoring and control systems. Please note availability of hardware is dependent on the availability of budgeted funds dedicated for this purpose, which may or may not be renewed on an annual basis. Existing GSA workstation refreshes shall still be coordinated through the regional Office of the Chief Information Officer's office. No hardware (workstations, servers, switches) shall be provided unless an approved network diagram is submitted.

C.3.6 Custodial Closets
Custodial closets, where available, at various points throughout the building, for storing equipment, including mops, brooms, dust cloths, and other items. These closets and the stored equipment shall be kept clean and organized by the Contractor. Sinks and buckets shall be kept clean and free of standing water and hoses shall not be left connected to faucets when not in use.

C.3.7 Supervisor's Office
Space in the building, when available, furniture and furnishings for a supervisor's office to be for official business only in the performance of this contract. If the Government supplies telephones, they shall only be used for communication related to the contract. The Contractor or the Contractor's employees shall not use Government property in any manner for any personal advantage, business gain, or other personal endeavor.

C.3.8 Heating and Air Conditioning
Heating and air conditioning of the space to be cleaned will be provided only during normal building operating hours.

SECTION C4
CONTRACTOR- FURNISHED PROPERTY SUPPLIES/MATERIAL/EQUIPMENT

C.4.0 General

The Contractor shall provide all labor, services, supplies, material, and equipment necessary to perform efficiently and effectively the requirements of this Contract, except as explicitly stated within this PBWS. At the expiration or termination of this Contract, all equipment furnished and installed by the Contractor in the building shall remain and become the property of the Government. All electronic data used to operate, track and maintain the facility remains the property of the Government and must be turned over to the Government in an electronic media identified by the Government. All non-electronic media used to operate, track and maintain the facility remains the property of the Government and must be turned over to the Government in good condition upon request or upon the completion of the Contract.

SECTION C5
OPERATIONS-SPECIFIC REQUIREMENTS

C.5.0 General
The Contractor shall provide building operations services for all systems covered by this Contract, maintain uninterrupted utilities services, and environmental conditioning to tenants during Normal Working Hours, and at other times as described in this PBWS, to preserve the asset value of the facility and its systems, and minimize operating costs to the Government without compromising other Contract objectives or requirements.

C.5.1 Tenant Environment
In accordance with Federal Management Regulations sections 102-74.185 and 102-74.195, respectively, the Contractor shall meet ASHRAE Standard 55-2017 (or latest version, if superseded), Thermal Environmental Conditions for Human Occupancy, and ASHRAE 62.1-2016 (or latest version, if superseded), Ventilation for Acceptable Indoor Air. The Contractor shall maintain these standards throughout the Normal Working Hours in occupied spaces. Equipment startup shall occur efficiently to attain fully environmental conditions at the beginning of Normal Working Hours. The Contractor shall comply with ASHRAE Standard 55-2017 (or latest version if superseded) to achieve temperature settings between 72°F and 78°F in the summer months and between 69°F and 75°F in the winter months. These recommended temperature settings apply to the entire building not individual offices. The Contractor shall report significant changes in the operating conditions to the CO or designee. If the standards (*i.e.,* ASHRAE Standards 55 and 62) cannot be met the Contractor shall submit a deviation by in writing, to the CO or designee for approval.

C.5.1.1 Tenant Furniture
Tenant agency furniture and office equipment in the Contractor's immediate work area shall be moved and protected by the Contractor and returned to its original location once work is completed. If the Contractor's work does not allow furniture and office equipment to be replaced to its original location, new locations will be designated by the COR or the tenant agency representative or point of contact. The Contractor is responsible for repair or replacement due to damage as a result of moving tenant furniture or office equipment.

C.5.2. Building Operating Plan
In existing facilities the Contractor shall review and update the Building Operating Plan (BOP) and submit for approval to the CO or designee, not later than the end of the startup or transition phase outlining the operating and general maintenance procedures for all major building equipment and systems. The Contractor shall coordinate with the CO or designee in developing the components of the plan in accordance with the BOP template provided by the CO or designee.

In newly constructed buildings without a BOP, the Contractor shall develop a BOP that includes all O&M equipment and systems. The purpose of the BOP is to document the standard O&M procedures for the building. An additional objective of this plan is that if key personnel are not available then authorized and qualified staff shall be able to refer

to the BOP and manage and operate the building. The BOP contains critical information such as: who to contact, emergency procedures, demand response, hours of operation, locations of emergency shut off valves, confined entry space inventory, hazardous chemicals, the location of OEP, Continuity of Operations Plan (COOP), drawings, and equipment Inventory. The Contractor shall execute the Contract requirements in accordance with the approved BOP. The BOP must be submitted as an electronic file (MS Word or Google.doc) with regular updates that reflect current personnel, subcontractors, equipment, systems, and operating procedures, and entered in the NCMMS. The Contractor shall revise as needed and annually review and update the BOP and submit to the CO or designee an electronic file (MS Word, Google.doc) of the complete updated BOP on the anniversary of the Contract start date of each Contract year. If the Contractor fails to submit a satisfactory BOP the Government shall withhold payments until a satisfactory plan is submitted.

C.5.2.1 Components of the Building Operating Plan

The components of the BOP are a compilation of requirements stated throughout the O&M PBWS. Some information and documents shall be provided by the CO or designee to complete this plan, such as OEP and COOP and drawings. At a minimum, the Contractor is responsible for providing the following information within the BOP:

a. Contact information of local Contractor staff and corporate managerial staff.
b. Description of staffing, responsibilities and work schedules.
c. Demonstrate how the offeror is going to full unexpected manpower shortages until position is filled, including maintaining full staffing levels on-site at all times during employee vacations and other absences.
d. Identify qualified staffing for afterhours BAS alarms and emergency call backs.
e. Identify personnel with QCP functions and the personnel with authority to commit funds, and the dollar level of that authority for this Contract.
f. Standard operating procedures for operating building systems, including at a minimum:
    1. Startup and shutdown times and procedures relative to various environmental conditions.
    2. Facility hours of operation – Normal and Core hours.
    3. Procedures to accommodate tenant OTU requests. Provide listings of mechanical onsite equipment, hours of operation and separate procedures for heating and cooling.
    4. Energy Conservation – Performance Plan, Management and Control Systems, peak load demand management procedures, and Advance Meter System (AMS) data for conservation strategies (if applicable).
    5. Other operating strategies to maximize efficiency and minimize energy consumption.
    6. Descriptions of major mechanical equipment, modes and sequences of operations for equipment systems such as schedules, settings, startups, shut-down and control sequences.
    7. Locations of all major utilities shut off, including gas, electric, water and steam (if applicable).

8. Locations of all electric rooms and a narrative of the areas served by each including emergency generators, substations and transformers, and equipment that is on the emergency generator.

g. Architectural and Structural systems maintenance (*e.g.,* facade, roof, gutters, drains, and windows).
h. Building tour plan and watch locations, recording presence and documentation procedures.
i. Maintenance schedules and procedures, and a reference to which preventive or predictive maintenance standards or guides the Contractor shall use. For all fire protection and life safety systems PBS preventive maintenance guides shall not be used. The Contractor shall use the applicable NFPA code or standard (latest edition) to perform the inspection, testing and maintenance (ITM) of all fire protection and life safety systems. The Contractor shall perform all ITM in accordance with the frequency schedules and test methods in the applicable NFPA code or standard. All ITM performed must be recorded on the suggested ITM forms referenced in the applicable NFPA code or standard.
j. List of test equipment to be maintained onsite to support troubleshooting and sensor calibrations.
k. Vertical Transportation maintenance plan, if applicable, including escalators, elevators, and dumbwaiters.
l. A description of how building equipment data is maintained and updated. Work Order and repair procedures, including staffing and procedures for the Work Orders, during operating hours, after hours and emergencies.
m. A description of key control procedures.
n. Safety, Security, Disaster Emergency Response, Recovery and Reporting Procedures. Reference the location or incorporate contingency plans for:
    1. Loss of the Contractor's onsite personnel (*i.e.,* strike, walkout, injury, abrupt resignation). The Strike Contingency Plan (SCP) shall include the information as outlined below:
        a. Support Personnel: The SCP shall describe in detail how the Contractor shall staff the building to provide the services defined in this PBWS in the event of strikes by its employees. This includes HSPD-12 requirements.
        b. License and Certifications: The SCP shall describe in detail how the Contractor shall provide personnel that meet experience requirements, assuring the Government that all temporary or replacement employees (including subcontractor employees) shall meet the experience and license requirements defined in this PBWS.
    2. Civil disturbance or major security threat.
    3. Natural disasters, bombing, or other events that damage the building's structure or utilities.
    4. Floods, including flooding caused by plumbing breaks.
    5. Hazardous materials including asbestos, lead paint, leaks or spills and water management.

6. Inoperability and impairment of fire protection and life safety systems (including fire watch and impairment procedures (*e.g.,* red tags).
7. Location of fire alarm control unit/fire control room/instructions to operate Public Address system in emergency, if applicable.
8. Location of incoming municipal fire protection water supply.
9. Location of fire sprinkler riser rooms and isolation valves.
10. Location of fire pump.
11. Location of sump and sewage ejector pumps and emergency procedures.
12. Pressure booster and reducing stations, and backflow preventers.
13. Above and Underground Storage Tanks.
14. Confined Space Locations.
15. Portable Fire Extinguisher Locations.
16. Radon mitigation program, if applicable.
17. Description of safety procedures.

o. Contractor contingency plans to operate the building in support of the Government's COOP, OEP, loss of connectivity of the BAS, Shelter in Place, and Pandemic Influenza Preparedness planning for the site.
p. Description of environmental regulatory requirements, such as Air Quality Management District and include rules that apply to equipment in the building, which permits are necessary, inspection and certification requirements, and other essential information. Identify how the administrative and technical requirements shall be managed for the timely accomplishment of all Contract requirements.
q. Contractor plan to support demand response or utility curtailment programs in which the building participates, including communications protocols and curtailment activities. The Contractor shall provide in its contract an estimate as a separate line item for performing curtailment activities.
r. The Contractor shall develop and implement a written emergency plan that describes procedures for its employees to follow during power failures, equipment failures, or other emergencies within 30 calendar days of Contract start date. The Contractor shall also review with its employees those parts of the plan necessary to protect workers in emergencies.

C.5.3 Equipment Inventory

C.5.3.1 General:

The Contractor shall maintain and update as required the building equipment inventory, equipment labeling and maintenance records to ensure accurate data in the NCMMS for building operations. "Agency Owned" equipment will be treated and under contract the same as GSA owned equipment unless otherwise noted or removed from the requirements by the CO. **Changes in the inventory can result in a negotiated price adjustment to the Contract, which must be approved, in writing, by the CO.** Omissions in the existing inventory do not relieve the Contractor from the responsibility for the maintenance and repair of the equipment. The Contractor may request an equitable adjustment pertaining only to physical changes in building equipment which occur after the contract start date. This request shall be submitted to the CO or designee for consideration. If the contractor maintained inventory data does not meet

Contract requirements (up-to-date, required equipment information) the CO will take action to withhold payments.

C.5.3.2 Operations

The Contractor shall:

a. Collect and maintain an inventory of: (1) all equipment of types that require maintenance or certifications pursuant to the PBS Maintenance Standards or applicable NFPA code or standards (latest edition), (2) equipment that is operated through a sequence of operations, (3) electronic controllers and network devices, (4) sensors, and (5) tenant agency-owned equipment operated or maintained.
b. Collect and maintain the following equipment/system data including all applicable fire protection and life safety equipment/system data: Equipment ID, Equipment Type, Equipment Description, Asset Identification Code, all Nameplate data, Manufacturer, Model Number, Serial Number, Equipment Status, Building Number, Location (including floor, room, and location description) and install/initialization dates (as can be obtained from nameplate or manufacturer data available). For fire alarm systems, the Contractor shall also provide the current version of fire alarm software and the version of software for any systems with which the fire alarm software interfaces. A digital photo of the manufacturer's nameplate shall be entered into NCMMS if no current photo is recorded and stored in NCMMS.
c. Maintain or implement the same asset identification system for new and replacement equipment compliant with NCMMS-readable national asset identification coding. Some asset identification systems include bar-coding, Radio Frequency identification or other equipment tagging.
d. Update equipment data when equipment is added, removed or retrofitted as part of a project, or discovered by GSA or the Contractor and log changes in accordance with provided NCMMS training.
e. Review and update equipment records, including asset information, maintenance records and preventive maintenance records, anytime maintenance is performed on a piece of equipment.
f. Use the workflow processes within NCMMS or alternate means approved by the CO or designee, to submit changes to the equipment inventory and preventive maintenance schedule within five business days of collecting and gathering equipment information and updating in NCMMS. All changes to equipment inventory and preventive maintenance schedule must be approved by the CO or designee.
g. For assets covered by an ESPC contract, check the "ESPC" box on NCMMS Asset page; collect and maintain ESPC contract information.

C.5.3.3 Reporting

The Contractor shall:

a. Provide all data to GSA in the NCMMS with certification that the inventory is complete and accurate.

b. Annually certify that the Maintained Equipment Inventory is up-to-date and submit the certified inventory to the CO or designee.
c. Contractor shall annually submit to the CO or designee an itemized equipment condition assessment with its recommendation for equipment or system upgrades or replacements (that has reached the end of their life cycle), including a text description of each recommended upgrade or replacement and its life-cycle cost analysis including estimated project cost. The equipment condition assessment reports shall be produced in NCMMS and submitted electronically as an email attachment to the CO or designee.

C.5.4 Safety Management

C.5.4.1 General

The Contractor shall comply with all applicable Federal, state and local laws and regulations that relate to the maintenance and operation of equipment and systems within the scope of this Contract including: permitting, plans, inspection, personnel safety, control of hazardous substances, certification, recordkeeping and training. Contract personnel shall wear proper personal protective equipment (PPE) to meet OSHA standards where required. Throughout the Contract period, the Contractor shall keep current and be aware of any changes in regulations and requirements and update its operations and training as necessary.

The Contractor shall immediately correct or mitigate any recognized safety or environmental hazard. The Contractor shall notify the COR, other designated Government representative, or appropriate authority if applicable. The Contractor shall be responsible for any fines or penalties levied by any environmental or regulatory authority resulting from its action or inaction, (but not actions or inactions of a third party or the Government).

C.5.4.2 Workplace Safety and Health Program

The Contractor shall develop a site-specific safety and health plan that specifically describes O&M work related to applicable safety programs required under 29 C.F.R. parts 1910 and 1926 and State and municipal safety and health requirements. Where there is a conflict between applicable regulations, the most stringent shall apply.

C.5.4.2.1 Reporting.

The site-specific safety and health program shall be submitted to the CO or designee for review and approval within 30 calendar days of Contract start date. By approving the program, GSA assumes no responsibility for the Contractor’s occupational safety and health program.

C.5.4.3 Scheduling and Record Keeping

The Contractor shall maintain copies of all tests, certifications, permits and other required records.

C.5.4.3.1 Reporting

All required safety tests, certifications, permits, plans, and other procedures required in

this PBWS shall be scheduled in the NCMMS Work Order system and documented in the NCMMS.

C.5.4.4 Fall Protection
The Contractor must provide fall protection equipment to its employees and all employees must be adequately trained in accordance with 29 C.F.R. 1910.28 and 1910.29. The Contractor shall develop specific fall protection procedures for work on roofs, equipment, and other areas at elevation.

C.5.4.5 Powered Platforms
The Contractor shall inspect, test, and maintain all federally owned permanently installed powered platforms in accordance with 29 C.F.R. 1910.66, and provide copies of such certifications to the COR. Aerial and scissor lifts, if used, must be inspected before each use in accordance with 29 C.F.R.1910.67 (c) (2) (i) and the manufacturers specifications.

C.5.4.6 Lock Out/Tag Out
The Contractor shall adhere to 29 C.F.R. 1910.147 lock out/tag out procedures. The Contractor's lock out/tag out procedures shall be developed and submitted to the CO or designee **within 30 calendar days** of Contract start date. Contractor shall communicate the lock out/tag out procedures to all employees and other affected Contractors.

C.5.4.7 Confined Spaces
The Contractor shall evaluate, identify and label all confined spaces in accordance with OSHA standards 29 CFR 1910.146. The Contractor shall develop a confined space entry permit system for all permit-required confined spaces within 60 calendar days of Contract start date.

C.5.4.8 Facility Hazards and Accidents
The Contractor shall take immediate action to report accidents and control hazards that present an imminent danger.

C.5.4.8.1 Hazards
The Contractor is responsible for ensuring safe working conditions and identifying hazards that exist in the work environment. When the Contractor identifies any hazardous work condition, regardless of cause, the Contractor he is responsible for protecting its employees from that hazard and correcting hazards under its control. Hazards not under the control of the Contractor, as well as all hazards that present an imminent danger, must be reported immediately to the CO.

C.5.4.8.2 Accidents
The Contractor shall immediately notify and provide copies of all accident reports to OSHA and to the CO or designee.

C.5.4.9 Disruptive or Hazardous Equipment

C.5.4.9.1 Tools

The CO or designee shall approve in advance the use of impact tools and power-actuated tools during Normal working Hours. Burning or welding equipment shall be used only with written permission from the facility management office or CO or designee. A Welding and Burning Permit (GSA Form 1755 or equivalent) shall be issued in advance for each day welding or burning is performed. Compress gas cylinders must be stored in accordance with 29 C.F.R.1910.101 and welding in a confined space requires specific confined space permitting requirements.

C.5.4.9.2 Hooks, Cranes, Hoists Chains and Slings

The Contractor shall inspect before each use and follow the inspection requirements in 29 C.F.R. 1910.184 and 1910.179 and ANSI B.30.10 as needed. Items that are defective shall be removed from service. The rated loads shall be listed on the devices.

C.5.4.10 Scheduled Disruption to Utilities, Lighting, Fire Protection & Life Safety Systems, or Space Conditioning

Any work that will disrupt utilities, fire protection and life safety systems, lighting or space conditioning for building tenants must be scheduled and approved in advance by the CO or designee and generally **must be performed outside of Normal Working Hours.**

C.5.4.11 Safety Data Sheets and Hazard Communication Plan

C.5.4.11.1 Safety Data Sheets

The Contractor shall make Safety Data Sheets (SDS) available to its employees in accordance with 29 C.F.R. 1910.1200 and upon request to the CO or designee.

C.5.4.11.2 Hazard Communication Plan

The Contractor shall develop a written Hazard Communication Plan in accordance with 29 C.F.R. 1910.1200 as part of its overall Health and Safety Program. The written plan applies to any hazardous chemical present in the area where the Contractor is working and to which the Contractor is or may be exposed to, under normal conditions of use. The plan must include the method the Contractor will use to provide other employers that shall also be exposed to the hazardous chemicals, knowledge of the locations where the Contractor's SDSs are kept and how access by other employers can be obtained. The Contractor shall prepare and submit a hazardous materials inventory as an appendix to the BOP and Hazardous Communication Plan. This inventory shall itemize all materials by type as sold with an SDS and include approximate quantities stored or to be stored as well as the exact locations where hazardous materials are to be stored on the premises and the date the material was stored. **The inventory must be kept current and submitted annually by September 30 of each year and at the end of the Contract**.

C.5.4.12 Labeling and signage

The Contractor shall maintain the labeling of existing equipment, pipes, storage areas, containers, confined space, and workspaces as well as associated signage, in accordance with OSHA standards to ensure labels are visible and easily readable. Any

equipment, pipes, and other materials, newly installed by the Contractor that require labeling and signage per OSHA standards shall be labeled immediately upon completion of the installation and maintained throughout the Contract period.

C.5.4.13 Emergency Shutdown Instructions
Emergency shutdown instructions (including contact name and telephone numbers) and tour inspection checklists and Lock-Out-Tag-Out procedures shall be posted by the Contractor in all mechanical rooms and electrical rooms, as applicable to the equipment in the given room. Such instructions and checklists shall be posted in an accessible and conspicuous location. All instructions and checklists must also be stored in the NCMMS.

C.5.4.14 Electrical Safety
The Contractor shall comply with NFPA 70: National Electrical Code and NFPA 70E: Standard for Electrical Safety in the Workplace, when working on or around electrical equipment or systems or switchgear equipment. The Contractor shall ensure that any and all areas restricted to qualified personnel are secured and properly labeled.

C.5.4.15 Labeling of Electrical Circuits and Panels
The labeling of the electrical circuits and panels shall be maintained up-to-date either in electronic format or hard copy blueprints when the Contractor adds or modifies electrical circuits. This requires the Contractor to implement and document an overall electrical safety program that meets the requirements outlined in NFPA 70E, Article 100 - General Requirements for an Electrical Safety Related Work Practice. The CO or designee shall ensure all recorded changes in electric panels from upgrades or renovations from the third party electrical work subcontractors are transmitted to the Contractor to maintain the accuracy of labeling. In the event the Contractor identifies a circuit through discovery, the Contractor must label the circuit in accordance with NFPA 70B.

C.5.5 Environmental Management

C.5.5.1 General
The Contractor shall use to the extent practicable, the safest and most environmentally friendly products and processes available. The Contractor shall use manufacturer recommended products. Before substituting for any manufacturer's recommended product, the Contractor shall ensure any substitution is deemed safe by the equipment manufacturer. A resource to help ensure this objective is located at the website in a document titled “Web Links” at: Operations and Maintenance Specification. The Contractor shall be cognizant of and comply with all applicable Federal, state, and local laws and regulations related to building management (*e.g.,* permitting, inspection, testing and personnel safety, control of hazardous substances, and certification) including those related to materials and associated systems used or removed in the performance of this Contract. The Contractor shall be responsible for any fines or penalties levied by any environmental or regulatory authority resulting from its action or inaction, (but not resulting from the actions or inactions of a third-party or the Federal Government). The Contractor’s maintenance, operations, materials and processes

must use green products and processes including products containing recycled content, environmentally sustainable products and services, bio-based products, and products and services that minimize the use of energy, water, and other resources. All required safety and environmental tests, certifications, permits, and other procedures required in this PBWS shall be scheduled in the NCMMS Work Order system.

C.5.5.2 Refrigerants

C.5.5.2.1 Operations
The Contractor shall comply with EPA section 608 regulations (40 C.F.R. part 82 under section 608 of the Clean Air Act) and associated state laws and regulations for refrigeration and air conditioning equipment. All HVAC mechanics performing repairs on refrigerated equipment shall possess a Universal Chlorofluorocarbon (CFC) Certification.

C.5.5.2.2 Maintenance (Refrigerant Recycling, Reclamation, and Disposal)
The Contractor shall evacuate refrigerant to EPA-specified levels, using a certified recovery and/or recycling machine, prior to disposing of refrigeration and air conditioning equipment. When disposing of refrigerants, the Contractor shall give preference to reclamation (to EPA-certified refrigerant reclaimers) as a method of disposal. The Contractor shall notify the CO or designee and obtain approval prior to selling or offering for sale used refrigerant evacuated from GSA equipment; and transferring recycled refrigerant between facilities for use in GSA equipment.

C.5.5.2.3 Testing/Inspections
The Contractor must maintain and test emergency devices and systems, such as refrigerant monitors, automatic leak detection systems, alarms and purge ventilation systems as part of the maintenance program. The Contractor must use appropriate media to test sensors as well as alarm circuitry. The Contractor shall calculate and document the leak rate every time refrigerant is added to equipment (unless the addition qualifies as a seasonal variance).

C.5.5.2.4 Reporting
The Contractor must immediately report refrigerant leaks, at or above a 10% leak rate, to the CO or designee and take corrective action to repair leaks prior to the EPA 30-day deadline in compliance with section 608 of the Clean Air Act. Repair of leaks shall be documented by both an initial verification test and a follow-up verification test.

C.5.5.3 Local Air Quality Management Operating Permits
The Contractor shall comply with the operating permit requirements of the Local Air Quality Management District (AQMD), and shall ensure operating permits for boilers; generators and other emissions-producing equipment regulated by the local AQMD are up-to-date and have copies available to the CO or designee via NCMMS immediately upon request. In the event of fines or penalties levied by an AQMD, the Contractor shall be charged the cost as a performance deduction under the Adjusting Payments clause. The Contractor shall submit emissions reports when required by the regulating entity.

C.5.5.4 Stationary Engines

The Contractor shall comply with all applicable Federal, state, and local regulatory requirements for the notification of compliance, periodic inspection, monitoring, permitting, certification, registration, maintenance, personnel training, recordkeeping and reporting for all regulated stationary engines. The Contractor must ensure compliance with New Source Performance Standards (NSPS) for Stationary Compression Ignition Internal Combustion Engines, 40 C.F.R. part 60, subpart IIII; NSPS for Stationary Spark Ignition Internal Combustion Engines, 40 C.F.R. part 60 subpart JJJJ, and National Emission Standards for Hazardous Air Pollutants for Stationary Reciprocating, 40 C.F.R. part 63 subpart ZZZZ.

C.5.5.5 Fuel Storage Tank Management

The Contractor shall comply with GSA Order 1095.2 PBS. “Fuel Storage Tank Management” and all applicable Federal, state, and local regulatory requirements for the periodic inspection, monitoring, permitting, certification, registration, maintenance, personnel training, and recordkeeping for underground and aboveground storage tanks. Where GSA policy and regulatory requirements differ regarding fuel storage tank management, the more stringent directive shall apply.

C.5.5.6 Contractor Generated Solid Waste (Applicable to this section)

The Contractor shall provide solid waste and recycling disposal services as needed and in accordance with the Resource Conservation and Recovery Act (RCRA) Subtitle C Hazardous Waste and Subtitle D Non-Hazardous Waste, associated EPA regulations (including 40 CFR Part 246), state and local recycling mandates, Executive Order 13834, and applicable GSA/PBS guidance provided by the COR. The Contractor shall aim to meet a minimum fifty percent (by weight) waste diversion target, to support achievement of GSA sustainability targets. The Contractor shall manage (handle, transport, collect, and dispose) non-hazardous construction and demolition (C&D) waste separately from municipal solid waste (trash). Recycling, composting (where feasible), and other alternatives to landfills and incineration are the preferred methods for disposal of all solid waste (C&D and trash).

C.5.5.7 Polychlorinated Biphenyl (PCB) Control

The Contractor shall inspect all transformers containing polychlorinated biphenyls (PCBs) and maintain records of such inspections in accordance with state, local, and EPA regulations. The CO or designee shall be notified immediately if any such equipment is found to contain PCBs, or suspected to contain PCBs. Equipment verified to contain PCBs, except lighting ballasts, shall be labeled as containing PCBs. Any transformer leaks of PCBs shall be reported immediately to the CO or designee. The Contractor shall inspect all leaks in accordance with state, local, and EPA regulations. The Contractor shall properly dispose of caulk that contains PCBs. The Contractor shall take immediate action to contain all leaks.

C.5.5.8 Asbestos Management

The Contractor shall be expected to perform, on occasion, Class III and Class IV asbestos work as defined in 29 C.F.R. 1926.1101. The Contractor shall be prepared to deal with asbestos on a small-scale, short-duration basis to effect emergency repairs

and to clean up small spills. The Contractor shall protect building tenants, visitors, and employees from asbestos exposure. The Contractor shall comply with applicable OSHA regulations and all applicable Federal, state, and local asbestos regulations. The Contractor shall immediately become familiar with, comply with, and recommend any appropriate changes to the Government Asbestos Management Plan for the building. If the Contractor disturbs materials its suspects may contain asbestos, the Contractor must immediately report the condition to the CO or designee. Contractor personnel who perform the above-mentioned work must have the appropriate training in accordance with 40 C.F.R. part 763, and the Contractor shall provide training records to demonstrate compliance, including respirator suitability medical and fit test reports with Personal Identification Information removed.

C.5.5.9 Disposition of Hazardous Waste

The Contractor shall ensure that on-site hazardous waste management is compliant with all regulatory accumulation requirements (*e.g.,* hold times, marking/labeling and container management). All Hazardous and Universal Waste shipping documentation shall be maintained for the life of the building. Universal Wastes (*i.e.,* fluorescent lamps, batteries, certain pesticides, and mercury-containing equipment) in quantities subject to Federal and State Universal Waste Rules (40 C.F.R. part 273) shall be recycled or disposed of as Hazardous Waste. Preference is given to recycling of intact items. Hazardous Wastes not subject to the Universal Wastes Rule shall be managed in accordance with all applicable parts of 40 C.F.R. part 260. As co-generators, the Contractor and Government mutually agree that the Contractor shall perform generator duties on behalf of both parties. Generator requirements include hazardous waste generation, handling, accumulation, shipment and disposal, and also include exception reporting as required. The Contractor must include the disposition of Hazardous and Universal Waste as a Work Order in NCMMS with documentation attached.

C.5.5.10 Backflow Prevention Devices

The Contractor shall maintain all existing backflow prevention devices and certify them as prescribed by applicable Federal, state, and local laws, ordinances, and regulations. If no local requirement exists, a certified inspector shall inspect all existing backflow prevention devices on an annual basis, record the inspection as a Work Order in the NCMMS and provide certification of proper operation to the CO or designee. A copy of the certification shall be posted at all backflow prevention devices. While the Federal Government shall generally pass on to the Contractor backflow testing notices received from local water districts or other local authorities, the Contractor is responsible for timely completion and submission of such test results regardless of receipt of such notices. In addition to other requirements, backflow prevention devices used on water-based fire suppression systems shall be inspected, tested, and maintained in accordance with NFPA 25.

C.5.5.11 Potable Water Systems

The Contractor shall comply with The Safe Drinking Water Act, PL 99-339, as amended, and the U.S. Environmental Protection Agency Safe Drinking Water regulations (40 C.F.R. 141.43, sections A and D), which address the quantity of lead allowable in new installations or repairs to existing drinking water systems and plumbing. Potable water

systems that are repaired, modified, serviced, or breached in any way shall be disinfected and flushed as needed prior to returning the system to service. The Contractor is required to comply with all applicable Federal, state, local codes, GSA Order PBS 1000.7- Drinking Water Quality Management and the PBS Desk Guide for Drinking Water Quality Management, in the operation, treatment, and testing of potable water systems.

C.5.5.12 Reporting

The Contractor shall provide all necessary information required in this subsection to comply with environmental and reporting requirements, and agency sustainability goals in this specification. The Contractor shall submit to the CO or designee the following reports.

(a) **Waste Reports**. The Contractor shall submit a monthly report on waste handling activities including disposal and recycling. The report shall contain shipping information for hazardous and non-hazardous waste and be submitted by the 15th of each month and upon request by the CO or designee. The report must include the waste type, name and final disposition destination. All Hazardous and Universal Waste shipping documentation shall be maintained for the life of the building. If the Contractor performs non-hazardous solid waste management for the entire building, they shall also report on these solid waste and recycling activities.

(b) **Environmental Compliance**. The Contractor shall collect and retain requisite data to produce and make mandatory reports required by environmental regulatory agencies including GSA programs, directives and orders, or as necessary to demonstrate ongoing compliance with environmental regulatory operational requirements. These reports include waste generation, shipment and disposal, hazardous materials storage (Tier II/Emergency Planning and Community Right-to-Know Act reporting), release reporting, fuel tank registration, operator training records, and notices of compliance for reciprocating internal combustion engines.

(c) **Sustainable Purchasing Practices**. The Contractor shall submit information on sustainable purchasing practices specific to the performance of this Contract. Records showing the monthly cost of sustainable cleaning products and materials purchased must be provided to the United States Department of Agriculture and copies to the CO or designee as required by RCRA. The Contractor shall select from products that are EPA-designated (*e.g.* Comprehensive Procurement Guidelines [CPG]) and USDA-designated in the BioPreferred Program refer to the web site in document titled “Web Links” at: Operations and Maintenance Specification, and all other factors (such as price, performance, and availability) being equal, the Contractor shall select the CPG item. For other purchases, unless the Contractor receives an exemption from the CO or designee, the Contractor shall select USDA designated in the BioPreferred Program, products over products with other sustainable attributes. Guidance for products designated under Federal sustainable product programs – USDA Biopreferred, EPA CPG, EPA Design for the Environment, and Department of Energy, Energy Star and FEMP - can

be found at the website in a document titled Web Links" at: Operations and Maintenance Specification. Sustainable products designated under third-party programs include but not limited to Green Seal, Eco Logo, and Environmental Choice. For those categories of products not recognized by one of the aforementioned standard's, preference shall be given to products meeting the California Code of Regulations maximum allowable Volatile Organic Compounds (VOC) levels for the appropriate cleaning product category (California Air Resource Board/California Code of Regulations (CCR), 17, C.C.R. section 94509 – (Topic cited; Standards for consumer products at the website in "Web Links" at: Operations and Maintenance Specification.

C.5.6 Energy and Water Efficiency

C.5.6.1 General

The Contractor shall operate equipment and systems per design as efficiently as possible without compromising service to the tenants.

C.5.6.2 Operations

The Contractor shall make full use of available analytic tools (*e.g.,* BAS, Niagara, AMS, GSAlink data, PNNL E4 reports and GSA Rapid Assessment results, as applicable) to diagnose problems and identify operational improvements. When equipment is being replaced, the Contractor, in coordination with the CO or designee, shall pursue the use of energy-efficient replacement parts and equipment items (not limited to Energy Star ® or FEMP-designated Energy Efficient products, WaterSense, Safer Choice products) that shall meet or exceed the requirements of this statement of work. Any rebates received from a service utility provider or Contractor shall be assigned to the Government.

C.5.6.3 Reporting

On a monthly basis the Contractor shall read and record all available utility and fuel meters (electric, gas, diesel fuel levels, water, cooling tower water makeup, irrigation, etc.) and include in the monthly progress report. The Contractor shall use the Energy and Water Efficiency Monthly Report format (see Exhibit 2). The Contractor shall report monthly energy and water usage as compared to the previous year and to explain usage trends. The report shall be submitted to the CO or designee by the 5th business day of the subsequent month.

C.5.7 Advanced Metering Systems

The following buildings contain advanced metering systems:

Manufacturer: Honeywell, Tridium.

Columbia Port of Entry, Termination of SH 255, Laredo, TX	**0702083**
Convent Port of Entry, 100 Convent Ave, Laredo, TX	**07020837**
Juarez-Lincoln Port of Entry, Termination of I-35, Laredo, TX	**07020841**
World Trade Port of Entry, 715 Bob Bullock Loop, Laredo, TX	**07020849**
Border Patrol Sector Headquarters,207 W. Del Mar, Laredo, TX	**07020824**
U S Courthouse, 1300 Victoria Street, Laredo, TX	**TX0311ZZ**

C.5.7.1 General

The purpose of the AMS is to monitor, identify and implement opportunities to reduce energy usage at the building(s) and, in some cases, to verify that the utility companies are billing correctly. In many cases, the AMS shall be connected to the BAS. It shall be the Contractor's responsibility to partner with GSA to utilize fully the AMS to develop and implement strategies that will result in an overall reduction in energy consumption.

C.5.7.2 Operations

The Contractor shall verify daily that each of the advanced meter(s) are functioning properly and are communicating to the regional and Central Office server, as applicable, and are accessible via end-user interface (currently ION Enterprise Energy Management). Where advanced meters are connected through the BAS, the Contractor shall verify daily proper information and data sharing.

C.5.7.3 Maintenance

The Contractor is responsible for correcting immediately any onsite communication failure to mitigate any loss of data. The Contractor shall create a Work Order in NCMMS to track communication failure resolution. In the event of an onsite communications failure or data loss, the Contractor shall refer to both the manufacturers and GSA's troubleshooting guides. If this does not resolve the issue, and advanced troubleshooting is necessary, the Contractor shall take the next step within 72 hours of occurrence. For advanced troubleshooting, the Contractor shall contact GSA's OFM Energy Division's Advanced Metering Support, guidance can be found at the website in a document titled "Web Links" at: Operations and Maintenance Specification and inform the COR. The advanced metering support team shall coordinate with GSA IT support or vendors as necessary to assist the Contractor with getting the meter(s) back online. The regional advanced metering lead shall be the Contractor's main point of contact for Fadvanced metering issues. The Contractor shall add or update Advanced Meter Asset and Location information in NCMMS. The Contractor shall be responsible for the re-commissioning, which includes the calibration of the advanced meters in accordance with the manufacturer's recommended frequency or sooner, if there is evidence that the meters are not reading correctly. If advanced meters cannot be calibrated by design, the Contractor shall notify the COR when the meter is not performing as designed. Meter recommissioning documentation shall be submitted as a Work Order via the NCMMS. Where weather sensing equipment is installed as part of the AMS, the Contractor shall ensure proper daily communication.

C.5.7.4 Reporting

Contractor will be responsible for comparing monthly consumption collected by the AMS to the actual utility bill consumption as a part of its ongoing monitoring efforts. Variances of more than 10% shall be reported to the GSA Energy Division, the COR and the Regional Advanced Metering Lead who will assist with resolving the discrepancy. As a part of the re-commissioning of meters previously offline, the Contractor shall confirm that all changes have been documented and updated on network diagrams, including any changes in Internet Protocol (IP) addresses. The

Contractor shall be responsible for recording recalibration of advanced metering equipment in the Monthly Report and recorded in the NCMMS.

C.5.8 Building Automation Systems and IT Controls

C.5.8.1 General

The automatic centralized control of a building's HVAC, lighting and other systems are managed through a BAS and may also be referenced as Building Monitoring and Control Systems. The objectives of building automation are improved occupant comfort, efficient operation of building systems, reduction in energy consumption and operating costs, and improved life-cycle of equipment. BAS core functionality keeps building climate within a specified range, provides light to rooms based on an occupancy schedule (in the absence of overt switches to the contrary), monitors performance and device failures in all systems, and provides malfunction alarms to building maintenance staff. The intent of a BAS is to reduce building energy and maintenance costs. The Contractor must retain levels of expertise necessary to manage the control systems in a manner that meets the objectives of this Contract either by retaining on staff a factory trained and certified technician or subcontracting with the BAS vendor for services. The Contractor must establish disaster recovery plans for loss of connectivity to the BAS and procedures to operate the building systems manually.

C.5.8.2 Operations

Equipment shall be operated according to the established sequence of operation for the BAS. The Contractor is responsible for notifying the CO or designee if a sequence of operations, equipment or schedule is not operating as designed or at the highest efficiency and resulting in unnecessary energy use. The Contractor is responsible for retaining an adequate level of expertise to manage the control systems. If the Contractor does not have a manufacturer trained or equivalent BAS operator onsite, the Contractor shall enter into a subcontract, including regular scheduled support (not merely support on a contingency basis), or remote access (where available and subject to GSA IT governance security clearances and training), with a firm that has these skills. This subcontract shall include regularly scheduled maintenance, including sequence of operation tuning, calibration; BAS log review, and other BAS system maintenance. The Contractor shall monitor the BAS for alarms at all times. A BAS alarm after Normal Working Hours that impacts the building operations must be corrected under emergency call back Work Order service and recorded in the NCMMS. GSA-IT shall be entering asset information for IP-enabled BAS controllers that are connected to the GSA network.

All computers networked with building monitoring and control systems located inside GSA facilities, or that provide storage of and access to GSA data, including data related to energy usage, industrial systems controls, physical access controls, and lighting controls, are required to be hosted exclusively on GSA’s physical network and system infrastructure, unless otherwise accepted by CO or designee.

The Contractor shall maintain the following minimum standards described below.

C.5.8.2.1 GSA-hosted Systems Requirements

The Contractor shall**:**

a. Ensure building monitoring and control systems, applications and devices are implemented as designated in the PBS P-100 Design Standard (current version) and the PBS Building Technical Reference Guide, including OFM BAS standards and specifications. Additionally, all Government IT systems are required to meet FISMA standards for IT security.
b. Ensure that all IP addressable devices, appliances or software that shall communicate over the GSA network are assessed and have all identified vulnerabilities remediated in order to be approved by GSA-IT Security for use on the GSA network. For more details, please refer to the Building Technologies Technical Reference Guide.
c. Ensure that all devices or groups of devices that communicate with GSA system data and use wireless or radio frequency (RF) based communications are subject to all GSA IT Security policies related to the use of wireless technology. This policy establishes the requirement that these devices be submitted for IT security testing and remediation in order to receive approval for use at GSA.
d. Ensure that all building systems software (server and client) are hosted on Government furnished equipment (GFE), including GSA virtual server or GSA provided desktop/laptop workstations.
e. Ensure that all IP traffic is managed by GSA, and IP addresses, as well as all routing and switching equipment, shall be furnished exclusively by GSA.
f. Be responsible for supporting all cabled pathways connected to GSA's network including copper and fiber cabling, necessary to enable IP network communication among system devices and network components, and all break/fix requirements. All new cabling, including break/fix, shall be installed in accordance with the PBS Telecommunications Distribution and Design Guide. The Contractor is not responsible for interconnecting cabling of the GSA onsite network components.
g. Ensure that the Contractor staff receives preliminary favorable and ultimately completely favorable adjudication of their Tier 1 clearance in accordance with the HSPD-12 directive to obtain a GSA ENT user credential, which is required for all system access. All elevated access requires Tier II clearance.
h. Ensure that at no time a GSA hosted building monitoring and control system is made accessible to the public internet or via any third party network connection.
i. Be aware of building systems running on GSA IP Enterprise Network and be capable of initiating troubleshooting, if network communications is suspect. This means being familiar with the procedure for logging GSA IT Help Desk tickets and following up to ensure the ticket is being worked by the assigned party.

C.5.8.2.2 Excepted Systems Requirements (not hosted on GSA's system infrastructure)

The Contractor shall:

a. Ensure the CO or designee approved antivirus software subscription is kept in effect and the software used is current at all times.

b. Ensure all Contractors provided software that has an End User License Agreement is presented to and approved by the CO or designee before that software is purchased.
c. Ensure Contractor personnel do not use the BAS system to connect to websites.
d. Ensure antivirus and spyware scans are conducted monthly.
e. Be responsible for keeping all workstation and server operating systems updated, including Windows (or other operating system), Java, Adobe, and all other standard software. Critical updates shall be downloaded and installed monthly.
f. Ensure complete data backup to a CD, DVD or flash drive, including trend logs and control software, is conducted whenever a software or programming change is made but no less frequently than monthly.
g. Ensure disk drive maintenance, including defragmentation, is performed quarterly.
h. Be responsible for software, licenses and security updates to all Contractor provided systems devices.
i. Ensure a proper Configuration Management Plan is in place for the BAS devices and applications so the system can be supported.
j. Ensure there is strong encryption on devices and applications for safeguarding sensitive data and login credentials.
k. Ensure unnecessary services are disabled *(e.g.,* FTP and Telnet) to protect the system from unnecessary access and a potential exposure point by a malicious attacker.
l. Ensure unnecessary open ports are closed or blocked to secure against unprivileged access.
m. Protect against Cross-Site Scripting, which is a common vulnerability in web applications where an attacker can compromise or take control of a site.
n. Enforce Least Privilege, where proper permissions are enforced on a device or application so that a malicious attacker cannot gain access to all data. Enforcing Least Privilege shall only allow users to access data they are allowed to see.
o. Protect against Insufficient User Access Auditing, where device or application does not have a mechanism to log/track activity by user.
p. Not use the use of end-of-life systems and application/system software that is no longer supported by the manufacturer.
q. Use the latest, supported and approved operating systems.
r. Ensure that all proposed standard installation, operation, maintenance, updates, and patching of software do not alter the configuration settings from the approved United States Government Configuration Baseline.
s. Ensure that the use of commercially-provisioned circuits to manage building systems is strictly prohibited. All circuits shall be provisioned through GSA IT.
t. Ensure the workstation or server running building monitor and control system is not connected to the public internet (Trusted Internet requirement of the 2100.1 order). The system shall not be accessible from remotely.
u. Adhere to GSA-IT Security Procedural Guide, CIO-IT Security-16-76, Building Technologies Technical Reference Guide, NIST IT Security Special Publications.

v. Ensure all IP-enabled devices and applications are approved by GSA-IT Security before they are installed or connected on the GSA network.
w. Provide a network diagram of all IP-addressable devices that terminate on the GSA network to the GSA IT program managers. GSA IT shall be included in the design phase of the network infrastructure. Vendor-provided diagrams must be submitted in digital display and in an editable format, such as Microsoft Visio.
x. Provide documentation and assist GSA-IT and PBS with performing disaster recovery so that systems can function on the local area network (LAN) in an event of an outage.

C.5.8.3 Maintenances

C.5.8.3.1 BAS Control Systems and Upgrades

BAS Control Systems shall be maintained as designed and updated when required, including data point and graphics, as applicable. The Contractor shall perform maintenance required to ensure that all BAS devices function properly and repair or replace components that fail. The Contractor shall procure for BAS software and firmware updates and security patches sufficient to keep the system up-to-date with current versions of that application and field device controllers to address any known security vulnerabilities with that application software or device firmware. The Contractor shall, via qualified 3rd party, (Ref C.1.2.7.5) to procure software maintenance agreements for all BAS equipment within 90 days of award, and on an annual basis during the entire contract term. The contractor will also ensure that 3rd party qualified vendor update firmware and cyber security patches within 90 days of award and every quarter thereafter within the term of contract. Cyber security patches are defined as a software patch supplied by BAS vendors that ensures that all devices are updated with the latest industry standard cyber security software. Contractor will ensure that 3rd party qualified vendors complete JACE software updates as required to ensure that building BAS is up to date and able to maintain connectivity to GSA Niagara BAS system. GSA reserves the right to remove this scope from the Contract at any time and furnish its own software maintenance contract with the application manufacturer or its authorized partners. Regardless of which party procures the required software maintenance, the Contractor is responsible for supporting the testing of all application, firmware, operating system, and database software patches.

The Contractor shall not directly upgrade or patch any BAS device independent of qualified support from the manufacturer or its representative, but will use a qualified 3rd party vendor, and then and only after consultation with GSA. The Contractor shall cooperate with GSA and the BAS 3rd party contractor to facilitate any upgrades GSA deems necessary for the functionality or security of the BAS. The Government reserves the right to upgrade or change control system software or reprogram control systems during the performance period of the Contract. The Contractor shall not modify sequences of operation or control programs or run systems manually without prior approval of the CO or designee in consultation with regional subject matter expert (SME). When sequence of operation changes are approved, the Contractor shall provide accurate edits to the sequence of operation to document the changes made.

C.5.8.3.2 BAS Alarms

BAS alarms shall be treated as Work Orders and responded to accordingly. Any adjustments to set points to accommodate tenant comfort shall be approved in advance by the CO or designee. Repetitive or associated alarms shall be treated in the aggregate and tracked under the Work Order system established in the NCMMS. Communications for alarms set up for remote notification shall be tested on a recurring basis.

C.5.8.4 Testing/Inspecting

The Contractor shall conduct the six-step re-tuning procedure described in the Pacific Northwest National Laboratory (http://retuningtraining.labworks.org/training/lms/). If Contractor does not have adequate level of expertise to complete Re-tuning, all requirements shall be included in the BAS maintenance sub-contract. The initial frequency of the re-tuning is semi-annually to coincide with the heating and cooling seasons. After completing two re-tuning cycles the CO or designee in consultation with the Contractor shall determine the appropriate frequency of the re-tuning effort based on the size and complexity of the facility. Re-tuning shall be reported to the CO or designee and regional SME and documented in the monthly report. The re-tuning report shall include any Contractor suggestions and corrective actions.

C.5.8.5 Reporting

Deficiencies in the BAS system operations shall be identified by BAS trending, GSAlink or Contractor's tours. All deficiencies shall be reported to the CO or designee immediately and documented and included in the monthly report. BAS alarms logs shall be included in the monthly report to show that they are being addressed. These logs shall include unique usernames for the operator addressing the alarm.

C.5.8.6 Smart Building Technology

GSA PBS has several programs in development and at various stages of implementation. One of these programs includes Smart Building technologies. A key objective of implementing Smart Technologies in GSA buildings is to capture and make available more real-time performance data about the individual building systems (*e.g.,* HVAC/BAS, lighting, and Advanced Meters). This data shall be made available to the Contractor and as GSA analyzes this new trend of monitoring building performance at a detailed level, building support personnel engagement shall increase in significance over time. The Contractor is advised that tools, processes, data, and some procedures shall be modified to meet GSA requirements for long-term improved operational efficiencies. The Contractor shall continue to monitor developments in this area as more buildings in the GSA portfolio deploy Smart Technologies.

New building technologies, and their convergence with traditional information technology, have altered the way in which facilities can be monitored, maintained, and operated. Trends in building systems technology have provided opportunities in the market place to alter the way facilities managers use real-time data to operate their facilities more efficiently. Building systems are getting increasingly more dependent on software, IT networks (physical and wireless), servers, internet access, and cloud-based/hosted solutions. This shift in domain expertise has outpaced traditional design and construction practices. As a result, building operations and maintenance

staff need to adapt, be more proactive, and leverage the availability of real-time data to help them perform building systems support more effectively. This shall involve more thorough planning and redefining some processes, procedures, and job roles to better operate the facilities that have newer technology-based systems.

GSA is fielding diagnostic and optimization software to detect problems and inefficiencies in equipment operation. The Contractor shall act on the recommendations of such diagnostic and optimization software reporting. This shall include using the results of the diagnostic and optimization software to generate a Work Order, or to respond to a Work Order automatically generated by the diagnostic program application. The Contractor involved in diagnostic software programs shall provide status updates of diagnostic results and attend monthly meetings to report and troubleshoot diagnostic test results.

C.5.9 Fire Protection and Life Safety Equipment and Systems

C.5.9.1 General

The Contractor shall use the current NFPA codes and standards as stated in this subsection to perform inspections, testing, and preventive maintenance of fire protection and life safety systems and equipment and all test results and certifications shall be recorded. The Contractor shall not make any software upgrades or corrections to the Fire Protection Systems without prior approval and coordination of the GSA Regional Fire Protection Engineer. The Contractor shall:

a. Utilize the latest edition of the applicable NFPA code or standard.
b. Ensure all fire protection and life safety systems, equipment, and markings are kept operational at all times, except while being tested or repaired.
c. In the event fire protection and life safety equipment is not returned to operational condition, notify the CO or designee and provide a fire watch.
d. Ensure all maintenance and pre-planned impairments of the fire protection and life safety systems and equipment have been authorized and approved by the CO or designee prior to the Contractor performing any work.
e. Comply with all appropriate safety code requirements. If the Contractor encounters equipment that is in a condition that shall endanger life or property, the Contractor shall immediately notify the CO or designee of the condition requiring immediate action. Within 24 hours following the notification of the CO, the Contractor shall provide to the CO or designee a written report of the hazardous condition and recommended corrective action.
f. Enter into NCMMS as a Work Order any deficiency identified by the Contractor during a required inspection; evidence of correcting such deficiency, unless funding is not available, shall be provided with the subsequent Contractor’s Monthly Progress Report after correction action is completed.
g. Provide all tools, supplies and equipment necessary to inspect, test, and maintain the fire protection and life safety equipment and systems in accordance with applicable NFPA codes or standards.

C.5.9.2 Fire Alarm System Services and Emergency Communication Systems

The Contractor shall ensure compliance with NFPA 72, National Fire Alarm and Signaling Code, in the performance, inspection, testing, acceptance, and preventive maintenance or repair of fire alarm and notification systems, equipment and components of said systems and all other ancillary devices that operate related equipment. The Contractor shall maintain Remote Supervising Station monitoring service equipment, all fire alarm transmitters and related equipment.

Fire alarm system or emergency communications system inspection, testing, maintenance, and repair shall be performed during normal working hours when it does not interfere with building or tenant operations. Testing that activates notification devices, initiates elevator recall or activates HVAC shutdown shall always be tested after hours. When such inspection, testing, maintenance, or repair is expected to interfere with building or tenant operations, it shall be performed after normal working hours without additional costs to the Government. The Contractor shall schedule with the GSA Facility Manager and the CO or designee all testing and non-emergency shutdowns of such systems and assure that back-up protection is provided by the Contractor (i.e., arrangement of additional personnel stationed in the areas affected and at the fire alarm system control unit or emergency communications control unit) any time such system is temporarily out of service.

When impairments to the systems occur or when impairments are identified during inspection, testing or maintenance activities, the Contractor shall inform the GSA Facility Manager and the CO or designee immediately. The Contractor shall follow the impairment procedures outlined in NFPA 72 and provide a fire watch in areas left unprotected. The fire watch shall remain in place until the systems are completely restored during the performance of routine service and testing procedures. If fire watches are required, the labor costs of fire watches as part of the repair costs are reimbursable less the reimbursable repair threshold.

When unwanted fire alarm system activations occur, without additional expense to the Government, the Contractor shall be liable for all local fees associated with unwanted fire alarm system activations that are caused by the Contractor and require local jurisdiction fire department response to the building.

The Contractor will report unwanted fire alarms to the CO or designee at the close of each business day and provide the follow information: the approximate time, date and location of the system activation, a brief description of the fire alarm system activation, including initial device activation, location of initial device, a brief reason for why the fire alarm system activated (if known), how the fire department was notified and what time they arrived on scene, an approximate count of how many building occupants evacuated the building and for how long in minutes.

C.5.9.3 Water-Based Fire Protection Systems

The Contractor shall ensure compliance with NFPA 25 in the inspection, testing and maintenance and repair of water-based fire protection systems, and in the performance; inspection, testing, preventive maintenance and repair of all devices that are components of water-based fire suppression systems.

Water-based fire protection system inspection, testing, preventive maintenance, and repair shall be performed during Normal Working Hours when it does not interfere with building operations. When such inspection, testing, preventive maintenance, or repair is expected to interfere with building operations; it shall be performed after normal working hours without additional costs to the Government. The Contractor shall schedule with the Facility Manager and the CO or designee all non-emergency shutdowns of the water-based fire protection system and back-up protection shall be provided by the Contractor any time the water-based fire protection system is expected to be out of service for more than 10 hours. When a water-based fire protection system is returned to service, it shall be verified that the system is working properly in accordance with the component action requirements in NFPA 25.

When impairments to the system occur or when impairments are identified during inspection, testing, or preventive maintenance activities, the Contractor shall inform the GSA Facility Manager and the CO or designee immediately. The Contractor shall follow the impairment procedures outlined in NFPA 25 and provide a fire watch in areas left unprotected or if the system is out of service for more than 10 hours in a 24-hour period. The fire watch shall remain in place until the water-based fire protection system is completely restored to service. Note: Temporarily shutting down a system as part of performing the routine inspection, testing, preventive maintenance or repair on that system while under constant attendance by qualified personnel and where the system can be restored to service shall not be considered impairment.

C.5.9.4 Fire-rated Door Assemblies
The Contractor shall ensure compliance with NFPA 80, Standard for Fire Doors and Other Opening Protectives, in the inspection, testing, preventive maintenance and repairs of all fire-rated door assemblies. Please note that the inspection of fire-rated door assemblies shall also meet the requirements in NFPA 101, Life Safety Code.

C.5.9.5 Fire Damper and Combination Fire/Smoke Dampers
The Contractor shall ensure compliance with the NFPA 80, Standard for Fire Doors and Other Opening Protectives, in the inspection, testing, maintenance and repair of all fire dampers, radiation dampers, and combination fire/smoke dampers. Please note that maintenance of combination fire/smoke dampers shall also meet the requirements contained in NFPA 105, Standard for the Installation of Smoke Door Assemblies and Other Opening Protectives.

C.5.9.6 Smoke Doors Assemblies
The Contractor shall ensure compliance with the NFPA 105, Standard for the Installation of Smoke Door Assemblies and Other Opening Protectives, in the inspection, testing, preventive maintenance and repair of all smoke door assemblies.

C.5.9.7 Smoke Dampers
The Contractor shall ensure compliance with NFPA 105, Standard for the Installation of Smoke Door Assemblies and Other Opening Protectives, in the inspection, testing, preventive maintenance and repairs of all smoke dampers.

C.5.9.8 Portable Fire Extinguishers

The Contractor shall ensure compliance with NFPA 10, Standard for Portable Fire Extinguishers; in the inspection, testing, preventive maintenance and repairs of all portable fire extinguishers.

C.5.9.9 Non-Water-Based Fire Extinguishing Systems
The Contractor shall ensure compliance with the following specified codes in the inspection, testing, preventive maintenance and repairs of the following types of non-water-based fire extinguishing systems:

a. Carbon dioxide extinguishing systems, NFPA 12, Standard on Carbon Dioxide Extinguishing Systems.
b. Halogenated extinguishing systems, NFPA 12A, Standard on Halon 1301 Fire Extinguishing Systems.
c. Dry chemical extinguishing systems, NFPA 17, Standard for Dry Chemical Extinguishing Systems.
d. Wet chemical extinguishing systems, NFPA 17A, Standard for Wet Chemical Extinguishing Systems.
e. Fire extinguishing systems, NFPA 96, Standard for Ventilation Control and Fire Protection of Commercial Cooking Operations.
f. Clean agent fire extinguishing systems, NFPA 2001, Standard for Clean Agent Fire Extinguishing Systems.

C.5.9.10 Smoke Control Systems
The Contractor shall ensure compliance with NFPA 92, Standard for Smoke Control Systems, in the inspection, testing, preventive maintenance and repairs of smoke control systems.

C.5.9.11 Emergency and Standby Power Systems
The Contractor shall ensure compliance with the following specified codes in the inspection, testing, preventive maintenance, repairs and exercising of equipment per the manufacturer’s recommendations for the following types of emergency and standby power systems:

a. Emergency power supply systems, NFPA 110, Standard for Emergency and Standby Power Systems.
b. Stored electrical energy emergency and standby power systems, NFPA 111, Standard on Stored Electrical Energy Emergency and Standby Power Systems.

C.5.9.12 Emergency Lighting Systems and Exit Signage
The Contractor shall ensure compliance with NFPA 101, Life Safety Code, in the inspection, testing, preventive maintenance and repair for purchasing systems and signage to bring the building up to code of emergency lighting systems, emergency lighting equipment, and exit egress marking systems.

C.5.9.13 Fire Resistance Rated Construction
The Contractor shall ensure compliance with the International Fire Code and NFPA 221 in the inspection, preventive maintenance, repair or installation of new systems and assemblies used for structural fire resistance, fire resistance rated-construction

separation of adjacent spaces and construction installed to resist the passage of smoke to safeguard against the spread of fire and smoke within a building and the spread of fire to or from buildings. All materials and fire-stop systems provided or maintained under this Contract shall comply with these codes.

Materials and fire-stop systems used to protect membrane and through penetrations along with joints and voids in fire resistance-rated construction and construction installed to resist the passage of smoke shall be maintained. The materials and fire-stop systems shall be securely attached to or bonded to the construction being penetrated with no openings visible through or into the cavity of the construction. Where the system design number is known, the system shall be inspected to the listing criteria and manufacturer's installation instructions.

The Contractor shall notify the Facility Manager and the CO or designee of areas in the building that firestop systems are lacking or compromised.

C.5.9.14 Lightning Protection Systems

The Contractor shall ensure compliance with the inspection, testing, maintenance and repair of lightning protection systems in accordance with NFPA 780 - Standard for the Installation of Lightning Protection Systems.

C.5.9.15 Chemical Sensors

The Contractor shall be responsible for the testing, maintenance and repair of chemical sensor equipment as required by the manufacturer's recommendations. Those tests shall be conducted by a certified manufacturer's representative. HVAC unit shutdowns and damper shutdowns required as a result of a trip of the chemical sensor system shall be inspected and documented. All documentation of the testing including the chemical sensor, HVAC shutdown, and proper damper operation shall be documented in NCMMS within 48 hours of test conclusion.

C.5.10 TOURS

C.5.10.1 General

The Contractor shall tour major building systems, equipment, tanks and anything requiring tours mandated by any acts, codes or regulations as contained in this PBWS or any state or local requirements. To accomplish this objective the Contractor shall develop a Tour Plan and submit it to the CO or designee for approval, no later than end of Startup or transition phase. With the advent of technology and innovation a "tour" is no longer exclusive to the physical walks. A tour shall be a part, or a combination of physical visits and automated systems. Tours are an opportunity to view equipment in different phases of operation, make adjustments, validate controls, verify set points, check efficiency, physical condition of mechanical space, and overall safety. It is not the intention of the Government to overly prescribe tour frequencies or methodologies; instead, the Contractor is expected to develop tours at frequencies and using methodologies that are of value to operations, inclusive of analytical decision making intended to optimize operations based on real time performance data.

C.5.10.2 Proactive Facility Tours

The Contractor shall conduct periodic tours of the building to identify proactively and remedy any issues pertaining to lighting, bathroom fixtures, and other tenant environmental comfort concerns. The tours shall seek to work in conjunction with the Contractor's energy conservation efforts, proactive Work Orders, and equipment condition assessments. All findings noted during the tour shall be tracked and a Work Order shall be initiated for corrective action by the Contractor.

C.5.10.3 Minimum Tour Frequencies

a. Daily: Major HVAC equipment (when in operation), including boilers, chillers, cooling towers, pneumatic control air compressors, air handler rooms, main switchgear and primary electrical equipment rooms, fire alarm system and control panels (fire alarm system control panels shall not have any unwanted trouble conditions), steam system and reducing and regulating stations, and special HVAC and uninterruptible power systems for critical functions.
b. Weekly: Distributed HVAC equipment including package units and external condensers, pumps, motors, sewage ejectors, fire pumps, condensate drip pans and generators. Incorporate moisture control tours to prevent building damage, minimize mold contamination, illuminate leaks, and reduce health risks related to moisture.
c. Twice per Month: Battery systems.
d. Monthly: Transformers, secondary electrical rooms, switchgear, and primary electrical equipment rooms.

C.5.10.4 Monitoring of Central Plant Equipment

Where central plant equipment equipment (chillers over 60 tons) capacity, boilers over 15 pounds per square inch (psi) is not (1) controlled by a programmed Sequence of Operations in a BAS, (2) or capable of daily tracking and trending of the operations in the plant or (3) centrally alarmed with alarm paging and operational watch procedures, in addition to tour requirements specified elsewhere in this PBWS, the Contractor shall ensure the following is performed:

a. Monitor the starting, stopping and loading of equipment.
b. Check all operating equipment in the watch area every two hours.
c. Record operating data in appropriate logs or records every two hours.
d. Make adjustments at the central control panel in response to changing operating conditions.

C.5.10.5 Operating Logs and Tour Check Sheets

Contractor shall maintain Operating Logs and Tour Sheets as part of the data for major equipment. Documentation shall be completed at the time of tours. Information recorded in the logs shall be sufficient to track the operating hours and performance history of the equipment. Records shall be kept of tours and action items needed based upon tour discovery. As such, Operating Logs and Tour Sheets shall be a part of the Tour Plan and a Tour Sheet shall be established for any space identified as requiring a tour. The Contractor shall upon request make the operating logs and tour sheets available for inspection by the CO or designee.

A Tour Sheet shall contain at a minimum:

a. General space condition and annotate any discrepancies.
b. Identify broken/inoperable equipment and capture Work Order status.
c. Accurately reflect equipment inspected during tour.
d. Capture operating data of identified equipment.
e. Status in regards to operational parameters.

Contractor shall evaluate discrepancies in Operating Logs and Tour Sheets and the operational performance shall be investigated and repaired when necessary. All work performed on equipment as a result of a tour inspection shall have a Work Order generated in the NCMMS.

The O&M Contractor shall submit to the CO, or designee, a proposed Operating Logs and Tour Sheets for approval prior to implementing the Tour Plan.

C.5.10.6 Reporting

Problems or conditions that shall potentially affect the efficient operation of the building or create a negative impact on the tenant shall be immediately reported to the CO or designee.

C.5.11 Repairs

C.5.11.1 General

A “repair” is an act of restoring inoperable, dysfunctional or deteriorated equipment, systems, or material to a fully functional, non-deteriorated state. Repairs involve some combination of labor and repair or replacement of the equipment, parts, components or materials.

The Contractor shall perform reimbursable and non-reimbursable repairs as defined in subsection 5.11 of the PBWS. Repairs are handled on a shared liability basis. This contract has a shared liability amount threshold which means the Contractor is responsible for the first **$2,500** of the repair costs. The intent of this Contract is to ensure that most repairs are accomplished by Contractor personnel. However, the Government recognizes that occasionally there are certain specialized repairs that require specialized skills outside the skill sets of the Contractor personnel. If the Contractor identifies a repair that it believes is of such a specialized nature that a specialized subcontractor is required to complete the repair properly, the Contractor shall provide written justification in advance, to the CO or designee, for approval of the need to use a subcontractor. If approved, the cost of the subcontractor’s labor and material shall be treated as a repair part for the purposes of calculating the repair cost. Shared liability shall not apply when repairs are required as a result of Contractor (or subcontractor) negligence. In such instances, the Contractor shall be responsible for all costs associated with the repair.

Any replacement parts used during the course of this Contract shall be of comparable or higher quality and efficiency. Replacement parts shall be like/comparable parts (parts must be from the same manufacturer of major building equipment). Parts or materials

used that are of a differing manufacturers must have COR approval prior to use and/or replacement. Invoices/receipts for the materials will be required for submission into the NCMMS for all repairs under this contract. The CO or designee shall require replacement of components with components from the same manufacturer to maintain consistency throughout the building. Materials and parts that are visible to building occupants shall be to building standard and maintain the same appearance as similar materials and parts in the occupied space. Components of control systems shall be replaced so as to maintain the tie-in to the control system with no degradation of data throughput, memory, point capacity, data acquisition, or programmability. Motors shall be replaced with premium efficiency motors as defined by the NEMA MG-1 standard or in compliance with Local utility guide demand-side management rebate guidelines. Old transformers shall be replaced with NEMA-rated class one efficiency transformers in accordance with the NEMA TP-1 standard. Replacement of variable frequency drives shall be done in accordance with recommendations found in NEMA, Application Guide for AC Adjustable Speed Drive Systems. Energy Star-rated equipment shall be installed where available and when there is no engineering or operational reason not to select an Energy Star product. Energy-consuming items shall be the most efficient in their class. GSA Proving Ground identified technologies with deployment potential for GSA shall be used when applicable.

The Contractor shall stock commonly used items and stay in good standing with a network of suppliers that shall deliver ordered items without any delay. Repairs delayed due to supply houses refusing to do business with the Contractor for any reason, is not an excuse to delay the repair. Any equipment components/systems that can no longer be repaired shall be replaced. These replacements shall be considered a repair and the shared liability amount threshold shall apply.

C.5.11.2 Operations

C.5.11.2.1 Non Reimbursable Repair

A non-reimbursable repair is a repair or replacement requiring no more than **$2,500** in cost for repair parts and materials only but no labor cost is included (including any approved subcontracting costs). Invoices/receipts for the materials will be required for submission into the NCMMS for all repairs under this contract. The cost of consumable parts and materials shall not be calculated as part of the Contractor's repair parts and material costs. Non-reimbursable repairs are entirely the Contractor's responsibility with no reimbursement from the Government.

Non-reimbursable repairs shall be completed **within (72) hours** (continuous time, including after hours and weekends) from identification of the problem unless an extension is approved by the CO or designee. The Work Order shall be put into a status field in NCMMS to indicate the nature of any delay, with appropriate remarks.

C.5.11.2.2 Partially Reimbursable Repairs

Partially Reimbursable Repairs shall be identified as a single incident, not an accumulation of various repairs (bundling). If a repair exceeds the threshold and has been approved and verified by the CO or designee, it becomes a reimbursable repair. A partially reimbursable repair is reimbursable to the Contractor for the portion (shared

liability) of the cost exceeding the repair threshold. The completion date of reimbursable repairs shall be mutually agreed upon by the CO or designee and the Contractor. The CO or designee shall determine if the repair can be made during Normal Working Hours. If the Contractor uses in-house labor resources during Contractor employees' Normal Work Hours, to perform the repair, no labor shall be charged. If the work is being performed outside these hours the labor rate shall be the overtime rate established in the Contract. Use of in-house Contractor employees for overtime work shall be approved in advance, by the CO with proper authority. If the work is subcontracted, due to the need of a specialty skill, the cost proposal shall include subcontractor's labor hours, hourly rate, and parts and materials listing with associated costs, and overhead and profit costs. The Contractor shall only apply overhead and profit after the Contractor's shared liability has been subtracted.

Example: (Assume $2,500 repair threshold for example purposes only)
A repair is identified and estimated by the Contractor to cost $10,000 for repair parts and materials only (no labor). The CO or designee shall verify and approve both the need for the repair and the $10,000 estimated cost of repair parts and materials. In this example, the Contractor shall pay the first $2,500 of the repair, leaving a balance of $7,500. The contractor then applies his Markup Coefficient of 10% ($750), leaving the remainder at $8,250.

a. Total estimated approved cost for repair parts and materials to complete repair - $10,000
b. Contractor shared liability amount to be subtracted (same amount as the non-reimbursable threshold) - $2,500 leaving a total of $7,500.
c. Contractor applies the 10% Markup coefficient to equal the amount of $750.
d. Total amount to be paid for by GSA to the Contractor for the repair $8,250.

The required completion date for reimbursable repairs shall be established when the CO or designee approves the work in writing, as mutually agreed upon by the CO or designee and the Contractor. The Contractor shall attempt to complete work as promptly as feasible. Immediately upon identification of a reimbursable repair, the Contractor shall create a Work Order in the NCMMS and defer it by putting it in a "hold" status until required approval is obtained from the appropriate CO or designee.

C.5.11.2.3 Fully Reimbursable Repairs
Repairs that are caused by third party vandalism, misuse/abuse by third parties, or acts of God (*e.g.,* hurricanes, tornadoes, earthquakes, hail, or floods), including natural disasters where the Contractor took all reasonable precautions and exercised due diligence, are fully reimbursable. The Contractor shall be reimbursed under the Additional Services provisions described in this PBWS or at the Government's sole discretion; the Government shall have the work performed by other means. When new equipment/systems are installed, the Contractor shall be responsible for entering and maintaining warranty information/data/records.

C.5.11.3 Warranties

This section shall be in accordance with FAR 52.246-20 Warranty of Services, and FAR 52.246-21 Warranty of Construction. In addition, any and all work performed by the contractor and/or subcontractors under this contract that contain a warranty, **shall be in the name of General Services Administration and/or resides with equipment make, model and serial number, and shall become the property of the government.** Regardless of duration of the warranty, all warranties shall remain in full force and effect for the duration of the warranty period regardless if the period of performance under this contract has expired.

The Contractor shall contact installers or manufacturers, as appropriate, for work that is covered under a warranty and maintain records of all warranty service. The Contractor shall avoid actions that would invalidate a warranty, unless authorized by the CO or designee. If an installer or manufacturer fails to comply with the terms of a warranty, the Contractor shall immediately notify the CO or designee.

All copies of warranties shall be turned over to CO or designee at the time of the conclusion of the repair. All warranties must be delivered to GSA prior to contract close to avoid withholding of final payment.

C.5.11.4 Third-Party Contractors

The Government reserves the right to order repairs from a third party contractor. If the repair is a reimbursable repair, the Government shall inform the Contractor of the outside source's price, and deduct **$2,500** or the third party contractor's price, whichever is less, from the Contractor's payments. Contractor shall ensure current-in-force warranty information is maintained in NCMMS and checked prior to maintenance on affected equipment.

C.5.12 Work Orders

C.5.12.1 General

The Contractor shall manage all Work Orders for each building and serve as the responsible main point of contact for all work. The intent of the management of Work Orders is to maintain a safe, healthy and functioning environment for all occupants and to preserve the asset value of the building(s) in the scope of the Contract. The Contractor's performance in management of the work scope shall be assessed by tracking the completion record, requirements performance, tenant satisfaction, and the overall accountability and organization of the work. Nationally, the Government shall use the data collected by the Contractor to characterize and develop reports using building asset data and to study trends pertaining to O&M activities. Utilization of NCMMS including Work Order volume, completeness, timely entry, and timely closure as recorded in NCMMS is part of GSA's national performance measures, and part of quality assurance plans. The Contractor shall update Work Order data within one business day or less of work order receipt, acceptance, start of work, and work completion.

C.5.12.2 Operations

GSA uses a NCMMS to manage the work of the Contractor. It is used to manage all work, scheduled and unscheduled maintenance and repairs, any building environment-related tenant complaints, associated documentation and any miscellaneous work required for all buildings. The Contractor shall operate a Work Request/Work Order management system and administrative support functions during Normal Working Hours and act as a central point of contact for the Government and building occupants. Management activities include accepting Work Orders from a Service Call Center**,** generating Work Orders and as the need arises and, tracking and maintaining Work Order data records. This includes Work Orders for work not under the scope of this Contract *(i.e.,* performing a central Work Order desk function for the facility, regardless of who is responsible for responding to the Work Order) and custodial, pest control, elevator and landscaping service calls, when requested.

The Contractor shall enter all minimally required data (refer to NCMMS Desk Guide) into the NCMMS, including but not limited to, all Work Orders and resultant Work Orders, Work Order description, problem cause, and remedy, timestamps, work start, and completion, as well as time to complete any necessary action and log entries. The Contractor shall update Work Orders in NCMMS timely, preferably within one hour of change in status, and in all cases on the same day as the work status changed (*e.g.,* reported, assigned, started, or completed).

Primary duties of the Contractor to manage the majority of the work are:

a. Attend required training on the use and maintenance of the Work Order management tools provided by the Government and to increase proficiency in the tools.
b. Operate as a central point of contact for the Government and building occupants to take all Work Orders, and track and maintain Work Order records in the NCMMS. Including communicating any work requests not under the scope of this Contract that are received through regular channels. Work not under this scope shall be entered and tracked in the NCMMS for proper disposition as directed by GSA.
c. For tenant Work Requests, Contractor shall also record tenant contact information, tenant agency and email address of tenant requesting work
d. Uses NCMMS for mobile work management practices to the greatest extent practicable. This includes using the NCMMS mobile application for management and input of Work Orders, and documentation of time to complete Work Orders in real-time, when possible.
e. Document in NCMMS Work Orders for all work performed, including routine Work Orders, urgent Work Orders, emergency Work Orders and emergency call back Work Orders.
f. Generate reports using the NCMMS for the CO or designee as requested and in a format and media as requested.

C.5.12.2.1 Emergency Work Order (During Core Coverage Hours)

The Contractor shall respond to an emergency Work Order immediately during Normal Working Hours. The Contractor shall remain on the job until the emergency situation has been secured and adequate temporary repairs have been made. Permanent repair shall be governed by the repairs provisions in this PBWS. Emergency Work Orders and callback responses are service requests where the work consists of correcting failures that constitute an immediate danger to personnel or property, including broken water pipes, stalled elevators with trapped passengers, electrical power outages, electrical problems that shall cause fire or shock, gas or oil leaks, major air conditioning or heating problems, or any work considered by the CO or designee to be of an emergency nature.

C.5.12.2.2 Emergency Call Back (Beyond Core Coverage Hours)
On occasion, services shall be required to support an activation or exercise of contingency plans or emergency call back outside the Normal Working Hours described. Emergency call back requests are service requests where the work consists of correcting failures that constitute an immediate danger to personnel or property or any work considered by the CO or designee to be of an emergency nature. The Contractor shall respond to emergency call back service requests immediately (within the shortest possible time consistent with the mechanic's location) after working hours within 1 hour. The Contractor shall remain on the job until the emergency situation has been secured and adequate temporary repairs have been made. Permanent repair shall be governed by the repair provisions in this PBWS. The Contractor shall provide a written account of any emergency call back; including costs incurred and plan for permanent correction of the problem, to the CO or designee no later than the morning of the next business day. If the emergency call back is expected to take more than two hours to resolve, the Contractor must get approval from the CO or designee. The contractor shall provide emergency call back (after hours) requests **up to 250 hours per contract year.** Emergency Call Back (after hours) that is a result of negligence by the contractor will not be considered in the **250 hours per contract year.** Emergency Call Back (after hours) that is due to contractor negligence shall be corrected at no additional cost to the Government. The contractor shall submit a running log containing the number of hours used monthly (first Monday of the following month) to the COR. After the **250 hours limit has been reached each contract year,** GSA will reimburse the Contractor for Emergency Call Backs (after hours) as proposed and awarded in the contract. The CO or their designee can schedule non-emergency after hour work for the contractor from these annual hours. (Reference C.2.21)

The Contractor shall provide a means to immediately receive service requests twenty four (24) hours a day by means of a live person via telephone call(s). For after core coverage hour calls, this shall result in coordination and approval from the COR to provide immediate response by the contractor as applicable.

C.5.12.2.3 Urgent Work Order Response (During Core Coverage Hours)
The Contractor shall respond to urgent Work Orders within **60** minutes during normal working hours. The Contractor shall remain on the job until the urgent repairs have

been made. Permanent repair shall be governed by the repair provisions in this PBWS. Urgent Work Orders are those Work Orders where the work consists of correcting failures that interrupt or otherwise adversely impact either GSA operations or building occupant operations. Examples of these types of service requests include, inoperative electrical circuits, extreme temperature complaints, inoperative lighting above a workstation, flush valve stuck open, any malfunctions to equipment that affect the tenant's operations, or any work considered by the COR to be of an urgent nature.

C.5.12.2.4 Routine Work Order Response

The Contractor shall respond promptly to Routine Work Orders (i.e. plumbing and lighting issues) and complete the required work within **72** hours of notification. The Contractor shall immediately notify the CO or designee with a written extension request when the routine service call cannot be completed within the specified timeframe. Routine Work Orders are those Work Orders that do not interrupt or otherwise adversely impact GSA operations or building occupant operations.

C.5.12.3 Data Maintenance

The Contractor shall keep all records and databases current and able to be accessed by the Government. The Contractor is responsible for the accuracy of data in the NCMMS and for entering all data requested for each activity tracked by the NCMMS. Any data that is found to be in error shall be brought to the attention of the Facility Manager and the COR to be noted and discussed to determine the proper resolution. The Contractor shall:

- Update the NCMMS database frequently, including all certifications, inspections records and third-party reports.
- Ensure updates of the equipment list and identify equipment deficiencies as needed throughout the duration of the Contract.
- Ensure all Work Orders include labor hours, costs and closeout notes.
- Check on the status of in progress Work Orders and report to the Government any barriers that can potentially impact successful and timely completion.
- Generate reports for the Monthly Report at the request of the CO, the COR or designee.

C.5.12.4 Reporting

All Work Orders shall document and capture minimally required information, including; Work Order description, resolution information, timestamps, work notes, and other completion information, in accordance with provided training, guidance and standard operating procedures. Monthly reporting of the Work Order status shall include data on all types of maintenance, repairs, service calls (*i.e.,* emergency, urgent, overdue, and tenant complaints), and accounting of deferred, completed, and active Work Orders with estimated completion dates by type of work *(i.e.,* reimbursable, repair, and Work Orders) resulting from testing and inspections, and any equipment out of service.

All additional information requests made by the Government shall be responded to within one business day. All such requests shall be communicated to the Contractor with a detailed explanation of the information that is requested.

C.5.13 Additional Services Indefinite Quantity Provisions

C.5.13.1 General
The CO shall order Additional Services at their discretion. Additional Services shall include any services related to operations, maintenance and repairs, construction, systems upgrades, system operation, or tenant services facilities within the scope of the Contract but, not covered within Basic Services (i.e., not already a requirement of the Contract).

C.5.13.2 Price Proposal for Additional Services Work Request
The Government shall issue the Contractor an Additional Services Work Request (ASWR) for additional work within the general scope of this Contract. The Contractor shall provide a proposal within two working business days of receipt of the ASWR. The Proposal shall include a brief description of the technical approach to completing the ASWR. The ASWR Proposal shall also include detailed pricing on a firm-fixed price basis. At a minimum, the price to complete the ASWR shall include parts and materials, labor and subcontracting costs as described below.

At the request of the CO or designee, the Contractor shall provide a price proposal to accomplish an additional services job within 48 hours of the request, unless otherwise stated by the Contracting Officer. The price proposal shall follow the pricing guidelines described in this document. Price proposals for additional services become firm fixed price on acceptance and order by the Government. Although price negotiation and determination of price reasonableness is made on the basis of labor, materials, and subcontract costs following the pricing guidelines described in this document, the price accepted is not adjusted after completion of work to actual man-hours or actual materials cost. (Ref. H.7.2)

C.5.13.2.1 Parts and Materials
If parts or materials are required for a project, the Government may provide the parts or materials, or the Contractor may be asked to provide the parts and materials. Parts and materials shall be priced at estimated actual cost marked up by the standard coefficient in the price schedule, if stated. Receipts for any parts or materials may be requested at any time by the CO or designee. (Ref. H.7.4)

C.5.13.2.2 Labor
The price for labor required to complete the ASWR shall identify the labor categories and rates from the price schedule in this Contract. This includes the labor categories and rates for any subcontracts awarded under this Contract. Proposed and actual costs shall be recorded. (H.7.5)

C.5.13.3 Additional (Non-Pricing Schedule) Subcontracts

The Contractor shall identify the price of any new, additional subcontractor labor necessary to complete the ASWR and the Contractor's methodology to determine that the level of effort and price of labor is reasonable, *e.g.,* competitive quotes for the work, justification of only one source, and any other additional information to assist the Government in determining the reasonableness of the proposed subcontract(s). The Contractor shall compete subcontractor opportunities for the work to the maximum extent practicable.

If work is to be subcontracted, a cost proposal must be submitted to the CO. The cost proposal shall include the subcontractor's labor hours, hourly rate, a parts and materials listing with associated costs, and overhead and profit. The subcontracted part of the work is to be priced at actual cost to the Contractor, marked up by the standard coefficient in the price schedule.

Contract payment will be withheld if notification is given of non payment to a subcontractor who completed work under this contract. (Ref. H.7.6)

C.5.13.4 ~~Indirect Costs (Markup)~~ RESERVED - DOES NOT APPLY

C.5.13.5 Proposal Review
The Government shall review the Contractor's ASWR proposal and may request additional information regarding the technical approach or the price of the prospective ASWR. When performing work that requires use of subcontractors (provide two or more quotes) and charging subcontractor management fee and/or parts and material handling fee or both, the Contractor shall provide the Government with documentation of vendor proposal(s). If two or more quotes are not obtained, the Contractor will provide justification.

C.5.13.6 Additional Services Work Request (ASWR) Ordering and Invoicing
If the Government is satisfied, in its sole and absolute discretion, with the technical approach and the price of the ASWR, the CO or designee may order the ASWR, in writing, if priced at less than $1,500. The Contractor shall accept the GSA Purchase Card as a method of payment. If the ASWR is priced at $1,500 or greater, the CO may order the ASWR proposed work by a separate requirements Order using GSA Form 300.

C.5.13.7 Cost Documentation
The Contractor shall provide all paid invoices for any materials, parts, and subcontractor costs (certified payrolls and a Release of Claims) following the completion of the ASWR requirements Order work. This documentation shall be provided no later **than 30 business days** after completion of the ASWR requirements Order work. (Ref. H.7.7)

C.5.13.8 Construction Services
Construction Services valued at less than **$25,000.00 per occurrence** shall be added to this Contract through an ASWR. Construction Services are indefinite delivery, indefinite quantity requirements that are related to the basic services provided under

this Contract and that the Contractor shall provide at an additional cost to the Government. The cost shall include all labor, supervision, equipment, supplies, and materials necessary to complete the AWSR on a firm fixed price basis. The CO shall execute the requirements Order before the Notice To Proceed will be issued for the Construction Services.

The Construction Services relate to the O&M of the facilities, the equipment detailed in the Contract, i.e., the basic services provided by the Contractor under this Contract, and tenant improvements. Examples of such Construction Services include O&M repairs, systems upgrades, or tenant services within the facilities covered under the basic services of the Contract.

At the request of the CO or designee, submitted as an NCMMS Work Order, the Contractor shall provide a price proposal to accomplish an ASWR within four days of the request. The Contractor shall provide a detailed basis of estimate for the total firm fixed price (cost and fee) for performing the Construction Services. If this Contract includes an Overhead and Profit (markup), the Contractor shall include the Overhead and Profit (markup) in its basis of estimate.

Construction Services valued at greater than $2,000.00 are subject to the Wage Rate Requirements (Davis Bacon Wage Determination) in accordance with FAR subpart 22.4 and other specific regulatory supplements. Applicable regulatory requirements shall be identified by the CO and included in the AWSR. Davis Bacon Wage Determinations will be incorporated at the task order level.

Contractor shall update NCMMS to match any changes resulting from Construction Services.

C.5.14 Building Management and Support Services

C.5.14.1 General

Projects for the major repair, replacement or enhancement of the facilities covered under the scope of this Contract are often initiated from the GSA regional offices and awarded to private sector Contractors. Generally these projects are lengthy and complicated in nature, affecting several major building systems during the course of construction. To deliver successful project results and minimize impact on building tenants and daily operations, high levels of coordination and inspection are necessary.

To assist GSA in these efforts, and when requested by the CO or designee through a NCMMS Work Order, the Contractor shall provide reasonable and competent assistance during Normal Working Hours to GSA personnel or other GSA contractors, at no cost to GSA, on performing energy studies, commissioning services, engineering studies, building condition evaluations, project designs within the building, and equipment or system surveys. Such assistance shall include escorting investigatory personnel through spaces in the building in accordance with building security requirements, explaining the operation and condition of equipment and systems to

investigatory personnel and providing access to trend data, maintenance records, reference library materials, and other pertinent building technical data to investigatory personnel. The CO or designee shall inform the Contractor as far in advance as possible of the actual date and time these services are needed. Any impact on regular scheduled work shall be identified with the COR and approved in advance for deferment.

C.5.14.2 Miscellaneous Work

Numerous small projects/requirements that are outside of the standard services requirements under this contract, are generated monthly by GSA and GSA occupancy agencies housed in the buildings covered under the scope of this Contract (ie. change out tile, hanging a picture, patchwork, etc.). Accomplishing these requirements generally requires skilled and experienced general labor, common supplies, and small hand and power tools of the building trades. As part of the monthly price for preventive/predictive maintenance services, the Contractor shall provide a total of **50 hours and up to $100 of parts and supplies per calendar month** (hours and dollar amounts are not cumulative to succeeding months) when requested by the COR through a NCMMS Work Order to accomplish discretionary work in the buildings covered by this Contract. The Contractor shall furnish the labor, tools and consumable materials, as necessary, to perform the work. The Contractor shall accurately record hours of labor and costs of parts and supplies expended into NCMMS. At a minimum, a Miscellaneous Work Report documenting all costs, including labor hours, materials shall be recorded and delivered by the Contractor in the monthly report.

C.5.14.3 Review of Design Documents

Utilizing the most qualified onsite personnel familiar with the operations of the facilities covered under the scope of this Contract, the Contractor shall review design and construction project documents in accordance with instructions and timeframes provided by the CO or designee. The purpose of this review is to allow the Contractor to comment on any negative impact the proposed project may have on its ability to operate efficiently the building equipment or systems. This section does not require work from either an architect and/or an engineer under FAR subpart 36.6

C.5.14.3.1 Reporting

The Contractor shall provide input or propose ideas that can improve the operations.

C.5.14.4 Inspections Assistance for Space Build Outs

When tenant improvement or space alteration work is completed in the building, the CO or designee shall request that the Contractor inspect the area to verify that the spaces have: appropriately zoned air supply and return ductwork and diffusers and appropriately zoned lighting circuits, all zone HVAC/lighting controls have been adjusted appropriately, and the labeling of breakers in electrical panels and outlet cover circuit designations are complete.

C.5.14.5 Flag Procedures

The Contractor shall raise, lower and place at half-staff the United States Flag, agency pennants, and other flags (POW flag). This service shall be provided when directed by the CO or their designee and shall comply with requirements in the Flag Policy. Directions for flag actions (ie. half-staff) per the Flag Policy shall be accomplished regardless of the day of week and may fall outside of the normal working hours (ie. Saturday or Sunday, etc.). This section falls within Standard Services and no additional costs shall be charged to the government for these instances where it falls outside of the normal working hours. The contractor is not responsible for purchasing the Flags; however, the contractor is responsible to notify GSA when flag(s) are worn and need to be replaced.

C.5.14.6 Overtime Utilities

The Contractor shall at the direction of the COR through NCMMS Work Order, provide OTU to tenant agencies. The Contractor shall program Energy Management System (EMS) electronically or by hand turn on necessary equipment to provide OTU. OTU are funded by agencies and are considered above standard services. The Contractor does not have to be physically present, but shall ensure that the utilities are scheduled for these hours and are provided for per the OTU request. OTU hours shall be included in the Monthly Report. The Contractor shall track the OTU and have information available at building management request.

C.5.15 Monthly Progress Report

C.5.15.1 General

The Contractor shall use the GSA-developed reports of monthly progress or other submittal requirements (*e.g.,* quality control, asset inventory), using NCMMS data, to describe the status of maintenance and operations as of the last day of the performance month. The Contractor shall provide reports to the CO or designee as requested and in a format and media as requested with a preference for electronic submittal. The Monthly Progress Report shall be submitted to the CO or designee by the **5th business day of the subsequent month.** This report shall include the: Work Order status of all types of maintenance, inspections, repairs, service calls (highlight overdue and tenant complaints), including deferred, completed and active (include estimated completion date), by type of work *i.e.,* reimbursable, repair and Work Orders resulting from testing and inspections, and any equipment out of service.

The Monthly Progress Report must also include:

a. Explanation of any equipment, designed to be controlled by the BAS, operating in manual mode as of the end of the performance month, and of any other overrides to sequences of operations in effect as of the end of the performance month.
b. Operating schedule changes (manual, programmed or OTU).
c. Description of any lost time accidents or other safety problems, including incidents involving hazardous materials that occurred during the performance month.

d. Copies of quality control inspections performed during the month.
e. Building Management Support Services (utility hours/miscellaneous work) provided during the month.
f. Monthly water treatment test results.
g. Recalibration documentation of advanced metering equipment.
h. When testing is performed, the Contractor shall submit results with the next monthly progress report.
i. A copy of the updated refrigerant control logs.
j. The Contractor shall record the fuel (if any) levels monthly and report findings in the Monthly Progress Report.
k. Review of energy performance trends as of the end of the performance month and description of likely causes of significant changes in energy usage from the same month one year prior.
l. All inspections, test results, and maintenance performed on Fire Protection and Life Safety Equipment and Systems using the inspection, testing and maintenance forms referenced in the applicable NFPA code or standard.
m. Meter readings.
n. Miscellaneous Work Report

C.5.16 Reference Library

C.5.16.1 General

The Contractor shall maintain a comprehensive reference library that includes building design or record documents, renovation or equipment retrofit design or record documents, maintenance reference documents, applicable NFPA codes and standards, fire protection system as-built drawings, fire protection system operations and maintenance manuals with copies of approved submittals, fire protection system parts list, fire protection system zoning scheme, fire protection system sequence of operation matrix, HVAC Operations Manual (if one has been developed), building operating plan, energy and other building technical studies, hazardous materials surveys, and other documents necessary to document the design, function, and condition of the building. The Contractor shall safeguard this information in accordance with the provisions of subsection 1.6.2, Safeguarding and Dissemination of Controlled Unclassified Building Information.

SECTION C6
MAINTENANCE SPECIFIC REQUIREMENTS

C.6.0 General

The Contractor shall establish an effective Preventive Maintenance Plan for scheduling and performing scheduled preventive maintenance on all building equipment and systems requiring a preventive maintenance procedure covered under the scope of this Contract. The Contractor shall follow the existing Preventive Maintenance Plan until such time as the Contractor's proposed plan has been reviewed and approved by the COR. The Contractor shall submit the Preventative Maintenance Plan **within 60 calendar days** of the contract start date. This plan will be approved by the CO or designee, the plan is to include the Contractor's approach to maintenance and repair and list of equipment/systems receiving a preventive maintenance procedure as well as the specific maintenance standard or guide describing the preventive maintenance procedure, and frequency. Once approved this Preventive Maintenance Plan must be incorporated into the Building Operating Plan described subsection 5.2.1.f above and the Contractor shall update NCMMS within **10 business days** to match the Government approved plan. The Contractor shall complete preventive maintenance in the month scheduled. Contractor shall provide accurate and timely tracking of preventive maintenance in NCMMS and minimize preventive maintenance backlog. Preventive maintenance planning, reporting and backlog are used in PBS national performance measures and GSA quality assurance.

C.6.1 Maintenance Standard

The Contractor shall submit for approval to the CO or designee the preventive or predictive maintenance standards proposed by the Contractor. These standards must be based on a combination of equipment manufacturers' recommendations, the Public Buildings Service O&M Standards, sensor technology, diagnostic software, the Contractor's experience and other sources. The Contractor must obtain approval from the CO or designee, for each piece of equipment where the manufacturer or designer recommends preventive maintenance. **If the Contractor uses the PBS O&M Standards (PM Guides), the Contractor may propose changing the frequency of a preventive maintenance job plan to meet the specific requirements of that particular piece of equipment. Any proposed changes require review and approval of the CO or designee.** If the Contractor uses the most current version of the preventive maintenance guides then the Contractor assumes responsibility that the preventive maintenance guides are all inclusive of all the required preventive maintenance requirements for equipment and systems covered in this contract. The equipment requiring Contractor's proposed preventive or predictive maintenance standards or guides includes all of the equipment and systems when any of the following equipment characteristics apply:

a. The equipment normally requires periodic replacement of consumable components.
b. The equipment normally requires periodic or occasional cleaning.
c. The equipment has moving parts.

d. The equipment is prone to failure before overall obsolescence of the system it serves.
e. The equipment is of a type itemized in the NETA, Maintenance Testing Specifications.
f. The equipment requires inspection, testing and maintenance in accordance with NFPA codes and standards.
g. The equipment requires maintenance in accordance with any other provision of this Contract.

Unless otherwise listed in the Preventative Maintenance guide, the preventative maintenance must include all factory proprietary required maintenance.

Wind Turbine at Columbia, follow Manufacturers Requirements for wind turbine and inverter must include all factory proprietary required maintenance.

The Contractor shall schedule preventive maintenance and begin maintenance on new equipment in the NCMMS, when the extended maintenance service is completed by the installer and the Contractor ensures that all pertinent warranty information and proposed maintenance plans are sufficient to uphold warranty obligations.

C.6.2 Boiler Systems

C.6.2.1 General
Boiler systems are an essential part of GSA's ability to provide the environment needed for its tenants to perform their mission. The Contractor shall operate and maintain the boiler systems to preserve the safety of personnel, the protection of the property, and the comfort of the tenants.

C.6.2.2 Operation
The Contractor shall operate boiler systems according to established operational standards outlined in the current Building Operating Plan. The intent is to operate as efficiently as possible while protecting all assets from freezing conditions. Boiler operations shall be logged daily while in operation. The Contractor shall be familiar with the requirements of the local AQMD and shall ensure operating permits for boilers, and all other emissions producing equipment regulated by the AQMD are up-to-date and have copies available for the CO or designee. Operating readings shall be logged daily and posted during boiler operation. During curtailment operations, all diesel fuel used shall be reimbursable by the Government.

C.6.2.3 Boiler Maintenance
The Contractor may use GSA's preventive maintenance standards to perform maintenance or the manufacturer's recommended maintenance procedures, or any combination as long as the method is submitted to the CO or designee for prior review and approval. All safety devices shall be kept in good operating condition.

C.6.2.4 Testing and Inspecting

The Contractor shall provide boiler inspections, including internal and external (operating) inspections and tests described in part 2 of the National Board Inspection Code (NBIC) 2017 or later versions. The operating or external inspection shall be done during the heating season while the boiler is under load. The internal testing shall be scheduled in the off season. Details on what the Contractor shall do to get the boiler ready for inspection prior to the inspector's arrival shall be determined between the Contractor and the inspection contractor. All unfired pressure vessels that are in excess of 15 gallons and a designed operating pressure of more than 60 psi shall be inspected annually, either during the external or the internal inspection of the boiler. Inspections shall be performed by inspectors certified by the National Board of Boiler and Pressure Vessel Inspectors, who shall be employed by an independent firm specializing in boiler and unfired pressure vessel inspections. The Contractor shall implement boiler shutdown and summer lay-up procedures to protect the boilers from corrosion during the off-season. A combustion (flue gas) analysis shall be performed annually at the beginning of each heating season on all fossil fueled boilers. This test helps the Contractor adjust the boiler to its optimum efficiency. A report that includes the manufacturer's efficiency rating by design shall be provided to the COR within seven business days of the test that shows the readings before any adjustments are made. A follow-up report shall be provided to the COR within seven days after any adjustments are made to document compliance.

C.6.2.5 Reporting

Daily logs of the boiler shall be annotated by the Contractor on an approved boiler log and kept at the boiler. After the third-party inspection of a boiler, the Contractor shall have the inspector complete GSA Form 349 (Inspection Report of Boiler) for each boiler inspected. After the third party inspection of an unfired pressure vessel, the Contractor shall have the inspector complete GSA Form 350 (Inspection Report of Unfired Pressure Vessel) for each vessel inspected. These two forms, the GSA Forms, 349, and 350 shall be kept in a file, while a third form shall be kept on the equipment itself. This third form is GSA Form 1034 (Certificate of Inspection). All inspections and tests shall also be scheduled and annotated in the NCMMS and reported in the monthly report.

C.6.3 Air Distribution Equipment

C.6.3.1 General

The purpose of air distribution systems is to maintain acceptable indoor air quality for building occupants. These systems are applied in various locations, including industrial spaces, warehouses, kitchens, office space, computer rooms, laboratories, and courtrooms. The scope of operations and maintenance for air distribution systems includes all components as part of the system. This includes all types of air handling equipment owned or managed by GSA, such as packaged units, rooftop units, fan coil units, and direct expansion that are part of the entire building system.

C.6.3.2 Operation

The Contractor shall operate air distribution systems in accordance with their design and the approved sequence of operations and any other requirements within this Contract. The Contractor shall follow ASHRAE 202-2103 (Commissioning Process for Buildings and Systems) or later versions, if superseded, when operating this type of equipment. The Contractor shall be responsible for making immediate adjustments or corrections that fall within the proposed maintenance plan, generated Work Orders and any other requirements under this Contract. The Contractor shall make recommendations and perform adjustments to controls, adjust BAS settings, correct set points, and restore equipment to automatic operation as approved by the CO or designee. The Contractor shall identify all alarm points with originating point identification information (device ID, point number, description) to manipulate the system to monitor conditions, track and trend operational criteria. The Contractor shall make every reasonable effort to protect all assets regarding air distribution systems and associated equipment listed in this Contract from freezing conditions.

C.6.3.3 Maintenance

The Contractor shall use GSA preventive maintenance standards or the manufacturer's recommended maintenance procedures, or a combination of the two procedures to perform maintenance as long as the method is submitted to the CO or designee for prior review and approval. This as well as all preventive maintenance covered in this contract will be addressed in the Contractors submitted Preventive Maintenance Plan. The equipment requiring the Contractor's proposed maintenance plan shall include all of the building equipment associated with the air distribution systems up to and including the final discharge of air into occupied spaces. At a minimum, the maintenance plan shall include applying lubricants, cleaning fan housings, fans, coils, dampers, air diffuser/grilles, air handling unit (AHU) sections, and equipment rooms, and replacing consumable parts or components.

C.6.3.4 Replacement of Air Filters

The Contractor shall use high efficiency air filters when replacing the filters in air handlers and other equipment that use air filtration. The Contractor shall only use air filters with known Minimum Efficiency Reporting Value **(MERV) 11**, as defined in the ANSI/ASHRAE Standard 52.2 and required in accordance with the most current PBS-P100. The Contractor shall replace air filters with the air filters that have the highest MERV value consistent with the feet per minute of the fan. The Contractor shall maintain minimum ventilation standards in ASHRAE Standard 62.1 with the current revision year. Prior to installation, the COR shall approve the filters to be used. At a minimum for an AHU with pre- and post-filters, the Contractor shall replace the pre-filters **quarterly or as deemed necessary by the Magnehelic gauges or BAS-connected monitoring devices**, and the post filters annually or as deemed necessary by the Magnehelic gauges. The rooftop unit, variable air volume, power Induction unit), fan coil, computer room, or any other air distribution filters shall be changed as required by the Preventive Maintenance Plan, **but at least annually**.

C.6.3.5 Testing and Inspecting

The Contractor shall ensure that air distribution components operate on a system level per the design intent and sequence of operations by testing and inspecting the units. The testing of the air distribution system shall also include the integration with other equipment in the building including chillers, boilers, variable air volume system components, fans, ductwork, and air intakes. The Contractor shall conduct regular inspections of air filters to ensure that the filters are changed as recommended by the manufacturer or when they have become clogged. The Contractor shall conduct inspections of the condensate drip pans of all AHU, A/C package units, window A/C units, and other equipment items and systems that physically have drip pans to ensure that they drain properly. Such inspections shall be conducted in accordance with the tour program and be performed no less frequently than **monthly**. Pans that are not level or that leak shall be reported to the CO or designee. All drip pans shall be treated with an appropriate biocide to control the growth of algae, mold or other organisms or fungi. If any condensate pans are inaccessible, the Contractor shall notify the CO or designee immediately.

C.6.3.6 Reporting

The Contractor shall report and enter into the NCMMS any and all activities performed with respect to the air distribution system and its components, including Work Orders completed.

C.6.4 Chiller Systems

C.6.4.1 General

Chiller systems are an essential part of GSA's ability to provide the environment needed for its tenants to perform their mission. The Contractor shall operate the chiller to preserve the safety of personnel, the protection of the property, and the comfort of the tenants.

C.6.4.2 Operation

The Contractor shall operate the chiller systems according to established operational standards with manufacturer's guides, industry standards or as otherwise directed by the CO or designee. The intent is to operate as efficiently as possible while protecting all assets. Chillers shall be logged daily while in operation utilizing a GSA-approved chiller log.

C.6.4.3 Maintenance

The Contractor shall use GSA's preventive maintenance standards or the manufacturer's recommended maintenance procedures, or a combination of the two to perform maintenance, as long as the method is submitted to the CO or designee for prior review and approval. **Maintenance shall be accomplished by the chiller manufacturer's authorized service technician.**

C.6.4.4 Testing/Inspecting

Nondestructive Chiller Tube Analysis (Eddy Current) - Chillers with tube and shell heat exchangers, both evaporator and condenser, shall have an eddy current test performed

every three years. The test shall be performed by a Level II technician, certified by the American Society for Nondestructive Testing, per SNT-TC-1A - Personnel Qualification and Certification in Nondestructive Testing/Inspection. The test shall be performed in accordance with current American Society of Mechanical Engineers standards. Refer to the current Preventive Maintenance Guide for additional requirements. The Contractor shall take pictures of the tubes, tube sheets and end plates of water cooled chillers with tube and shell heat exchangers after the removal of the end plates prior to brushing the tubes and again after the brushing of the tubes. These pictures shall be uploaded into the NCMMS. The Contractor shall notify the CO or designee **at least two business days** prior to the removal of the end plates so that GSA has the opportunity to observe the condition of the tubes right after the removal of the end plates. All inspections and tests shall also be scheduled and annotated. Contractor shall provide the CO or designee with two copies of the written report **within 14 calendar days** of the test. The report shall include findings and recommendations. The Contractor shall document the report by uploading it into the NCMMS.

C.6.4.5 Reporting

Daily logs of the chiller(s) shall be annotated on an approved chiller log and kept at the chiller or the onsite Contractor's office and uploaded into the NCMMS. With low pressure chillers daily logs shall include purge run times and pump out times. Logs are to be Included in the monthly report.

C.6.5 Cooling Towers

C.6.5.1 General

The cooling tower equipment is a critical component to HVAC operations. By design this device removes heat in the condenser water loop by the process of evaporation. In this process the returning water can take on properties that are detrimental to the proper functions of the HVAC system. The Contractor shall ensure proper maintenance of this equipment in order to ensure proper HVAC operations.

C.6.5.2 Operations

Due to factors such as geographic location, altitude, local weather conditions, and prevailing winds, etc., setting and maintaining a set-point for water temperature is a complex process that has high local variability. Therefore, the Contractor shall ensure that the Contractor staff understands the established control sequences for the operation of the cooling tower. The Contractor shall propose a better sequence that offers greater efficiency. Before enactment of the new sequence, the Contractor shall submit the proposal to the CO or designee for consideration and approval.

C.6.5.3 Maintenance

Due to the evaporation process taking place inside the tower, regular cleaning of the tower to minimize the accumulation of dirt and scale is required. The Contractor shall ensure proper maintenance of the equipment by inhibiting and removing mineral scale, corrosion, bacterial contamination, and general fouling of the water and by physically cleaning the tower on a regular basis. The Contractor shall use GSA's preventive

maintenance standards to perform maintenance, or use the manufacturer's recommended maintenance procedures, or a combination of both as long as the method is submitted to the CO or designee for prior review and approval.

C.6.5.4 Testing

The Contractor shall test the water in accordance with the water treatment section of this contract. All equipment associated with the cooling tower shall be checked for proper operation and free of scale, corrosion and other contamination affecting performance of the tower. Testing must include vibration cutout switch where installed.

C.6.5.5 Reporting

All maintenance and all service calls associated with cooling towers shall be reported in the NCMMS. Because of the importance of this critical equipment, GSA requires the Contractor to advise the CO immediately if it is not operating properly or is offline for any reason.

C.6.6 HVAC Water Management

C.6.6.1 General

HVAC water management is the maintaining and operating, testing and reporting of the cooling tower water system plus the heating and chilled water loops and ramp de-icing loops, as directed by the HVAC Water Management Plan. The goal of HVAC water management is to manage, operate and maintain the water systems in the HVAC equipment at optimum performance whenever needed to protect the building systems assets that maintain satisfactory indoor environmental quality for all tenants.

C.6.6.2 HVAC Water Management Plan

The Contractor shall prepare a comprehensive water treatment plan that includes operating, cleaning, maintenance, corrosion monitoring, seasonal equipment layups, water treatment for both open and close loops and reporting on all related actions and analysis. The plan shall be specifically detailed to provide the CO or designee a quality assurance guide by which to assess the operating, maintaining, testing and reporting of all activities associated with the HVAC water systems. The Contractor shall ensure compliance with GSA Order PBS 1000.7 Drinking Water Quality Management and Appendix E of the PBS Desk Guide for Drinking Water Quality Management. The Contractor shall provide all equipment, chemicals, and services (including application) required to control corrosion, scale, algae, and bacterial growth in all HVAC equipment and systems throughout the building. All equipment installed for water treatment and corrosion monitoring shall be conveyed to the Government at the end of the Contract. This Plan will be submitted to the CO or designee within **60 calendar days of Contract start date**.

Water treatment is a constant balancing act, which means that an effective treatment plan has to be flexible in its ability to meet requirements. A "one size fits all" concept does not work well when creating an effective and efficient water treatment

plasbestrosan. Size, location, geography, and altitude all play a factor in deciding the best water treatment plan.

C.6.6.3 Operation
The Contractor shall control corrosion, scale, algae, and bacterial growth in all HVAC assets and systems throughout the building. The Contractor shall be responsible for compliance with all applicable local sanitation requirements, discharge regulations, district air quality regulations, and other environmental laws and regulations. The scope of this work extends to related safety equipment (e.g., emergency eyewash stations), all of which shall be maintained in accordance with all applicable OSHA standards.

C.6.6.4 Maintenance
The Contractor shall implement an effective HVAC water loop maintenance plan as part of a comprehensive HVAC equipment maintenance program. This plan shall include the methods, procedures, references and industry standards that the Contractor has elected to use to execute the maintenance plan. The plan shall also detail procedures, special tools and equipment, treatment procedures, chemicals and water chemistry criteria, preventive maintenance and testing frequencies, and anticipated schedules for shutdown, start up, and cleaning.

C.6.6.5 Testing and Inspecting
The Contractor shall establish water treatment and testing frequencies that give an accurate and regular indication of whether the maintenance performed is adequately keeping the HVAC system water within the limits established in the HVAC Water Management Plan. GSA has a list of standard closed loop and open loop parameters that set the maximums and minimums for the specific system design. Those criteria are listed at the end of this section.

Planned testing activities shall address the following issues:

a. The Contractor shall perform a comprehensive initial water treatment analysis (laboratory analysis) **within 30 calendar days** of the Contract award to assist in developing the HVAC Water Management Plan. This initial analysis shall establish a baseline and shall be used to inform and validate the effectiveness of the Contractor's Plan.
b. The testing frequencies shall be established by the Plan based on manufacturer's recommendations with input from the COR and the facility management staff.
c. A qualified independent water treatment specialist shall be engaged to draw a set of water samples at a frequency established by the Plan and as agreed to by the CO or designee. Tests shall be performed as described in the water treatment plan and test results uploaded in the NCMMS as an attachment to the Work Order.
d. All samples shall be analyzed and a monthly report containing all pertinent information, relative to the conditions found, shall be submitted to the CO or designee with the monthly progress report.

e. In facilities where makeup water is metered, makeup water quantities used shall be tracked and reported. Types and quantities of chemicals used shall be tracked in the NCMMS and reported on also in the monthly progress report.
f. If testing results are outside of established parameters in the Plan, the Contractor shall immediately investigate the cause of the deficiency and implement corrective action to restore the system to established parameters. The Contractor shall immediately notify the CO, or designee of the situation, explain the cause of the non-compliance condition and the actions taken to remedy the problem.
g. After corrective action has been implemented, the Contractor shall perform a second test to verify that the system is operating within established parameters.
h. All testing and retesting results shall be entered into the NCMMS by the Contractor.
i. Glycol-water solutions in all building systems shall be tested monthly to determine the percentage glycol. The glycol water solution in all building systems shall be tested annually for pH, reserve alkalinity, inhibitor levels, and degree of contamination. If testing results indicate that glycol or additives must be added to maintain proper chemistry then the Contractor shall be responsible for glycol or additives additions. If the test results indicate full replacement is necessary then the Government shall be responsible for all associated costs. The test results must be documented in NCMMS, using (virtual) meters, where practical.

C.6.6.6 Reporting
The initial analysis of the HVAC water system(s) shall be reported to the COR and designee immediately after the results are known. It shall be the responsibility of the Contractor to correct any non-compliant conditions at no cost to the Government as soon as a solution has been reviewed and approved by the CO or designee. Any initial cost that exceeds the repair threshold shall be a shared liability. Once the parameters are within the established tolerances the Contractor shall be responsible to maintain equipment and chemistry at the Contractor's cost.

The periodic water treatment and testing reports shall be included in the monthly progress reports. All other analysis reports performed to analyze or mitigate non-conforming issues shall be brought to the attention of the CO or designee immediately. The monthly progress reports shall include the following items:
a. Testing dates, procedures and (in-house and independent) results.
b. Make up water volumes used.
c. Chemical amounts and types added to the system(s).
d. Tolerance and range criteria set forth in the Plan as compared to actual testing results.
e. Remediation actions taken during the month.
f. Trending data for a running 12 month period on all measures as they compare to the tolerance and acceptability range parameters set forth in the Plan.
g. Any other pertinent data/info to complete a comprehensive profile of the HVAC water system(s).

The Contractor shall compare cooling tower water treatment results with the Chiller Operating Log. Trending and best practices shall be identified and proposed to CO or designee for review and approval prior to implementation in an effort to establish the most efficient systems operations based on conditions.

Table of GSA established HVAC water management criteria
Open Loop

Chemistry Tests	Frequency of Test	Operating Ranges
Tower Water Conductivity	Auto Blow down: Weekly, Monthly Manual Blowdown: Daily	160-2400 mmHOS (110-1600 ppm)
Makeup Water Conductivity (Hardness)	Auto Blow down: Weekly, Monthly	40-600 mmHOS (30-400 ppm)
pH Test	Daily, Weekly	7.5 to 9.5
Corrosion Monitoring (Coupon Test)	Quarterly (3 months)	Iron: 2 to 5 mils/ year Copper: 0.2 to 0.5 mils/ yr
Bacteria Testing	Quarterly (when system is running) and whenever system has been shut-down for 5 consecutive business days	Max: 1000 cfu/ml (colony forming units/ ml)
Chlorides	Weekly, Monthly	Max: 250 ppm as Cl Max: 410 ppm as NaCL
Sulfites	Weekly, Monthly	50-100 ppm SO_3 80-160 ppm Na_2SO_3
Corrosion Inhibitor Residual	Auto Chem. Feed: Weekly, Monthly	Defined by Consultant
Oxidizing Biocide Residual	Auto Chem. Feed: Weekly, Monthly	Defined by Consultant

Legionella pneumophila, Bacteria Testing		When total bacteria >1,000 cfu/ml (repeat treatment and testing until total bacteria <1,000 and L. pneumophila bacteria <10 cf/ml Max: 10 CFU/ml

Closed Loop

Chemistry Tests	Frequency of Test	Operating Ranges
pH	Monthly	7.5-9.5
Total Dissolved Solids (TDS) or Conductivity	Quarterly (3 months)	Maximum: 2000 ppm or (2500µS/cm)
Polyphosphates (PO_4)	Monthly	10- 20 ppm
Sulfites	Monthly	50-100 ppm SO_3 80-160 ppm Na_2SO_3
Bacteria Testing	Monthly	Max: 10^3 cfu/ml (colony forming units/ ml)
Corrosion Monitoring (Coupon Test)	Bi-Annually (6 months)	Iron: max. 0.5 mils/ year Copper: max. 0.2 mils/ yr
Corrosion Inhibitor Residual	Monthly	Defined By Consultant
Bacteria Testing	Quarterly (when system is running) and whenever system has been shut-down for 5 consecutive business days Max:1000CFU/ml Quarterly (when system is running) 10 CFU/ml	When total bacteria >1,000 cfu/ml (repeat treatment and testing until total bacteria <1,000 and L. pneumophila bacteria <10 cf/ml

C.6.6.7 Chemical Free Water Treatment System

HVAC loops that are treated by chemical-free water treatment systems shall be tested and maintained by an authorized Original Equipment Manufacturer (OEM) certified vendor. The Contractor shall provide a qualified independent water treatment specialist to draw a set of water samples **monthly**. Tests shall be performed as described in the water treatment plan. Samples shall be analyzed and a monthly report containing all pertinent information, relative to the conditions found, shall be submitted to the COR or designee with the **monthly progress report**. In facilities where makeup water is metered, makeup water quantities used shall be tracked and reported.

C.6.7. Domestic Plumbing Systems

C.6.7.1 General

Domestic plumbing systems, including drinking fountains and filters, restrooms, kitchens, locker rooms and showers, water heaters, irrigation systems, stormwater structures/BMPs (*e.g.*, structural or engineered control devices and systems such as retention ponds, to treat polluted F), backflow preventers, decorative fountains, and outdoor pools, shall be maintained, repaired, and kept functional to the point of service delivery as defined by the utility company. The Contractor shall ensure all system drains, including storm drainage and roof drains, remain clear and unobstructed. The Contractor is responsible for maintenance of stormwater management infrastructure (infiltration basins or trenches, rainwater harvesting/cistern systems, bio- retention, catch basins, underground sand filters, other proprietary storm filters, and wet and dry ponds). The Contractor shall take any necessary steps to prevent odors emitting from drains or other plumbing systems into occupied space, including keeping water in traps appropriately maintained. The Contractor shall clear toilet and sink blockages, as necessary. Such requests shall be transmitted to the Contractor by the CO or designee through Work Order procedures. When replacing plumbing fixtures, the Contractor must use the most reduced water usage device per the PBS-P100 and as approved, in advance, by the CO or designee. (For additional information guidance can be found at the web site in a document titled “Web Links” at: Operations and Maintenance Specification. The Contractor shall ensure compliance with GSA Order PBS 1000.7, Drinking Water Quality Management, and Appendix E of the PBS Desk Guide for Drinking Water Quality Management.

C.6.8 Lighting Systems

C.6.8.1 General

Indoor Environmental Quality (IEQ) includes access to daylight and views and occupant control over lighting levels at their workspace. It is the goal of this requirement to maintain acceptable IEQ by establishing and maintaining adequate lighting levels throughout the facility interior and exterior to allow the tenant(s) to be productive, feel secure, and egress in case of emergencies. Exceptional lighting shall also save energy, be automatically controlled to respond to daylighting levels, not be a negative impact to the tenants or visitors and be appropriate for the requirements in all occupied areas.

Illuminated areas of responsibility typically include entrances, landings, steps, sidewalks, parking areas, garages, arcades, highly decorative courtrooms, historic fixtures, fountains, security bollards, stairwells, auditoriums, flagpoles, building-mounted fixtures, pole lighting, elevator car interior lighting and ground lighting located adjacent to the facility and extending to the property line. Exemptions include elevator exterior car lighting, associated hoist ways and machine room lighting, specialty lighting integral to artwork, experimental fixtures, and some lighting control systems to be identified by the CO. For agency-owned specialized lighting systems the Contractor shall not be responsible for the controls (front end). The Contractor shall be responsible for replacement of ballasts, lights and drivers. The Contractor shall not be responsible for requirements lighting associated with furniture.

C.6.8.2 Operation

To maintain operating consistency of illumination in the workspaces, the illuminance levels shall need to be adjusted through the reprogramming of existing fixtures, or by installing additional hardware or software under the guidance of the CO or designee. These adjustments shall be made without changing fixtures if possible (e.g. automatic lighting controls, tuning dimmable ballasts, and de-lamping). The Contractor is advised that while the PBS-P100 establishes target lighting levels, aspects such as lighting quality, specific tenant requirements, energy efficiency, and other individual factors also have an impact on the application of lighting in spaces.

When tenant improvement or space alteration work is being planned in the building, the CO or designee shall request that the Contractor be a part of the planning and inspection in the space to verify that all lighting levels and controls operate as required for the space. The Contractor must immediately report to the CO or designee obvious problems or conditions that shall potentially affect the efficient operation of the building or create a negative impact on the tenant as a result of tenant improvement.
The Contractor shall assist in a curtailment program in consultation with the CO or designee. The Contractor shall implement all approved curtailment measures which typically include turning off or de-lamping unnecessary lighting, or implementing setback schedules to create a more energy efficient lighting strategy in accordance with the curtailment program. This shall at times require knowledgeable Contractor staff familiar with the building's BAS software so that modifications to lighting schedules can occur. Lighting replacements as part of a curtailment program shall qualify for a utility rebate and are therefore subject to the rules set forth by the participating utility. The Contractor must investigate the potential for rebates for any lighting replacement activities for which they are responsible. New lighting components shall be tested by an accredited national laboratory (UL or designated equivalent) according to the PBS-P100 Guidance. Replacement components shall be of equal or greater energy efficiency and life expectancy.

C.6.8.3 Maintenance

The Contractor shall respond promptly to routine Work Orders for all lighting issues. The Contractor shall replace failed lamps, LEDs and/or ballasts, with the most efficient products available in accordance with existing building standards defined by the

PBS-P100 or as otherwise directed by the CO or designee. In lieu of such standards, lamps shall be replaced with the most efficient products available matching type and color temperature of other lamps in visual range of the replacement.
The Contractor shall establish and implement a recycling program for fluorescent lamps and other light bulbs in accordance with U.S. Environmental Protection agency and GSA standards. All handling, storage, labeling, reporting and disposal of mercury containing lamps shall be in compliance with Universal Waste Rule guidelines, guidance can be found at the web site in the document titled “Web Links” at: Operations and Maintenance Specification.

Hazardous Wastes not subject to the Universal Waste Rule guidelines must be managed in accordance with 40 C.F.R. part 260. Universal Wastes (*i.e.,* fluorescent lamps, solid state lighting (SSL) components, and certain batteries) subject to the Universal Waste Rules guidelines shall be recycled or disposed of as Hazardous Waste. Preference is given to recycling of intact items. Replacement and proper disposal of all burned-out ballasts, including PCB ballasts, shall be the responsibility of the Contractor (see subsection 5.5.9). All lighting changes, Work Orders, fixture schedules and inventory lists, shall be input into the NCMMS and updated regularly.

Replacing incandescent or fluorescent lamps in existing fixtures with lamps of differing design or light sources requires the input and approval of the CO or designee, and advisably a lighting expert plus the energy program manager, to ensure a successful replacement. If SSL LEDs are being considered as a replacement, the Contractor shall experiment with a proposed LED replacement lamp or fixture before a widespread replacement is undertaken to ensure that all lighting criteria are met with respect to required illuminance levels, tenant satisfaction, light distribution, temperature of the lamps, Color Rendering Index (where important to the requirements) energy efficiency, and safety standards. This is a key consideration in performing satisfactory lighting operations and maintenance.

There shall be light ballasts containing PCBs in the buildings covered by this Contract. Replacement and proper disposal of all burned-out ballasts, including PCB ballasts, shall be the responsibility of the Contractor. Fluorescent lamps and ballasts, SSL components, exit light fixtures, batteries, and other items in any quantity subject to the Universal Waste Rules for Hazardous Waste Management shall be stored and disposed of in accordance with State requirements. In addition, all fluorescent lamps and ballasts shall be recycled and records maintained. The Contractor shall include a hazardous waste manifest of disposed items in the monthly report. The Contractor shall continuously update the inventory of all new and existing lamps, fixtures and SSL. The use of bulb crushers is strictly prohibited.

Records including Bill of Lading or receipt of recycling must be obtained for each Universal Waste disposal action. Any other lighting related waste (*i.e.,* LEDs and non-PCB/DEHP light ballasts) shall be properly characterized and disposed of in accordance with the Resource Conservation and Recovery Act; recycling is preferred method of disposal. Local area recycling programs shall provide information on

accepted electronic lighting waste. Receipt of recycling for electronic or electronic-like waste shall be maintained and included in the Monthly Progress Report.

The Contractor shall not be responsible for maintaining lighting within hoist ways, elevator machine rooms, the pit, car top or elevator cars, including all emergency lighting; provided however, that the Contractor shall be required to supply the replacement lamps to the elevator contractor.

C.6.8.4 Testing and Inspecting
Any and all controls that adjust lighting levels or schedules of operation shall be monitored and tested as necessary.

C.6.9 Electrical Switchgear and Switchboards
Contractor shall perform all preventive maintenance, testing and inspections of electrical distribution, switchgear, high voltage (HV) switches, transformers and all associated equipment. The Contractor shall ensure compliance in accordance with National Electrical Testing Association guidelines for the inspection, testing and maintenance of electrical distribution and switchgear type equipment. The Contractor shall also comply with NFPA 70B. When such testing, maintenance or repair interferes with building operations, **it shall be performed after Normal Working Hours without additional cost to the Government**. The Contractor shall coordinate all utility shut down scheduling with the electrical utility company (Region 7, includes coordinating with Elevator Maintenance Contractor); the Contractor shall be responsible for all costs associated with the utility shutdown. The Contractor shall coordinate power shutdowns with the building CO or designee. The Contractor shall submit a schedule and shut down plan at least two months in advance to the CO or designee for approval.

C.6.10 Emergency Power Equipment

C.6.10.1 General
The Contractor shall ensure that all standby and emergency power equipment and related systems are ready to respond at all times to protect the occupants of the building and to maintain critical services during the event of a normal power outage. These services include- the performance, inspection, testing, acceptance, and preventive maintenance and repair of standby and emergency power equipment, supplies, electricity distribution from the generators, and fuel distribution to the generators.

C.6.10.2 Operation
The Contractor shall check and record all diesel or propane fuel tank levels monthly and record in the NCMMS.

The Contractor is responsible for any consumables used during day-to-day operation of a generator, i.e., exercising the generator and related electrical components, testing of oil and fuel reserves, and fuel tank filling. If the operation of the generator is caused by Contractor negligence, the Contractor shall be liable for the full cost of refueling. The Contractor shall not allow the fuel level to drop below 70 percent (Region 7, also shall

not exceed 90%). When the fuel level drops to 70 percent, the Contractor shall notify the CO or designee of the need for refueling and the cost associated and receive approval from the CO or designee prior to refilling the tank. The Contractor shall provide fuel up to **$2,000.00** per Contract year. The Contractor shall maintain a running log containing the amount of fuel used and the log must be available to the CO or designee upon request. The Government shall pay for all fuel after the **$2,000.00** limit is reached each year the contract is in effect. Fuel oil shall be tested by a qualified third party vendor/subcontractor at minimum annually. The analysis and recommendations shall be provided to COR. Contractor shall take corrective actions and follow recommendations provided in the analysis, and document within NCMMS (Work Orders). Reports and analysis shall be uploaded as attachments to the asset record. Fuel oil must be conditioned and treated to maintain the minimum quality standards established in American Society for Testing and Materials (ASTM) D396-08a, “STANDARD SPECIFICATION FOR FUEL”.

C.6.10.3 Maintenance

The Contractor shall ensure a preventive maintenance schedule is developed and executed in conformance with manufacturers’ equipment recommendations and the following NFPA standards:

● NFPA 110, Standard for Emergency and Standby Power Systems

● NFPA 111, Standard on Stored Electrical Energy Emergency and Standby Power Systems

C.6.10.4 Testing and Inspecting

Testing shall include the generator(s), electricity transfer components, oil supplies, and fuel supplies. The Contractor shall arrange for monthly testing of the generators and the transfer switching with a licensed and certified provider. In addition; Annual Load Bank tests are required by the PM Guide; Contractors will load test generators a minimum of 2 hours at 75% load using a load bank (and not building load). Rental of load banks are the responsibility and cost of the contractor. A report will be provided to the COR and uploaded in NCMMS as an attachment to the PM. Testing shall be conducted after hours at no additional cost to the Government. The Contractor shall be allowed to perform the monthly generator and transfer switch testing provided that the Contractor has been trained by an authorized Generator OEM technician/company, a written procedure is developed that complies with NFPA and the training is documented and annual refresher training is conducted. J&L bus processing TX0285JL and Covent TX0116CV have load banks. All other locations require load banks for testing.

a. Generator Oil. Generator oil shall be tested by a qualified person at least annually and analysis and recommendations shall be provided to CO or designee. Testing shall be performed per ASTM D6595 (Wear Metals in Used Oils) and ASTM D445 or ASTM D72799 (Viscosity) and recorded in the NCMMS. Contractor shall take corrective actions and follow any recommendations provided from the testing facility. NOTE: Changing of oil in the generator is only to be performed based on testing and analysis recommendations from a UL approved laboratory or annually and not to be done

arbitrarily in a periodic schedule. Oil filters shall be changed periodically per manufacturer's recommendation or industry standards.
b. Diesel Fuel. Fuel shall be tested by a qualified third party contractor or subcontractor at least annual and analysis and recommendations provided to CO or designee and entered into the NCMMS. The Contractor shall take corrective actions and follow any recommendations provided in the analysis. Fuel oil shall be conditioned and treated and a preventive maintenance plan established to maintain the minimum quality standards established in ASTM D396-1, “STANDARD SPECIFICATION FOR FUEL OILS”.
c. Glycol-water solutions. Glycol-water solutions shall be tested regularly to determine the percentage glycol, pH, reserve alkalinity, inhibitor levels, and degree of contamination and the Contractor must complete required corrective action based on test results. In addition, the Contractor shall maintain minimum freeze protection and inhibitor levels. The glycol solution shall be checked at least once a year and in accordance with the manufacturer's recommendations and results entered into the NCMMS.

C.6.10.5 Reporting
The Contractor shall report the status of the emergency generator and automatic transfer switch in the monthly report, including operational status and present condition, planned or completed preventive maintenance and repairs, main and day tank fuel levels, and fuel purchases.

C.6.11 Oil Analysis and Oil Changes

C.6.11.1 General
Proper care of all systems that provide a safe and functional environment is a critical component of operations. Oil analysis shall be conducted to achieve that goal using a consistent methodology for data collection, analysis, and historical trending and record.

C.6.11.2 Operations
The Contractor shall establish and implement an oil analysis program incorporating the manufacturer’s recommendations. Periodic oil analysis shall include chillers of 50 tons or greater cooling capacity. Generator oil additives shall not be used.

C.6.11.3 Testing and Inspecting
Periodic oil analysis shall be performed prior to annual maintenance requirements so that results shall be considered in performing preventive maintenance.

C.6.11.4 Reporting
Where oil analysis indicates a need for corrective action, an appropriate Work Order shall be created in the NCMMS and the appropriate corrective action taken by the Contractor. Documentation shall include periodic oil analysis tests to be performed at least annually, diagnostic standards, and parameters for oil changes. Subsequent to analysis, the Contractor shall submit the report in the NCMMS as an attachment to the Work Order.

C.6.12 Vertical Transportation Systems

The Contractor will be responsible for maintaining light fixtures, ballasts, and lamps installed in elevator cars and within the ceilings of cars. The Contractor is not responsible for maintaining lighting within hoist ways.

C.6.12.1 Elevator Associated Equipment Maintenance

The Contractor is responsible for maintaining fire protection equipment and systems, ventilation and exhaust systems within hoist ways, elevator lobbies, and elevator machine rooms. The Contractor shall maintain elevator cab lighting, (not light associated with hoist ways, elevator machine rooms, the pit, car top or elevator cars) and electrical equipment (including elevator transformers and disconnects) not directly part of elevator systems, and HVAC systems associated with elevator machine rooms and systems. The Contractor shall provide assistance if required in performing elevator testing, including after Normal Work Hour requirements.

C.6.13 Architectural and Structural Systems

C.6.13.1 General

The Contractor must maintain, repair, replace, modify, and restore all of the architectural and structural components of the building up to **$300 and up to 3 hours per repair** in labor. Exterior components of this work including: precast concrete systems, foundations, **minor** exterior wall components, retaining walls, docks, levelers, sidewalks and drives. Interior components of this work include walls, floors, and doors, ceiling systems, soundproofing, insulation, directories, flooring, specialty finishes and lighting. Minor is defined as repairs and is NOT intended to imply finish out or tenant improvements. The Contractor shall confirm with the CO or designee in writing that the work directed to be performed under this Section is work for which the requirements of 22.403-1 Construction Wage Rate Requirements statute (40 U.S.C. chapter 31, subchapter IV, Wage Rate Requirements (Construction), formerly known as the Davis-Bacon Act) do not apply.

The Contractor must perform all architectural and structural maintenance and repairs or replacements to the building interior and exterior extending to the property line. The Contractor must ensure the integrity of elements and materials in compliance with Federal, state, and national codes and standards (*e.g.,* fireproofing materials, fire-stopping, fire and smoke doors, etc.). The Contractor must ensure the building is free of missing components or defects that could affect the safety, appearance, or intended use of the facility or could prevent any electrical, mechanical, fire protection and life safety, plumbing or structural system from functioning in accordance with its design intent.

Architectural Repairs and Replacements are intended to maintain the integrity of the building envelope (preventing water leaks through proactively addressing cracks, minor tuck pointing failures, reattaching loose roof flashing, fixing window cracked by weather or seal failures, water damaged ceiling tile) and address safety hazards (such as tripping concerns or hazards of falling materials). It is not to address cosmetic issues or

to perform cyclic maintenance such as minute cracks in terrazzo floors, scaling of concrete sidewalks, repainting for the purpose of refreshing an area's look.

C.6.13.2 Replacement Items and Painting

All proposed replacement items shall be consistent with design documents and match existing equipment in quality, dimension, and material, quality of workmanship, finish, and color.

Painting is considered “touch-up,” for purposes of this Contract and is to repair a specific and limited damaged area of prepared wall, paint or other architectural components. Painting shall extend to logical break points such as the floor or ceiling corners, door frames to avoid a patched look.
Repainting to correct for normal wear and tear to painted surfaces over time (Cyclic paint) is not required. Restriping of parking areas, driveways, roads, and vehicle inspection areas is required where striping is damaged or worn in a specific location. Repairs or replacement to pavement, walkways and facades are required where a specific location is damaged but not where an extensive area (defined as over 20% of the type of replacement) is degraded. Painting in mechanical areas needed for OSHA compliance, consistent equipment appearance, or other safety reasons is required.

C.6.13.3 Machinery Rooms

The machinery rooms, including walls and the equipment located within the machinery rooms shall be painted to maintain the professional appearance of the room and equipment. When painting equipment or other components in a machine room, the Contractor shall comply with the ANSI color coding system outlined in the ASNI A13.1, *Scheme for the Identification of Piping Systems.* Existing painted floors shall be maintained and bare floors should not be painted but be sealed. The Contractor shall not disturb materials suspected to contain lead-based paint; the Contractor shall immediately report the condition to the CO or designee. Machine rooms with excessive noise shall be labeled "Hearing Protection Required" and appropriate PPE shall be placed outside the room entrances.

C.6.13.4 Historic Buildings

The Contractor shall consider any building 50 years old or older as historically significant, regardless of National Register status and must contact the Regional Historic Preservation Officer (RHPO) before undertaking any work in the building. In addition, the following documents shall be consulted for any work involving the preservation of historic buildings:

a. Historic Building Preservation Plan (HBPP).
b. Historic Structure Report (HSR).
c. The Secretary of the Interior’s Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

C.6.13.5 Architectural Woodwork

In some architecturally significant areas, it shall be necessary to adjust minimum setbacks for temperatures and humidity control from the established building standards

to maintain and protect finished woodwork. These parameters shall be established as necessary by the CO or designee, in consultation with the RHPO. The Contractor shall be responsible for adjusting and maintaining those parameters as established.

C.6.13.6 Directories
The Contractor shall maintain building directories, including electronic directories and tenant common corridor signage but not electronic directories belonging to the tenants. The updating of information within the directories is typically done by the Government or by the Tenants.

C.6.13.7 Roofs
Roof repairs and routine roof preventive maintenance are necessary to protect the structures from significant degradation. Minor roof repair definition and cost thresholds of less than **$500,** and shall be discussed with the CO or designee as an important part of this work to be able to distinguish this work from construction projects. Roof repairs exceeding $500 will not be the responsibility of the contractor, however the contractor is responsible for immediately reporting the roof condition and need of repair roof to the CO or designee (ref. C.5.3.3). Therefore every repair scope of work shall be discussed with the CO or designee before work is undertaken. **Roof repairs in this section only applies for emergency repairs of leaks to prevent damage to government property.**

C.6.13.8 Roof Anchorages

The following building(s) have roof anchorages: U S Courthouse, Laredo, TX (TX0311ZZ)

The Contractor shall provide for annual third party inspections and a ten (10) year recertification of designated roof anchorage points by qualified personnel. Roof anchorages (davits or permanent scaffolds if applicable) shall be inspected in accordance with the anchor manufacturer's requirements and any additional requirements contained in the installation certification. If equipment or support areas are identified or suspected of failure, the anchorage and its points of support shall be immediately tagged "out of service" and reported to the CO or designee. Under no circumstances may the equipment be placed back into service until it has been repaired and certified as safe for use. The Contractor shall consult 29 C.F.R. 1910.27 for further guidance. Copies of the inspection reports shall be provided to the CO or designee.

C.6.13.9 Solar Photovoltaic Systems
The Contractor may use GSA's preventive maintenance standards to perform maintenance or the manufacturer's recommended maintenance procedures, or any combination as long as the method is submitted to the CO or designee for prior review and approval.

Maintenance and Inspecting
The Contractor shall provide Photovoltaic System testing and inspections per the

attached check sheet, refer to contract section J, Exhibit M10. Photovoltaic System Inspection Checklist.

Work under this section shall be completed by Licensed Electricians that possess an active NABCEP PV System Inspector certification, or equivalent certification, and must be able to provide a copy to the CO or designee.

All OSHA and other safety guidance shall be adhered to while performing this work. Do not use brushes, any types of solvents, abrasives, or harsh detergents.

~~C.6.13.10 Green (Vegetative) Roof Systems~~ - RESERVED DOES NOT APPLY

C.6.14 Perimeter Access Control Systems (Security fixtures)

C.6.14.1 General
The Contractor is responsible for repair and maintenance of perimeter access control (PAC) system components, including key cards/pads, magnetic door holders, loop and detection sensors, wedge plates and pop-up barriers and bollards, sliding gates, garage doors, gate arms and operators, interconnecting cabling between system components, and onsite field controllers. This also includes door strikes, magnetic door contacts, request to exit sensors and remote release buttons. The Contractor is not responsible for central processing units and servers, including software, and programming of user's badges for facility access or purchasing of individual badges and other supplies. Where feasible, the Contractor shall be responsible for manually operating systems in the event of a failure of the automatic operator in order to allow access to the facility. Manual operation of the primary access doors or barriers controlled by the PACs system is limited to opening and closing once per day. Manually operating systems shall be coordinated and authorized by the CO or designee and are considered part of the Basic Services during Normal Working Hours and reimbursable after hours. The Contractor shall track these assets and their maintenance.

~~C.6.15 Child Care Center~~ - RESERVED DOES NOT APPLY

SECTION C7
ADMINISTRATIVE INSTRUCTIONS

C.7.0 Initial Inspection

The contractor(s) (*i.e.,* incoming Contractor for new facility, outgoing contractor and incoming Contractor for an existing facility) and the CO or designee shall make a complete and systematic initial inspection together during the startup phase for a new facility or the transition phase for an existing facility that shall include all mechanical, electrical, fire protection, and life safety systems, environmental systems, utility system, windows, motorized blinds, if applicable, doors, and other structural features for which maintenance and repairs are covered by the PBWS. The purpose of this inspection is to discover and list in an initial deficiency report all deficiencies that exist in the equipment and systems covered by the PBWS, as well as the Contractor's (incoming contractor) itemized price (including labor, materials, overhead, and profit) for correcting each deficiency. This report covers all equipment and systems within the building regardless of whether or not they are listed in the building inventory. The Government will elect to have all or any part of this work performed by the incumbent contractor, incoming Contractor, Government employees, or other contractors. The incumbent contractor will be given the opportunity to correct items in the Initial Deficiency Report. **The initial deficiency report shall not include any items that would be replaced, repaired or adjusted during the performance of normal preventive or predictive maintenance.**

C.7.1 Existing Deficiency Inspection/Initial Deficiency Report

The existing deficiency inspection and list is meant to identify and document deficiencies that exist in the equipment and systems covered by this PBWS, but that shall not be repaired during routine preventive maintenance, and includes the Contractor's itemized price (including labor, materials, overhead, and profit) for correcting each deficiency. Existing deficiency Inspections are viewed as primarily “visual inspections” not a teardown inspection. If preventive maintenance, repair, or any other types of teardown or detailed engineering inspections later disclose a possible deficiency, then the determination of whether or not the deficiency was "Initial" will be made by the CO and COR. This inspection is required to be documented including all data required by the Initial Deficiency Report. GSA Staff and the Equipment Specialist will accompany the Contractor during this inspection. If applicable, the Contractor will photograph the identified deficiency and provide a detailed explanation and location of the deficiencies.

The Contractor shall submit an Initial Deficiency Report to the CO or designee for approval **not later than 30 business days after contract Notice to Proceed**. Items that the Government deems not covered under the contract shall be mutually agreed upon and receive final approval **not later 30 business days after receipt of the Initial Deficiency Report** by the Government. All items identified on the list shall be single repair items and shall include at a minimum, the specific location(s), specific equipment identification number(s) or description(s), and any identifiable characteristics to be able to easily identify each specific item. Items including vague descriptions, descriptions of

broad systems, broad categories of items, or repairs that do not include specifics or identified and recorded locations will not be considered.

Any dispute between the Government and the Contractor as to the classification of an Initial Deficiency Report items shall be resolved under the Disputes Clause of the Contract (FAR 52.233-1). After submission of the Initial Deficiency Report the Contractor shall provide itemized estimates for correcting each deficiency that has been identified by the Contracting Officer or designee and the estimates shall remain in effect **for 45 calendar days**. Deficiencies discovered after the submission of the Initial Deficiency Report shall not be considered pre-existing for purposes of this Contract, unless equipment is operational and cannot be secured and inspected. Any piece of equipment or system that cannot be inspected shall be identified as such within NCMMS asset records logs at the beginning of the Initial Deficiency Report stating why it cannot be secured and inspected. An estimate of when the Contractor reasonably expects to be able to inspect the piece of equipment shall be provided. Equipment that can be brought into an acceptable level of operation through basic preventive maintenance and operational procedures must be done so and at no additional cost to the Government. As each piece of equipment is examined the Contractor shall document what shall be accomplished, if anything, to bring the equipment into an acceptable level of operation. Equipment shall be placed on a repair priority schedule by the Contractor, which schedule must be reviewed, adjusted, and approved by the COR. The Contractor shall be responsible for making immediate adjustments or corrections that fall within the scope of routine preventive maintenance and operations required by this Contract. This includes making adjustments to controls; adjusting the BAS software, (*e.g.,* correcting set points; reloading programs; restoring equipment being operated manually to automatic operation) this does not include changing established sequences of operation or programming sequences; testing water sensors, applying lubricants; cleaning fan housings, fans, coils, dampers, AHU sections, and equipment rooms, and replacing consumable parts or components. When an existing deficiency in an item is corrected, the Contractor shall assume full responsibility for the subsequent repair of the item as covered under the terms of this Contract at no additional cost to the Government. Nothing in the Initial Deficiency Report shall be construed as diminishing the obligations imposed by this Contract upon the Contractor to operate any deficient item (to the extent operable) or to adjust or maintain any such item.

C.7.2 Startup Phase (New or Modernized Facility)

The Contractor shall provide **within 60 calendar days of startup** services assistance in transitioning between the construction contractor's temporary operations and the O&M Contractor's initial operations. During this period, the building may be primarily unoccupied except for security personnel and transient GSA, agency, or Contractor personnel carrying out functions related to completing construction punch lists or in preparation of initial occupancy by tenants. During this period as equipment is accepted by the Government and officially (in writing) turned over to the Contractor for operations, the Contractor shall:

a. Operate HVAC equipment to maintain conditions sufficient to avoid damage to finishes, especially millwork.

b. Manage warranties, in cooperation with the construction manager.

c. Submit a written Building Operating Plan for the Government's review.

d. Assist with commissioning activities (note: commissioning schedules shall be made available on request by the CO or designee).

e. Provide site access and escort to agency personnel and Contractors as necessary. If such services take more than 20 hours per week, then the Contractor shall be reimbursed by GSA for the additional time in accordance with the Additional Services provisions in this PBWS.

f. Inspect all major or exposed HVAC equipment for cleanliness, absence of rust, accessibility for maintenance purposes, and other visible problems.

g. Inspect machine rooms for OSHA compliance.

h. Complete a building location and equipment inventory, including equipment attributes used by the NCMMS and develop a Preventive Maintenance Schedule on equipment inventory. This data shall be recorded. The Contractor shall provide certification to the CO or designee that the equipment inventory is complete and accurate in NCMMS.

i. Inventory any stock of materials and repairs parts provided as part of the construction contract to the Government for safekeeping.

j. Identify defects in equipment and systems covered by this Contract that were not previously identified in punch list records and notify the Government of such defects for inclusion in the punch list. If such deficiencies are determined to be out of scope for inclusion in the construction contractor's punch list, the Contractor shall compile such items in an Initial Deficiency Report as well as provide an itemized estimate for correcting each deficiency.

k. Contractor shall train employees on all equipment operated and maintained by Contractor, including new equipment added during construction or renovation. Contractor training shall include BAS access, control procedures and continuance of operations during emergencies. Additionally the sequences of operations for equipment and systems as initially programmed shall be maintained by the Contractor for reference. The Contractor shall maintain the records of the training and make records available to the CO or designee upon request.

l. Contractor shall obtain ENT credentials.

m. Complete the Government-furnished NCMMS training as well as the re-tuning training.

C.7.2.1 Transition Phase Schedule
Within **the 60 calendar days** of the transition phase commencement the Contractor shall submit a work and oncoming staffing schedule to the CO or designee for the transition phase. This schedule must describe on a weekly basis the work to be accomplished and the staff to be on boarded. At the end of each week during the transition phase, the Contractor must submit a report describing the work that was actually completed.

C.7.3 Phase-out Transition Period
When the Contract ends, the Contractor shall comply with FAR Clause 52.237-3 Continuity of Services. During this phase-out period, the contractor shall also:

a. Assist the CO or designee and incoming Contractor for a seamless transition in operations and maintenance with no adverse effect on the building tenants.
b. Provide GSA and the incoming contractor with access to all records and official documentation (both hard copies and electronic as applicable) required by this Contract.
c. Provide training to the incoming Contractor on methods of accessing and programming the BAS and other control systems.
d. Show the incoming Contractor where all archived programs and systems literature is maintained. On the last performance day of the Contract, the Contractor shall turn over to the CO or designee all keys and identification badges or cards.
e. Coordinate and complete disposal, cleanup, and transfer of all materials according to applicable laws.
f. Provide all data records (*e.g.,* database files, and spreadsheets) relating to building systems, assets, Work Orders, permits, work activities and other related matters to the CO or designee.
g. Provide NCMMS transition services to assist transitioning between incumbent and incoming contractors.

C.7.4 Contract Closeout Examination and Withholding of Final Payment
On a mutually agreed-upon date, but no less than **90 calendar days** prior to the Contract date, the Contractor and the CO and/or designee shall, together make a complete inspection of all mechanical, electrical, plumbing, structural, and utility distribution systems and equipment at the site covered by this Contract. This inspection is to establish the condition of the building systems. There shall be no additional expense to the Government with regard to this inspection and testing regardless of the time or date scheduled. The Government shall employ the services of another contractor in the development of such a deficiency list and upon completion provide the Contractor with a copy of work not completed, including the monetary value the Government has assigned for each item. Based upon this inspection, the Contracting

Officer or designee shall provide an existing deficiency list to the Contractor. The Contractor shall have **30 calendar** days from the receipt of this list to correct all items that fall within the scope of this contract.

It remains the responsibility of the Contractor to make all adjustments (preventive maintenance and repairs) to bring all equipment to an acceptable level of performance and satisfaction as determined by the CO or designee. All such work is to be completed and found acceptable by the CO or designee prior to the Contract expiration date. Final payment shall be reduced by the value of work not completed or found unacceptable.

SECTION C8
PUBLICATIONS AND CITED STANDARDS

C.8.0 Publications

The following publications, executive orders and legislative acts are incorporated by reference as setting quality, performance, and design standards for work required in this PBWS. Unless a specific date is provided, references are for the current edition published at the time of issue of the solicitation, including any addenda or errata published by the issuing organization. The Contractor is responsible for obtaining access to all referenced documents at its own expense.

- Public Buildings Service Operations and Maintenance Standards 2018
- Facilities Standards for the Public Buildings Service (PBS P100)
- U.S. Courts Design Guide
- Asbestos Hazard Emergency Response Act
- ASHRAE Guideline 1 HVAC Commissioning Process
- ASHRAE Guideline 4 Preparation of Operating and Maintenance Documentation for Building Systems
- ANSI/ASME A17.1 Safety Code for Elevators and Escalators
- ANSI/ASHRAE Standard 15 Safety Code for Mechanical Refrigeration
- ANSI/ASHRAE Standard 34 Number Designation and Safety Classification of Refrigerants
- ANSI/ASHRAE Standard 55, Thermal Environmental Conditions for Human Occupancy
- ANSI/ASHRAE Standard 62, Ventilation for Acceptable Indoor Air Quality
- ANSI/ASHRAE Standard 100, Energy Conservation in Existing Buildings/Commercial
- ANSI/ASHRAE Standard 111, Practices for Measurement, Testing, Adjusting, and Balancing of Building Heating, Ventilation, Air-Conditioning, and Refrigeration Systems
- ANSI/ASHRAE Standard 188 Legionellosis: Risk Management for Building Water Systems
- ANSI/ASSE A1264.2-2012 Standard for the Provision of Slip Resistance on Walking/Working Surfaces
- ANSI/IWCA I-14.1, Window Cleaning Safety Standard
- American Society of Mechanical Engineers ASME A17.1/CSA B44, Safety Code for Elevators and Escalators
- ASME A17.2, Inspector's Manual for Elevators
- ASME Boiler and Pressure Vessel Code
- ASME CSD-1 Control and Safety Devices of Automatically Fired Boilers
- Building Technologies Technical Reference Guide : refer to website page: Operations and Maintenance Specification
- Clean Air Act, 42 U.S.C. § 7401 *et. seq.*
- Clean Water, 33 U.S.C. § 1251 *et. seq.*
- DOE/EE-0157, International Performance Measurement and Verification Protocol
- Energy Policy Act of 2005, 42 .U.S.C. § 13201 *et. seq.* and 42 U.S.C. 15801 *et seg*

- Energy Independence and Security Act of 2007, 42 U.S.C. *et seg*.
- EPA Green Book
- EPA Purple Book
- Executive Order 13693 Planning for Federal Sustainability in the Next Decade
- Executive Order 13788 Buy American and Hire American
- GSA Order CIO 2100.1K GSA Information Technology Security Policy
- GSA Sustainable Environmental Management System (GSA.GOV/SEMS)
- GSAlink Standard Operating Procedure, refer to website page: Operations and Maintenance Specification.
- Guideline 3-1990 and addendum, or latest, FAR 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts; ARI Standard 700-1988,Specifications for Refrigerants or latest edition, and appendix A to 40, C.F.R., part 82, subpart F, Recycling and Emissions Reduction.
- International Building Code
- International Fire Code
- International Plumbing Code
- International Mechanical Code
- National Board of Boiler and Pressure Vessel Inspectors, National Board Inspection Code
- NETA Maintenance Testing Specification for Electrical Power Distribution Equipment and Systems
- TP-1,National Electrical Manufacturers Association (NEMA), Guide for Determining Energy- Efficiency for Distribution Transformers
- NEMA MG-1., Motors and Generators
- NEMA Application Guide for AC Adjustable Speed Drive Systems
- NFPA 10, Standard for Portable Fire Extinguishers
- NFPA 12, Standard on Carbon Dioxide Extinguishing Systems
- NFPA 12A, Standard on Halon 1301 Fire Extinguishing Systems
- NFPA 13, Standard for the Installation of Sprinkler Systems
- NFPA 14, Standard for the Installation of Standpipe and Hose Systems
- NFPA 17, Standard for Dry Chemical Extinguishing Systems
- NFPA 17A, Standard for Wet Chemical Extinguishing Systems
- NFPA 20, Standard for the Installation of Stationary Pumps for Fire Protection
- NFPA 22, Standard for Water Tanks for Private Fire Protection
- NFPA 24, Standard for the Installation of Private Fire Service Mains and Their Appurtenances
- NFPA 25, Standard for the Inspection, Testing, and Maintenance of Water-Based Fire Protection Systems
- NFPA 54-ANSI Z223.1 - National Fuel Gas Code
- NFPA 70, National Electrical Code
- NFPA 70E, Standard for Electrical Safety in the Workplace
- NFPA 70B, Recommended Practice for Electrical Equipment Maintenance
- NFPA 72, National Fire Alarm and Signaling Code
- NFPA 80, Standard for Fire Doors and Other Opening Protectives
- NFPA 85, Boiler and Combustible Systems Hazards Code

- NFPA 92, Standard for Smoke Control Systems
- NFPA 96, Standard for Ventilation Control and Fire Protection of Commercial Cooking Operations
- NFPA 101, Life Safety Code
- NFPA 105, Standard for the Installation of Smoke Door Assemblies and Other Opening Protectives
- NFPA 110, Standard for Emergency and Standby Power Systems
- NFPA 111, Standard on Stored Electrical Energy Emergency and Standby Power Systems
- NFPA 780 - Standard for the Installation of Lightning Protection Systems
- NFPA 2001, Standard on Clean Agent Fire Extinguishing Systems
- National Institute for Certification in Engineering Technologies (NICET) publications and issuances
- National Institute for Safety and Health publications and issuances
- Presidential Memorandum, June 20, 2014 entitled: “Creating a Federal Strategy to Promote the Health of Honey Bees and Other Pollinators”
- PBS Order 1095.2 Fuel Storage Tank Management
- PBS Order 100.7 Drinking Water Quality Management
- Resource Conservation and Recovery Act, 42 U.S.C. 6901 *et seg.*
- Safe Drinking Water Act, PL 93-523, as amended, 42 U.S.C. 300f *et seg*.
- Sheet Metal and Air Conditioning Contractors National Association HVAC Systems Testing, Adjusting and Balancing
- Technology Policy for PBS-Owned Building Monitoring and Control Systems refer to website page: Operations and Maintenance Specification
- 29 C.F.R. part 1910, OSHA General Industry Standards
- *29 C.F.R. part 1926, Safety and Health Regulations for Construction*
- 40 C.F.R. Protection of Environment
- 40 C.F.R. part 761, Polychlorinated Biphenyls (PCBs) Manufacturing, Processing, Distribution in Commerce, and Use Prohibitions, in general and specifically with regard to Electrical Transformers
- 40 C.F.R., 141.43, Sections A and D, EPA Safe Drinking Water
- 41 C.F.R. part 102-74, – Facility Management
- Toxic Substances Control Act, 15 U.S.C. § 2601- 2629 *et. seq.*

SECTION C9
CUSTODIAL AND RELATED SERVICES

C.9.1 General

This portion of the Statement of Work relates to the Custodial and Related Services. As a performance-based contract, the requirements are stated in terms of desired results with associated quality standards. The contract consists of two major functional areas: standard services and above standard services.

Custodial and related services provided by the Contractor are arranged and oversight is provided through one or more of the following entities: GSA's Regional Office, Service Centers, Field Offices, or Local Offices. These entities represent the Property Management organizations that have been adopted by GSA's regional leadership.

All references incorporated herein as Web sites (URL's) are accurate as of August 2020, and may be subject to change by their web publisher. Web pages are provided to the Contractor for additional clarity. A change to any Web site specified in this contract does not change or alter the contract requirements and objectives identified herein.

C.9.2 Contractor Shall

- Furnish all personnel, labor, equipment, materials, tools, supplies, supervision, management, training/certifications, and services, except as may be expressly set forth as Government furnished, and otherwise accomplish all actions necessary to or incident to, perform and provide the work efforts described in the contract.
- Ensure that their employees are properly trained, licensed and/or certified to operate necessary building systems or equipment for which licensed and/or certified personnel are required by Federal, State, or local laws; codes, or ordinances.
- Be responsible to make the management and operational decisions to meet the quality performance standards required under this contract.
- Use innovation, technology and other means and methods to develop and perform the most efficient cleaning services for the building.
- Implement an effective Quality Control Plan (QCP).
- Implement an effective service call system that results in prompt, professional, and courteous resolution of tenant concerns.
- Keep the CO or their designee informed of current status of the work being performed, provide work schedules and provide other pertinent information needed by the CO or their designee.
- Reduce the environmental impacts of work performed under this contract by using, to the maximum extent, environmentally sound practices, processes, and products.
- Provide training/certifications for their employees that stress stewardship in cleaning practices i.e., the use, disposal and recycling of cleaning chemicals; and dispensing equipment and packaging. Current information on stewardship, training, educational materials and other issues can be found in ASTM E1971-19

or at the ASTM web site. Information on these items is also available on the web site: Stewardship for the Cleaning of Commercial and Institutional Buildings (www.astm.org) and ISSA's website (www.issa.com).

C.9.2.1 Cleaning Hours - See Section C.1.7.2

C.9.2.2 Building Information Data Sheet Estimates
The figures contained in the Building Information Data Sheet are estimates. It is the Contractor's responsibility to notify the COR or their designee if it is believed that the information provided is incorrect.

C.9.3 Qualifications of Personnel
Qualifications of Supervisory Custodial Employees
Supervisory custodial contract employees shall have a minimum of 3 years of experience with managing and related services in building(s) of similar size and complexity. The Contractor shall provide employee resumes covering these positions to the CO for approval. At the discretion of the CO or their designee formal training may be substituted for experience. The on-site supervisor is required to be fully conversant in English. (Ref. C.1.2.1)

C.9.3.1 Qualifications of Contractor Personnel
The Contractor shall provide appropriate training to their employees. The personnel employed by the Contractor shall be capable employees, who are trained and qualified in one or more related type service requirements.

The building(s) shall be fully staffed, beginning the first day of work under the contract, unless authorized by the CO or their designee. The Contractor's employees shall be familiar with the operation of the building(s) fire alarm system. In the event of a fire, the Contractor shall leave the building and not enter until authorized by Fire officials. The Contractor's staff shall also be familiar with the building's Occupancy Emergency Plan, which includes the shelter in place program. Further information on the program shall be provided by the CO or their designee. (Ref. C.1.2.1)

C.9.4 Green Cleaning
The Contractor is required to conduct custodial and related services in a manner to utilize industry best practices and guiding principles to minimize the Government's Environmental Footprint. This requires annual reporting of non-bio-based, bio-based, sustainable, and green products and materials.

C.9.4.1 Sustainable Purchasing
The Contractor shall use safe and environmentally friendly products as referenced throughout this specification. Green cleaning products and processes include those meeting government and third party certified sustainability standards, other environmentally protective products and services as well as those that conserve energy, water, and other resources. Contractor shall select and track cleaning product and materials purchases as described herein.

C.9.4.2 Sustainable Product Standards

In the performance of this contract Contractor shall purchase and use, to the extent possible, the safest and most environmentally friendly products. Products used in GSA facilities shall meet the following standards:

- Key Sustainable Products (KSPs): Categories of products and standards designated by GSA as those most commonly purchased in the execution of contracts and task or delivery orders for supplies and services performed at GSA property. Use of KSPs is mandatory. See the Green Procurement Compilation at https://sftool.gov/greenprocurement for a partial list of products that comply with the KSP standards.
- Federal Programs Designated Sustainable Products: A compilation of products designated as sustainable by U.S. Department of Agriculture (USDA) BioPreferred, Environmental Protection Agency (EPA) CPG, EPA Safer Choice and Department of Energy's EnergyStar or Federal Energy Management Program (FEMP). Visit https://sftool.gov/green-products/5/cleaning-products.
    - When selecting Non-KSP products from the EPA-designated (e.g. Comprehensive Procurement Guidelines (CPG) and USDA designated in the BioPreferred Program and all other factors (such as price, performance, and availability) being equal, the Contractor shall select the CPG item.
    - For other purchases, unless the Contractor receives an exemption from the Contracting Officer or their designee, the Contractor shall select USDA designated in the BioPreferred Program products over products with other sustainable attributes. Visit (http://www.biopreferred.gov/),
    - For those categories of product not recognized by one of the aforementioned standard's, preference shall be given to products meeting the California Code of Regulations maximum allowable Volatile Organic Compounds (VOC) levels for the appropriate cleaning product category (California Air Resource Board/California Code of Regulations (CCR), Title 17 CCR Section 94509 – (Topic cited; Standards for consumer products at http://www.arb.ca.gov/consprod/regs/2008/3cp.htm).
- Contractor shall also ensure that (a) Green cleaning products and processes are compliant with the Guiding Principles for Sustainable Existing Buildings. (b) Vacuum cleaners meet the Carpet and Rug Institute (CRI) Seal of Approval/Green Label Vacuum Program (c) Products meet the American Society of Testing Materials (ASTM) standards. (d) Chemical concentrates that require dilutions are used whenever possible as compared to ready-to-use products. Dilution control equipment should be employed to ensure correct dilutions of concentrates and to protect workers from exposure to concentrated chemicals.

C.9.4.3 ~~Proof of Purchase~~ - RESERVED - DOES NOT APPLY

C.9.4.4 Green Cleaning Plan

The Contractor shall submit a green cleaning plan that sets forth the procedures, products and equipment that will be used to reduce the exposure of building occupants and maintenance personnel to potentially hazardous chemical, biological and particulate contaminants. The plan shall include building-specific standards that will apply to dusting, dust mopping, dry floor cleaning, chemical handling and tracking, cleaning equipment and associated planned maintenance. Plan shall also describe how hard floor and carpet maintenance will minimize chemical use; practices for cleaning entryways; practices for the handling and storage of cleaning chemicals to minimize spills, leaks, and other mismanagement; practices related to the use of chemical concentrates and dilutions systems; personnel training; and green cleaning quality control processes. The Green Cleaning Plan shall be submitted to **the COR 7 calendar days prior to start date.**

C.9.5 Standard Services

C.9.5.1 Interior Services
The Contractor shall provide interior standard services for the work items listed below.

C.9.5.1.1 Performance Standards
The Contractor through innovation, technology, or other means shall perform the work in this contract to meet the quality and performance standards in this Section. Evaluations of the Contractors work shall be based on the standards in this Section and conducted in accordance with the Government's 'Quality Assurance Surveillance Plan (QASP).'

C.9.5.1.2 Floor Care
The Contractor shall provide a floor maintenance schedule to the CO or their designee **7 calendar days prior to the start date of each year the contract is in effect**.

Bare Floors: Floors, base moldings, and grout shall be clean and free of debris including but not limited to dirt, water streaks, mop marks, string, gum, tar, and other foreign matter. The floors shall maintain their natural luster and not have a dull appearance.(All spaces)

Wet mopping of bare floors shall be cleaned using disinfectant cleaner(s) with additional scrubbing, if necessary. These floors shall be slip resistant. Surfaces, baseboards, and corners shall be clean and dry. Walls, baseboards, and other surfaces shall be free of splashing and markings from the equipment.

Mops and cleaning rags shall be cleaned and sanitized before and after each day of use. Mops and cleaning rags used in restrooms including diapering areas in restrooms shall not be used to clean any other areas.

Asbestos Containing Building Material (ACBM) Floors: Cleaning of flooring that may contain asbestos material, such as Vinyl Asbestos Tile (VAT), shall comply with the methods prescribed in the National Institute of Building Sciences (NIBS) Guidance Manual, 'Asbestos Operations and Maintenance Work Practices.' The Contractor shall

have a copy of the NIBS Guidance Manual. Upon request, the Government shall make available to the Contractor any asbestos sampling results. UNDER NO CIRCUMSTANCES SHALL BURNISHING, HIGH SPEED BUFFING, OR DRY STRIPPING METHODS BE USED ON ACBM FLOORING.

ADP/Data Center Floors: Damp mopping shall be the only method of wet cleaning for floors in Automated Data Processing (ADP)/Data Center spaces.

Asphalt Floors: Damp mopping shall be the only method of wet cleaning for floors containing asphalt material. Asphalt plank floors shall be maintained in accordance with the manufacturer's instructions.

Granite and Marble Floors: All applicable floor areas shall be maintained in accordance with industry standards, and the standard identified in the Contractor's 'Quality Control Plan.'

Loading Dock Floors: Spill residues and clean-up materials shall be disposed of in accordance with the Environmental Protection Agency (EPA) and/or State and local regulatory agency requirements.

SPRAY BUFFING RESILIENT FLOORS:
Spray buffing shall be accomplished **monthly**.

Resilient floors shall be free of marks, skipped areas, and streaks. Walls, baseboards, doors, and other surfaces shall be free of splashing and marks. The finished area shall have a uniform luster. There shall be no buildup of finish in corners or crevices.

STRIPPING/FINISHING/SEALING:
Stripping/finishing/sealing shall be accomplished **annually**.

- Stripping Floors: The old finish or wax shall be removed in accordance with standard commercial practices. Spots shall be eliminated. There shall be no evidence of gum, burns, scuff marks, or wax build-up in corners or crevices. UNDER NO CIRCUMSTANCES SHALL BURNISHING OR DRY STRIPPING METHODS BE USED ON ACBM FLOORING.
- Finishing Floors: Walls, baseboards, and other surfaces shall be free of finish residue and marks from equipment. Floors shall be free of streaks, mop strand marks, and skipped areas. The applied finished area shall have a uniform luster.
- Sealing Floors: Sealant must adhere to the floor. Floor areas must be evenly coated with a slip resistant seal.
- Wood Floors: There shall be no water solutions used on wood flooring. There shall be no dry stripping methods used on wood flooring.

C.9.5.1.3 Carpets and Rugs
Extraction (Public Areas Only): Carpet extraction shall be performed **annually**.

Build-up, spills, and crusted materials shall be removed along with spots and smears. There shall be no areas of deterioration or fuzzing to the carpets and rugs as a result of harsh brushing or scrubbing. Cleaned areas of carpets and rugs shall be reasonably blended with surrounding carpets. The Contractor shall coordinate with the CO or their designee the times when carpet shall be cleaned. The carpet shall be dry before customers occupy the building on the next business day. The Contractor shall take measures to prevent the growth of mold.

Spot Cleaning: Carpet surfaces shall be free of removable spots, soiled traffic patterns, dirt, dust, debris, gum, and crusted materials.

Vacuuming: Vacuuming shall be done at a frequency that will protect the integrity of the carpet and prolong wear. The Contractor shall utilize at a minimum HEPA vacuum cleaners that meet the requirements of the Carpet and Rug Institute's 'Seal of Approval/ Green Label Vacuum' Program.'

C.9.5.1.4 Floor Mats and Runners
The Contractor shall furnish, maintain, and replace all mats and runners. The CO or their designee shall approve all mats and runners including mat size, type, and direction.

Mats and runners shall be laid out as specified by the CO or their designee at main entrances, main lobbies, main and secondary corridors at all times. Replacement mats and runners shall be the same type as the original mats and runners. Mats and runners shall be free of spots, soiled traffic patterns, gum, and crusted materials. They shall be cleaned in accordance with the manufacturer's instructions. Any mats and runners that are found to be non-repairable or cannot be cleaned shall be brought to the attention of the CO or their designee so they can be replaced. Mats and runners shall be stored in accordance with the ANSI/ASEE A1264.2-2006 'Provision of Slip Resistance on Walking/Working Surfaces Guidelines.'

The use of larger mats and runners, where appropriate, as opposed to several smaller mats and runners, is preferred to eliminate overlapping and to reduce potential tripping hazards.

Mats and runners shall be free of removable spots, soiled traffic patterns, dirt, debris, gum, and crusted materials. There shall be no areas of deterioration or fuzzing as a result of harsh brushing or scrubbing. Any mats and runners that are found to be non-repairable or cannot be cleaned shall be brought to the attention of the CO or their designee so they can be replaced. Mats and runners shall be stored in accordance with the ANSI/ASEE A1264.2-2006 'Provision of Slip Resistance on Walking/Working Surfaces Guidelines.'

In the event of wet or inclement weather mats and runners are used, the mats and runners shall be placed at entrances and at other areas identified by the CO or their designee prior to the building occupants reporting to work. Wet or inclement weather

mats and runners shall be removed, cleaned, and stored by the Contractor when the CO or their designee determines that they are no longer required.

C.9.5.1.5 Restrooms, Shower Rooms, Locker Rooms and Holding Cells
Cleaning: All areas shall be cleaned using a disinfectant cleaner. Fixtures (washbasins, urinals, modesty panels, toilets, shower stalls, etc.) shall maintain a high level of luster and be free of dust, spots, soiled substances, discoloration, buildup, mold, mildew, streaks, and encrustations. Partitions, doors, vents, sills, and walls shall be free of dust, dirt, bodily fluids and waste. Remove graffiti using normal cleaning methods (e.g., normal graffiti removal cleansers or solvents.) Graffiti that cannot be removed with such normal cleaning methods shall be reported to the CO or their designee.

Restrooms shall be free of discarded material and trash shall be emptied to prevent the containers from overflowing.

- Dispensers: The Contractor shall provide dispensers. The Contractor shall replenish supplies and fill dispensers as a standard service. The supplies for the dispensers shall be compatible with the dispenser's manufacturer's requirements. Supplies shall be consistent with the safe and environmentally friendly products requirements referenced throughout this specification. Hand soaps shall not contain antibacterial agents except where required by Federal, State, local requirements and health codes.

-Floors: Floor care requirements are in paragraph C.9.5.1.2.

Receptacles: The Government shall provide receptacles. The Contractor shall empty, clean, and sanitize the sanitary napkin and waste receptacles. Sanitary napkin disposal containers shall be lined with new receptacle bags. Disposal of waste shall be treated the same as Blood Borne Pathogens as specified in 29 CFR §1910.1030.

C.9.5.1.6 Blood Borne Pathogens
The Contractor shall provide appropriate training to their employees and all necessary equipment and services required to perform clean-up of blood borne pathogens and fully comply with the requirements of the Bloodborne Pathogen Standard listed in 29 CFR §1910.1030, as amended.

When blood, vomit, or similar biological fluid spills are encountered on a surface, the Contractor with proper training in bloodborne pathogens, shall clean the surface wearing Contractor provided disposable gloves, and use absorbent material and certified EPA disinfectants. The Contractor shall provide a plastic bag, and place the used gloves and spilled content in the bag, seal the bag, and place it in the regular trash.

C.9.5.1.7 Dispensers (in areas other than toilet rooms) and Drinking Fountains
Hand Sanitizer Dispensers: The Contractor shall supply and replenish all Hand Sanitizer Stations or Wall Mounted units with the alcohol based refills as appropriate for the unit

in all common areas located throughout the building. The contractor shall not be responsible for refill of units in agency owned or private spaces. (Reference Exhibit C-1 Building Information Sheet for inventory).

Soap and Towel Dispensers: The Contractor shall provide touch free dispensers, replacement batteries for dispensers, soap, towels, hand sanitizers, etc. (in common areas). The contractor shall not be responsible for refill of units in agency owned or private spaces. The Contractor shall perform this work as a standard service. The supplies for the provided dispensers shall be compatible with the dispenser's manufacturer's requirements. Supplies shall be consistent with the safe and environmentally friendly products requirements referenced throughout this specification. Hand soaps shall not contain antibacterial agents except where required by Federal, State, local requirements and health codes. All dispensers shall be cleaned with an EPA disinfectant cleaner leaving no dust, spots, soiled substances, discoloration, mold, build-up, or excess moisture

Drinking Fountains: All fountains shall be free of dirt, watermarks, and all other debris or encrustations. Drinking fountains shall be sanitized and present a lustrous appearance.

C.9.5.1.8 Interior Surfaces
Surfaces: All interior surfaces (including corners, crevices, moldings, ledges, handrails, grills, doors, door knobs, door frames, kick plates, etc.) **within 12 (twelve) feet of the finished floor** shall be free of dirt, oil spots, streaks, spots, hand marks, encrustation, or smudges. Cabinets and desks with papers, computers, and keyboards shall not be disturbed. Surfaces shall be free of excessive dust with a preference to using a microfiber or damp cloth, or backpack vacuum fitted with the appropriate dusting tool. All glass, clear partitions, mirror surfaces, plate glass and other glass **within 12 (twelve) feet of the finished floor** shall be clean and free of dirt, dust, streaks, smudges, watermarks, spots, grime, and shall not be cloudy. All wall surfaces shall be free of smudges, marks, dirt, and spots. Cleaning shall not cause discoloration. Surfaces should be damp mopped or wiped with a germicidal cleaner. Contact time should be consistent with the manufacturer's recommendations.

The below requirements shall be identified as a line item for the base year pricing of the contract and shall be performed as stated below. This requirement is anticipated to be applicable for the first year of the contract only. However, the pricing for this service shall be proposed by the contractor for all option years and may be exercised at the discretion of the government.

The contractor shall use the product in accordance with directions provided by the manufacturer. As applicable, the contractor shall routinely wipe down all solid, high contact surfaces in common and high traffic areas using a disinfectant from the EPA-registered list of products identified as effective against Novel Coronavirus SARS-CoV-2 (see list at https://www.epa.gov/pesticide-registration/list-n-disinfectants-use-against-sars-cov-2),

or other product containing the same active ingredient(s) at the same or greater concentration than those on the list. Disinfection application and products should be chosen so as to not damage interior finishes or furnishings including GSA's Fine Arts Collections and murals, and historic materials and finishes.

"Routinely," for purposes of this section, is defined as being in accordance with applicable guidance from the Centers For Disease Control and Prevention (CDC), but is no less than once daily.

Examples of solid, high contact surfaces in common and high traffic areas include but are not limited to: handrails, door knobs, access panels, light switches, countertops, table tops, water faucets and handles, elevator buttons, sinks, toilets and control handles, restroom stall handles, toilet paper and other paper dispensers, door handles and push plates, water cooler and drinking fountain controls. Disinfected surfaces should be allowed to air dry.

Providing disposable disinfectant wipes and the wiping down of agency owned equipment such as telephones, computers, keyboards, docking stations, computer power supplies, and computer mouse, personal fans and heaters, desk lighting, etc. remains the responsibility of each building occupant.

C.9.5.1.9 Walls
All wall surfaces **below 12 feet off of the floor** shall be free of smudges, marks, dirt, and spots. Cleaning shall not cause discoloration.

C.9.5.1.10 RESERVED

C.9.5.1.11 Dusting
Surfaces shall be dust free with a preference to using a micro-fiber, and/or damp cloth, and/or backpack vacuum fitted with the appropriate tool. **See paragraph C.9.5.1.8**

C.9.5.1.12 Trash and Wastebaskets
All trash (including restrooms) shall be collected and removed to a location designated by the CO or their designee. Trash containers shall be emptied and kept clean, odor-free, and free of dirt, dust, debris, residue, and spilled material. Plastic liners for all trash and debris containers shall not be torn, worn, or contain residue.

The Contractor shall notify the CO or their designee of any item or material identified by the Environmental Protection Agency (EPA) and State and local regulatory agencies as hazardous waste, hazardous materials, or Universal Waste observed in the trash receptacles. Typical prohibited wastes include but are not limited to fluorescent light bulbs, thermostats, thermometers, most chemicals, and batteries as specified in 40 CFR § 260-273.

C.9.5.1.13 Recyclables

The Contractor shall provide all labor, and the means to collect and transport recyclable materials from recycling bins and containers located throughout the building to storage and loading areas as designated by the CO or their designee and as described in Section C.9.10.2. 'Recycling.'

C.9.5.1.14 Elevators and Stairways

- Door Tracks: Tracks shall be free of dirt, debris, built up grime, dust, and other extraneous matter. Exterior and Interior Car Surfaces: Surfaces shall be clean and free of finger marks, smudges, and spills. Floor care requirements are in paragraph C.9.5.1.2.
- Exposed Surfaces, Treads, Risers and Landings: Stairways, landings, railings, risers, ledges, grills, doors, radiators, and surrounding areas shall be free of dirt, dust, litter, and debris.

C.9.5.1.15 Interior Plate Glass

Clean plate glass (spandrel glass, glass over and in exterior and vestibule doors, and all plate glass around entrances, lobbies, and vestibules) shall be clean and free of dirt, grime, streaks, moisture, and shall not be cloudy. The cleaning height restriction is not applicable to this glass. Also, this glass is not considered exterior windows and will be cleaned as often as needed to meet the standard.

C.9.5.1.16 Spot Cleaning of Interior Surfaces of Windows

Cleaning: The interior surface of windows shall be spot cleaned and free of removable spots and debris

C.9.5.1.17 Blinds and Coverings (Not Including Drapes, Curtains and Unique Coverings)

Dusting of Blinds and Coverings shall be performed **quarterly**. All blinds, coverings, cord tapes, and valances shall be free of dust. Blinds and coverings shall be free of removable spots. Blinds and coverings that are not operating properly shall be reported to the CO or their designee for repair. **The Contractor shall provide a blind and covering dusting schedule to the CO or their designee 7 calendar days prior to the start date of each year the contract is in effect.**

C.9.5.1.18 Fine Arts Collection – INTERIOR

The CO or their designee shall identify artworks in the building which are considered part of GSA's Fine Arts Collection. The Contractor shall work with the CO or their designee and Regional Fine Arts Officer to determine the best way to ensure that regular maintenance such as floor polishing, dusting, and window washing are accomplished in these areas; and to identify and help mitigate site-specific hazards such as pests that may damage the artworks.

C.9.5.1.19 Policing Inside Areas

High traffic areas (public and employee restrooms, pedestrian walkways, snack bar seating areas, break areas, vending areas, corridors, and lobbies) shall be free of papers, trash, and other discarded materials.

C.9.5.1.20 Interior and Atrium Plants (J&L LPOE / Bus Processing only)
Plants shall be free of dust and dead leaves and properly hydrated. Fertilize, prune, and treat for infestation. Any dead or withered plants, due to Contractor's neglect, shall be replaced by the Contractor at no additional expense to the Government.

C.9.5.1.21 Public Concessions Areas
Vending machine areas shall be clean, sanitized, and free of spillages, food crumbs, spots, smudges, marks, and soil. Floors shall be maintained using the floor care standard requirements in this contract. Floors in seating areas shall be cleaned only if open during the normal scheduled cleaning hours.

C.9.5.1.22 ~~Postal Space~~ - RESERVED - DOES NOT APPLY

C.9.5.1.23 Fitness Centers, Health Units and Laboratories
Cleaning: Areas such as fitness centers, health units, and laboratories shall be cleaned in accordance with the standard service requirements.

Surfaces: All metal (door frames, handles, and fixture) and glazed surfaces (including partitions), shall be disinfected and made free of smears, finger marks, and streaks. Floor mats shall be free of dust, dirt, spots, streaks, and smudges. Cleaning shall be performed under and around without moving or lifting items. Locker exterior surfaces shall be free of dust and streaks.

C.9.5.2 Exterior Services
The Contractor shall provide exterior standard services for the work items listed below.

C.9.5.2.1 Performance Standards
The Contractor shall provide all resources, labor, tools, equipment, transportation, hauling away, disposal, training, supplies, materials, and oversight to ensure that quality and performance standards are successfully achieved.

C.9.5.2.2 Exterior Plate Glass
Clean exterior plate glass (spandrel glass, glass over and in exterior and vestibule doors, and all plate glass around entrances, lobbies, and vestibules) shall be clean and free of dust, dirt, grime, streaks, spots, hand marks, moisture, encrustation, or smudges, and shall not be cloudy. The cleaning height restriction is not applicable to this glass. This glass is not considered exterior windows per C.9.5.2.3 and will be cleaned as often as needed to meet the standard.

C.9.5.2.3 Window Washing (Exterior Surfaces of Windows)
Exterior surfaces of the glass (ground floor only) shall be clean and free of dirt, grime, streaks, moisture, and shall not be cloudy as needed. All windows at every floor level shall be cleaned **annually**. Cleaning frequencies that are above standard shall be completed on a reimbursable basis to the Contractor. Cleaning of the exterior surfaces of the windows shall be coordinated with the CO or their designee to maximize cost

effective operations. Window washing shall be in accordance with ANSI/IWCA I-14.1 as well as all Federal, State and local regulations.

The Contractor shall submit to the CO or their designee a written Window Washing Safety Plan no later than **10 calendar days after the contract start. The Window Washing Safety Plan shall include the testing, inspection and certification by the contractor, of all davits and/or tie offs per OSHA requirements. (**Reference C.6.13.8 Roof Anchorages.)

C.9.5.2.4 Canopies, Sally Ports, and Overhangs
Cleaning: All canopies, sally ports, areas or rooflines contained by and/or above netting, overhangs, and anything affixed to or included in the surfaces of canopies, sally ports, and overhangs shall be clean and free of all dirt, dust, cobwebs, nests, bird excrement, trash, and debris. These areas shall be cleaned **semi-annually.**

C.9.5.2.4.1 Cleaning of NII Buildings (Xray, Gantry, VACIS)
Cleaning: All hard surfaces of NII buildings shall be clean and free of dirt, debris, gum, litter, gravel, weeds, oil, and grease. These areas shall be cleaned **as needed**. The contractor shall obtain prior approval from the appropriate tenant official prior to cleaning and to gain access.

C.9.5.2.5 Hard Surface Areas
Cleaning: All areas (sidewalks, brick areas, around light poles, hard surfaces, parking lots, surface parking, garages, dock areas, moats, platforms, driveways, ramps, lanes, truck pits, etc.) shall be clean and free of dirt, debris, gum, litter, gravel, weeds, oil, and grease. No residual dirt shall remain after the removal of the debris. Spill residues and clean-up materials shall be disposed of in accordance with the Environmental Protection Agency (EPA), and State and local regulatory agency requirements.

C.9.5.2.6 Ash Receptacles and Trash Containers
Cleaning: All solid waste/trash shall be collected and removed to a location designated by the CO or their designee. Trash containers and ash receptacles shall be emptied and kept clean, odor-free, and free of dirt, dust, [ash, cigarette butts, debris, residue, and spilled materials. Sand in ash receptacles shall be replenished as necessary. Plastic liners for all trash containers shall not be torn, worn, or contain residue.

C.9.5.2.7 Exterior Surfaces (Signs, Tables, etc.)
Cleaning: Surfaces shall be clean, with no dirt, dust, residue, streaks, spots, soil substances, discoloration, or cloth streaks. Surfaces should be damp mopped or wiped with a germicidal cleaner. Contact time should be consistent with the manufacturer’s recommendations. Spill residue and clean-up materials used shall be disposed of properly.

C.9.5.2.8 Graffiti Removal

Remove graffiti using normal cleaning methods (e.g., normal graffiti removal cleansers or solvents.) Graffiti that cannot be removed with such methods shall be reported to the CO or their designee.

C.9.5.2.9 Excrement Removal (Human, Bird and Animal)
Cleaning: All steps, stairs, entrances, sidewalks, arcades, landings, balconies, and ledges shall be cleaned of all excrement while following established safety precautions as outlined in the Center of Disease Control protocols. Knowledge of safety requirements in cleaning areas contaminated by bat, pigeon, or other avian pest excrement is required. The Contractor shall fully train all employees designated to perform these services in accordance with Occupational Safety and Health Administration (OSHA) standards and OSHA approved Federal, State, and local regulations.

C.9.5.2.10 Policing Outside Areas
Policing: All areas including lawn, grounds, planted areas, sidewalks, hard surfaces, parking areas, garages, docks, platforms, driveways, ramps, lanes, etc. shall be cleared of gum, litter, debris, paper, trash, and other discarded materials.

Unimproved Grounds: All areas shall be cleared of trash, debris, and other discarded material each time the native grasses, weeds, etc. are cut.

Fence Lines: Fence lines shall be cleared of trash, debris, and other discarded materials.

C.9.5.2.11 Cleaning Incinerators
Incinerators shall be free of ashes and noncombustible material. Contractor's method of cleaning incinerators shall prevent fire and safety hazards. The contractor shall obtain approval from the appropriate tenant official prior to opening or cleaning incinerators to ensure items in the incinerator have been appropriately incinerated and that the incinerators are cool enough to open.

C.9.5.2.12 Fine Arts Collection (Exterior)
The CO or their designee shall identify artworks located on the exterior of the building(s) which are considered part of GSA's Fine Arts Collection. The Contractor shall work with the CO or their designee and Regional Fine Arts Officer to determine the best way to ensure that regular maintenance such as watering, fertilizing, mowing, weeding, etc. are accomplished and to identify and help mitigate site-specific hazards such as pests that may damage the artworks.

C.9.5.3 Snow and Ice Removal

NOTE: Average snow fall in this location is: less than 1% according to the Weather Service

The Contractor shall perform snow and ice removal standard services for the snow and

ice removal program. Snow and ice removal from entrances, steps, landings, sidewalks, vehicular courts, driveways, plaza areas, roadways, parking areas, handicapped accessibility areas, and approaches are included in the standard service price. This does not include snow and ice removal requiring heavy equipment (ride-on equipment such as front end loaders, backhoes, bobcats, snow plows, etc.)

The Contractor shall clear snow and ice before the normal building operating hours to prevent slip hazards. Furthermore, the Contractor shall clear snow and ice during normal building operating hours and is authorized to divert work to accomplish the task. Prior to work commencing, the Contractor shall notify the CO or their designee **1 hour** prior to the diversion. The CO or their designee retains the right to determine what type of services and the duration of diverted services for the removal of snow and ice.

The GSA Ordering Official may order additional snow and ice removal services (during weekends, or holidays). The task order shall reflect the days and hours required for snow and ice removal.

The Contractor shall submit a detailed snow removal plan that meets the needs of the GSA. The snow and ice removal plan shall be submitted to the COR **10 days after the contract start date**. At a minimum, the snow removal plan shall include the following items:

-Coordination measures (to ensure appropriate levels of effort for the conditions of the building)
-Equipment
-Personnel
-Snow removal event triggers
-Treatment areas requiring de-icing
-Approved materials and chemicals
-Safety plan
-Notification procedures

Chemicals and/or sand shall be used to reduce safety hazards due to ice and snow. All chemicals used shall be certified as EPA ‘Safer Choice.’ Products with no comparable substitute shall comply with Federal specifications and local codes and be approved by the CO or their designee prior to the first inclement weather event. No sodium chloride or calcium chloride salt shall be used due to environmental risk. Less disruptive chemicals such as magnesium chloride, potassium acetate, and potassium chloride are viable alternatives. The Contractor shall ensure there is an adequate supply of chemicals and sand on site or readily available to cover unexpected snow and ice occurrences.

C.9.5.4 Grounds Maintenance

The Contractor shall perform grounds maintenance standard services for the work items listed below. Contractor shall use recovered organic materials for fertilizer whenever possible.

C.9.5.4.1 Landscape Erosion Management

The Contractor shall employ environmentally sustainable, low-impact strategies such as temporary and permanent seeding, mulching, earth dikes, silt fencing, sediment traps and sediment basins to correct existing erosion such as typically found as the result of foot traffic killing the vegetation, steep slopes where sheet flow from storm water exceeds existing vegetation holding power, or point storm water outflow that exceeds the holding power of the vegetation covering the soil.

C.9.5.4.2 Grounds Maintenance Services

General: Grounds maintenance in the standard services shall benefit the environment and generate cost savings to the Federal Government. The Contractor shall maintain all plants, trees, shrubs, ground covers, and lawns in a manner that prolongs life and sustains a healthy appearance. The Contractor shall seek to prevent pollution by, among other things, reducing fertilizer and pesticide use to protect the environment, using integrated pest management techniques, recycling green/landscape waste, and minimizing runoff. The Contractor shall use approaches that preserve and protect native plants and wildlife that is entrusted to the Government, and that support habitats for pollinators, including honey bees, native bees, birds, bats, and butterflies.

C.9.5.4.3 Composting

To reduce the amount of material being disposed of in landfills, the Contractor is required to compost, to the greatest extent possible, yard waste generated by the Contractor's operations. The Contractor shall not compost material on-site unless authorized by the CO or their designee. The Contractor shall utilize an approved recycling or composting facility or compost the material at the Contractor's own facility. Where applicable, the Contractor shall work with on site cafeterias and wet stands to recover and compost all possible materials. The Contractor is responsible to pay for composting services for all landscaping and cafeteria debris.

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C.9.5.4.4 Trees and Shrubs

Maintenance: Tree supports shall be kept in good condition, functioning at all times and be removed when no longer needed. All trees and shrubs shall be fully protected. Tree stakes, tree ties, and guy wire shall be of materials that are comparable to those existing on site, and shall be replaced or repaired by the Contractor as needed. Supports or braces are to be repositioned as often as necessary to prevent damage to the tree or shrub trunk. Sand pans can be used for trees and shrubs to protect the plant trunk from the mower, and help to avoid over watering. Keep shrubs and trees trimmed to present an attractive appearance.

Trimming: To promote optimum efficiency and safety for all foot and vehicular traffic, trees and shrubs shall be kept trimmed to clear all roads, drives, and walking areas. Any limbs and branches touching or brushing buildings, fences, or other structures are also to be trimmed to provide clearance and free air circulation around the plant.

Pruning: Trees and shrubs shall be pruned by the Contractor to remove dead or diseased foliage or branches to help control or direct growth, increase quality, and to add structural strength to the trees and shrubs.

Survey: A certified arborist shall provide a survey of the trees and shrubs and an evaluation of their condition. The report shall include the inventory of all trees and shrubs and the individual condition and location of each.

Tree maintenance shall be performed only by arborists or arborist trainees who, through related training, on-the-job experience, or both, are familiar with the practices and hazards of arboriculture and the equipment used in such operations. This standard shall not take precedence over arboricultural safe work practices. Operations shall comply with applicable Occupational Safety and Health Administration (OSHA) standards, ANSI Z133.1, as well as State and local regulations.

Climbing spurs shall not be used when climbing and pruning trees. Tree branches shall be removed in a manner not to cause damage to other parts of the tree, other plants, or property. Branches too large to support with one hand shall be precut to avoid splitting of the wood or tearing of the bark. Where necessary, ropes or other equipment shall be used to lower large branches or portions of branches to the ground.

This survey shall be completed **no later than April 30** of each year the contract is in effect. Survey shall include site drawing (if available) that identifies all trees, their condition and location.The evaluation shall include a plan and price list for any special treatment not covered by this contract. Soil samples shall be taken and analyzed at the Contractor's expense by an approved testing laboratory from areas where plant health problems occur. Recommendations of the testing laboratory should also be submitted with a plan and price list for any special treatment not covered by this contract. **Plans and price lists shall be submitted to the CO or their designee.**

C.9.5.4.5 Mulching

Contractor shall maintain and replace existing mulch as necessary. Replacement mulch shall be commercial grade shredded hardwood bark, or equivalent, including rubber. It shall be free of sticks, stones, clods, or other foreign materials. A sample of proposed mulch and chips shall be submitted to and approved by the CO or their designee prior to use. All areas to be mulched shall be raked, debris removed, edges reestablished, and any excessive mulch buildup worked into existing soil or removed, at the discretion of the CO or their designee, prior to mulch application.

C.9.5.4.6 Mowing and Edging

Contractor shall mow and edge all turf areas at a frequency and method that ensures that all areas present an attractive appearance at all times. Mulching mowers shall be used; however, non-mulching mowers are permitted at some sites and shall be approved by the CO or their designee. Grass clippings shall be cleared from walkways and roadways and blown onto the grass. As appropriate, grass clippings shall be left in place, composted, or mulched as coordinated by the CO or their designee.

C.9.5.4.7 Leaf Removal

The Contractor shall remove leaves, as necessary, to maintain a neat and clean appearance. Leaves should be composted as appropriate. Throughout the year, the Contractor shall remove minor accumulations due to isolated leaf drop and shall check all storm drain openings on the premises and remove any leaves or debris that have accumulated. Care shall be taken to remove leaves in existing mulched areas to maintain a neat and clean appearance without substantial reduction in mulch depth or damage to herbaceous or woody plant material.

C.9.5.4.8 Overseeding, Dethatching and Plugging

Over-seed, dethatch, and plug as necessary to prevent bare areas and promote even growth of turf areas following common and local landscaping practices.

C.9.5.4.9 Fertilization

All lawns, trees, and ground cover shall be fertilized consistent with common local landscaping practices. Application by the Contractor shall employ the best practices to minimize chemical runoff. Fertilizer used shall be of a balanced type that supplies all nutrients required for providing sustainable growth and development. The fertilizer application rate for the trees will be determined by tree type, girth, and height. Prior to application, the Contractor shall schedule time of application with the CO or their designee.

C.9.5.4.10 Flowerbeds and Planted Areas

Flowerbeds and planted areas are to be free from weeds and debris. Replacement plants shall be supplied by the Government. These plants will be placed by the Contractor when requested by the CO or designee.

C.9.5.4.11 Plant Replacements

The Contractor shall be responsible for all costs associated with the replacement of all planted materials that have been damaged as a direct result of the Contractor's lack of oversight, neglect, or lack of proper care and maintenance. The Contractor shall use replacement plants that are native to the area to reduce the use of irrigation water and meet the requirements in Section C.9.5.4.10 'Flowerbeds and Planted Areas'.

C.9.5.4.12 Soil and Ground Covers

Aeration: Soil shall be aerated (frequency is dependent on the type of soil and grass but no less than one aeration per year) by manual or mechanical methods of piercing the ground to provide an adequate air supply to the soil and promote sustained plant life.

Groundcover: All areas shall be maintained to promote healthy and sustained growth. Ground cover must present a neat appearance.

C.9.5.4.13 Unimproved Grounds

Contractor shall mow unimproved grounds (ie. acreage, retention ponds, vacant lots, etc.) to present a neat, well-maintained appearance. Height of weeds, native grasses, etc. on unimproved grounds shall not exceed 6 inches in height. Dry retention ponds shall be mowed at the same level as required under C.9.5.4.6.

Retention ponds shall be included as unimproved grounds, and any vegetation, debris or any material that interferes with the drains, drains openings, pumps, etc. that cause impairment, the contractor shall take necessary steps to clean the debris to maintain the effectiveness of pumps, drains, etc.

C.9.5.4.14 Fence Lines
Maintenance: Grass, native grasses, weeds, and other growths at fence lines, and/or entwined in or through the fence, shall be controlled and not exceed **6 inches** in height. Any chemical treatment used must be approved by the CO or their designee prior to use. Application of any chemicals must be accomplished by a Licensed Pest Control Operator. Application of chemicals shall be documented in a record log book on the types of pesticides applied and date(s) of application.

C.9.5.4.15 Weeds
Maintenance: All area sidewalks, parking lots, and roadways are to be free of weeds and unwanted growths. Application of any chemicals must be accomplished by an individual Licensed to apply necessary herbicides. Application of chemicals shall be documented in a record log book on the types of herbicides applied and date(s) of application.

C.9.5.4.16 Irrigation System Walk-through
Initial Deficiency Walk-Through: The Contractor shall conduct a walk-through to inspect all irrigation systems (sprinklers, rain and freeze sensors, and drip systems) and submit a list of all damages to those systems to the CO or their designee. List of damages is due **15 calendar days prior to the start date**.

C.9.5.4.17 Watering
Watering: All watering cycles shall be conducted at times that minimize inconvenience to the building occupants and visitors and maximize percolation. Watering shall be performed to minimize run-off into drains and sewers. Entrances and exits shall not be wet during the arrival and departure of occupants and visitors. Watering shall be accomplished using a drip, soaker hose, or another water-saving irrigation system device. During periods of water restrictions, watering guidelines by the local water district shall apply. The Contractor shall not be responsible for the replacement of landscaping materials that die as a result of a lack of proper access to water during these periods of water restrictions by municipalities.

Hand Watering: When mechanical irrigation is not available or is malfunctioning, the Contractor shall use alternative hand watering methods, such as gator bags, or equivalents to ensure, promote, and maintain healthy growth. Watering shall be performed to minimize run-off into drains and sewers.

C.9.5.4.18 Adjust, Clean and Set Automatic Controllers Irrigation System Settings
Irrigation systems with automatic controllers shall be set for, and/or ensure the most energy efficient watering periods. When watering lawns, the Contractor must make sure that the sprinklers and drip heads eject water evenly and covers all lawn areas, planted areas, and shrubs. The Contractor must ensure irrigated water does not spray on to paved areas or walkways and run-off into drains and sewers. The Contractor shall notify the Government of operational malfunctions, breakages, or failures of the irrigation system. The Contractor shall notify the COR of the necessary irrigation system settings that will ensure that the irrigation systems are used in an efficient manner considering local weather and local mandates.

Irrigation systems that are damaged by the Contractor due to neglect shall be repaired by the Contractor. The Contractor shall be responsible for all costs incurred to repair and test the system. Repairs shall be performed by qualified personnel such as the Contractor, the Contractor's subcontractor, or the O&M Contractor. All repairs shall be performed using industry practices.

The Contractor shall be responsible to notify the Government in the event of operational malfunctions, breakages, or failures to the irrigation system, which affects the Contractor's ability to provide proper irrigation to the building's landscaping. Failure to make timely notification to the CO or their designee shall result in the Contractor replacing damaged landscaping materials.

C.9.5.4.19 Integrated Pest Management Plan (IPM)
The Contractor shall utilize the Integrated Pest Management Plan for controlling pests and disease to ensure that the landscapes, trees, and shrubs are free of disease and pest infestation.

C.9.6 Above Standard Services
The Contractor shall provide interior and exterior above standard services to fulfill the Government's intermittent need for additional services within the scope of this contract. At the request of the Contracting Officer or their designee, the contractor shall furnish all labor, equipment, supplies, and materials to accomplish these tasks. Above standard services will be awarded separately as a Task Order against this contract. The CO or their designee will request proposals for above standard services in accordance with Section H.7.9. These services are in addition to the services specified as a standard service.

The Contractor shall not divert workforce to accomplish above standard services.

The Government reserves the right to obtain supplies and services from other sources if prices are found not to be fair and reasonable, based on competitive fair market prices.

In the course of performing this contract, the contractor may identify above standard service projects that are within the scope of this contract and improve the overall appearance or functionality of the facility. Upon identification, the contractor shall prepare a proposal to execute the project. The proposal shall be forwarded to the CO for evaluation. The proposal may be used by the CO as a basis for award, negotiation, planning, or budgeting purposes. The Government reserves the right not to utilize the contractor to execute the project or seek alternate means. The contractor shall not proceed with the prior without explicit approval of the CO.

C.9.6.1 Carpet Extraction (Private Areas)
The quality standard for providing above standard service is the same as that described in Section C.9.5.1.3 Carpets and Rugs.

C.9.6.2 ~~Carpets and Rugs~~ - RESERVED - DOES NOT APPLY
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C.9.6.3 Window Washing (Exterior Surfaces of Windows) When **additional** cleanings are ordered as an Above Standard Service, the quality standard for providing above standard service is the same as that described in Section C.9.5.2.3 Window Washing (Exterior Surfaces of Windows).

C.9.6.4 Washing Blinds and Coverings (Not Including Drapes, Curtains and Unique Coverings)
When **additional** cleanings are ordered as an Above Standard Service, the Contractor shall wash both sides of the blinds and coverings. Blinds and coverings that are not operating properly shall be reported to the CO or their designee for repair. The Contractor shall coordinate this requirement with the CO or their designee.

C.9.6.5 Tree Thinning
When tree thinning is ordered as an Above Standard Service, tree thinning shall reduce the density of live branches towards developing the natural branching structure. Thinning shall result in an even distribution of branches on individual limbs and throughout the crown, to provide free air circulation through the remaining limbs and branches. **Not more than 25 percent** of the crown should be removed annually.

Tree maintenance shall be performed only by arborists or arborist trainees who, through related training, on-the-job experience, or both, are familiar with the practices and hazards of arboriculture and the equipment used in such operations. This standard shall not take precedence over arboricultural safe work practices. Operations shall comply with applicable Occupational Safety and Health Administration (OSHA) standards, ANSI Z133.1, as well as State and local regulations.

Climbing spurs shall not be used when climbing and pruning trees. Tree branches shall be removed in a manner not to cause damage to other parts of the tree, other plants, or property. Branches too large to support with one hand shall be precut to avoid splitting of the wood or tearing of the bark. Where necessary, ropes or other equipment shall be used to lower large branches or portions of branches to the ground.

C.9.6.6 Snow and Ice Removal
When **additional** snow and ice removal requiring heavy equipment is ordered as an Above Standard Service, the Contractor shall furnish the necessary heavy equipment and other items needed to clear or haul snow and ice from parking areas, roads, driveways, plaza areas, etc., when an order is issued. Heavy equipment includes ride-on equipment such as front end loaders, backhoes, bobcats, snow plows, etc.

The Contractor shall use caution when snow removal is in progress to prevent any damage to the buildings, grounds, vegetation, landscape areas, sidewalks, roads, fire hydrants, shrubs, signs, and other protrusions. The Contractor shall be held liable for any damages incurred to Government property during the performance of work. All locally prescribed safety regulations, laws, and practices shall be carefully observed in performance of the work.

C.9.6.7 RESERVED

C.9.6.8 High Cleaning Above 12 Feet
When **additional** cleanings are ordered as an Above Standard Service, surfaces **above 12 (twelve) feet off the finished floor** shall be cleaned and free of dirt, dust, and cobwebs. Where glass is present, both sides shall be clean and free of streaks. This does not include the removal of vents, tiles, or fixtures. The contractor will provide necessary equipment.

C.9.6.9 Mosquito, Termite Treatment
The quality standard for providing above standard service is the same as that described in Section C.9.12.5 Pest Control.

END OF ABOVE STANDARD SERVICES SECTION

C.9.7 Custodial Service Calls
Contractor shall provide adequate staff to receive and respond to service calls during building(s) operating hours (see Section J, 'Building Information Sheet') and during the Contractor's regular cleaning schedule. **Historically, custodial related service calls for this building(s) have been 15 hours per month**. Contractors shall detail in their Quality Control Plan (QCP) how they will monitor and respond to service calls. Ref. C.1.2.1 Key Personnel.

Only requests outside the building(s) operating hours and outside the Contractor's regular cleaning schedule, shall the costs of service calls be reimbursable to the Contractor as defined by the contract pricing. Prior approval for any services outside of building operating hours MUST be approved prior to any work performed, shall be documented on GSA Form 139 (this does not apply to snow removal).

The Contractor shall respond to all service call requests (custodial tasks such as policing and spills, etc.). The Contractor shall respond to **Normal** service calls during

business hours **within 1 hour of occurrence,** or sooner if possible, and shall remedy all service calls **within 12 hours of occurrence**, unless granted written permission from the COR for an extension. If a service call is deemed an **Emergency** by the COR, the contractor shall respond within **30 minutes** during normal working hours, and remedy within **1 hour.**

Service calls are defined as an **Emergency** - items such as spilled water in traffic areas, any issue that is a safety hazard, any issue that may cause damage to government property, etc. and shall be handled immediately.

Service calls are defined as **Normal** - items such as recycle/trash pickups, lack of toilet supplies, etc.

The O&M contractor is responsible for data input into the government furnished NCMMS system, including any and all custodial related service calls and elevator work orders/service calls. The Custodial Contractor will create the service call data and deliver it to the O&M contractor for input into NCMMS daily.

The Contractor shall provide a means to immediately receive custodial related service requests twenty four (24) hours a day by means of a live person telephone call(s). The Contractor shall include a method of logging any and all customer calls (in addition to the requirements of the NCMMS system). Upon receiving a service request, the Contractor must document the following:

- Time the request was received
- Requesting person's name and phone number
- Location of the service
- Time the service was completed
- Corrective action taken
- Reason for any deferred requests

The Contractor shall report via email, at a minimum daily, to the COR the status of all service requests received as defined above. In addition to the monthly reporting requirement, these records shall be made available for review by the COR at any time.

C.9.8 Communication Plan
The Contractor shall prepare and provide to the CO or their designee a communication plan, detailing how the Contractor plans on using technology (two-way digital communication) to communicate with GSA to receive and respond to service calls, emergencies, status of projects, etc. **The plan shall be submitted as part of the proposal package for the Government's review and approval**.

C.9.9 Protection and Damage
The Contractor shall make reasonable efforts to assist the Government to prevent hazardous conditions and property damage. To the extent that relevant conditions or activities are noted but are not associated with the Contractor's scope, the Contractor

shall promptly report such conditions or activities to the CO or their designee, or to security personnel.

The Contractor shall protect Government's property, buildings, materials, equipment, supplies, records and data that are within the Contractor's control against unauthorized access, loss or damage.

The Contractor shall establish a system for on-site work force personnel to report potentially hazardous conditions in the building to the CO or their designee or other designated Government representatives, regardless of whether the condition is within the Contractor's responsibility.

The Contractor and Contractor's employees and subcontractors shall comply with the General Services Administration, 'Rules and Regulations Governing Conduct on Federal Property' (as posted in the building), and shall promptly report violations by employees, or as otherwise observed, to the CO or their designee, or security personnel.

C.9.10 Solid Waste/Trash/Recycling Management
A solid waste/trash reduction and recycling management program, which is part of providing standard services, includes identifying and properly segregating all recyclable materials, composting materials, and Universal Wastes.

The Contractor shall not collect hazardous materials unless specifically contracted to recycle them. Typical prohibited wastes include but are not limited to fluorescent light bulbs, thermostats, thermometers, most chemicals, and batteries (nickel-cadmium and small, sealed lead acid batteries in electronic equipment, mobile phones, portable computers, and emergency lighting). In addition, electronic equipment such as computers and printers shall not be discarded in the trash containers. The Contractor shall notify the CO or their designee of any prohibited or unauthorized items observed in the trash receptacles.

C.9.10.1 Solid Waste/Trash Audits
A solid waste/trash stream audit is necessary for all buildings. A waste stream audit at the building is required to determine the profile (amount and composition) of the solid waste/trash stream; identify efficient methods for the collection, storage, and transfer of wastes for disposal recycling, and composting; determine the right service level for solid waste/trash collection and removal to minimize waste shipments.

C.9.10.1.1 Extent of Work
At the beginning of a base year contract, the Contractor shall perform a solid waste/trash audit of the building(s). The Contractor shall submit the audit findings to the CO or their designee. Based on the audit findings, the Contractor shall partner with the Government to set up a solid waste/trash management program that is cost effective and will maximize the amount of waste diverted to recyclers and away from landfills and incinerators. Contractor will develop a written report and analysis of the conclusions

drawn from this audit, including recommendations for improving the economy and efficiency of waste collection, storage, transfer, and disposal (including recycling and composting). Refer to Section J, Exhibit 7, 'PBS Waste Audits.' The audit shall be completed and a Report provided to GSA **within 60 calendar days** of completion of the audit, unless additional time is authorized by the CO or their designee.

The Government may at its discretion perform solid waste/trash audits and share results with the Contractor. Based on these reports, the Contractor shall partner with the Government to implement best practices solid waste/trash audit recommendations.

C.9.10.1.2 Solid Waste/Trash Removal and Disposal
The custodial Contractor shall provide solid waste/trash removal and disposal services as described herein.

All solid waste/trash collected as a requirement of this contract shall be removed from the premises and transported to a solid waste/trash disposal facility that has been certified by the appropriate state agency responsible for solid waste/trash management or by EPA.

EVERY EFFORT SHALL BE MADE TO MINIMIZE THE AMOUNT OF TIME THAT FULL CONTAINERS OF WASTES REMAINS ON SITE I.E., A FULL DUMPSTER SHOULD NOT REMAIN IN THE LOADING DOCK AREA OVER THE WEEKEND. IF THE NORMAL FREQUENCY IS WEEKLY, THEN SET THE PICK-UP TO FRIDAY (A.M., P.M. BETTER) AND WHERE POSSIBLE SATURDAY A.M. IS ALSO ACCEPTABLE. THE CONTRACTOR SHALL ALSO PURSUE SCHEDULES THAT MAXIMIZE THE AMOUNT OF SOLID WASTE/TRASH HAULED PER PICK-UP DATES.

The Contractor shall collect and transport all solid waste/trash and debris to designated locations on the loading dock or other holding areas for removal from the premises. Holding areas for solid waste/trash accumulation shall be identified by the CO or their designee. If trash compactors are used at the building, the Contractor shall operate the compactor. The Contractor shall ensure that the appropriate Contractor personnel receive training in the safe and proper operation of the compactor.

The Contractor shall provide a sufficient number of waste removal containers to accommodate all trash generated between pick-up dates. The CO or their designee shall approve all container styles, types, and storage locations prior to placement. The Contractor shall be responsible for the delivery, maintenance, repair, cleanliness, labeling, and removal of storage containers and equipment throughout the contract period. The containers must be kept free of holes, pests, grease, oils, and odors, etc. . If Integrated Pest Management is not included in this contract, the Contractor will report any pest infestation in or around the containers to the CO or their designee. Otherwise, the pest control shall be performed as per the requirements of this contract. All Contractor-supplied equipment and materials shall remain the property of the Contractor during and subsequent to the contract period.

The overflow of materials from containers and dumpsters shall be picked up from the ground and floor area used to collect and consolidate the materials. The Contractor shall remove all hydraulic fluids and oil spillages caused either by the collection vehicles, or released from containers at the designated centralized collection site (loading dock, etc.). Spill residue and clean-up materials shall be disposed of in accordance with the EPA, and State and local regulatory agency requirements.

The Contractor shall perform collection, removal, recycling and related activities in accordance with the strategies agreed upon by the Government and Contractor based on the solid waste/trash audit Final Report. See Section C.10 Solid Waste/Trash/Recycling Management for additional details. The Contractor is responsible for all costs of trash removal.

C.9.10.1.3 Solid Waste/Trash Records and Reports
Reporting requirements are defined in Section C.9.11 'Environmental Reporting.'

C.9.10.2 Recycling
It is the intent of the Government to keep the maximum amount of materials from landfills through recycling. .

C.9.10.2.1 Extent of Work
The Contractor shall remove all hydraulic fluid and/or oil spillage caused either by the collection vehicles, or released from containers at the designated centralized collection site (loading dock, etc.). Sorbent use for cleanup shall contain post consumer recycled content minimum as required. The minimum depends on the type of sorbent used: see the EPA/CPG website for details. Spill residue and clean-up materials shall be disposed of in accordance with the Environmental Protection Agency (EPA), and State and local regulatory requirements.

Unless specifically contracted to recycle items or material identified by the EPA and State and local regulatory agencies as hazardous waste, hazardous materials, or Universal Waste, the Contractor shall not collect these items. Typical prohibited wastes include but are not limited to fluorescent light bulbs, thermostats, thermometers, most chemicals, and batteries. Electronic equipment, such as computers shall not be discarded in the recycle bins. The Contractor shall notify the CO or their designee of any prohibited or unauthorized items observed in the trash or recycling receptacles.

The Contractor shall furnish all necessary labor and supervision to provide recycling services as described herein. All recyclable materials shall be collected for removal from the premises. Overflow of materials from containers shall be picked up from the floor of the area used to collect and consolidate the materials.

Arrange for the removal of recyclables from the premises. Be responsible for all fees, if any, associated with recycling.

Remove all recyclable materials to a storage area designated by the CO or their designee. Recyclable materials may be found in:

- Central recycling bins and containers (located in common areas such as hallways, break rooms, conference rooms, snack bars, cafeterias and/or restrooms, etc.)
- Desk side recycling bins and containers.

-Place recyclable materials in containers, dumpsters, or compactors provided by the contractor's recycler. The Contractor shall monitor the containers, dumpsters, and compactors to prevent littering in the holding area. No trash shall accumulate in the holding area.

-Bale corrugated materials, if a baler is available.

-Ensure that all custodial staff involved in the recycling program fully understands the recycling procedures and requirements.

-Retain any proceeds that result from the sale of recyclable materials covered by this contract. Verification of the amount of proceeds received from the sale of recycled materials shall be furnished to the CO or their designee upon request. See Section C.9.10.2.7.'Recycling Proceeds' for additional details.

-To the extent practicable, both pursue Government and Contractor revenue sharing opportunities.

-Comply with reporting requirements specified herein in Section C.9.11, 'Environmental Reporting'.

C.9.10.2.2 Recyclable Materials Disposition
The Contractor shall ensure that all recyclable materials are recycled and not placed in landfills and incinerators. The CO or their designee may direct the Contractor to participate in joint efforts with State, city, and local governments regarding recycling.

C.9.10.2.3 Recyclables
- Collection and Pickups: The Contractor shall ensure that recyclables are collected and placed in the designated holding areas on a schedule that will maximize the quantity of materials removed from the premises as scheduled. Additional collections of recyclable materials may be required on an irregular basis and will be coordinated with the CO or their designee.

C.9.10.2.4 ~~Pick Ups On Call~~ - RESERVED - DOES NOT APPLY

C.9.10.2.5 Recycling Containers

-Individual Deskside Collection Containers: The Government shall provide the collection containers. Containers with recyclables are to be collected and transported by the Contractor to the dock or designated area for pickup by the recycler.

-Central Collection Containers: The Government shall provide the collection containers. Full containers with recyclables are to be transported by the Contractor to the dock or designated area for pickup by the recycling Contractor.

-Recycling Collection Containers: The Contractor shall provide the necessary Government approved collection containers/bins and other equipment for use throughout the building for the collection of recyclable materials. These are the mobile type containers/bins and other equipment that the Contractor shall use to collect recyclables from deskside and/or central recycling containers. These containers shall be in sufficient quantities for the collection of recyclable material prior to removal to the designated holding area.

-Storage Containers: The Contractor shall provide the necessary storage containers and other equipment, such as compactors, dumpsters, etc., for use in designated holding areas. Containers shall be in sufficient quantities for the collection and storage of the recyclable materials in the holding area prior to removal from the premises by the recycler.

-Containers and Equipment Responsibility: The Contractor shall be responsible for the removal of recyclables from the collection containers and moving them to the holding area throughout the contract period. The containers, excluding those used to collect paper, shall be labeled, lined and free of residue and any plastic liners shall not be torn, worn or contain residue. Containers shall be kept free from holes, vermin, or foreign matter that might cause injury or stain clothing or furniture, and the containers must not emit unpleasant odors. If any container emits an unpleasant odor, as identified by the CO or their designee, it shall be immediately corrected by the Contractor at their expense. Recyclable materials shall not be handled, stored or transported in any manner that causes safety or health hazards.

All Government supplied equipment and materials shall remain the property of the Government. The Contractor shall be accountable for all recycling equipment and containers belonging to the Recycling Contractor and shall use them only for the intended purpose.

C.9.10.2.6 Restriction on Use

Recyclable paper purchased under this contract shall be used or sold as recyclable paper only; i.e., for processing at a pulp mill to be made into new paper products. The Contractor shall not use, allow access to, or offer for resale any papers, documents, or file record materials for the information contained therein.

C.9.10.2.7 Recycling Proceeds

The Contractor shall use the proceeds received from the sale of recycling material(s) to lower the cost of trash removal or recycling at the location. In the instance of subcontracted work, funds received by the subcontractor will be remitted back to the Contractor for return to the Government. If proceeds are not used to reduce the cost of trash/recycling collection and removal, the CO or their designee will provide guidance for depositing of these funds.

C.9.10.2.8 Recycling Records and Reports
Reporting requirements are defined in Section C.9.11 'Environmental Reporting.'

C.9.11 Environmental Reporting
The Contractor shall provide all necessary information required in this Section to comply with environmental and green purchasing reporting requirements, and agency sustainability goals in this specification.

The Contractor shall submit to the CO or their designee the following reports.

C.9.11.1 Recycling and Waste Reports
Monthly Solid Waste and Recycling Report: The Contractor shall submit a monthly Recycling/Solid Waste/Trash Report **(See Section J, Exhibit C6)** listing the types, weights, and costs or revenues. Included in the report are single stream recycling, commingled recycling, and composting. Reports shall be submitted by the **5th calendar day of each month** and upon request by the COR.

C.9.11.2 Report Calculations
The recycling and waste hauling reports above shall contain sufficient data to calculate waste diversion and waste removal costs. When actual weights are not known, the Contractor shall use EPA's Standard Volume-to-Weight Conversion Factors. Deductions shall be made and reported for volumes that are not filled to capacity (i.e., half full, 3/4 full, etc.) and conversions adjusted accordingly.

C.9.11.3 Green Purchase Reporting
The Contractor shall submit information on green purchasing practices specific to the performance of this contract. Records shall be sufficient to facilitate reporting on product purchase meeting the following standards:

- Bio-based: The Contractor shall provide a list of USDA-designated bio-based products purchased October 1 through
  September 30, during the previous fiscal year. Information will include the types and dollars spent on these products. The Contractor shall submit the report in accordance with Federal Acquisition Regulation (FAR) Clause 52.223-2 **no later than October 31 of each year** during contract performance and at the end of contract performance. The reports shall be submitted to the https://www.sam.gov/.

C.9.11.4 Integrated Pest Management Report

The Contractor shall provide to the CO or their designee with a list of chemicals and their purchase prices that are used to control pests in the building.

C.9.11.5 Supporting Documentation
The Contractor shall maintain documentation to support all the above reported activities. Information may include receipts or other records related to pick-up dates, weights, and associated fee schedules. Records and receipts obtained shall be made available to the CO or their designee upon request.

C.9.11.6 Reporting Formats
Reports prepared by the Contractor shall be submitted to the Government electronically using the forms in **Section J, Exhibit C6.** Where possible, the Contractor shall submit reports in electronic form. The Contractor's reports shall be printed double-sided on paper containing a minimum of 30 percent post-consumer recycled content.

C.9.12 Integrated Pest Management
The Integrated Pest Management (IPM) Plan is a part of the standard services provided by GSA, which consists of a preventive maintenance process. The plan coordinates many different programs to reduce sources of pests on a long-term basis for both the interior and exterior areas of a building. The Pest Control requirement is specified in 7 U.S.C. 136r-1 (7 USC § 136r–1 - Integrated Pest Management | LII / Legal Information Institute). The Contractor shall have a plan that employs practices and techniques, as they relate to cleaning, trash, and materials handling, that reduce the sources of food and water, harborage, and access routes used by pests in and around the building.

C.9.12.1 Preventive Pest Maintenance
The Contractor shall implement a preventive maintenance program that identifies and corrects conditions that contribute to pest infestation. Some of the most effective **EXAMPLES** include but are not limited to:

- Self-contained compactors rather than dumpsters or stationary dumpsters for storing solid waste/trash awaiting pickup, wherever possible.
- Pressure washing of trash rooms, loading docks, and food preparation facilities. The Contractor shall ensure that run-off into drains and sewers is minimized when using pressure washing devices.
- Food preparation and storage areas remain clean.
- Dedicated, tightly covered receptacles for food waste in indoor areas with chronic pest problems.
- Replacement of dense ground cover in landscapes with chronic rodent problems.
- Employ techniques that may include, but are not limited to, keeping containers closed, removal of debris, etc.

C.9.12.2 Initial Pest Assessment
A certified pesticide applicator or licensed IPM Contractor shall conduct a thorough, initial assessment of the interior space and exterior grounds and paved areas. Access to building space shall be coordinated with the CO or their designee. The CO or their designee must inform the Contractor of any restrictions or areas requiring special

scheduling. The purpose of the initial assessment is for the custodial Contractor to identify areas or practices that may contribute to pest infestation.

Grounds areas that support pollinator nesting and foraging for honey bees, native bees, birds, bats, and butterflies shall be identified in the initial pest assessment as “pollinator sensitive zones”.

A written report detailing the findings of the initial assessment shall be submitted to the CO or their designee within **fifteen (15) calendar days** of the start of the contract. Throughout the life of this contract, the Contractor shall be responsible for notifying the CO or their designee in writing about any sanitary or procedural modifications deemed necessary to eliminate pest infestation.

C.9.12.3 ~~Recommendations for Pest Management and Control~~ RESERVED - COVERED UNDER C.9.12.5

C.9.12.4 General
The certified pesticide applicator or licensed IPM Contractor shall accomplish the monitoring, trapping, and pesticide application and pest removal components of the IPM.

C.9.12.5 Pests Included and Excluded
The Contractor shall adequately suppress indoor populations of rats, mice, cockroaches, ants, flies, Japanese beetles (lady bugs) and any other arthropod pests not specifically excluded in this exhibit. This includes populations of these pests that are located outside of the specified facilities, but within the property boundaries of the facilities.

The following pest are excluded from the standard services however the Government may request remediation as an above standard reimbursable service:

Birds
Mosquitoes
Snakes
Vertebrates that are not commensal rodents
Bats
Termites
Other wood-destroying organisms
Bed Bugs

C.9.12.6 Pest Control Plan
Prior to initiation of services, the Contractor shall submit to the CO or their designee for approval a written Pest Control Plan **within 15 calendar days following the initial assessment.** The plan should include integrated methods, routine site inspections and maintenance, routine pest inspections, pest populations monitoring, evaluation of the need for pest control and one or more pest control methods. The plan shall also include

a specification of the circumstances under which an emergency application of pesticides can be applied and a communications strategy directed to building occupants.

The Pest Control Plan shall consist of the following parts:

- Proposed Materials and Equipment for Service including labels and Safety Data Sheets (SDS) for all pesticides to be used. A list of the brand names of trapping devices, pesticide application equipment, rodent bait boxes, insect and rodent trapping devices, pest monitoring devices, pest detection equipment, and any other pest control devices or equipment that may be used to provide service. The use of green and sustainable methods and applications is preferred whenever possible. A list of chemicals used and the purchase price for these chemicals.
- Proposed Methods for Monitoring and Detection including describing those methods and procedures to be used for identifying sites of pest harborage and access and for making objective assessments of pest population levels throughout the term of the contract.
- An inspection schedule for each building or site. Frequency of contract visits shall depend on the specific pest control needs of each premise. Large office facilities or specified office areas within such facilities with a history of pest infestations, will be visited more frequently.
- A description of any structural or operational changes that would facilitate the pest control effort.
- A copy of the Commercial Pesticide Applicator Certificate or License for every Contractor representative who will be performing on-site service.

C.9.12.7 Pesticide Application
The Contractor shall not apply any chemical or non-chemical pesticide products that have not been included in the Pest Control Plan or approved in writing by the CO or their designee. The Contractor shall provide to the CO or their designee with a list of chemicals and purchased price as specified in Section C.9.11 'Environmental Reporting.' If the CO or their designee has concerns or questions regarding chemicals being used, the CO or their designee should contact the Integrated Pest Management Coordinator in GSA's National Capital Region. The Contractor shall employ the least hazardous materials, most precise application technique, and minimum quantity of pesticide necessary to achieve control. Pesticides used by the Contractor must be registered with the U.S. Environmental Protection Agency, state and/or local jurisdiction. Transport, handling, and use of all pesticides shall be in strict accordance with the manufacturer's label instructions and all applicable Federal, State, and local laws and regulations. All chemicals shall be in the original manufacturer's containers and properly labeled.

Only qualified, trained, and certified personnel or licensed Contractors shall apply any chemicals. Uncertified individuals working under the supervision of a certified pest applicator or licensed Contractor shall not be permitted to provide service under the

terms of this contract. Chemicals shall be applied with extreme care to avoid hazard to any person or animal in the immediate or adjacent areas, or property damage.

The application of pesticides shall not be used in areas that promote and support habitats for pollinators, including honey bees, native bees, birds, bats, and butterflies.

Pesticide application shall be according to need and not by schedule. As a general rule, application of pesticides in any area shall not occur unless visual inspections or monitoring devices indicate the presence of pests in that specific area. In no case shall extremely toxic materials be permitted. The Contractor shall not store any pesticide products on Government property. Any emergency applications of chemical pesticides must be approved by the CO or their designee prior to application.

C.9.12.8 Structural and Procedural Recommendations
Structural modifications for pest control will be the responsibility of the Government. However, throughout the life of this contract, the Contractor shall be responsible for notifying the CO or their designee in writing about concerns with any structural, sanitary, or procedural modifications deemed necessary to eliminate food and water sources, harborage, or access routes that would allow building infestation by pests in and around the building.

C.9.12.9 Record Keeping
The Contractor shall be responsible for maintaining a pest control logbook or file for each building or site specified in this contract. These records will help with monitoring pest locations and actions taken to prevent or mitigate further infestations. The log shall include pesticide information on whether chemical and non-chemical methods were used to control pests. Where chemicals are applied the log shall specify the type, quantity, price, and circumstances for using pesticide(s). These records shall be kept on Government property and maintained by the Contractor.

Each log book or file shall contain at least the following items:

A copy of the Pesticide Control Plan. The plan shall provide labels and SDS for all chemical pesticides used and purchase price, brand names of all pest control devices and equipment used, and the Contractor's service schedule for the inspection and/or treatment of the building. This plan shall be submitted to the COR **within 30 calendar days after contract start.**

Completed copies of GSA Form 3638, Pest Control Work and Inspection Report, or an equivalent form such as another Contractor service report forms that is approved by the CO or their designee. The report form shall be used to advise the Contractor of routine service requests and to document the performance of all work. The Contractor shall also document on the GSA Form 3638 or equivalent all information on pesticide application that is required by statute in the jurisdiction where service is actually performed. Upon completion of a service visit to a building, the

Contractor's representative performing the service shall complete, sign, and date the GSA Form 3638 or equivalent form.

C.9.12.10 Manner and Time to Conduct Service

Routine pest control services that do not adversely affect tenant health or productivity shall be performed during the tenants' normal working hours. The Contractor shall notify the CO or their designee, and the CO or their designee shall provide notice to occupants **at least 72 hours before application** of any pesticides during normal conditions and **within 24 hours in emergency situations.** An emergency is an exceptional circumstance that poses a clear (or at least perceived) health and safety risk or where operations are severely disrupted. Examples of the first involve some outdoor animal (e.g., bird, snake, bat, or squirrel) that has gotten into indoor space and cannot get out, or a nest of bees or wasps are discovered on the grounds. An example of the second would be a swarm of winged termites or ants emerging into occupied space, which might be completely harmless, but nevertheless are alarming to the occupants. When it is necessary to perform any work outside of the tenant's normal working hours, the Contractor shall notify the CO or their designee at least **one day in advance**.

C.9.12.11 Insect Control

The Contractor shall provide the CO or their designee with signs, placards, literature, or other information so that the CO or their designee can inform building occupants of the nature of the pest application. The information will include at a minimum a brief explanation regarding the reason for the pest application, the safety of the products being used and contact information should the building occupants have questions.

Non-pesticide Products and Use: The Contractor shall use non-pesticide methods of control wherever possible. For example:

Portable vacuums with HEPA or MICRO filtration
Trapping devices

Chemical Pesticide Products and Use: When it is determined that chemical pesticides must be used in order to obtain adequate control, the Contractor shall employ the least hazardous material, most precise application technique, and minimum quantity of pesticide necessary to achieve control. The Contractor shall minimize the use of liquid pesticide applications wherever possible, for example:

- Bait stations and other types of bait formulations rather than sprays.
- As a general rule, liquid, aerosol, or dust formulations shall be applied only as crack and crevice treatment.
- Application of pesticide liquids, aerosols, or dust to exposed surfaces and pesticide space sprays (including fogs, mists, and ultra-low volume applications) shall be restricted to unique situations where no alternative measures are practical.

The Contractor shall obtain the approval of the CO or their designee prior to any application of pesticide liquids, aerosols, or dust to exposed surfaces, or any space

spray treatments. Other than crack and crevice treatments, no liquid, aerosol, or dust applications shall be made while tenant personnel are present.

C.9.12.12 Rodent Control
Indoor Trapping: Generally, rodent control inside buildings shall be accomplished with trapping devices only. All such devices shall be concealed out of the general view and in protected areas so as not to be affected by routine cleaning and other operations. Traps shall be checked on a schedule approved by the CO or their designee. The Contractor shall be responsible for disposing of all trapped rodents and all rodent carcasses in an appropriate manner.

Use of Rodenticides: In extreme cases, when rodenticides are deemed essential for adequate rodent control inside buildings, the Contractor shall obtain approval from the CO or their designee prior to making any interior rodenticide treatment. All rodenticides, regardless of packaging, shall be placed either in locations not accessible to children, pets, wildlife, and domestic animals or in EPA-approved tamper-resistant bait boxes. As a general rule, rodenticide application outside buildings shall emphasize the direct treatment of rodent burrows wherever feasible.

Use of Bait Boxes: All bait boxes shall be maintained in accordance with EPA regulations, with an emphasis on the safety of non-target organisms. The Contractor shall adhere to the following points:

All bait boxes shall be placed out of the general view, in locations where they will not be disturbed by routine operations.

The lids of all bait boxes shall be securely locked or fastened shut.

All bait boxes shall be securely attached or anchored to the floor, ground, wall, or other immovable surface, so that the box cannot be picked up or moved.

Bait shall always be secured in the feeding chamber of the box and never placed in the runway or entryways of the box.

All bait boxes shall be labeled on the inside with the Contractor’s business name and address and dated by the Contractor’s technician at the time of installation and each servicing.

C.9.12.13 Safety and Health
For all work related to custodial matters and Pest Control the Contractor shall comply with all applicable safety programs required under 29 C.F.R. parts 1910 and 1926 and State and municipal safety and health requirements. Where there is a conflict between applicable regulations, the most stringent shall apply.

C.9.13 ~~Child Care Center~~ - RESERVED - DOES NOT APPLY

C.9.14 ~~Quality Control Plan~~ - RESERVED - COVERED UNDER C.1.3.1

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C.9.15 Cleaning Schedules

The cleaning schedule is considered the Contractor's efficient approach to the work, and shall not limit the Contractor to specific levels of staffing, means or methods. The cleaning schedules shall include, at a minimum, staff position, building location (floor), task (type of cleaning), and approximate time frame. Changes necessary for achieving the contract performance work statement requirements shall be the responsibility of the Contractor. Cleaning schedules and any revisions are to be submitted to the CO or their designee **7 calendar days prior to the start date of each schedule change and the start of each option year the contract is in effect.**

The Contractor's cleaning schedule shall, as a minimum, include the following frequency:

- Daily cleaning
- Periodic cleaning
- Weekly cleaning
- Monthly cleaning
- Other frequencies

C.9.16 Communication Requirements

Tenant Meetings: The Contractor shall attend tenant meetings. The meetings will be on the agenda to communicate program specific information, improvements, or work that will impact the tenants.

Quality Control Meetings: The Contractor shall attend meetings, which will be held between the Contractor and the CO or their designee. The purpose of these meetings will be to discuss the Contractor's performance, areas of deficiencies, areas of satisfaction, and tenant needs or concerns. The frequency of these meetings may be increased or decreased depending upon performance as determined by the CO or their designee.

Partnering Meeting: The Contractor shall attend quarterly partnering sessions with GSA for the duration of the contract period of performance. Other sessions may take place during the course of the contract at the option of either GSA or the Contractor. The concept of "partnering" is working together towards a common interest or goal. Both parties will revisit the idea of having a partnering session on the anniversary date of the contract. Each partnering session will be held at a mutually agreed upon time and location. It is fully intended that the contractor's corporate leadership be included and involved in these sessions.

Joint Service Inspections: The Contractor shall accommodate all requests by the Government to participate in the Contractor's inspection of work performed by Contractor personnel. Scheduling for these joint inspections shall be coordinated through the CO or their designee. This inspection shall be used with other measures of

performance in discussions on Contractor performance during the Quality Control Meetings.

C.9.17 Federal Requirements

The Contractor shall comply with all applicable governance documents, including, but not limited to Federal, State and local laws, regulations, and codes: including any supplements or revisions as specified in the table below. The Contractor is responsible for obtaining access to all referenced documents at their own expense. The Contractor shall obtain all applicable licenses, training, and permits. If a change in law and/or regulation requires the Contractor to implement an action that will result in an increase or decrease in contract price, the Contractor shall implement the required action and within 30 calendar days submit to the CO a price proposal for such change. If the CO determines an equitable adjustment is substantiated, a modification to the contract shall be issued.

PUBLICATION	TITLE	PORTION
EPACT 05	Title I Energy Efficiency Title IX Research and Development http://www1.eere.energy.gov/femp/regulations/epact2005.html	All Applicable Sections of these Titles
EISA 07	Title III Energy Savings Through Improved Standards for Appliances and Lighting. Title IV Energy Saving and Buildings Industry. Title V Energy Savings in Government and Public Institutions. Federal Energy Management Program: Energy Independence & Security Act	All Applicable Sections of these Titles
Executive Order 13834	Efficient Federal Operations https://www.sustainability.gov/eo-efo.html	ALL
FAR GSAR FAR Clause 52.223-2	Federal Acquisition Regulation General Services Acquisition Regulation https://www.acquisition.gov/far/current/html/52_223_226.html	All Applicable Sections and Clauses General Services Acquisition Regulation Clauses 1 and 2

PBS P 3490.2	Document Security for Sensitive But Unclassified Building Information https://insite.gsa.gov/portal/content/657310	ALL
29 CFR §1910	OSHA General Industry Standards https://www.osha.gov/laws-regs/regulations/standardnumber/1910	ALL
40 CFR	Protection of the Environment https://www.epa.gov/laws-regulations/regulations	All Applicable Sections of Chapter 1
41 CFR § 102-74, Subpart C. – FMR	Facility Management https://www.gsa.gov/policy-regulations/regulations/federal-management-regulation-fmr/i449022	ALL
ANSI-IWCA.I-14.1	http://webstore.ansi.org/FindStandards.aspx?SearchString=ansi&SearchOption=1&PageNum=0&source=google&adgroup=ansi&keyword=ANSI%2F&gclid=CJnM65r-rqQCFUNM5QodRnhXyw	ALL
ANSI/ASEE A-1264.2-2006	www.ANSI.org	ALL
ANSI Z245.1	Mobile Refuse Collection and Compactor Equipment Safety Requirements http://webstore.ansi.org/ansidocstore/product.asp?sku=ANSI+Z245.1-2007	ALL
ASTME 1971-19	http://www.astm.org/Standards/E1971.htm	ALL
Guiding Principles for Sustainable Existing Buildings	http://www.wbdg.org/references/fhpsb_existing.php	Section 3-5
Bio-based Products Certification and Purchase Clauses	http://www.biopreferred.gov/BioPreferred/faces/pages/DocumentBrowser.xhtml	ALL

Comprehensive Procurement Guidelines (CPG)	https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program	ALL
Green Seal Certification	http://www.greenseal.org/	ALL
Safer Choice	http://www2.epa.gov/saferchoice	ALL
Green Products Compilation Database	http://sftool.gov/GreenProcurement/.	ALL
PBS Key Sustainable Products Initiative	PBS Order 1096.1, Dec 18, 2014 See the CO or designee for copy of document	ALL Applicable Sections
Presidential Memorandum, June 20, 2014 entitled: "Creating a Federal Strategy to Promote the Health of Honey Bees and Other Pollinators."	http://www.whitehouse.gov/the-press-office/2014/06/20/presidential-memorandum-creating-federal-strategy-promote-health-honey-b	ALL
GSA IT Policies	GSA Directives	All

With the exception of the mandatory products specified in Section C.9.4.2, 'Key Sustainable Products (KSPs) Standards' the Contractor shall give preference to environmentally sustainable supplies and products. For the purpose of this specification, environmentally sustainable shall include, but not be limited to:

- EPA's Environmentally Preferable Purchasing List.
- Recycle content composition as specified in Section J, Exhibit C6 or the Comprehensive Procurement Guideline (CPG) items and their associated Recovered Materials Advisory Notices (RMANs), whichever has the greater recycle content. ITEMS THAT ARE NOT MANDATED AS KSP THEN THE CONTRACTOR SHALL REFER TO THE CPG LIST.
- Concentrated and ready-to-use cleaning chemicals (spray bottles must be labeled with the contents) that use ecologically sound packaging and are

phosphate-free, non-corrosive, non-combustible, non-poisonous, non-reactive, and non-aerosol; contain no carcinogens, mutagens or teratogens; contain no ozone-depleting substances; and are bio-based and fully biodegradable. Such products shall have lower toxicity, and reduced potential for skin, eye, and respiratory irritation than comparable products used for the same purpose and shall contain no unnecessary dyes or fragrances.

- 3rd party certification such as 'Green Seal' Certified and/or 'Safer Choice'.
- United States Department of Agriculture (USDA) bio-based designation.
- Floor finishes and floor maintenance products that are free of metals, such as zinc, arsenic, lead, cadmium, cobalt, chromium, mercury, nickel, or selenium.

The Contractor shall furnish to the CO or their designee all Safety Data Sheets (SDS) for any materials used in the performance of this contract **no later than 5 calendar days prior to contract start date**. All new products used during the life of the contract must have SDS provided to the CO or their designee prior to bringing and/or using these products on site. The Contractor shall use only commercially available products that meet Federal, State, and local codes. These requirements shall include those identified in Executive Order 13423.

The Contractor shall maintain the SDS in a location accessible to all employees (in accordance with 29 CFR §1910.1200) and shall advise the CO or their designee of its location. The SDS shall be available for inspection by the CO or their designee on request. The Contractor shall take every precaution to ensure that environmentally sustainable products are used. Information can be obtained from Federal, State, and local agencies concerning safe chemical cleaning materials. An inventory list of products to be used under this contract shall be provided to the CO or their designee **no later than 5 calendar days prior to start date**. This list shall be updated, with a copy provided to the CO or their designee, throughout the term of the contract. The CO or their designee shall contact the Contractor immediately if any item is deemed inappropriate for use under this contract.

C.9.18 ~~Asbestos Awareness Training~~ - RESERVED - COVERED UNDER C.1.2.8.1

C.9.19 ~~Safeguarding Sensitive Data and Information Technology Resources~~ - RESERVED - COVERED UNDER C.1.6

C.9.20 ~~Flag Procedures~~ -RESERVED - COVERED UNDER C.5.14.5

SECTION D: PACKAGING AND MARKING

D.1 Payment of Postage and Fees

All postage and fees related to submitting information including forms, reports, etc., to the CO or the COR shall be paid by the Contractor.

D.2 Marking

All deliverables shall be preserved, packaged, packed, and marked and must conform to normal commercial packing standards to assure safe delivery at the destination.

All information submitted to the CO or COR shall clearly indicate the number of the contract for which the information is being submitted.

SECTION E: INSPECTION AND ACCEPTANCE

E.1 Failure to Perform

If any of the services do not conform to contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount. If the work remains deficient, the Contracting Officer may have the work accomplished by other means and deduct the cost thereof from the monthly payment.

If the Contractor fails to promptly perform the services in conformity with the contract requirements or to take the necessary action to ensure future performance in conformity with contract requirements, the Government may:

- By contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service; or
- Terminate the contract for convenience or cancel the contract.

If the Contractor fails to properly operate and/or maintain equipment and/or systems or make repairs which results in damage to the building(s), equipment or systems the Contractor shall be held liable for all costs, including administrative costs, incurred by the Government to repair damage to the building, equipment, or systems.

If the Contractor fails to respond immediately or within one (1) hour to an Emergency Call-Back Service and/or fails to provide the required service, the Contractor shall be held liable for all costs, including administrative costs, incurred by the Government to repair damage to the building, equipment, or systems and all costs associated with responding to the emergency.

E.2 Additional Requirements for Inspection of Services

Government inspections and tests are for the sole benefit of the Government and do not--Relieve the Contractor of responsibility for providing adequate quality control measures; Relieve the contractor of responsibility for damage or loss of the material before acceptance; Constitute or imply acceptance; or Affect the continuing rights of the Government after acceptance of the completed work under paragraph (D) below.

The presence or absence of a Government inspector does not relieve the contractor from any contract requirement, nor is the inspector authorized to change any term or condition of the specification without the CO’s written authorization.

The contractor shall, without charge, replace or correct work found by the Government not to conform to contract requirements, unless in the public interest the Government

consents to accept the work with an appropriate adjustment in the contract price. The Contractor shall promptly segregate and remove rejected material from the premises.

Unless otherwise specified in the contract, the Government shall accept, as promptly as practicable after completion and inspection, all work required by the contract or that portion of the work the CO determines can be accepted separately. Acceptance shall be final and conclusive except for latent defects, fraud, or the Government's rights under any warranty or guarantee.

The Government may charge the Contractor any additional cost of inspection or test when work is not ready at the time specified by the contractor for inspection or test or when prior rejection makes reinspection or re-test necessary.

E.3. FAR Clauses incorporated by full text.

FAR 52.246-4, INSPECTION OF SERVICES-FIXED-PRICE (AUG 1996)

(a) *Definition:* "Services," as used in this clause, includes services performed, workmanship, and material furnished or utilized in the performance of services.

(b) The Contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires.

(c) The Government has the right to inspect and test all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government shall perform inspections and tests in a manner that will not unduly delay the work.

(d) If the Government performs inspections or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish, and shall require subcontractors to furnish, at no increase in contract price, all reasonable facilities and assistance for the safe and convenient performance of these duties.

(e) If any of the services do not conform with contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount. When the defects in services cannot be corrected by reperformance, the Government may --

(1) Require the Contractor to take necessary action to ensure that future performance conforms to contract requirements; and

(2) Reduce the contract price to reflect the reduced value of the services performed.

(f) If the Contractor fails to promptly perform the services again or to take the necessary action to ensure future performance in conformity with contract requirements, the Government may --

(1) By contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service; or

(2) Terminate the contract for default.

(End of Clause)

SECTION F: DELIVERIES OR PERFORMANCE

F.1 FAR 52.252-2 Clauses Incorporated by Reference. (Feb 1998)
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address: https://www.acquisition.gov/far

FAR 52.242-15 Stop Work Order (Aug 1989)
FAR 52.242-17 Government Delay of Work (Apr 1984)

F.2 Place of Performance
The services to be provided by this contract shall be accomplished at the location(s) listed in Section C.

F.3 Term of Contract
The term of this contract is from the contract start date through 12 months thereafter, with four, one-year options that may extend the period of performance for an additional 1 year for each option, if exercised for a total of 5 years.

F.4 Contract Deliverables

F.4.1 Custodial and Grounds Maintenance Services Contract Deliverables

Deliverable	Reference	Deliverable Due	Point of Contact
Contractor Staffing Declaration (Figure B-1)	B.3	21 calendar days prior to the contract start date and when modifications to the contract by GSA result in changes in staffing	CO or designee.
Supervisory Employee Resumes	C.1.2.1, C.9.3	Resumes for supervisory key personnel shall be submitted within the initial offer; Supervisory custodial employees prior to assignment	CO or designee.

Asbestos Awareness Training	C.1.2.8.1	Within 60 calendar days of each employee's commencement of employment on this contract	CO or designee.
Asbestos Awareness Training Certification	C.1.2.8.1	Within 5 days after the completion of the training	CO or designee.
Collect and submit GSA Form 139, Record of Time of Arrival and Departure from Building	C.1.2.11	Submit as requested but not less frequently than monthly	CO or designee.
Government Identification Credentials	C.1.2.13	Issued before the employee enters on duty; returned when employees leave contract	CO or designee.
Quality Control Plan	C.1.3.1	Submitted with initial offer	CO
Strike contingency plan (SCP) submission.	C.5.2.1	5 calendar days prior to contract start and updated annually	CO or designee.
Green Cleaning Plan	C.9.4.1	7 calendar days prior to start date	CO or designee.
Floor Maintenance Schedule	C.9.5.1.2	7 calendar days prior to the start date of each year the contract is in effect.	CO or designee.
Blinds and Coverings Dusting Schedule	C.9.5.1.17	7 calendar days prior to the start date of each year the contract is in effect.	CO or designee.
Window Washing Safety Plan	C.9.5.2.3	10 calendar days after contract start	CO or designee.

Snow and Ice Removal Plan with List of Chemical Products	C.9.5.3	10 calendar days after contract start	CO or designee.
Tree Survey and Evaluation (includes price list for any special treatment)	C.9.5.4.4	No later than April 30th each year the contract is in effect.	CO or designee.
Soil samples and analysis	C.9.5.4.4	When plant health problems occur	CO or designee.
Initial Deficiency List for Irrigation System	C.9.5.4.16	15 calendar days prior to contract start date	CO or designee.
Monthly Solid Waste & Recycling Report	C.9.11.1	5th of each month and upon request of the COR	CO or designee.
Green Purchase Reporting – Key Sustainable Product Proof of Compliance	C.9.11.3	Annually, no later than October 31 of each year during contract performance and at the end of contract performance	CO or designee.
Green Purchase Reporting – Bio-based as required by FAR 52.223-2	C.9.11.3	Annually, no later than October 31 of each year during contract performance and at the end of contract performance	https://www.sam.gov/
Initial Pest Assessment	C.9.12.2	Within 15 calendar days after the start of the contract	CO or designee.
Pest Control Plan	C.9.12.7	Within 15 calendar days following the initial assessment	CO or designee.
Chemicals used for pest control	C.9.12.8	Need approval prior to use	CO or designee.

Pest Control Log Book	C.9.12.10	As requested, must be kept on government property	CO or designee.
Pesticide Control Plan	C.9.12.10	Within 30 calendar days after contract start	CO or designee.
Cleaning Schedules	C.9.15	7 calendar days prior to the contract start date of each year the contract is in effect	CO or designee.
Safety Data Sheets	C.9.17	No later than 5 calendar days prior to contract start date and updated as necessary	CO or designee.
Inventory List of Products	C.9.17	No later than 5 calendar days prior to the contract start date and updated as necessary	CO or designee.

List of telephone numbers for authorized contractor representatives (includes on-site representatives)	H.1.1	7 calendar days prior to contract start date. Changes shall be made when necessary.	CO or designee.
Pandemic Plan	H.1.3	30 calendar days prior to the start of the contract	CO or designee.
Certification and Estimate of Percentage of Recovered Material Content for EPA-Designated Items	H.1.5.1	Required certification and estimate at contract completion.	CO or designee.
Green Cleaning Training	H.1.5.2	Within 60 calendar days after the start of the contract.	CO or designee.
Written Certification of Green Cleaning Training	H.1.5.2	Within 5 days after completion of Green Cleaning Training	CO or designee

Sensitive but Unclassified Information required lists and notices	H.5	As requested	CO or designee
Qualification of Employees (552.237-71 (May 1989)) paperwork	Section I	As requested	CO or designee
Erosion and Sediment Control Plan (if required)	Section J, Exhibit C5	Prior to performing any activities that disturb existing grounds	CO or designee
Solid Waste/Trash Audit Report	Section J, Exhibit C7	60 days after the start of the date.	CO or designee

F.4.2 Operations and Maintenance Services Related Contract Deliverables:

Deliverable	**Reference**	**Deliverable Due**	**Point of Contact**
Qualification of employees	C.1.2.5	As requested	CO or designee.
State licensing – if required.	C.1.2.7	Within 7 calendar days prior to that person beginning work	CO or designee.
Submission of resumes for new employees	C.1.2.7.6	The Contractor must submit resumes for all personnel prior to personnel beginning work	CO or designee.
Asbestos Awareness Training	C.1.2.8.1	Training within 60 calendar days after start.	CO or designee.
Asbestos Awareness Training Certification	C.1.2.8.1	Certify completion within 5 calendar days of training.	CO or designee.

Re-Tuning Training	C.1.2.8.2	Training within 60 calendar days after start.	CO or designee.
Re-Tuning Training Certification	C.1.2.8.2	Certify completion within 5 calendar days of training.	CO or designee.
NCMMS Training	C.1.2.8.4	Training to be completed during the transition period and within 30 calendar days.	CO or designee.
NCMMS Training Certification	C.1.2.8.4	Certify completion within 5 calendar days of training.	CO or designee.
Lead Awareness Training	C.1.2.8.5	Training within 60 calendar days after start.	CO or designee.
Lead Awareness Training Certification	C.1.2.8.5	Certify completion within 5 calendar days of training.	CO or designee.
NCMMS Complete NCMMS audit	C.1.9.1	Annual certification that the equipment inventory and location data in the NCMMS are up to date and complete.	CO or designee.
Building Operation Plan	C.5.2.1	Due not later than the end of the startup or transition phase,and updated annually on the anniversary of the contract start date.	CO or designee.
Radon mitigation program (if applicable).	C.5.2.1; Section J, Exhibit M4	Program must be described in the building operating plan	CO or designee.
Strike contingency plan (SCP) submission	C.5.2.1	60 calendar days prior to Contract start date and updated annually	CO or designee.

Equipment Inventory List	C.5.3.2	Update equipment data when equipment is added, removed or retrofitted as part of a project, or discovered by GSA or the Contractor and log changes in accordance with provided NCMMS training.	CO or designee.
Equipment Inventory List	C.5.3.3	Annually certify that the Maintained Equipment Inventory is up to date	CO or designee.
Equipment condition assessment.	C.5.3.3	Due Annually. Report shall be produced and maintained in NCMMS	CO or designee.
Workplace safety plan	C.5.4.2.1	30 calendar days after the contract start date	CO or designee.
Scheduling and recordkeeping of tests, certifications, permits, safety and environmental tests, and other records	C.5.4.3.1	Upon completion of all tests, certifications, permits, and other required reports, the contractor shall provide copies to the COR.	CO or designee.
Confined space entry permit system	C.5.4.7	Develop a confined space entry permit system for all permit-required confined spaces within 60 calendar days of Contract start	CO or designee.
Facility Hazards and Accidents	C.5.4.8 and C.5.4.8.2	The Contractor shall immediately notify and provide copies of all accidents reports to OSHA and to the CO or designee. Report hazards immediately.	CO or designee.
Safety Data Sheets (SDS)	C.5.4.11.1	Upon request	CO or designee.

Hazardous material inventory	C.5.4.11.2	Due annually by September 30 of each year and at the end of the Contract	CO or designee.
Emergency Shutdown Instructions	C.5.4.13	Shall be posted in all mechanical rooms and electrical rooms, and also stored in NCMMS	CO or designee.
Labeling electrical circuits	C.5.4.15	Provide new and updated circuit labels.	CO or designee.
AQMD operating permits.	C.5.5.3	Upon request.	CO or designee.
Environmental Reporting	C.5.5.12	Waste Reports - by the 15th calendar day of each month and upon request. Environmental Compliance -Upon request Sustainable Purchasing Practices - Upon request	CO or designee.
Energy and Water Efficiency Monthly Report and Fuel Usage Log	C.1.8, C.5.6.3	Monthly by the 5th calendar day of the subsequent month.	CO or designee.
Copies of all Warranties	C.5.11.3	At the conclusion of all warranted repairs and prior to contract close out.	CO or designee.
Emergency service request or callback (after hours).	C.5.12.2.2	Written accounting of any emergency callback the morning of the next working day.	CO or designee.
Emergency callback (Beyond Core Coverage Hours)	C.5.12.2.2	Shall provide a written account of any emergency call back; including costs incurred and a plan of permanent correction of the	CO or designee.

		problem no later than the morning of the next business day	
Routine service request - response extension request.	C.5.12.2.4	Contractor must immediately submit a written extension request if correction will take over 120 hours after initial notification.	CO or designee.
Miscellaneous Work Report	C.5.14.2	Monthly, submitted by the 5th calendar day of the subsequent month	CO or designee.
Monthly Progress Report	C.5.15	Monthly, submitted by the 5th calendar day of the subsequent month	CO or designee.
Preventative Maintenance Plan	C.6.0	Within 60 calendar days of the Contract start date.	CO or designee.
Boiler Inspections	C.6.2.4	Manufacturer’s Efficiency Rating by design - within 7 calendar days of the test. Follow up compliance report - within 7 calendar days of any adjustments.	CO or designee.
Chiller System - Eddy Current - inspections, tests, and photos (2 copies) (GSA Form 349, GSA Form 350, and GSA, Form 1034)	C.6.4.4	Every three years and within 14 calendar days of test	CO or designee.
HVAC Water Management Plan	C.6.6.2	Within the 60 calendar days of the Contract start date.	CO or designee.

3 Year Electrical Testing	C.6.9, PM Schedule	3 Year Electrical testing report is due 2 weeks after test is performed.	CO or designee.
Periodic oil analysis.	C.6.11.4	Submit copies of all reports to the COR upon completion.	CO or designee.
Solar Photovoltaic Systems	C.6.13.9	Inspection report due semi annually	CO or designee.
Initial Deficiency Report	C.7.1	30 calendar days after contract Notice to Proceed	CO or designee.
Itemized estimate to correct existing deficiencies	C.7.1	Upon request	CO or designee.
Work Staffing Schedule	C.7.2.1	Within 60 calendar days of the transition phase commencement	CO or designee.

SECTION G: CONTRACT ADMINISTRATION DATA

G.1 Points of Contact for Contract Administration

In order to expedite administration of the contract, the Contractor will direct inquiries to the appropriate point of contacts.

- Contracting Officer, David Holland, david.e.holland@gsa.gov (817) 850-5532
- Contract Specialist, Carmen Weathers, carmen.weathers@gsa.gov, (817) 850-8142
- Contracting Officer Representative Mechanical, Edgardo Perez-Cosme, edgardo.perez-cosme@gsa.gov, Office (956) 898-3292, Cell (956) 286-5611
- Contracting Officer Representative Custodial, James Zechman, james.zechman@gsa.gov, Office (956) 898-3293, Cell (956) 301-8632

G.2. Administrative Functions and Limitations

The Contracting Officer may delegate the day-to-day administrative duties under this contract to the Contract Specialist; however, the Contracting Officer has the overall responsibility for the administration of this contract. Only the Contracting Officer can amend, modify, or deviate from the contract terms, conditions, requirements, specifications, and/or delivery schedules; make final decisions on disputed deductions from contract payments for nonperformance or unsatisfactory performance; terminate the contract for convenience or default; and/or issue final decisions regarding contract questions or matters under dispute.

The Contracting Officer Representative (COR) will assist the Contracting Officer in certain delegated administrative duties under this contract. In accordance with Section E, the COR will accomplish inspection and acceptance of deliverables and monitor contractor performance under this contract. The COR does not have the authority to alter the Contractor's obligations or change the terms and conditions of the contract. If, as a result of technical discussions, it is desirable to alter contract obligations or the statement of work, a modification must be issued in writing and signed by the Contracting Officer. Unless terminated sooner, this appointment is effective for the period of performance of this contract including any options, if exercised. No change in COR assignment shall be made without written notice by the Contracting Officer, who will modify the contract to reflect the change of COR assignment.

G.3. Payment (General)

The GSA Finance Division (7BCP), P.O. Box 17181, Fort Worth, TX 76102-0181, is responsible for payments under this contract.

Payment for any service rendered will be due in accordance with the Prompt Payment clause in Section I. In the event the contract begins or ends prior to the last day of month, payments will be prorated based on the number of workdays in the respective month.

G.4 Submission of Invoices for Recurring Monthly Services
Payment for recurring monthly services will be made on the basis of a monthly invoice, in arrears. Invoices must be submitted to GSA's Office of Finance, either through electronic invoicing or by mail. A courtesy copy shall be provided to the CO upon submission to the GSA Office of Finance. The preferred means of submitting invoices is by electronic invoicing through the GSA website. For further information regarding electronic invoicing, please contact the GSA Fort Worth Finance Center Customer Support Group at (817) 978-2408.

The mailing address for GSA's Office of Finance for invoices is:

General Services Administration
Finance Division (7BCP)
P.O. Box 17181
Fort Worth, TX 76102-0181

G.5 Temporary Work Stoppage/Suspension
Temporary building(s) closures resulting from construction, inclement weather, natural disasters, or other reasons beyond the Contractor's control will be treated as an unanticipated holiday and deductions will not be taken as long as the Contractor pays its employees. In the event of Government closure or furlough, the contractor will continue performance unless a Stop Work notification or other directions are issued by the Contracting Officer.

G.6 Evaluating Contractor Performance
Past performance information is relevant information, for future source selection purposes, regarding a contractor's actions under a previously awarded contract. It includes, for example, the contractor's record of conforming to contract requirements and to standards of good workmanship, the contractor's record of forecasting and controlling costs, the contractor's adherence to contract schedules, including the administrative aspects of performance, the contractor's history of reasonable and cooperative behavior and commitment to customer satisfaction, the contractor's reporting into databases, the contractor's record of integrity and business ethics, and generally, the contractor's business-like concern for the interest of the customer.

The General Services Administration (GSA), Public Buildings Service (PBS), will begin using the Contractor Performance Assessment Reporting System (CPARS) modules as the secure, confidential, information management tool to facilitate the performance

evaluation process: http://www.cpars.csd.disa.mil/. CPARS enables a comprehensive evaluation by capturing comments from both GSA and the contractor.

GSA PBS will evaluate interim contractor performance on an annual basis and final contractor performance upon contract completion. Evaluations of contractor performance will be provided to the contractor as soon as practicable after completion of the evaluation. Contractors will be given a minimum of 30 days to submit comments, rebutting statements, or additional information. GSA PBS will provide for review at a level above the contracting officer to consider disagreements between the parties regarding the evaluation. The ultimate conclusion on the performance evaluation is a decision of the contracting agency. Copies of the evaluation, contractor response, and review comments, if any, shall be retained as part of the evaluation. These evaluations may be used to support future award decisions, and should therefore be marked "Source Selection Information."

The GSA PBS Contracting Officer will use the past performance point of contact listed on the contractors Central Contractor Registration (CCR) profile as the default past performance POC. This is the person that will receive CPARS email alerts.

Copies of the evaluations, contractor responses, and review comments, if any, will be retained as part of the contract file, and may be used by Federal Agencies to support future award decisions.

G.7 Deductions

G.7.1 General

It is the objective of the Government to obtain complete and satisfactory performance in accordance with the terms of the specifications and requirements in this contract. To this end, the Government is contracting for the complete performance of each task identified in the specifications, and deductions may therefore be made as stipulated in this Section. Deductions for work performed improperly may be made as though the work has not been performed. As it relates to this contract, the term "deduction" is being used to refer to any reduction in contract price (regardless of the methodology invoked to determine the monetary figure) that is being assessed due to performance related matters.

Deductions may be assessed for nonperformance, deficiencies in the performance of work, or failure to comply with any other contract requirements with the exception of non-submission of reports and failure to maintain and/or provide parts. The deduction amount may include the actual cost to the Government for having the work performed by other means and/or administrative costs if the government incurs administrative costs relating to the deduction. Administrative costs are those time and material costs incurred by Government personnel to correct or respond to the unsatisfactory event/performance. Deficient performance is just as undesirable as nonperformance, and the cost of correcting deficient performance may equal or exceed the cost of initial performance; thus, deduction criteria in this Section shall control in all cases, as distinguished from the Contractor's estimated cost to perform the work.

In the event that inadequate performance or nonperformance of a task occurs, the Government will make the determination to either:

1. Reduce the monthly payment as stipulated in the Criteria for Deductions (paragraph G.7.14), or
2. Withhold payment until performance is acceptable, or
3. Have the work performed by other means.

Should the Government have the work performed by other means; a deduction will be taken in the amount of the actual cost to the Government for having the work performed by other means. A monetary reduction to the contract price for nonperformance of work under this contract, or for deficiencies in the performance of work, and administrative costs for time and material costs incurred by Government personnel to correct or respond to the unsatisfactory event, will be taken. Inadequate performance is just as undesirable as nonperformance, and the cost of correcting inadequate performance may equal or exceed the cost of initial performance. Therefore, the deduction criteria in this Section shall control in all cases, as distinguished from the Contractor's estimated cost to perform the work.

G.7.2. Calculation of Deductions

The deduction criteria in this Section will be used by the Government in determining monetary deductions for nonperformance of work under this contract or for deficiencies in the work performed, and supplements the FAR 52.249-8 Default (Fixed-Price Supply and Service) “Default” clause contained in this contract, but does not reduce or limit the Government’s right thereunder.

G.7.3 Determination of Deduction Amounts

Inadequate performance is just as undesirable as nonperformance, and the cost of correcting inadequate performance may equal or exceed the cost of initial performance.

1. The deduction amount assessed will be determined based on the following:
   i.) actual costs incurred by the Government for having the work performed by other means;
   ii.) use of the Hourly Price as determined by the DOL Wage Determination or Union Agreement that applies to the personnel responsible for that task if no cost was incurred by the government for having the work performed by other means, and/or
   iii.) administrative costs.

2. Contractor Hourly Rate Application – For determining deductions the Hourly Price as determined by the DOL Wage Determination or Union Agreement that applies to the personnel responsible for that task will be used. This rate will be applied against a multiplier. The multiplier used may be time (e.g. the number of hours that would have been required to perform the work or task found to be deficient) or number of occurrences (for smaller repetitive tasks). Both the basis and amount of the multiplier shall be determined by the government through the development of a government estimate at the time that the deduction is being proposed. When the basis of the multiplier used is hourly, the number of hours applied shall not be less than one hour.

3. Administrative Costs Application - For deductions related to administrative costs incurred by government personnel to correct or respond to the unsatisfactory event, the multiplier for the deduction amount will be the total number of government hours spent. The rate for administrative costs will be the hourly government employee rate, GS-12, Step 5, as prescribed in the U.S. Office of Personnel Management (OPM) General Schedule (GS) Locality Pay Tables. The locality will be the city/county in which the event occurred and where work is being performed under the contract. The effective GS-12, Step 5 hourly rate will be multiplied by the total number of government hours spent to derive the administrative costs deduction amount. The hourly pay tables for all localities can be found on the OPM website at http://www.opm.gov/oca/12tables/indexgs.asp.

4. Total Deduction Amount – The total deduction amount may be calculated based on the actual cost to the Government for having the work performed by other means, using either the overtime rate application, the Hourly Price as determined by the DOL Wage Determination or Union Agreement that applies to the personnel responsible for that task, or a combination of these.

G.7.4 Withholding Monies for Non-submission of Work Schedules
If the contractor fails to submit acceptable check charts and logs by the contract performance date or any extension granted by the CO or his/her designated representative a payment retainage not to exceed 10% of each monthly invoice may be withheld until the items are received and approved by the Government.

G.7.5 Withholding Monies for Non-submission of Reports
If the contractor fails to prepare and/or submit acceptable reports as called for in Section C, DESCRIPTION/SPECIFICATION, within the required time frame, this may be construed to mean that the contract work has not been performed and the Government may withhold a payment retainage not to exceed 10% of each monthly invoice until the required reports are satisfactorily completed and/or submitted to the COR. If reports are not submitted, and/or the time period has passed such that the reports can no longer be created, a deduction in contract price will be made.

G.7.6 Withholding Monies for Failure to Maintain and/or Provide Parts
If the Contractor fails to provide the parts specified in this contract, **within 24 hours** of establishment of the need for such parts, the Government may withhold a payment retainage not to exceed 10% of each monthly invoice until the required parts are provided and are satisfactory to the COR.

G.7.7 Deducting Monies for Failure to Respond to Service Calls
Deductions may be made at the Hourly Price as determined by the DOL Wage Determination or Union Agreement that applies to the personnel responsible for that task for each hour or portion thereof, in one half an hour increments that the contractor fails to respond to service calls within the required time frames as specified in Section C.

For determining deductions based on the Hourly Price as determined by the DOL Wage Determination or Union Agreement that applies to the personnel responsible for that task will be used. This rate will be applied against a multiplier. The base of the multiplier used is hourly, and the number of hours applied shall not be less than one half an hour. Both the basis and amount of the multiplier shall be determined by the government through the development of a government estimate at the time that the deduction is being proposed.

In addition, the Contractor will be held liable for all additional costs which result from the Contractor's failure to respond, including any administrative costs incurred, using the Administrative Costs Application.

G.7.8 Deducting Monies for Suspension of Work
In the event services are not provided or required by the Government because the building(s) is closed due to inclement weather, unanticipated holidays declared by the President, failure of the Congress to appropriate funds, etc., deductions may be computed as stated in this paragraph.

(1) The deduction rate in dollars per day will be equal to the per month contract price for the building(s), divided by the number of days per month the building(s) is in normal operation.

(2) The deduction rate in dollars per day multiplied by the number of days services were not provided or required.

(3) In the event services are provided for portions of days, appropriate adjustments will be made by the CO or his/her designated representative to assure the contractor is compensated for services provided.

(4) As long as the Contractor pays employees as if it were an anticipated Federal holiday, the Contractor will be paid for the unanticipated holiday as if it were a normal Federal Holiday.

G.7.9 Deducting Monies for Failure to Provide On-site Visits
Deductions may be made at the following per occurrence rates that a qualified employee is not on-site as specified in the contract.

For determining deductions based on the Hourly Price as determined by the DOL Wage Determination or Union Agreement that applies to the personnel responsible for that task will be used. This rate will be applied against a multiplier. The basis of the multiplier used is hourly, and the number of hours applied shall not be less than one hour. Both the basis and amount of the multiplier shall be determined by the government through the development of a government estimate at the time that the deduction is being proposed.

G.7.10 Deducting Monies for Failure to Respond to Requests for Additional Services

The Contractor will be held liable for all costs, including administrative costs, incurred by the Government as a result of the Contractor's failure to respond to and/or provide additional services.

G.7.11 Temporary Reduction of Space
When blocks of cleanable space totaling at least 4,000 square feet (372 square meters) are expected to remain unoccupied for at least 30 calendar days, but less than 180 calendar days, deductions will be made from the monthly payments due the Contractor. The COR will notify the **Contractor or his/her representative, in writing, of the effective date the areas are to be dropped and**/or returned to the normal cleaning schedule at least three (3) full working days in advance of these dates.

The period for deducting for unoccupied space will begin on the effective date as stipulated in writing by the COR, and will continue until the effective date in which the cleaning is resumed. The 4,000 square feet (372 square meters) may be made up of small blocks of space. Subsequent blocks of space less than 4,000 square feet (372 square meters) may be added after the initial 4,000 square feet (372 square meters) threshold is met. Blocks of unoccupied space in each facility covered by this contract may be combined when determining square footages for reduction. The amount of the deduction will be computed as follows:

The total number of square feet unoccupied shall be divided by 4,000 (372 if using square meters) to reflect the approximate number of hours the cleaning effort will be reduced. 4,000 (372 if using square meters) represents the approximate number of square feet an employee can accomplish in a period of one hour.

The total number of hours as determined under Paragraph (1) multiplied by the current minimum hourly wage rate for custodians, inclusive of hourly health and welfare benefits, as established by the U. S. Department of Labor, Wage and Hour Division and/or Collective Bargaining Agreement, will determine the deduction rate per day.

NOTE: In the event a wage determination has not been issued by the U.S. Department of Labor, the Federal Minimum Wage established by Section 6(a)(1) of the Fair Labor Standards Act (29 USC Section 201-219) shall apply.

The deduction rate per day as established under Paragraph (b) shall be multiplied by the number of work days the space was not occupied. THIS WILL DETERMINE THE TOTAL DOLLAR DEDUCTION TO BE TAKEN.

G.7.12 Long Term Reduction of Space
When blocks of cleanable space of any size are expected to remain unoccupied for at least 180 calendar days, the CO will negotiate a modification to the contract that reflects a reduced price. The modification will consider all applicable costs (i.e., labor, materials, supplies, equipment, general and administrative costs, supervision, subcontracts, profit, etc.).

G.7.13 Restoration of Space

The COR will notify the Contractor or his/her representative, in writing, of the effective date the areas are to be returned to the normal cleaning schedule at least three (3) full working days in advance of these dates. When space is restored to the contract by either temporary or long term space reductions methods listed above, it will be restored using the methodology with which it was removed.

G.7.14 Criteria for Deductions

CRITERIA FOR DEDUCTIONS

Cause of Deduction	**Calculation of Deduction**
	NOTE: Hourly rates will be determined by the current DOL Wage Determination or CBA Agreement that applies to the personnel responsible for that task. This rate could change per Option Period. Administrative costs will be based on GS-12, Step 5 wage scale applicable to the area of location.
1. Failure of the Contractor to have adequate qualified personnel on-site as specified in the Contractor's technical proposal or CO revision.	1. Hourly rate per man hour will be deducted for each hour, or portion thereof, that the Contractor fails to have adequate qualified personnel on-site. The man hour calculation shall be based on qualified personnel position rate found in the DOL Wage Determination Spreadsheet or the CBA Wage Agreement, this sum multiplied by the number of hours that full staffing was not provided.
2. Failure to use employees with required qualifications.	2. Hourly rate per man hour will be deducted for each hour, or portion thereof, that an unqualified mechanic is used to perform contract work. Deduction hourly rate will be based on the DOL Wage Determination Spreadsheet or the CBA Wage Agreement for the qualified position.
3. Failure to provide prescribed environmental conditions in the building(s), or portion thereof, at all times.	3. The Contractor will be held liable for all costs, including administrative costs, incurred by the Government as a result of his/her failure to provide prescribed environmental conditions at all times.

	Administrative costs will be based on GS-12, Step 5 wage scale.
4. Failure to perform, or satisfactorily perform, PM, tours, or watches required by the contract during the time period in which performance was scheduled.	4. The man-hours required to perform the omitted or unsatisfactory work will be determined by the COR, based on the standards in NCMMS. The total man hours required will be multiplied by the hourly rate, found on the DOL Wage Determination Spreadsheet or CBA Wage Agreement, to determine the total dollar amount deductible for the scheduled work, plus Administrative costs. Administrative costs will be based on GS-12, Step 5 wage scale.
5. Failure to complete repairs of building equipment which the cost of supplies, materials, and parts is $2,500.00 or less, within the time limit or within 72 hours for repairs, or approved extension thereof.	5. Beginning with the first hour following the expiration of the time limit or within 10 days respectively, or an approved extension thereof; the hourly rate will be deducted for every hour or portion thereof for every day that the repair remains incomplete, in addition to any costs incurred by the Government to complete the repair. Hourly rate is determined based upon the DOL Wage Determination Spreadsheet or the CBA Wage Agreement.
6. Failure to respond to and complete service calls within the prescribed time limits; or extension thereof.	6. Deductions will be made as follows for failure to complete service calls: a. For those requiring immediate action, the Contractor will be held liable for all costs, including administrative costs, incurred by the Government, to complete the service call and/or related custodial (or grounds, where applicable) related services.. b. For all other service calls, beginning with the first hour following expiration of the appropriate time limit for completion (3 hours or 24 hours), the hourly rate will be deducted for every hour, or portion thereof, that the service call remains incomplete (based on the number of hours per day that the Contractor is required to be on-site, 250 day-per-year basis), including administrative costs. Deduction hourly rate will be based on the DOL Wage Determination Spreadsheet or the CBA Wage Agreement for the qualified position. Administrative costs will be based on GS-12, Step 5 wage scale.

7. Failure to respond within one (1) hour to a request for Emergency Call-Back Service, and/or failure to provide the required service.	7. The Contractor will be held liable for all costs incurred by the Government as a result of the Contractor's failure to respond within one (1) hour and/or provide the required service, including but not limited to: a. All costs to repair damage to the building, equipment, or systems, and; b. All costs associated with responding to the emergency, and; c. All administrative costs. Administrative costs will be based on GS-12, Step 5 wage scale.
8. Failure to respond to a request for Overtime Services, and/or failure to provide the required services.	8. The Contractor will be held liable for all costs, including administrative costs, incurred by the Government as a result of the Contractor's failure to respond to, and/or provide, requested overtime services. Administrative costs will be based on GS-12, Step 5 wage scale.
9. Failure to: a. Properly operate and/or maintain equipment and/or systems or, b. Make repairs, which results in damage to the building(s), equipment, or systems.	9. The Contractor will be held liable for all costs, including administrative costs, incurred by the Government to repair damage to the building, equipment, or systems which results from the Contractor's failure to perform any or all of the items listed as (a) or (b) adjoining. Administrative costs will be based on GS-12, Step 5 wage scale.
10. Failure to perform the miscellaneous hours specified in Section C, when requested	10. The hourly rate reflected by the DOL Wage Determination Spreadsheet or the CBA Wage Agreement, will be deducted for each hour or portion thereof that the miscellaneous services are not provided when requested by the CO or his/her designated representative.
11. Failure of the Contractor to make scheduled quality control inspections.	11. The hourly rate will be deducted for each inspection that the Contractor fails to make. The time required to perform the inspection will be based on the actual man-hours consumed by the Government. The hourly rate determined is reflected by the DOL Wage

	Determination Spreadsheet or the CBA Wage Agreement.
12. Failure to make inspections as outlined by the approved Quality Control Plan that accurately reflects the true conditions of the equipment.	12. The Contractor shall be liable for all costs associated with the Government re-inspection of deficiencies found by the Government. (Ref G.7.3) This applies to items that were to be inspected by the Contractor's Quality Control Plan.
13. Failure of the Contractor to submit required documentation, reports, plans, schedules, etc., within the specified time frame.	13. A payment retainage of a maximum of 10% of each monthly invoice may be withheld until required documentation, reports, plans, schedules, etc., are submitted to and approved by the COR. Reports and/or documentation that cannot be created after the fact will result in a contract price deduction.
14. Failure to provide as necessary or requested adequate personnel to perform fire watch duties which may be required.	14. The total man-hours required will be multiplied by the hourly rate, determined by the DOL Wage Determination Spreadsheet or the CBA Wage Agreement, to determine the total dollar amount deductible for the services not provided, plus administrative costs. Administrative costs will be based on GS-12, Step 5 wage scale.

H. SPECIAL CONTRACT REQUIREMENTS
GENERAL INFORMATION

H.1 Contractor Responsibilities

H.1.1 Supervisors

A supervisor shall be available at all times when the contract work is in progress to receive notices, reports, or requests from the CO or their designee. **A supervisor is defined as a contractor employee who is one that has authority to act in full capacity for the contractor.** The Contractor shall furnish the CO or their designee with a list of telephone numbers where an authorized representative may be contacted seven (7) days per week at any hour of the day or night to provide required services. This list shall be submitted to the **COR 7 calendar days prior to contract start date.** This list shall be updated when necessary.

H.1.2 Occupant Emergency Plan (OEP)

The Government's Occupant Emergency Plan (OEP) is used by the CO or their designee during building emergencies. Designated Contractor personnel, including, the onsite supervisors, shall be thoroughly familiar with the Government's OEP and shall be trained by the Contractor to fully understand their responsibilities relative to each emergency plan. The Contractor shall participate in fire and other emergency drills. The Contractor shall be required to perform the services required by the Contract and as identified by the CO or their designee to the extent allowed during all emergency situations, including, but not limited to fires, accident and rescue operations, Contractor personnel strikes, civil disturbances, natural disasters, and utility service outages.

H.1.3 Contractor Pandemic Plan

The Government is required by the National Strategy for Pandemic Influenza Preparedness to have a plan that safeguards its employees and provides for continued operations in the event of any pandemic. The Contractor shall also prepare a plan that outlines the steps that they must take to prevent and reduce the spread and mitigate the potential effect of a pandemic on facilities operations. ***The plan must include as a minimum:***

Section for Cleaning Continuation within a Pandemic addressing the following subjects:

- Cleaning Procedures
- Disinfection Materials Selection
- Testing (this section shall contain)
    - Work Procedures
    - Procurement Process
    - Stock Levels
- Disposal

Given the unpredictable length and severity of a pandemic, the Contractor's plan shall link their planned actions to the periods and phases established by the World Health Organization for a pandemic cycle. For information on the phases of a pandemic cycle see http://www.who.int/csr/resources/publications/influenza/whocdscsredc991.pdf. The Contractor shall submit the plan to the CO or their designee thirty (30) calendar days prior to the start of the contract. See components of Pandemic Planning at http://www.ed.gov/admins/lead/safety/emergencyplan/pandemic/planning-guide/basic.pdf

H.1.4 Affirmative Procurement Program (APP)
As a Federal procuring agency, the GSA is required by the Resource Conservation and Recovery Act (RCRA), Section 6002 and Executive Order (EO) 13834 Strengthening Federal Environmental, Energy, and Transportation Management to procure and use products containing post-consumer content (recycled material); environmentally preferable; and bio-based products. RCRA Section 6002 and Letter 92-4 requires Federal agencies to develop and implement their own Affirmative Procurement Program to facilitate the procurement of these products.

H.1.5 Green Purchases
In addition to those regulatory requirements specified in Section C of the specification, the following considerations and sources shall be used by the Contractor.

This includes:

-Compliance with appropriate clauses and subparts of FAR 7, 11, 12, 13, and 23.
-Cleaning chemicals, tools, equipment, supplies, or materials that shall be selected with consideration to minimizing the impact on both human health and safety as well as reducing other potential environmental impacts.
-Cleaning processes, work practices, and procedures shall minimize exposures to workers and building occupants and contribute to the promotion of environmental stewardship.
-GSA offers a variety of environmental products to its Federal customers to assist in their efforts to comply with procurement responsibilities outlined in Federal environmental laws and regulations. Information is available through the GSA Federal Acquisition Service (FAS).
-Additional information on environmentally preferable products may be found through sources such as the U.S. EPA's Environmentally Preferable Purchasing Program's website.

H.1.5.1 Recycled Content Certification
In accordance with the FAR 52.223-9, Certification and Estimate of Percentage of Recovered Material Content for EPA-Designated Items, purchased for the performance of work with this contract, the Contractor shall provide the required certification and estimate to the CO or their designee at contract completion. The following is a sample of the certification that is included in the FAR:

Certification

I, _____ (name of certifier), am an officer or employee responsible for the performance of this contract and hereby certify that the percentage of recovered material content for EPA-designated items met the applicable contract specifications or other contractual requirements.
(Signature of the Officer or Employee)
(Typed Name of the Officer or Employee)
(Title)
(Name of Company, Firm, or Organization)
(Date)
(End of certification)

H.1.5.2 Green Cleaning Training
The Contractor shall provide training to their employees that stress proper stewardship in green cleaning practices within 60 calendar days after the start of the contract. The Contractor shall submit written certification to the CO or their designee within five (5) days of the completion of training. Information on stewardship, training, and other issues can be found in ASTM E1971-19, Standard Guide for Stewardship for the Cleaning of Commercial and Institutional Buildings www.astm.org/. The focus of this training is to address appropriate cleaning activities and processes to maximize eco-efficiency and to minimize adverse impacts on the building occupants, cleaning personnel, the building structure itself, and the environment. Adherence to the principles set forth in this guide can lead to greater tenant and occupant satisfaction, reduced operational costs, and greater productivity (for occupants and cleaning personnel).

H.2 Compliance with Security Requirements
The Contractor shall comply with all GSA and tenant Agency security requirements in the building(s) where work is being performed.

When a controlled personnel identification access system is used by a tenant Agency at a site where work is performed, the tenant Agency will be responsible for providing any required access credentials. Credentials shall be displayed at all times or as otherwise required by the tenant Agency.

The Contractor shall be responsible for maintaining satisfactory standards of employee competency, conduct, appearance, and integrity and shall be responsible for taking such disciplinary action with respect to its employees as may be necessary.

H.3 Removal from Contract Work
As provided in the clause entitled "Qualifications of Employees," the Contracting officer or a designated representative may require the Contractor to remove any employee(s) from GSA controlled buildings or other real property should it be determined that the individual(s) is either unsuitable for security reasons or otherwise unfit to work on GSA controlled property. This shall include, but not be limited to, instances where an employee is determined, in the Government's sole discretion, to be incompetent, careless, insubordinate, unsuitable, or otherwise objectionable.

When the Government deems the employee's continued employment to be contrary to the public interest, inconsistent with the best interests of security, or when the employee is identified as a potential threat to the health, safety, security, general well-being, or operational mission of the facility and its population.

The CO may also request the Contractor to immediately remove any employee from the work site if it is determined that individuals are being assigned to duty who have been disqualified for either suitability or security reasons or who are found to be unfit for performing duties during their tour of duty.

Contractor employees who are removed from Contract work shall be required to leave the work site immediately.

The Contractor shall comply with any removal request. For clarification, a determination to remove an employee will be made for, but is not limited to, incidents involving the most immediately identifiable types of misconduct or delinquency as set forth below:

Failure to receive a suitability determination, temporary clearance, or clearance from GSA or a tenant Agency.

Violation of Federal, State, or Local law.

Violation of the Rules and Regulations Governing Public Buildings and Grounds, 41 CFR 101-20.3. This includes the carrying or possession of explosives or items intended to be used to fabricate an explosive or incendiary device.

Neglect of duty, including sleeping while on duty, unreasonable delays, or failure to carry out assigned tasks, conducting personal affairs during official time or refusing to render assistance, or to cooperate in upholding the integrity of the security program at the work site.

Falsification or unlawful concealment, removal, mutilation, or destruction of any official documents or records, or concealment of material facts by willful omissions from official documents or records.

Disorderly conduct, use of abusive or offensive language, quarreling, intimidation by words or actions, fighting, or participation in disruptive activities that interfere with the normal efficient operations of the Government.

Theft, vandalism, immoral conduct, or any other criminal actions.

Selling, consuming, or being under the influence of intoxicants, drugs, or substances that produce similar effects while in or on federally controlled property.

Improper use of Government identification.

Unauthorized use of communication equipment on Government property.

Violation of security procedures or regulations.

Violation of Title 18,U.S.C.,Section 930, which prohibits the knowing possession or the causing to be present of firearms or other dangerous weapons in Federal facilities and Court facilities.

The CO or their designee will make all determinations regarding the removal of any employee from the work site, except under certain conditions. When a CO or their designee is not available, either during the day or after hours, or in situations where a delay would not be in the best interest of the Government or is identified as a potential threat to the health, safety, security, general well-being, or operational mission of the facility and its population, the CO or their designee will have the authority to immediately remove the Contract employee from the work site.

Law enforcement officers of the Department of Homeland Security/Immigration and Customs Enforcement/Federal Protective Service (DHS/ICE/FPS) will have the authority to immediately remove any Contract employee from the work site who is found to be in violation of any of the items mentioned above and where a delay in removal would not be in the best interest of the Government or security or is identified as a potential threat to the health, safety, security, general well-being, or operational mission of the facility and its population. The CO or their designee will be notified as soon after the incident as practical or at the beginning of the next business day if an action happened after hours. The CO or their designee will make all official notifications to the Contractor. In the event of a dispute, the CO or their designee will make a final determination. Specific reasons for removal of an employee will be provided to the Contractor in writing by the CO or designee.

The Contractor is responsible for providing replacement employees in cases where Contract employees are removed from working at the work site or on the Contract.

The Contractor is responsible for ensuring the collection of badges and any government issued property from all contract employees and their subcontractors.

H.4 Escort Requirements
Temporary contract employees who do not have favorable preliminary or final suitability determinations and need to work in non-public federally-controlled space must be escorted. In those cases, the Contractor shall comply with the security clearance procedures for Escort Only Contractors. All uncleared contract employees shall be escorted in non-public space by a Government employee or another responsible cleared contract employee who is approved by the CO or designee. Other Government agencies shall have specific agency security requirements for their own space that shall only allow escort by Government employees or those designated by their agency. Government employees or approved cleared contract employees who provide escorts

for uncleared contract employees shall always be within eyesight of the uncleared contract employees. The Contract Government escort shall watch uncleared employees and remain with uncleared contract employees for the entire time they are in non-public federally controlled space. Any security violation of escort requirements by a cleared and approved contract employee shall result in the immediate removal from the Contract of all contract employees involved, *i.e.,* escorts and uncleared escorted contract employees. Also, violations of escort requirements by subcontract employees in accordance with security requirements shall be grounds for loss of facility access for those individuals or grounds for termination of Contract, or both.

Each facility may have more stringent rules guiding escorting procedures and workers without HSPD12 badges. Contractors must adhere to the rules approved by each Facility Security Committee.

Temporary contract employees who need to work in non-public federally-controlled space for 15 days or less within a 6 month period may be escorted (without a fitness determination), after prior review and approval by GSA security personnel. The Contractor shall comply with the security approval procedures for Escort Only Contractors, including submission of personal information for both the individual(s) being escorted and the person escorting them. Authorization to work under escort must be provided from GSA security personnel in writing prior to working.

After approval by the CO or designee and GSA security personnel, must be escorted in non-public space at all times by a federal employee, FPS security contractor, or a responsible GSA contractor who has received a favorable fitness determination and is in possession of a GSA issued PIV credential. ‑The Contractor shall consult with the GSA CO or designee to determine the number of personnel reasonably escorted by the same escort. It is suggested that 5-7 people per escort is typically manageable; however, consideration should be given to the type of project and proximity to escorted contractors. This information is current at time of award and may change depending on security clearance changes per the agency throughout the life of the contract.

H.5 Sensitive But Unclassified (SBU) Building Information
Dissemination of sensitive but unclassified paper and electronic building information shall be made on a need to know basis in accordance with GSA Order PBS P 3490.1, a copy of which will be made available upon request.

GSA Contractors that do not have HSPD-12 compliant clearances cannot obtain Sensitive But Unclassified (SBU) information (Privacy Act data, building information, and financial information) through GSA's IT systems.

Contractors and prospective bidders **with a need to know**, that do not have HSPD-12 clearances and access rights to GSA IT systems, can be provided with SBU building information, drawings, etc., in accordance with GSA Order 3490.1A (Document Security for SBU information, which) provides for the dissemination of paper and electronic SBU building information for all Federally-controlled spaces (owned, leased, and delegated).

SBU information includes but is not limited to:

- Paper and/or electronic documentation of the physical facility information.
- Building designs (such as floor plans).
- Construction and renovation/alteration plans and specifications.
- Equipment plans and locations.
- Building operating plans.
- Information used for building service contracts and/or contract guard services.

For all GSA-controlled facilities, any other information considered a security risk, shall be considered covered under this category.

All SBU building information, either in electronic or paper formats, shall have specific imprinting on each page to designate it as Government property and indicate the prohibition of copying, dissemination, and distribution.

Contractors authorized to receive SBU information shall provide the following identification:

- A copy of a valid business license.
- Verification of a valid DUNS Number.
- A valid IRS Tax ID Number.
- A valid picture state driver's license.

Contractors shall sign a Document Security Notice when they receive the information.

Contractors shall be responsible for safeguarding SBU information. At the completion of work, secondary and other disseminators shall be required to turn over their Document Security Notice dissemination records to GSA to be kept with the permanent files.

Authorized contract users shall destroy all SBU information and documents when no longer needed. Destruction shall be done by burning or shredding hardcopy and/or physically destroying CD's, deleting and removing files from the electronic recycling bins, and removing material from computer hard drives using permanent erase utility or similar software.

All authorized contract users of SBU building information shall notify the GSA Disseminator in writing that they have properly disposed of the SBU building information/documents.

The GSA Disseminator shall maintain all records of SBU building information disposal (along with the signed Document Security Notices) pursuant to the GSA system of keeping long-term records and plans. All Document Security Notices and Records of Disposals shall be kept with the permanent files.

H.6 Additional Services (O&M) and Above Standard Services (Custodial) Indefinite Quantity Provisions

H.6.1 General
Additional Services and Above Standard Services may include any services related to Custodial, O&M and repairs, systems upgrades, system operation, or tenant services within covered facilities but not covered within basic services (i.e., not already a requirement of the Contract).

H.6.2 Price Proposal for Additional Services and Above Standard Services Work
Only the CO may order additional services over $2,500.00. At the request of the CO or designee, the Contractor shall provide a price proposal to accomplish an additional services job within 48 hours of the request, unless otherwise stated by the Contracting Officer. The price proposal shall follow the pricing guidelines described in this document. Price proposals for additional services become firm fixed price on acceptance and order by the Government. Although price negotiation and determination of price reasonableness is made on the basis of labor, materials, and subcontract costs following the pricing guidelines described in this document, the price accepted is not adjusted after completion of work to actual man-hours or actual materials cost. (Ref. C.5.13.2)

H.6.3 Pricing
The Contractor's price proposal for an Additional Services and Above Standard Services job shall follow the guidelines described below.

H.6.4 Parts and Materials
If parts or materials are required for a project, the Government may provide the parts or materials, or the Contractor may be asked to provide the parts and materials. Parts and materials shall be priced at estimated actual cost marked up by the standard coefficient in the price schedule, if stated. Receipts for any parts or materials may be requested at any time by the CO or designee. (Ref. C.5.13.2.1)

H.6.5 Labor
If the contractor uses in-house labor resources during contractor employees' normal work hours no labor will be charged for additional services. If the work is being performed outside these hours the labor rate shall be paid in accordance with the contract pricing. If the work is subcontracted the cost proposal shall include labor hours, hourly rate, parts and materials listing with associated costs, and overhead and profit costs. Use of in-house contractor employees for overtime work must be approved by the COR in advance. (Ref. C.5.13.2.2)

H.6.6 Subcontracts
If work is to be subcontracted, a cost proposal must be submitted to the CO. The cost proposal shall include the subcontractor's labor hours, hourly rate, a parts and materials listing with associated costs, and overhead and profit. The subcontracted part of the

work is to be priced at actual cost to the Contractor, marked up by the standard coefficient in the price schedule.

The Contractor shall identify the price of any new, additional subcontractor labor necessary to complete the ASWR and the Contractor's methodology to determine that the level of effort and price of labor is reasonable, *e.g.,* competitive quotes for the work, justification of only one source, and any other additional information to assist the Government in determining the reasonableness of the proposed subcontract(s). The Contractor shall compete subcontractor opportunities for the work to the maximum extent practicable.

Contract payment will be withheld if notification is given of non payment to a subcontractor who completed work under this contract. (Ref C.5.13.3)

H.6.7 Cost Documentation
The Contractor shall provide all paid invoices for any materials, parts, and subcontractor costs (certified payrolls and a Subcontractor Release of Claims) following the completion of the ASWR requirements Order work. This documentation shall be provided no later **than 30 business days** after completion of the ASWR requirements Order work. (Ref. C.5.13.7)

H.6.8 Competitive Proposals
If a single part or component, or a single type (line item) of parts, components, or materials for a project is anticipated to equal or exceed **$2,500,** the CO or their designee may require that the Contractor obtain two or more proposals from suppliers and include documentation of these proposals with his proposal. If subcontract work is anticipated to cost more than **$2,500** the CO or their designee may require that the Contractor obtain three proposals from potential subcontractors and include documentation of these proposals with his proposal.

H.6.9 Method of Payment/Order Restrictions and Limits

H.6.9.1 Government Purchase Card
Any repairs for total cost to the government, in the amount of **$2,500** or less may be processed via Government Purchase Card (GPC) by GSA. Payments may be made by any tenant agencies that have proper delegation from GSA and prior approval by the COR. The contractor shall establish the capability to accept credit card payments to facilitate this process. The order may be placed orally (in emergency situations) or via email through an authorized Government Purchase Cardholder. Work performed under this provision will not count towards the Order Limitations established in FAR 52.216-19.

H.6.9.2 Task Orders
The CO will order work priced at more than **$2,500**. Normally, the CO will issue a written Task Order (GSA Form 300). However, the CO may order services orally during an emergency situation. If the CO issues an order orally, the government will confirm in writing and follow up with a Task Order as soon as practicable.

H.7 Miscellaneous Requirements

The Contractor shall:

a. Ensure that the Contractor's employees use lights and faucets only in those areas where and when the work is actually being performed. Once leaving, all lights and water faucets in the work area shall be turned off.
b. Ensure that custodial/janitorial workers do not adjust mechanical equipment controls for heating, ventilation and air conditioning systems.
c. Ensure that the Contractor's employees participate in building fire and civil defense drills.
d. Ensure that the reporting of fires, hazardous conditions, and items in need of repair (e.g., inoperative lights, broken windows or doors, torn carpets, leaking sinks, urinals or commodes, dead trees or shrubs, etc.), to the CO or their designee.
e. Ensure if applicable, rooms are locked after cleaning and that keys are returned to the designated office.
f. Ensure that lost and found articles by the Contractor's employees are turned in to the CO or their designee.
g. Ensure that the Contractor employees notify the security officer on duty when unauthorized or suspicious person(s) are seen on premises.
h. Ensure that the Contractor's employees notify CO or their designee of any observed hazardous material, or Universal Waste materials in the trash or recycling receptacles.
i. Ensure that the Contractor's employees adhere to GSA's 'No Smoking Policy'

H.8 Conservation

Conservation is a planned and organized approach designed to conserve non-renewable sources. The Contractor shall ensure that work under this contract is performed in a manner that conserves energy, water, and other Government resources. Contractor shall take the necessary steps through training, communication, and implementing appropriate procedures in their use of natural resource consuming equipment and processes. This will preserve resources and support GSA's sustainability goals.

The Contractor shall ensure that their employees support the Government's efforts to comply with Section 102 of the Energy Policy Act of 2005 (EPAct), the Energy Independence and Security Act of 2007, Executive Order 13834 which requires the Government to reduce Agency energy use.

The Contractor shall employ practices that reduce dependency on non-renewable sources of energy. The Contractor's personnel shall turn off lights in unoccupied areas where possible, once the area is cleaned. The Contractor shall close window blinds when practical, especially in the summertime, over long weekends, and during extended closures of the building.

The Contractor shall use their equipment in an efficient manner by turning it off during times it is not in use. When replacing existing equipment, the Contractor shall strive to acquire replacement equipment in the top 25% of efficiency as per the Energy Star guidelines. The Contractor shall never turn off or unplug Government equipment in the space they are cleaning without prior written approval by the CO or their designee.

The Contractor shall employ products, equipment and practices that eliminate wasteful use of water.

H.9 Personal Protective Equipment (PPE)
The Contractor shall adhere to 20 CFR 1910 and any other Federal, State and local laws and regulations to fully comply with this requirement.

SECTION I: CONTRACT CLAUSES

The following Federal Acquisition Regulation (FAR) clauses are hereby incorporated by reference.

Clause	Title	Date
FAR 52.202-1	Definitions	JUN 2020
FAR 52.203-3	Gratuities	APR 1984
FAR 52.203-5	Covenant Against Contingent Fees	MAY 2014
FAR 52.203-6	Restrictions on Subcontractor Sales to the Government	JUN 2020
FAR 52.203-7	Anti-Kickback Procedures	JUN 2020
FAR 52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
FAR 52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	MAY 2014
FAR 52.203-12	Limitation on Payments to Influence Certain Federal Transactions	JUN 2020
FAR 52.203-13	Contractor Code of Business Ethics and Conduct	JUN 2020
FAR 52.203-14	Display of Hotline Poster(s)	JUN 2020
FAR 52.203-16	Preventing Personal Conflicts of Interest	JUN 2020
FAR 52.203-17	Contractor Employee Whistleblower Rights and Requirement To Inform Employees of Whistleblower Rights	JUN 2020
FAR 52.204-2	Security Requirements	AUG 1996
FAR 52.204-4	Printed or Copied Double-Sided on Postconsumer Fiber Content Paper	MAY 2011

FAR 52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
FAR 52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
FAR 52.204-13	System for Award Management Maintenance	OCT 2018
FAR 52.204-14	Service Contract Reporting Requirements	OCT 2016
FAR 52.204-15	Service Contract Reporting Requirements for Indefinite-Delivery Contracts	OCT 2016
FAR 52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
FAR 52.204-19	Incorporation by Reference of Representations and Certifications	DEC 2014
FAR 52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	AUG 2020
FAR 52.208-9	Contractor Use of Mandatory Sources of Supply or Services	MAY 2014
FAR 52.209-6	Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	JUN 2020
FAR 52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
FAR 52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	NOV 2015
FAR 52.210-1	Market Research	JUN 2020
FAR 52.211-10	Commencement, Prosecution, and Completion of Work	APR 1984
FAR 52.211-12	Liquidated Damages-Construction (If Applicable)	SEP 2000

FAR 52.211-13	Time Extensions	SEP 2000
FAR 52.211-18	Variation in Estimated Quantity	APR 1984
FAR 52.215-2	Audit and Records—Negotiation	JUN 2020
FAR 52.215-8	Order of Precedence—Uniform Contract Format	OCT 1997
FAR 52.215-10	Price Reduction for Defective Cost or Pricing Data	AUG 2011
FAR 52.215-11	Price Reduction for Defective Cost or Pricing Data-Modifications	JUN 2020
FAR 52.215-12	Subcontractor Cost or Pricing Data	JUN 2020
FAR 52.215-13	Subcontractor Cost or Pricing Data-Modifications	JUN 2020
FAR 52.215-14	Integrity of Unit Prices	JUN 2020
FAR 52.215-15	Pension Adjustments and Asset Reversions	OCT 2010
FAR 52.215-17	Waiver of Facilities Capital Cost of Money	OCT 1997
FAR 52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions	JUL 2005
FAR 52.217-8	Option to Extend Services	NOV 1999
FAR 52.219-6	Notice of Total Small Business Set-Aside	MAR 2020
FAR 52.219-8	Utilization of Small Business Concerns	OCT 2018
FAR 52.219-14	Limitations on Subcontracting	MAR 2020
FAR 52.219-28	Post-Award Small Business Program Rerepresentation	MAY 2020
FAR 52.222-1	Notice to the Government of Labor Disputes	FEB 1997
FAR 52.222-3	Convict Labor	JUN 2003

FAR 52.222-4	Contract Work Hours and Safety Standards —Overtime Compensation	MAR 2018
FAR 52.222-6	Construction Wage Rate Requirements	AUG 2018
FAR 52.222-7	Withholding of Funds	MAY 2014
FAR 52.222-8	Payrolls and Basic Records	AUG 2018
FAR 52.222-9	Apprentices and Trainees	JUL 2005
FAR 52.222-10	Compliance with Copeland Act Requirements	FEB 1988
FAR 52.222-11	Subcontracts (Labor Standards)	MAY 2014
FAR 52.222-12	Contract Termination-Debarment	MAY 2014
FAR 52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	MAY 2014
FAR 52.222-14	Disputes Concerning Labor Standards	FEB 1988
FAR 52.222-15	Certification of Eligibility	MAY 2014
FAR 52.222-20	Contracts for Materials, Supplies, Articles, and Equipment	JUN 2020
FAR 52.222-21	Prohibition of Segregated Facilities	APR 2015
FAR 52.222-26	Equal Opportunity	SEP 2016
FAR 52.222-27	Affirmative Action Compliance Requirements for Construction	APR 2015
FAR 52.222-35	Equal Opportunity for Veterans	JUN 2020
FAR 52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
FAR 52.222-37	Employment Reports on Veterans	JUN 2020

FAR 52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
FAR 52.222-41	Service Contract Labor Standards	AUG 2018
FAR 52.222-43	Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts)	AUG 2018
FAR 52.222-44	Fair Labor Standards Act and Service Contract Labor Standards--Price Adjustment	MAY 2014
FAR 52.222-50	Combating Trafficking in Persons	OCT 2020
FAR 52.222-54	Employment Eligibility Verification	OCT 2015
FAR 52.222-55	Minimum Wages Under Executive Order 13658	DEC 2015
FAR 52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2017
FAR 52.223-2	Affirmative Procurement of Biobased Products Under Service and Construction Contracts.	SEP 2013
FAR 52.223-3	Hazardous Material Identification & Material Safety Data	JAN 1997
FAR 52.223-5	Pollution Prevention & Right-To-Know Information	MAY 2011
FAR 52.223-5	Pollution Prevention & Right-To-Know Information--Alternate I	MAY 2011
FAR 52.223-6	Drug-Free Workplace	MAY 2001
FAR 52.223-10	Waste Reduction Program	MAY 2011
FAR 52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners	JUN 2016
FAR 52.223-13	Acquisition of EPEAT®–Registered Imaging Equipment	JUN 2014

FAR 52.223-15	Energy Efficiency In Energy-Consuming Products.	MAY 2020
FAR 52.223-16	Acquisition of EPEAT®-Registered Personal Computer Products	OCT 2015
FAR 52.223-17	Affirmative Procurement of EPA-Designated Items in Service and Construction Contracts.	AUG 2018
FAR 52.223-18	Encouraging Contractor Policies to Ban Text Messaging While Driving	JUN 2020
FAR 52.223-19	Compliance with Environmental Management Systems	MAY 2011
FAR 52.223-20	Aerosols	JUN 2016
FAR 52.223-21	Foams	JUN 2016
FAR 52.224-1	Privacy Act Notification	APR 1984
FAR 52.224-2	Privacy Act	APR 1984
FAR 52.225-1	Buy American Act--Supplies	MAY 2014
FAR 52.225-3	Buy American—Free Trade Agreements-Israeli Trade Act	MAY 2014
FAR 52.225-5	Trade Agreements	OCT 2019
FAR 52.225-13	Restrictions on Certain Foreign Purchases	JUN 2008
FAR 52.228-5	Insurance—Work on a Government Installation	JAN 1997
FAR 52.227-1	Authorization and Consent	JUN 2020
FAR 52.227-2	Notice and Assistance Regarding Patent and Copyright	JUN 2020
FAR 52.227-4	Patent Indemnity-Construction Contracts	DEC 2007
FAR 52.228-2	Additional Bond Security	OCT 1997

FAR 52.228-11	Pledges of Assets	AUG 2018
FAR 52.228-12	Prospective Subcontractor Requests for Bonds	MAY 2014
FAR 52.228-14	Irrevocable Letter of Credit	NOV 2014
FAR 52.228-15	Performance and Payment Bonds-Construction	JUN 2020
FAR 52.229-3	Federal, State, and Local Taxes	FEB 2013
FAR 52.232-5	Payments Under Fixed-Price Construction Contracts	MAY 2014
FAR 52.232-8	Discounts for Prompt Payment	FEB 2002
FAR 52.232-9	Limitation on Withholding of Payments	APR 1984
FAR 52.232-11	Extras	APR 1984
FAR 52.232-17	Interest	MAY 2014
FAR 52.232-23	Assignment of Claims	MAY 2014
FAR 52.232-25	Prompt Payment	JAN 2017
FAR 52.232-27	Prompt Payment for Construction Contracts	JAN 2017
FAR 52.232-33	Payment by Electronic Funds Transfer—System for Award Management	OCT 2018
FAR 52.232-36	Payment by Third Party	MAY 2014
FAR 52.232-37	Multiple Payment Arrangements	MAY 1999
FAR 52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
FAR 52.232-40	Providing Accelerated Payments to Small Business Subcontractors	DEC 2013
FAR 52.233-1	Disputes	MAY 2014

FAR 52.233-1	Disputes-Alternate I	DEC 1991
FAR 52.233-3	Protest after Award	AUG 1996
FAR 52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
FAR 52.236-2	Differing Site Conditions	APR 1984
FAR 52.236-3	Site Investigation and Conditions Affecting the Work	APR 1984
FAR 52.236-5	Material and Workshop	APR 1984
FAR 52.236-6	Superintendence by the Contractor	APR 1984
FAR 52.236-7	Permits and Responsibilities	NOV 1991
FAR 52.236-8	Other Contracts	APR 1984
FAR 52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements	APR 1984
FAR 52.236-10	Operations and Storage Areas	APR 1984
FAR 52.236-11	Use and Possession Prior to Completion	APR 1984
FAR 52.236-12	Cleaning Up	APR 1984
FAR 52.236-13	Accident Prevention	NOV 1991
FAR 52.236-13	Accident Prevention-Alternate I	NOV 1991
FAR 52.236-14	Availability and Use of Utility Services	APR 1984
FAR 52.236-17	Layout of Work	APR 1984
FAR 52.236-21	Specifications and Drawings for Construction	FEB 1997
FAR 52.237-2	Protection of Government Buildings, Equipment, and Vegetation	APR 1984

FAR 52.242-13	Bankruptcy	JUL 1995
FAR 52.242-14	Suspension of Work	APR 1984
FAR 52.243-1	Changes—Fixed Price	AUG 1987
FAR 52.243-1	Changes—Fixed Price--Alternate I	APR 1984
FAR 52.243-4	Changes	JUN 2007
FAR 52.244-2	Subcontracts	JUN 2020
FAR 52.244-5	Competition in Subcontracting	DEC 1996
FAR 52.244-6	Subcontracts for Commercial Items	OCT 2020
FAR 52.245-1	Government Property	JAN 2017
FAR 52.245-1	Government Property--Alternate I	APR 2012
FAR 52.245-9	Use and Charges	APR 2012
FAR 52.246-4	Inspection of Services-Fixed-Price	AUG 1996
FAR 52.246-12	Inspection of Construction	AUG 1996
FAR 52.246-16	Responsibility for Supplies	APR 1984
FAR 52.246-20	Warranty of Services	MAY 2001
FAR 52.246-21	Warranty of Construction	MAR 1994
FAR 52.246-21	Alternate I	APR 1984
FAR 52.246-25	Limitation of Liability—Services	FEB 1997
FAR 52.248-1	Value Engineering	JUN 2020
FAR 52.248-3	Value Engineering-Construction	OCT 2020

FAR 52.249-1	Termination for Convenience of the Government (Fixed-Price) (Short Form)	APR 1984
FAR 52.249-2	Termination for Convenience of the Government (Fixed-Price)	APR 2012
FAR 52.249-4	Termination for Convenience of the Government (Services) (Short Form)	APR 1984
FAR 52.249-8	Default (Fixed-Price Supply and Service)	APR 1984
FAR 52.249-10	Default (Fixed-Price Construction)	APR 1984
FAR 52.251-1	Government Supply Sources	APR 2012
FAR 52.253-1	Computer Generated Forms	JAN 1991

The following General Services Acquisition Manual (GSAM/GSAR) clauses and/or provisions are hereby incorporated by reference:

Clause	Title	Date
GSAR 552.203-71	Restriction on Advertising	SEP 1999
GSAR 552.204-9	Personal Identity Verification Requirements	JUL 2020
GSAR 552.211-72	References to Specifications in Drawings	FEB 1996
GSAR 552.215-70	Examination of Records by GSA	JUL 2016
GSAR 552.217-71	Notice Regarding Option(s)	NOV 1992
GSAR 552.227-70	Government Rights (Unlimited)	MAY 1989
GSAR 552.228-5	Government as Additional Insured	JAN 2016
GSAR 552.229-70	Federal, State, and Local Taxes	APR 1984

GSAR 552.232-1	Payments (Deviation FAR 52.232-1)	NOV 2009
GSAR 552.232-72	Final Payment Under Building Services Contracts	MAR 2012
GSAR 552.232-77	Payment By Government Charge Card	NOV 2009
GSAR 552.236-70	Definitions	MAR 2019
GSAR 552.236-71	Authorities and Limitations	MAR 2019
GSAR 552.236-77	Specifications and Drawings	MAR 2019
GSAR 552.237-71	Qualifications of Employees	MAY 1989
GSAR 552.243-71	Equitable Adjustments	MAR 2019
GSAR 552.246-72	Final Inspection and Tests	SEP 1999
GSAR 552.252-6	Authorized Deviations in Clauses (Deviation FAR 52.252-6)	SEP 1999

The following FAR clauses and/or provisions are hereby incorporated by full text:

FAR 52.204-1 -- Approval of Contract (Dec 1989)
This contract is subject to the written approval of *the Contracting Officer* and shall not be binding until so approved.

(End of Clause)

FAR 52.216-18 – Ordering (August 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from the effective date of the award through the last day of the award

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) If mailed, a delivery order or task order is considered “issued” when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of Clause)

FAR 52.216-19 -- Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than $100.00*,* the Government is not obligated to purchase, nor is the Contractor obligated to furnish those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor --

(1) Any order for a single item in excess of $150,000.00;

(2) Any order for a combination of items in excess of $250,000.00; or

(3) A series of orders from the same ordering office within 60 days that together call for quantities exceeding the limitation in subparagraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e*., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 10 days after issuance, with written notice stating the Contractor’s intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of Clause)

FAR 52.216-22 Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the “maximum.” The Government shall order at least the quantity of supplies or services designated in the Schedule as the “minimum.”

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor’s and Government’s rights and obligations with

respect to that order to the same extent as if the order were completed during the contract's effective period; provided that the Contractor shall not be required to make any deliveries under this contract after the last date of contract.

(End of Clause)

FAR 52.217-9 -- Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days of which the Contracting Officer may exercise the option; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years.

(End of Clause)

FAR 52.222-42 -- Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only:

It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
01320 Service Order Dispatcher	$15.76/hr. ($4.54/hr.)
01020 Administrative Assistant	$22.89/hr. ($4.54/hr.)
11150 Janitor	$10.59/hr. ($4.54/hr.)
11360 Window Cleaner	$11.64/hr. ($4.54/hr.)
11210 Laborer Grounds Maintenance	$12.40/hr. ($4.54/hr.)
23160 Electricians, Maintenance	$18.90/hr. ($4.54/hr.)

23290 Fire Alarm System Mechanics	$18.37/hr. ($4.54/hr.)
23370 General Maintenance Worker	$12.25/hr. ($4.54/hr.)
23410 Heating, Ventilation and Air Conditioning Mechanic	$16.92/hr. ($4.54/hr.)
23810 Plumbers, Maintenance	$17.14/hr. ($4.54/hr.)
25070 Stationary Engineer	$18.43/hr. ($4.54/hr.)

(End of Clause)

FAR 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons. (Jun 2016)

(a) *Definitions*. As used in this clause–

Global warming potential means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

High global warming potential hydrofluorocarbons means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR Part 82 subpart G with supplemental tables of alternatives available at (http://www.epa.gov/snap/).

Hydrofluorocarbons means compounds that only contain hydrogen, fluorine, and carbon.

Ozone-depleting substance, means any substance the Environmental Protection Agency designates in 40 CFR part 82 as-

(1)Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or

(2)Class II, including, but not limited to, hydrochlorofluorocarbons.

(b)The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C.7671j(b), (c), (d), and (e) and 40 CFR part 82, subpartE, as follows:

Warning

Contains (or manufactured with, if applicable) *_____, a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.

* The Contractor shall insert the name of the substance(s).

(c) *Reporting.* For equipment and appliances that normally each contain 50 or more pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons, the Contractor shall–

(1)Track on an annual basis, between October 1 and September 30, the amount in pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons contained in the equipment and appliances delivered to the Government under this contract by–

(i)Type of hydrofluorocarbon (e.g., HFC-134 a, HFC-125, R-410 A, R-404 A, *etc*.);

(ii)Contract number; and

(iii)Equipment/appliance;

(2)Report that information to the Contracting Officer for FY16 and to www.sam.gov, for FY17 and after–

(i)Annually by November 30 of each year during contract performance; and

(ii)At the end of contract performance.

(d)The Contractor shall refer to EPA's SNAP program (available at http://www.epa.gov/snap) to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82 subpart G with supplemental tables available at http://www.epa.gov/snap.

(End of clause)

FAR 52.223-9 Estimate of Percentage of Recovered Material Content for EPA Designated Items. (May 2008)

(a) *Definitions*. As used in this clause—

“Postconsumer material” means a material or finished product that has served its intended use and has been discarded for disposal or recovery, having completed its life as a consumer item. Postconsumer material is a part of the broader category of “recovered material.”

“Recovered material” means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process.

(b) The Contractor, on completion of this contract, shall—

(1) Estimate the percentage of the total recovered material content for EPA-designated item(s) delivered and/or used in contract performance, including, if applicable, the percentage of postconsumer material content; and

(2) Submit this estimate to the Contracting Officer or their Designee.

(End of clause)

52.225-11 Buy American-Construction Materials under Trade Agreements. (Oct 2019)

(a) *Definitions*. As used in this clause-

Caribbean Basin country construction material means a construction material that–

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial item (as defined in paragraph (1) of the definition at FAR 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C.40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site pre assembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Designated country means any of the following countries:

(1)A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2)A Free Trade Agreement (FTA) country (Australia, Bahrain, Canada, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3)A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros,

Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4)A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

“Designated country construction material” means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means-

(1) An unmanufactured construction material mined or produced in the United States;

(2) A construction material manufactured in the United States, if-

(i) The cost of its components mined, produced, or manufactured in the United States exceeds 50 percent of the cost of all its components. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic; or

(ii) The construction material is a COTS item.

“Foreign construction material” means a construction material other than a domestic construction material.

Free Trade Agreement country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b)Construction materials. (1)This clause implements 41 U.S.C.chapter 83, by providing a preference for domestic construction material. In accordance with 41 U.S.C.1907, the component test of the Buy American statute is waived for construction material that is a COTS item. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2)The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3)The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial item or to the construction materials or components listed by the Government as follows:

[*Contracting Officer to list applicable excepted materials or indicate "none"*]

(4)The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i)The cost of domestic construction material would be unreasonable. The cost of a particular domestic construction material subject to the restrictions of the Buy

American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 6 percent;

(ii)The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii)The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c)Request for determination of inapplicability of the Buy American statute. (1) (i)Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A)A description of the foreign and domestic construction materials;

(B)Unit of measure;

(C)Quantity;

(D)Price;

(E)Time of delivery or availability;

(F)Location of the construction project;

(G)Name and address of the proposed supplier; and

(H)A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii)A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii)The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv)Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2)If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3)Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction MaterialDescription	Unit of Measure	Quantity	Price (Dollars)*
Item1:			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____
Item2:			
Foreign construction material	_____	_____	_____
Domestic construction material	_____	_____	_____

[*List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.*]

[*Include other applicable supporting information*.]

[* *Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued)*.]

(End of clause)

FAR 52.228-5 Insurance-Work on a Government Installation. (Jan 1997)
(a)The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

(b)Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective-

(1)For such period as the laws of the State in which this contract is to be performed prescribe; or

(2)Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c)The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

(End of clause)

Note: The following kinds and minimum amount of insurance are required and evidence of insurance is to be provided to the Contracting Officer prior to issuance of the Notice to Proceed:

a. <u>Workers Compensation and Employer's Liability:</u>

(1) The contractor is required to comply with applicable Federal and State Workers compensation and occupational disease statutes; however. notwithstanding the permissibility of deductibles under those statutes, worker's compensation shall be

obtained without any deductibles. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy. Employer's liability coverage of at least the following limits (and without a deductible) shall be provided except in states with exclusive or monopolistic funds that do not permit worker's compensation to be written by private carriers.

Bodily Injury by Accident - $100,000 each accident
Bodily Injury by Disease - $500,000 policy limit
Bodily Injury by Disease - $100,000 each employee

(2) Even though the laws of a State might allow a Contractor to be a non-subscriber to worker's compensation, the Contractor is required to carry and maintain worker's compensation insurance (without any deductibles) and employer's liability insurance. If occupational diseases are not covered under the worker's compensation policy, it shall be covered under the employer's liability section of the insurance policy. Employers liability insurance coverage shall be as specified in the above paragraph.

b. General Liability Insurance:
General Liability insurance coverage written on the comprehensive form of policy, is required in the amount of $500,000 per occurrence for bodily injury, and $50,000 per occurrence for property damage. The deductible under such policy shall not be greater than (i) $10,000 per person, or $25,000 per occurrence for bodily injury, or (ii) $2,000 for property damage.

c. Automobile Liability Insurance:
A minimum of $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage provided for automobile liability insurance coverage written on the comprehensive form of policy, covering the operation of all automobiles used in connection with performing the contract is required. The deductibles under such policy shall not be greater than (i) $10,000 per person, or $25,000 per occurrence for bodily injury, or (ii) $2,000 for property damage.

Note: If required, the Contractor agrees to insert the substance of this language in all subcontracts hereunder, if any.

(End of Clause)

FAR 52.252-2 -- Clauses Incorporated by Reference. (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es): http://www.acquisition.gov/far.

(End of Clause)

The following FAR/GSAR clauses are supplemented as they apply to Construction Services, as specified in Section C:

A. Commencement, Prosecution, and Completion of Work

FAR 52.211-10, Commencement, Prosecution, and Completion of Work, is supplemented as follows:

The Contractor shall not commence the Work until the Task Order Contracting Officer has issued Notice to Proceed (NTP). The Contractor shall diligently prosecute the Work so as to achieve Substantial Completion of the Work, as defined in the Task Order documents.

B. Contractor Responsibilities

(1) Unless otherwise expressly stated in the Contract or Task Order Documents, the Contractor shall be responsible for all means and methods employed in the performance of the Contract.

(2) The Contractor shall be responsible for providing professional design services in connection with performance of the Work or portions of the Work as stated in the Task Order Documents, to provide the performance and design criteria that such services will be required to satisfy. In the performance of such work, the Contractor shall be responsible for retaining licensed design professionals, who shall sign and seal all drawings, calculations, specifications and other submittals that the licensed professional prepares. The Contractor shall be responsible for, and GSA shall be entitled to rely upon, the adequacy and completeness of all professional design services provided under this Contract.

(3) The Contractor shall be responsible for coordinating all activities of subcontractors. This responsibility includes coordination of: preparation of shop drawings produced by different subcontractors where their work interfaces or may potentially conflict or interfere and the installation of such work; scheduling of work by subcontractors; and use of the project site for staging and logistics.

(4) Where installation of separate Work components as shown in the Task Order Documents will result in conflict or interference between such components or with existing conditions, including allowable tolerances, it is the Contractor's responsibility to bring such conflict or interference to the attention of the Task Order Contracting Officer and seek direction before fabrication, construction, or installation of any affected work. If the Contractor fabricates, constructs, or installs any work prior to receiving such direction, the Contractor shall be responsible for all cost and time incurred to resolve or mitigate such conflict or interference.

(5) Where drawings show work without specific routing, dimensions, locations, or position relative to other work or existing conditions, and such information is not specifically defined by reference to specifications or other information supplied in the Task Order Documents, the Contractor is responsible for routing, dimensioning, and

locating such work in coordination with other work or existing conditions in a manner consistent with Task Order requirements.

(6) The Contractor shall secure and pay for all necessary permits and governmental fees, licenses, and inspections that are customarily secured after award of the Task Order and that are legally required at the time of Task Order award. The Contractor shall provide a copy of the permits required for execution of the work to the Task Order Contracting Officer prior to commencement of any related work.

(7) The Contractor shall immediately bring to the Task Order Contracting Officer's attention any hazardous materials or conditions not disclosed in the Task Order Documents discovered by or made known to the Contractor during the performance of the Task Order.

(8) The Contractor must submit a safety plan before commencing work.

(9) It is not the Contractor's responsibility to ensure that the Task Order Documents comply with applicable laws, statutes, building codes and regulations. If it comes to the attention of the Contractor that any of the Task Order Documents do not comply with such requirements, the Contractor shall promptly notify the Task Order Contracting Officer in writing. If the Contractor performs any of the Work prior to notifying and receiving direction from the Task Order Contracting Officer, the Contractor shall assume full responsibility for correction of such work, and any fees or penalties that may be assessed for non-compliance.

(10) The Contractor assumes the risk of, and shall be responsible for, any loss, damage, destruction, or theft of Government property upon its delivery to the Contractor as Governmentfurnished property. However, the Contractor is not responsible for reasonable wear and tear to Government property or for Government property properly consumed in performing this Contract.

C. Contractor Management and Personnel

FAR 52.236-6, Superintendence by the Contractor, is supplemented as follows:

(1) The Contractor shall employ sufficient management and contract administration resources, including personnel responsible for project management, field superintendence, change order administration, estimating, coordination, inspection, and quality control, to ensure the proper execution and timely completion of the Work. The Contractor shall designate a principal of the firm or other senior management official to provide executive oversight and problem resolution resources to the Project for the life of the Contract.

(2) The Contractor shall employ, and require its subcontractors to employ, qualified personnel to perform the Work. The Government reserves the right to exclude, or remove from the site or building, any personnel for reasons of incompetence, carelessness, or insubordination, who violate rules and regulations concerning conduct on federal property, or whose continued employment on the site is otherwise deemed by the Government to be contrary to the public interest.

(3) Repeated failure or excessive delay by the Contractor to provide qualified personnel shall be deemed a default for the purposes of the "Termination for Default" clause.

(4) Throughout the life of this contract, the Contractor shall ensure that personnel performing design work are licensed in the state in which the work is performed, and that personnel performing abatement are certified by the state in which the work is performed. Personnel performing other disciplines must also be appropriately licensed as required for that work

D. Project Schedule

(1) Unless otherwise specified in the individual Task Orders, the Contractor shall use a Critical Path Method ("CPM") Project Schedule to plan, coordinate, and perform the Work. Task Order Project Schedules shall be produced using widely used, commercially available computer software that is capable of generating and monitoring a CPM schedule and is compatible with Meridian Proliance.® For example, compatible software includes Microsoft Project,® Primavera SureTrak,® and Primavera Project Planner.®

(2) Task Order Project Schedules shall be a rational, reasonable and realistic plan for completing the Work, and conform to requirements specified in this clause and elsewhere in the Task Order Documents.

(3) The Contractor understands and acknowledges that the preparation and proper management of the Project Schedule is a material component of the Work, and that the Task Order price includes all costs of compliance with Project Schedule requirements.

(4) The Project Schedule shall depict all activities necessary to complete the Work, including, as applicable, all submittal and submittal review activities, all procurement activities, and all field activities, including mobilization, construction, start-up, testing, balancing, commissioning, and punch list. Activities shall be sufficiently detailed and limited in duration to enable proper planning and coordination of the Work, effective evaluation of the reasonableness and realism of the Task Order Project Schedule, accurate monitoring of progress, and reliable analysis of schedule impacts.

(5) Within thirty (30) days of NTP, or such other time as may be specified in Task Order Documents, the Contractor shall submit its Project Schedule to the Task Order Contracting Officer, together with a written narrative describing the major work activities, activities on the critical path, and major constraints underlying the sequence and logic of the Project Schedule. The Contractor shall submit the Project Schedule in electronic print format or as specified in the individual Task Order.

(6) The Contractor should anticipate that its initial submittal of the Project Schedule shall be subject to review and revision as contemplated by Paragraph (11) of this clause, and the Contractor shall devote sufficient resources for meetings, revisions, and resubmissions of the Project Schedule to address exceptions taken by the Task Order Contracting Officer to the initial submittal. The Contractor understands and acknowledges that the purpose of the initial review and resolution of exceptions is to maximize the usefulness of the Project Schedule for the Parties during Task Order performance.

(7) Activity durations shall be based upon reasonable and realistic allocation of the resources required to complete each activity, given physical and logistical constraints on the performance of the Work. All logic shall validly reflect physical or logistical

constraints on relationships between activities. Except for the first and last activities in the Project Schedule, each activity shall have at least one predecessor and one successor relationship to form a logically connected network plan from NTP to the Task Order Completion date.

(8) The Project Schedule shall incorporate milestone events specified in the Task Order Documents, including, as applicable, NTP, Substantial Completion, and milestones related to specified work phases and site restrictions. The Project Schedule shall also include Contractor-defined milestones to identify target dates for critical events, based upon the Contractor's chosen sequence of work.

(9) Unless a shorter period for updates is specified elsewhere, the Contractor shall update the Project Schedule monthly to reflect its actual progress in completing the Work, and submit the updated Project Schedule to the Task Order Contracting Officer within five (5) working days of the end of each month or other specified period.

(10) If the Contractor revises the Project Schedule after initial submission, the Contractor shall provide in writing to the Task Order Contracting Officer a narrative describing the substance of the revision, the rationale for the revision, and the impact of the revision on the projected Substantial Completion date and the available float for all activities. The Contractor shall only revise prospective activities, durations and logic, but addition of detail to prospective activities shall not be deemed a revision if the overall duration of the detailed activity does not change.

(11) If at any time the Task Order Contracting Officer finds that the Project Schedule does not comply with any Task Order requirement, the Contractor shall, upon written notice of exceptions taken by the Task Order Contracting Officer, revise the Project Schedule, adjust activity progress, or provide sufficient information demonstrating compliance. Regardless of whether the Task Order Contracting Officer takes any such exception, the Contractor shall not be relieved of its responsibility for the rationality, reasonableness or realism of the Project Schedule, or its responsibility to achieve Substantial Completion within the time specified by the Task Order.

(12) If the Contractor fails to sufficiently address the Task Order Contracting Officer's exceptions to the Project Schedule within thirty (30) calendar days of written notice of same, the Task Order Contracting Officer may withhold retainage until the Project is Substantially Complete or until such time as the Contractor has complied with Project Schedule requirements.

(13) The Task Order Contracting Officer shall be entitled, but is not required, to rely upon the Project Schedule to evaluate the Contractor's progress, evaluate entitlement to extensions of time and determine the criticality or float of any activities described in such Project Schedule

E. Extensions of Time

FAR 52.211-13, Time Extensions, is supplemented as follows:

(1) If the Contractor requests an extension of the time for Substantial Completion, the Contractor shall base its request on analysis of time impact using the Project Schedule as its baseline, and the new Substantial Completion date projected by the Project

Schedule as revised to account for the impact. The Contractor’s request must be submitted to the Task Order Contracting Officer in writing, and set forth facts and analysis in sufficient detail to enable the Task Order Contracting Officer to evaluate the Contractor's entitlement to an extension of time.

(2) The Contractor shall only be entitled to an extension of time to the extent that Substantial Completion of the Work is delayed by causes for which the Contractor is not responsible under the Task Order and to the extent that the actual or projected Substantial Completion date is later than the date required by the Task Order for Substantial Completion.

(3) The Contractor shall not be entitled to an extension of time if the Contractor has not updated the Project Schedule in accordance with the Task Order.

(4) The Government shall not be liable for any costs to mitigate time impacts incurred by the Contractor that occur less than 30 calendar days after the date the Contractor submits a request for extension of time complying with this clause

F. Interpretation of Specifications and Drawings

FAR 52.236-21, Specifications and Drawings for Construction, and GSAR 552.236-77, Specifications and Drawings, are supplemented as follows:

(1) Different requirements within the Task Order Documents shall be deemed inconsistent only if compliance with both cannot be achieved.

(2) Unless otherwise noted, the drawings shall be interpreted to provide for a complete construction, assembly, or installation of the Work, without regard to the detail with which material components are shown in the drawings

G. Submittals

FAR 52.236-21, Specifications and Drawings for Construction, and GSAR 552.236-78, Shop Drawings, Coordination Drawings, and Schedules are supplemented as follows:

(1) The Contractor shall prepare and submit to the Task Order Contracting Officer shop drawings, samples, calculations, product information, mockups, and other submittals (collectively, "submittals") demonstrating compliance with Task Order requirements for all Work components as specified in the Task Order. If particular submittal requirements are not specified for a component of the Work, the Contractor shall prepare submittals for such Work as directed by the Task Order Contracting Officer.

(2) The Contractor shall not proceed with work or procure products or materials described or shown in submittals until the Task Order Contracting Officer has indicated approval of the submittal. Any work or activity undertaken prior to approval shall be at the Contractor’s risk; should the Task Order Contracting Officer subsequently determine that the work or activity does not comply with the Contract, the Contractor shall be responsible for all cost and time required to comply with the Task Order Contracting Officer's determination. The Task Order Contracting Officer shall have the right to order the Contractor to cease execution of work for which submittals have not been approved.

The Government shall not be liable for any cost or delay incurred by the Contractor attributable to the proper exercise of this right.

(3) The Contractor shall be entitled to receive notice of action on submittals within a reasonable time, given the volume or complexity of the submittals and the criticality of the affected activities to Substantial Completion as may be indicated in the Project Schedule. The Contractor shall not be entitled to receive notice of action on submittals containing variations from Task Order requirements in less than twenty (20) working days.

H. Substantial Completion and Contract Completion

FAR 52.211-10, Commencement, Prosecution, and Completion of Work, FAR 52.211-12, Liquidated Damages (Construction), and GSAR 552.246-72, Final Inspection and Tests, are supplemented as follows:

(1) For the purposes of FAR 52.211-10, Commencement, Prosecution and Completion of Work, and FAR 52.211-12, Liquidated Damages (Construction), the Task Order requirements shall be deemed complete when they are “Substantially Complete.” The Work shall be deemed "Substantially Complete" if and only if the Contractor has completed the Work and related Task Order obligations in accordance with the Task Order Documents, such that the Government may enjoy the intended access, occupancy, possession, and use of the entire Work without impairment due to incomplete or deficient work, and without interference from the Contractor's completion of remaining work or correction of deficiencies in completed work. In no event shall the Work be deemed Substantially Complete if all fire and life safety systems are not tested and accepted by the Authority Having Jurisdiction, where such acceptance is required under the Task Order.

(2) With reasonable advance notice, the Contractor shall submit to the Task Order Contracting Officer a written proposal recommending a Substantial Completion date (Notice of Substantial Completion). The Task Order Contracting Officer shall conduct inspections and make a determination of Substantial Completion within a reasonable time. If the Task Order Contracting Officer takes exception to the Notice of Substantial Completion, the Contractor shall be entitled to a written notice of conditions precluding determination of Substantial Completion.

(3) The Contractor shall only be entitled to an extension of time to address such conditions if, and to the extent that, the Task Order Contracting Officer provides notice of such conditions more than thirty (30) calendar days after receipt of the Notice of Substantial Completion.

(4) Substantial Completion shall be established by the Task Order Contracting Officer's issuance of a written determination specifying the date upon which the Work is Substantially Complete.

(5) The Task Order is complete (Contract Completion) if and only if the Contractor has completed all Work and related Contract and Task Order obligations, corrected all deficiencies and all punch list items, and complied with all conditions for final payment.

(6) Unless otherwise specifically noted, or otherwise clear from context, all references in this Contract to "acceptance" shall refer to issuance of a written determination of Substantial Completion.

(7) The Contractor shall not be entitled to final payment or release of any retainage held by the Government until after Task Order Completion. If the Contractor does not achieve Contract Completion within the time required by the Task Order, the Government shall be entitled, after providing notice to the Contractor, to complete any work remaining unfinished. The Contractor shall be liable to the Government for all costs incurred by the Government to complete such work.

I. Use and Possession Prior to Substantial Completion

FAR 52.236-11, Use and Possession Prior to Completion, is supplemented as follows:

Exercise by the Government of the right conferred by FAR 52.236-11 shall not relieve the Contractor of responsibility for completing any unfinished components of the Work.

J. Finality of Contract Modifications

As set forth elsewhere in this Contract and in the Task Orders, the Contractor is entitled to additional consideration under certain conditions, including the issuance of change orders. It is the Contractor's duty to include in proposals for equitable adjustment or other consideration all compensation to which it may be entitled, including cost and time. The set of RSMeans coefficient factors which is used in the initial negotiation and award of a task order will continue to be used for all modifications to that task order, even if modifications increase or decrease the total value of the task order beyond the threshold for that set of factors. Unless otherwise explicitly stated in a modification to a Task Order providing such consideration, adjustments to the Task Order price or time agreed upon therein shall be deemed to provide all compensation to which the Contractor is entitled, and shall constitute final settlement of the Contractor's entitlement to compensation on account of the change or other condition giving rise to the modification.

K. Liquidated Damages (Applies to Construction only)

FAR 52.211-12, Liquidated Damages - Construction is supplemented as follows:

(1) The Contractor acknowledges that time is of the essence for the performance of the Work, and that determining actual damages from delay would be extremely difficult and impractical. If the Contractor fails to achieve Substantial Completion of the Work within the time specified in the Task Order, the Contractor shall be liable to the Government for liquidated damages at the rate specified in Section I (Project Information), paragraph entitled, “Liquidated Damages Rate,” for each calendar day following the required completion date that the Work is not Substantially Complete.

(2) If the Task Order requires different completion dates for different phases or portions of the Work, the Contractor shall be liable for liquidated damages at the specified rate for each calendar day following the required completion date that the phase or portion of

Work is not Substantially Complete. If a single rate is specified, the specified rate shall be apportioned between the different phases or portions of the Work.

(3) If the Government elects to accept any portion of the Work not specifically designated as a phase or portion of Work with its own required completion date, the liquidated damage rate shall be apportioned between accepted work and uncompleted work, and the Contractor's liability for liquidated damages shall be computed accordingly.

L. Insurance Requirements

See requirements in Section I.

M. Order of Precedence

Different requirements within this Contract shall be deemed inconsistent only if compliance with both cannot be achieved. In case of inconsistency between Contract Documents, the following order of precedence shall apply:

(1) Section I of the IDIQ contract.

(2) Task Order Clauses (within the Task Order Agreement)

(3) Other Provisions of the Task Order Agreement (within the Task Order Agreement)

(4) The Statement of Work (Task Order)

(5) The Specifications (Task Order)

(6) The Drawings (Task Order)

(7) Exhibits and Other Attachments (Task Order)

N. Administrative Matters

The following applies to any Task Order issued as a result of this Contract:

(1) Project Meetings. The Contractor shall attend a preconstruction conference and shall participate in regularly scheduled Project meetings.

(2) Task Order Price Proposal. The Contractor shall prepare and submit a price breakdown of the Task Order price as stipulated in the Task Order RFP.

(3) Payments. FAR clause 52.232-5, Payments under Fixed-Price Construction Contracts, is supplemented as follows:

(a) Before submitting a request for payment, the Contractor shall attend pre-invoice payment meetings each month, as scheduled, with the designated Government representative for the purpose of facilitating review and approval of payment requests. Payment meetings may be conducted in person or by telephone. The Contractor shall provide documentation to support the prospective payment request.

(b) The Contractor shall submit its invoices to the designated billing office in the Task Order. Separate payment requests shall be submitted for progress payments, payments of retainage, and partial or final payments.

(c) If the invoice does not meet the requirements of FAR Clause 52.232-27(a)(2) and the requirements specified in Subparagraphs (3)(a),(d),(e),and (f) of the Administrative Matters clause, the Task Order Contracting Officer may return the invoice to the Contractor without payment for correction. If the Task Order Contracting Officer disputes the requested payment amount, the Government may pay the portion of the requested payment that is undisputed.

(d) Invoices shall be submitted to the designated billing office specified in this Contract or in individual Task Orders.

(e) Invoices must include the Pegasys Document Number (PDN) assigned at Task Order award.

(f) The Contractor shall submit the following information or documentation with each invoice:

(i) GSA Form 184A and/or 184B - Construction Progress Report (Construction Phases Only) or AIA Form G702;

(ii) GSA Form 2419 - Certification of Progress Payments Under Fixed-Price Construction Contract;

(iii) The payment terms that apply for the particular services rendered;

(iv) Additional documentation: Certified weekly payrolls. Further additional documentation, if applicable, could vary from Task Order to Task Order.

(g) GSA will not be obligated to issue final payment for any Task Order unless the Contractor has furnished to the Task Order Contracting Officer a release of claims against the Government relating to the Task Order, and submitted all required product warranties, as built drawings, operating manuals, and other items as specified in the Contract. The Contractor may reserve from the release specific claims only if such claims are explicitly identified with stated claim amounts. All release forms must bear the original signature of the signer and must be affixed with the Contractor’s corporate seal or the seal of a Notary Public.

(4) Prompt Payment. In accordance with FAR clause 52.232-27, the period for payments is as follows:

(a) Progress Payments: 14 days

(b) Subsequent Subcontractor Payments: 7 days

(5) Payment Information. The General Services Administration (GSA) makes information on contract payments available electronically at http://www.finance.gsa.gov. The Contractor may register at the site and review its record of payments. This site provides information only on payments made by GSA, not by other agencies.

(6) Security Clearances. Contractor shall comply with the following requirements pertaining to security clearances:

(a) All personnel performing work under the Contract on the Project site must obtain an Enter on Duty (EOD) determination before they will be granted access to the site.

(b) To obtain an EOD determination, and GSA Access Card, if required, Contractor shall

submit for all such personnel a completed Contractor Information Worksheet (CIW), and fingerprints at a USAccess Credentialing Center, or on Form SF87 (if GSA Access Card is not required). Detailed information is available at http://www.gsa.gov/portal/category/107203 . USAccess Credentialing Centers can be located at http://www.fedidcard.gov/centerlist.aspx .

(c) In addition, all such personnel who will be on site 6 months or longer must apply for and receive clearance in accordance with Homeland Security Presidential Directive 12 (HSPD-12). See Section IV, Contract Clauses, GSAR 552.204-9.

(7)Safeguarding and Dissemination of Sensitive But Unclassified (SBU) Building Information. This clause applies to all recipients of SBU building information, including offerors, bidders, awardees, contractors, subcontractors, lessors, suppliers and manufacturers.

(a) Marking SBU. Contractor-generated documents that contain building information must be reviewed by GSA to identify any SBU content, before the original or any copies are disseminated to any other parties. If SBU content is identified, the Contracting Officer (CO) may direct the contractor, as specified elsewhere in this contract, to imprint or affix SBU document markings to the original documents and all copies, before any dissemination.

(b) Authorized recipients.

(i) Building information designated SBU must be protected with access strictly controlled and limited to those individuals having a legitimate business need to know such information. Those with a need to know may include Federal, State and local government entities, and non government entities engaged in the conduct of business on behalf of or with GSA. Non Government entities may include architects, engineers, consultants, contractors, subcontractors, suppliers, utilities, and others submitting an offer or bid to GSA, or performing work under a GSA contract or subcontract. Recipient contractors must be registered as “active” in the System for Award Management (SAM) database at www.sam.gov and have a legitimate business need to know such information. If a subcontractor is not registered in the SAM and has a need to possess SBU building information, the subcontractor shall provide to the contractor its DUNS number or its tax ID number and a copy of its business license. The contractor shall keep this information related to the subcontractor for the duration of the contract and subcontract.

(ii) All GSA personnel and Contractors must be provided SBU building information when needed for the performance of official Federal, State, and local government functions, such as for code compliance reviews and for the issuance of building permits. Public safety entities such as fire and utility departments may require access to SBU building information on a need to know basis. This clause must not prevent or encumber the dissemination of SBU building information to public safety entities.

c. Dissemination of SBU building information:

(i) By electronic transmission. Electronic transmission of SBU information outside of the GSA network must use session encryption (or alternatively, file encryption). Encryption must be via an approved NIST algorithm with a valid certification, such as Advanced

Encryption Standard (AES) or Triple Data Encryption Standard (3DES), in accordance with Federal Information Processing Standards Publication (FIPS PUB) 140-2, Security Requirements for Cryptographic Modules per GSA policy.

(ii) By nonelectronic form or on portable electronic data storage devices. Portable electronic data storage devices include, but are not limited to CDs, DVDs, and USB drives. Non Electronic forms of SBU building information include paper documents, among other formats.

1) By mail. Contractors must utilize only methods of shipping that provide services for monitoring receipt such as track and confirm, proof of delivery, signature confirmation, or return receipt.

2) In person. Contractors must provide SBU building information only to authorized recipients with a need to know such information. Further information on authorized recipients is found in Section 2 of this clause.

d. Record keeping. Contractors must maintain a list of all entities to which SBU is disseminated, in accordance with sections 2 and 3 of this clause. This list must include at a minimum: (1) the name of the State, Federal, or local government entity, utility, or firm to which SBU has been disseminated; (2) the name of the individual at the entity or firm who is responsible for protecting the SBU building information, with access strictly controlled and limited to those individuals having a legitimate business need to know such information; (3) contact information for the named individual; and (4) a description of the SBU building information provided. Once “as built” drawings are submitted, the contractor must collect all lists maintained in accordance with this clause, including those maintained by any subcontractors and/or suppliers, and submit them to the CO. For Federal buildings, final payment may be withheld until the lists are received.

e. Safeguarding SBU documents. SBU building information (both electronic and paper formats) must be protected, with access strictly controlled and limited to those individuals having a legitimate business need to know such information. GSA contractors and subcontractors must not take SBU building information outside of GSA or their own facilities or network, except as necessary for the performance of that contract. Access to the information must be limited to those with a legitimate business need to know.

f. Destroying SBU building information. When no longer needed, SBU building information must be destroyed so that marked information is rendered unreadable and incapable of being restored, in accordance with guidelines provided for media sanitization within GSA CIO IT Security 06-32, Media Sanitization Guide and Appendix A of NIST Special Publication 800-88, Guidelines for Media Sanitization. Alternatively, SBU building information may be returned to the CO.

g. Notice of disposal. The contractor must notify the CO that all SBU building information has been returned or destroyed by the contractor and its subcontractors or suppliers in accordance with paragraphs 4 and 6 of this clause, with the exception of the contractor's record copy. This notice must be submitted to the CO at the completion of the contract to receive final payment. For leases, this notice must be submitted to the CO at the completion of the lease term. The contractor may return the SBU documents to the CO rather than destroying them.

h. Incidents. All improper disclosures of SBU building information must be immediately reported to the Task Order Contracting Officer. If the contract provides for progress payments, the CO may withhold approval of progress payments until the contractor provides a corrective action plan explaining how the contractor will prevent future improper disclosures of SBU building information. Progress payments may also be withheld for failure to comply with any provision in this clause until the contractor provides a corrective action plan explaining how the contractor will rectify any noncompliance and comply with the clause in the future.

i. Subcontracts. The contractor and subcontractors must insert the substance of this clause in all subcontracts.

O. Non-Compliance with Contract Requirements

In the event the Contractor, after receiving written notice from the Contracting Officer of noncompliance with any requirement of this Contract, fails to initiate promptly such action as may be appropriate to comply with the specified requirement within a reasonable period of time, the Contracting Officer shall have the right to order the Contractor to stop any or all work under the Contract until the Contractor has complied or has initiated such action as may be appropriate to comply within a reasonable period of time. The Contractor will not be entitled to any extension of time or payment for any costs incurred as a result of being ordered to stop work for such cause.

P. Safeguarding Sensitive Data and Information Technology Resources

In accordance with FAR 39.105, this section is included in the contract. This section applies to all users of sensitive data and information technology (IT) resources, including awardees, contractors, subcontractors, lessors, suppliers and manufacturers. The following GSA policies must be followed. These policies can be found at http://www.gsa.gov/directives.

1. CIO P 2100.1K GSA Information Technology (IT) Security Policy

2. CIO P 2100.2B GSA Wireless Local Area Network (LAN) Security

3. CIO 2100.3C Mandatory Information Technology (IT) Security Training Requirement for Agency and Contractor Employees with Significant Security Responsibilities

4. CIO 2104.1A GSA Information Technology IT General Rules of Behavior

5. CIO 2105.1C GSA Section 508: Managing Electronic and Information Technology for Individuals with Disabilities

6. CIO 2106.2 GSA Social Media Policy

7. CIO 2107.1 Implementation of the Online Resource Reservation Software

8. CIO 2160.4A Provisioning of Information Technology (IT) Devices

9. CIO 2162.1 Digital Signatures

10. CIO P 2165.2 GSA Telecommunications Policy

11. CIO P 2180.1 GSA Rules of Behavior for Handling Personally Identifiable Information (PII)

12. CIO 2182.2 Mandatory Use of Personal Identity Verification (PIV) Credentials

13. CIO P 1878.2A Conducting Privacy Impact Assessments (PIAs) in GSA

14. CIO IL-14-03 Information Technology (IT) Integration Policy

15. CIO 2102 Information Technology (IT) Integration Policy

16. HCO 9297.1 GSA Data Release Policy

17. HCO 9297.2C GSA Information Breach Notification Policy

18. ADM P 9732.1D Suitability and Personnel Security

The contractor and subcontractors must insert the substance of this section in all subcontracts.

SECTION J: LIST OF ATTACHMENTS (LIST OF DOCUMENTS, EXHIBITS, AND OTHER ATTACHMENTS)

EXHIBITS: CUSTODIAL SERVICES

- **Exhibit C1: Building Information Sheets (All locations)**
- **Exhibit C2: RESERVED - See M1**
- **Exhibit C3: RESERVED**
- **Exhibit C4: Building Exterior and Hardscape Plan**
- **Exhibit C5: Erosion and Sediment Control**
- **Exhibit C6: Recycle, Solid Water, Trash Report**
- **Exhibit C7: PBS Waste Audits**
- **Exhibit C8: GSA Form 3638 Pest Control Work and Inspection Report**

EXHIBITS - OPERATIONS & MAINTENANCE SERVICES

- **Exhibit M1 & C2: Operations & Maintenance/Custodial Quality Assurance Surveillance Plan (QASP)**
- **Exhibit M2: Green Purchasing Report**
- **Exhibit M3: Environmentally Sustainable Products and GSA Attribute Preferences**
- **Exhibit M4: Building Operating Plan Template**
- **Exhibit M5: Smart Buildings, GSA Smart and Sustainable Buildings**
- **Exhibit M6: Water Treatment**
- **Exhibit M7: Qualifications of Electrical Testing Technicians (ETT)**
- **Exhibit M8: Miscellaneous Best Practices Shave Energy**
- **Exhibit M9: Preventative Maintenance (PM) 2018 GSA O&M Guide**
- **Exhibit M10: Photovoltaic Maintenance Checklist**

BUILDING LIBRARY

- **BL1: Extinguisher Report**
- **BL2: Inventory to Include Fire Alarm Devices**
- **BL2: Convent Inventory to Include**
- **Fire Alarm Devices**
- **BL3: Location General Information: Reference Exhibit C1BL4: RESERVED**
- **BL5: RESERVED**
- **BL6: Work Order History**

ATTACHMENTS

- **Attachment 1: Collective Bargaining Agreement (CBA)**
- **Attachment 2: CBA-Wage Determination**
- **Attachment 3: Service Contract Act (SCA) Wage Determination(s)**

FIGURES

- **Figure B-1: Contractor Staffing Declaration**
- **Figure B-2: SCA/DOL Combination Wage Adjustment Spreadsheet**

- **Figure B-3: Pricing of Services**
- **Figure L-1: Management Plan Baseline / Worksheet**
- **Figure L-2: Past Performance Questionnaire**

SECTION K: REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF BIDDERS/OFFERORS

The following provisions or clauses are hereby incorporated by reference:

Provision or Clause	Date
FAR 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2007
FAR 52.204-7 System for Award Management.	Oct 2018
FAR 52.204-16 Commercial and Government Entity Code Reporting.	Jul 2016
FAR 52.204-17 Ownership or Control of Offeror.	Jul 2016
FAR 52.209-2-Prohibition on Contracting with Inverted Domestic Corporations—Representation.	Nov 2015
FAR 52.222-38 Compliance with Veterans' Employment Reporting Requirements.	Feb 2016
FAR 52.223-1 Biobased Product Certification.	May 2012
FAR 52.223-4 Recovered Material Certification.	May 2008
FAR 52.225-25 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran--Representation and Certifications.	Aug 2018

The following provisions or clauses are hereby incorporated by full text.

FAR 52.204-8 Annual Representations and Certifications. (Mar 2020)

(a)

(1) The North American Industry classification System (NAICS) code for this acquisition is 561210.

(2) The small business size standard is $41.5 Million.

(3) The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture, is 500 employees.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

[_] (i) Paragraph (d) applies.

[_] (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements—Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, CertificationRegarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract will be performed in the United States or its outlying areas.

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C)The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract will be performed in the United States or its outlying areas.

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial items.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of USDA–designated items; or include the clause at 52.223-2, Affirmative Procurement of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA–designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals-Representation. This provision applies to solicitations that include the clause at 52.204-7.)

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates I, II, and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $25,000, the basic provision applies.

(B) If the acquisition value is $25,000 or more but is less than $50,000, the provision with its Alternate I applies.

(C) If the acquisition value is $50,000 or more but is less than $83,099, the provision with its Alternate II applies.

(D) If the acquisition value is $83,099 or more but is less than $100,000, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[*Contracting Officer check as appropriate.*]

_X_ (i) 52.204-17, Ownership or Control of Offeror.
_X_ (ii) 52.204-20, Predecessor of Offeror.
__ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.
__ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.
__ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.
_X_ (vi) 52.223-9, with its Alternate I, Estimate of Percentage of Recovered Material Content for EPA–Designated Products (Alternate I only).
__ (vii) 52.227-6, Royalty Information.
__ (A)Basic.
__ (B)Alternate I.
__ (viii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in the SAM website accessed through https://www.sam.gov. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code

referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of Provision)

52.209-5 Certification Regarding Responsibility Matters. (OCT 2015)

(a)(1) The Offeror certifies, to the best of its knowledge and belief, that --

(i) The Offeror and/or any of its Principals --

(A) Are [_] are not [_] presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have [_] have not [_], within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks “have”, the offeror shall also see 52.209-7, if included in this solicitation); and

(C) Are [_] are not [_] presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have [_], have not [_], within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds $3,500 for which the liability remains unsatisfied.

(1) Federal taxes are considered delinquent if both of the following criteria apply:

(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(2) Examples.

(i) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer se al tax liability until the taxpayer has
exercised all judicial appeal rights.

(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(ii) The Offeror has [[_] has not [_], within a three-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) “Principal,” for the purposes of this certification, means an officer; director; owner; partner; or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

This Certification Concerns a Matter Within the Jurisdiction of an Agency of the United States and the Making of a False, Fictitious, or Fraudulent Certification May Render the Maker Subject to Prosecution Under Section 1001, Title 18, United States Code.

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror non responsible.

(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making an award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of Provision)

FAR 52.209-7 Information Regarding Responsibility Matters. (Oct 2018)

(a) *Definitions*. As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than $10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [_] has [_] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee

Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management database via https://www.acquisition.gov (see 52.204-7).

(End of provision)

FAR 52.219-1 Small Business Program Representations. (Mar 2020)

(a) *Definitions*. As used in this provision-

"Economically disadvantaged women-owned small business (EDWOSB) concern" means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business concern-

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran.

(2) “Service-disabled veteran” means a veteran, as defined in 38 U.S.C.101(2), with a disability that is service-connected, as defined in 38 U.S.C.101(16).

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in the field of operation in which it is bidding on Government contracts, and qualified as a small business under the criteria in 13 CFR Part 121 and the size standard in paragraph (b) of this provision.

Small disadvantaged business concern, consistent with 13 CFR 124.1002, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding $750,000 after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

“Veteran-owned small business concern” means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

"Women-owned small business concern" means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

"Women-owned small business (WOSB) concern eligible under the WOSB Program" (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States.

(b) (1) The North American Industry Classification System (NAICS) code for this acquisition is– _____ [insert NAICS code].

(2) The small business size standard is _____ [insert size standard].

(3)The small business size standard for a concern which submits an offer in its own name, other than on a construction or service contract, but which proposes to furnish a product which it did not itself manufacture (i.e., nonmanufacturer), is 500 employees.

(c) Representations. (1) The offeror represents as part of its offer that it □ is, □ is not a small business concern.

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it □ is, □ is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it □ is, □ is not a women-owned small business concern.

(4) Women-owned small business (WOSB) concern eligible under the WOSB Program. [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(3) of this provision.] The offeror represents as part of its offer that-

(i) It □ is, □ is not a WOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It □ is, □ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(4)(i) of this provision is accurate for each WOSB concern eligible under the WOSB Program participating in the joint venture. [The offeror shall enter the name or names of the WOSB concern eligible under the WOSB Program and other small businesses that are participating in the joint venture: _____.] Each WOSB concern eligible under the WOSB Program participating in the joint venture shall submit a separate signed copy of the WOSB representation.

(5) Economically disadvantaged women-owned small business (EDWOSB) concern. [Complete only if the offeror represented itself as a women-owned small business concern eligible under the WOSB Program in (c)(4) of this provision.] The offeror represents as part of its offer that-

(i) It □ is, □ is not an EDWOSB concern eligible under the WOSB Program, has provided all the required documents to the WOSB Repository, and no change in circumstances or adverse decisions have been issued that affects its eligibility; and

(ii) It □ is, □ is not a joint venture that complies with the requirements of 13 CFR part 127, and the representation in paragraph (c)(5)(i) of this provision is accurate for each EDWOSB concern participating in the joint venture. [The offeror shall enter the name or names of the EDWOSB concern and other small businesses that are participating in the joint venture: _____.] Each EDWOSB concern participating in the joint venture shall submit a separate signed copy of the EDWOSB representation.

(6) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it □ is, □ is not a veteran-owned small business concern.

(7) [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it □ is, □ is not a service-disabled veteran-owned small business concern.

(8) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It □ is, □ is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR Part 126; and

(ii) It □ is, □ is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126, and the representation in paragraph (c)(8)(i) of this provision is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [The offeror shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.

(d)Under 15 U.S.C.645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-

(1)Be punished by imposition of fine, imprisonment, or both;

(2)Be subject to administrative remedies, including suspension and debarment; and

(3)Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.222-22 Previous Contracts and Compliance Reports. (FEB 1999)
The offeror represents that --

(a) It □ has, □ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation;

(b) It □ has, □ has not filed all required compliance reports; and

(c) Representations indicating submission of required compliance reports, signed by proposed subcontractors, will be obtained before subcontract awards.

(End of Provision)

52.222-25 Affirmative Action Compliance. (APR 1984)
The offeror represents that --

(a) It □ has developed and has on file, □ has not developed and does not have on file, at each establishment, affirmative action programs required by the rules and regulations of the Secretary of Labor (41 CFR 60-1 and 60- 2); or

(b) It □ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(End of Provision)

SECTION L: INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 FAR 52.216-1 Type of Contract (Apr 1984)
The Government contemplates award of a Firm-Fixed Price for “Standard Services” with Indefinite Delivery Indefinite Quantity provisions resulting for “Above Standard Services” for this solicitation.

L.2 Service Classification and Size Standard
This procurement is set aside for Small Business. The services covered by this solicitation are classified as Facilities Support Services. The North American Industry Classification System (NAICS) Code is 561210. For purposes of this procurement, any concern will be classified as small business if its average annual receipts for the preceding three fiscal years do not exceed $41.5 million

L.3 Discrepancy in the Specifications
In any case of discrepancy in the specifications, the matter shall be immediately submitted to the Contracting Officer, without whose decision said discrepancy shall not be adjusted by the Contractor, save only at his own risk and expense. The decision of the Contracting Officer as to the proper interpretation of the specifications shall be final and conclusive on the parties hereto subject only to appeal as provided in the “Disputes” clause of this contract. When there is any conflict between the various printed forms and other written terms, conditions, supplements, etc., the latter will govern.

L.4 Other Contractors
The Government may undertake or award other contracts for the same or for additional work, and the Contractor shall fully coordinate with such other Contractors and Government employees and carefully fit his own work to such additional work as may be directed by the Contracting Officer. The Contractor shall not commit or permit any act that will interfere with the performance of work by another Contractor, or by Government employees.

L.5 Government Forms
The various Government forms mentioned in this solicitation may be obtained from the Contracting Officer’s Representative.

L.6 FAR 52.253-1 Computer Generated Forms (JAN 1991)
(a) Any data required to be submitted on a Standard or Optional Form prescribed by the Federal Acquisition Regulation (FAR) may be submitted on a computer generated version of the form, *provided* there is no change to the name, content, or sequence of the data elements on the form, and *provided* the form carries the Standard or Optional Form number and edition date.

(b) Unless prohibited by agency regulations, any data required to be submitted on an agency unique form prescribed by an agency supplement to the FAR may be submitted on a computer generated version of the form provided there is no change to the name, content, or sequence of the data elements on the form and provided the form carries the agency form number and edition date.

(c) If the Contractor submits a computer generated version of a form that is different than the required form, then the rights and obligations of the parties will be determined based on the content of the required form.

L.7 Pre-Proposal Meeting
Pre-Proposal Meeting: Monday, December 14, 2020, 9:00 a.m (CST).
The Pre-Proposal Meeting will be held electronically at 9:00 a.m. via Google Meeting Space. It is estimated that the Pre-Proposal Meeting will last 2 - 3 hours. **Each attendee MUST send an email to the Contracting Specialist (CS) Carmen Weathers at carmen.weathers@gsa.gov no later than December 9, 2020 3:00 pm CST and provide email address(es) for all attendees in order to register for the meeting .** The CS will send you the meeting link and invitation prior to the meeting.

For electronic meetings: The meeting will be recorded and available on an as needed basis for those who have technical difficulties during the meeting. It is highly encouraged that all participants log into the meeting early enough to detect and resolve any technical issues at your office/location.

The purpose of the meeting is to provide a briefing of the scope of work, overview contract requirements, and to allow prospective offerors the opportunity to ascertain the complexities and the location of the services to be performed, along with the general and local conditions which could materially affect conduct of operations and the costs involved. The Government considers attendance at this conference vital to the preparation of a competitive offer. It will enable the Contractor to become acquainted with the areas to be serviced, and to be aware of the specific problem areas which may require special attention or services. Failure to attend this meeting may not be used as an excuse for omissions or miscalculations in offers. It is emphasized that it is more advantageous for each offeror to have qualified representation at the Pre-Proposal conference and Site Visit(s).

While the meeting will provide an opportunity to discuss and clarify the solicitation provisions, nothing said or represented in the conference shall be deemed to modify the solicitation requirements unless followed by a written amendment.

L.8 Site Visit/Walk-Through Tours

Site Visit: Monday, December 14 through Wednesday, December 16, 2020
Site visits will be conducted at the following locations and times:

Monday, December 14:

George P. Kazen Building/U S Courthouse TX0311ZZ

Meet at 1501 Matamoros St, Suite 100, Laredo 78041 at **1:00 pm CST Monday, December 14, 2020** for a walk through.

The site visit for the **George P. Kazen Federal Building and Courthouse**, **1310 Victoria St., Laredo, TX 78041 (GSA Bldg. No. TX0311ZZ) will be held at 1:00 p.m**.
1300 Victoria Street, Laredo, TX78041
Site visit attendees shall meet at the entrance of Garza Building at 1501 Matamoros St, Suite 100, Laredo 78041 at 12:45 pm., where the site visit will commence.It is anticipated that the site visit will conclude at approximately **3:30 p.m CST.**

Tuesday, December 15:

- **Juarez-Lincoln Port of Entry/ Convent Port of Entry**
  Meet at Termination I-35, Laredo, TX 78041 (Instructions: Traveling south on I-35 turn left on Farragut St., turn right on San Eduardo St, turn right San Francisco Blvd. Guard check-in) at **8:00 am CST** December 15, 2020 for a walk through.

- **Columbia Port of Entry**
  Meet at Termination of SH 255 FM1472, Laredo, TX 78045 at **1:00 pm CST** December 15, 2020 for a walk through.

Wednesday, December 16:

- **World Trade Port of Entry**
  Meet at Termination I-69 W, US59, Loop 20, Laredo, TX 78045 at **8:00 am CST** December 16, 2020 for a walk through

- **Border Patrol Sector Headquarters**
  Meet at 207 W Delmar Boulevard, Laredo, TX 78041 at **1:00 pm CST** December 16, 2020 for a walk through.

(In the event that there is a large number of RSVPs, the exact time may vary, as it may be necessary to conduct site visits with multiple groups to ensure social distancing can be achieved).

CONTRACTORS MUST RSVP for each site visit no later than December 9, 2020 3:00 pm CST. Due to COVID-19 procedures, the number of attendees allowed on the walk through may be limited. It is requested that **only one representative** from each offeror attend each site visit. **Please email the COR, Gabriel Vargas at gabriel.vargas@gsa.gov to reserve a spot**. Please allow enough time to pass the security checkpoint in the building lobby. The meeting will begin promptly as scheduled. In addition to social distancing, all attendees must wear face masks and take any and all necessary precautions for your own protection and those around you.

The site visit/walk-through portion of the buildings will be provided by GSA, beginning at the times specified above.An opportunity will be provided to view all locations.

Prospective Contractors are encouraged to make an on-site, in-depth review of the facility(ies), equipment, job requirements, etc.
Offerors MAY NOT ASK ANY QUESTIONS during the Site Visit(s). Reference L.9 for submission of questions.

Please be aware that because of the potential for disruption to governmental activities, particularly in the U.S. Court, and other tenant areas, additional access to non-public areas of the building(s)/facility(s) for inspection purposes may not be possible.

L.9 Questions
Offerors are strongly encouraged to submit questions relative to the solicitation document in advance of the pre proposal meeting so the Government representatives may prepare responses prior to the meeting**.**

All questions must be submitted in writing to the Contract Specialist, Carmen Weathers at carmen.weathers@gsa.gov not later **close of business on December 23, 2020 3:00 pm CST**. Questions received after this date may be answered at the discretion of the Contracting Officer.

Questions and requests for clarifications must accompany and reference the Section Number, Page Number and Paragraph number.

L.10 Instructions for Submitting Proposals

L.10.1 General
The instructions below provide for guidance for the preparation and submission of proposals. Their purpose is to establish requirements for the format and content of proposals so that proposals are complete, contain all essential information, and can be evaluated equitably. Offerors are cautioned that the use of any format other than the one described in this section could result in the evaluation panel's inability to give an "acceptable" rating. The proposal submission shall be clear, concise, and shall include sufficient detail to evaluate and substantiate the validity of stated claims. Offerors shall assume that the Government has no prior knowledge of the company's capability and experience.

Non-compliance may result in the offeror being ineligible for award. All proposal information is subject to verification by the Government. All information within the page limitations of the solicitation is subject to evaluation. Information that is contained in pages that exceed page limitations will not be evaluated. The Government will evaluate proposals in accordance with the evaluation criteria set forth in Section M of this solicitation.

Offerors are prohibited from modifying, in any way, shape, or form, any documents, printed or electronic, associated with this solicitation, including, but not limited to, the Statement of Work and any amendment(s) thereto.

The electronic solicitation documents, as posted on SAM.Gov (https://sam.gov/SAM) shall be the "official" documents for this solicitation. Any inconsistency between the official documents posted on SAM.Gov and the offeror's copy of these documents shall be resolved by giving precedence to the official documents posted on SAM.Gov. Additionally, any other documents provided to offerors by the Government via first class mail, express mail, electronic mail, or any other delivery method, shall be considered official documents, and shall not be altered.

L.10.2 Submittal Instructions
Electronic Proposals - Offerors are advised that **only electronic proposals** will be accepted and shall be sent and received to the GSA, Contract Specialist, Carmen Weathers at carmen.weathers@gsa.gov, prior to the time and date set for receipt of proposals. **Hand carried or in person submission will not be accepted.**

The email subject line shall be titled PROPOSAL FOR Solicitation 47PH0220R0014. The email documents must include original completed versions of spreadsheets provided in Section J in the format provided.

For Miscellaneous Documents, the offeror may electronically sign (or sign and scan) and submit the Standard Form (SF) 33 with their proposal.

Proposals received after the time and date specified shall be considered late proposals and are subject to the clause entitled Instruction to Offerors - Competitive Acquisition FAR 52.215-1 (3).

Electronic Submission of Proposals: Offers must be **received by the email address of the GSA Point of Contact** (POC) listed herein on or before the date and time established for receipt of offers. The date and time of receipt will be established according to the Government computer system's documentation showing the exact official time of receipt by the GSA POC listed herein and **not** by the time the electronic proposal was sent by the Offeror or received by the GSA server. It is the Offeror's responsibility to ensure proposals are complete and submitted early enough to be received by the GSA POC before the deadline, and to confirm receipt before the deadline. Proposals or portions of proposals which are received by the GSA POC later than the time noted within will be rejected and will not be considered.

NOTE: The maximum file size is 25 MB. GSA has occasionally experienced delays in delivery of emails from the GSA server to an email account. Therefore contractors/offerors need to plan accordingly.

WARNING: Consistent with GAO case law on the issue of "late-is-late rule" related to electronically submitted proposals, GSA will strictly comply with and enforce FAR 52.215-1(c)(3)(ii)(A). Pursuant to GAO's application of FAR 52.215-1(c)(3)(ii)(A), an electronically submitted proposal that is received late will not be considered unless (1) it is received before award is made, (2) the Contracting Officer determines that accepting

the late offer would not unduly delay the acquisition **and** (3) it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals. FAR 52.215-1 (c)(3)(ii)(A)(1).

L.10.3 Proposal Preparation Costs
This request does not commit the Government to pay any cost incurred in the submission of any proposal or in making necessary studies for the preparation thereof. Nor does it commit the Government to procure or contract for said services. The Contracting Officer is the only individual who can commit the Government to the expenditure of public funds in connection with this proposed procurement.

L.11 Submission and Content of Proposals
(a) Offerors shall submit the Technical Proposal and the Price Proposal, prepared in such format and detail as to enable the Government to make a thorough evaluation thereof and to arrive at a sound determination as to whether or not the offer can meet the Government's requirements as set forth in this solicitation. The Technical Proposal and Price Proposal shall be submitted electronically in one email and must clearly state in the subject line **Proposal Submission for Solicitation Number (47PH0220R0014)**.

(b) Elaborate graphics, work samples, brochures, appendixes and illustrations are neither necessary nor desired. Legibility, completeness and adherence to format are essential.

(c) Failure to submit any of the following information, including any documents within each factor, may deem the offeror unacceptable for award.

The proposal submission will consist of two parts, the Technical Proposal and the Price Proposal as described in this section.

L.12 Technical Proposal Instructions
Each Technical Proposal should be sufficiently complete and organized to ensure that evaluation can be made on the basis of its content. It is important that the technical proposal be organized as specified below.

NOTE: Failure to comply with any of the requirements identified in the Solicitation may render the contractors quote unacceptable. If a quote is found unacceptable, the Government is not required to continue its evaluation of that offer.

There are three factors that will be evaluated as part of the Technical Evaluation, they are listed below in descending order of importance:

1. Management Plan
2. Past Performance
3. Experience

The details of each are as follows:

1. Management Plan

There is a 50 page limitation for the Management Plan Narrative.

The Government will only evaluate the contents of the first 50 pages if the offeror's Management Plans exceeds the 50 page limitation.This page limitation does not include the Quality Control Plan nor the Management Plan Worksheet which must be submitted as a separate document/file

The Offeror's Management Plan narrative must demonstrate that all the services required by this solicitation will be satisfactorily performed. The Offeror shall explain in its Management Plan how it will continuously identify, mitigate, manage, and control risks. The Offeror must convey its ability to insure successful performance.

(a) Management Approach

A complete management plan must be submitted with the initial offer. The Offeror shall demonstrate a clear understanding of the management and performance requirements of this solicitation by providing a concise description of offeror's proposal for the following topics:

(1) Explain the offeror's approach to recruit, retain, and train qualified personnel to include licensing and recertification requirements.
(2) Demonstrate how the offeror is going to fill unexpected manpower shortages until position is filled, including maintaining full staffing levels on-site at all times during employee vacations and other absences.
(3) Explain the offeror's selection process and ongoing management of subcontractors. Detail the methodology for selecting, tracking, and managing subcontractors and other teaming arrangements.
(4) Propose all Key Personnel that will be in a supervisory position to include job classifications and responsibilities. Include resumes to show the minimally acceptable qualifications. (Reference C.1.2.1)
(5) Contractor Emergency Plan including communication procedures, employee information, and employee duties in the event of an emergency.
(6) Discuss the Communication Plan and the offeror's communication approach between Offeror's Personnel, CO, COR, Building Manager to include the ability to respond to emergencies 24 hours a day/7 days a week.
(7) Explain the logistic approach to parts and materials and inventory management to include emergency requisitions.
(8) Identify all work and indicate in the table below if it will be subcontracted or conducted in-house for each facility covered by the Statement of Work. The table below should be included in the proposal and include any additional areas that will be subcontracted or conducted in-house.

Task	Subcontracted	In-house

BAS Support		
Pressure Vessel Testing		
Exterior - Window Washing Services		
Grounds Maintenance/Aeration		
Annual Chiller PM to include Eddy Current Testing		
Fire System Monitoring		
Fire Systems- System PM (Including Backflow, Fire Pump, and Extinguishers)		
Electrical Testing		
Pest Control		
Water Treatment		
Gate Repairs		
Waste Management/Trash		
Recycling		
Janitorial Supplies & Services		
Arborist - Tree Survey		
Service Calls		

(b) Quality Control Plan

There is a 50 page limitation for the Quality Control Plan (QCP) Narrative. The Government will only evaluate the contents of the first 50 pages if the offeror's QCP exceeds the 50 page limitation. A complete Quality Control Plan (QCP) must be submitted with the initial offer. Offerors must certify they have in place a QCP that will ensure high quality services and deliverables and to ensure that all requirements of the contract are met. The QCP serves as a written system for identifying and correcting deficiencies and specifies a system for determining whether or the required services are being met. The QCP must be specific to the contract specifications and location(s) listed. The following is for use in determining acceptability of the contractor's proposed Quality Control Plan. (See Paragraph C.1.3)

(1) etail the Contractor's methods, frequencies, documentation, and remedies for ensuring that work performed is of the highest quality.
(2) Describe procedures for correcting problems and addressing quality assurance findings **by the Government**.
(3) How Contractor shall monitor deficiencies of work output in relation to the performance standards, methods of informing employees of deficiencies in their area(s) of responsibility, and a process to ensure that the deficiencies are corrected and do not reoccur.
(4) Contractor's overall approach, service calls and preventive maintenance/inspection schedules, and roles and responsibilities as it relates to quality control.
    a. How the Contractor will control quality and quantity of supplies and services.
    b. Define the roles and responsibilities of the Contractor's operating personnel and explain how and identify who management will allocate Quality Control personnel.
    c. How project management, inspections, plan implementation, process improvement changes and correction of deficiencies of this contract will be accomplished to include how a Contractor shall measure and document performance against the scope of work. (ie Ref. C.5.12 Work Orders, C.9.7 'Custodial Service Calls)
    d. How the Contractor will utilize the Government's approved tenant survey results and/or customer complaints to improve the delivery of custodial and related services.
(5) An inspection plan or checklist tailored to the specific building(s) being operated, cleaned and serviced under this contract. The inspection plan or checklist shall detail how services at the work site shall be inspected to ensure that the outcome of the work meets all the quality standards set forth in the contract and shall include, but is not limited to: Date of inspection performed; Location of inspection; Description of findings; Description of action(s) taken (if necessary); Signature and date of completion.
(6) If the offeror's Quality Control Program is certified by a 3rd party, for

example ISO 9001, must provide details and dates of the certification.

(c) Management Plan Worksheet

The Management Plan Worksheet shall be used to provide the proposed staffing, labor mix, and work schedule to accomplish the requirements of the contract. The Microsoft Excel Attachment, Figure L-1 titled *Management Plan Worksheet* shall be used for the proposal submission. The top portion of this form indicates the government's baseline manpower projection. The projection is not intended to mandate the **staffing or labor mix** utilized to fulfill this requirement. The offeror may elect to propose any alternative that will fulfill the requirement of this solicitation. If the offeror elects to deviate from the government's baseline manpower projection, **the offeror must submit a Worksheet Narrative explaining how their proposed manpower approach will meet the requirements of the solicitation**. Failure to provide a Worksheet Narrative will result in a deficiency to the technical rating of your proposal.

The staffing/labor mix proposed by the Offeror in the Management Plan Worksheet **are the minimum requirements of the contract and must be adhered to for the contract period of performance.**

The offeror may request an annual review of the labor mix **60** days prior to issuance of the first Option Period. Any requests for changes to the Management Plan Worksheet may be submitted and considered at that time. Any approved adjustment to the labor mix will not result in an increase in price. However, any request to reduce manpower may result in a lower price to be negotiated at time of request. Any deviation from the accepted/approved Management Plan Worksheet may result in deductions.

The offeror may elect to hire incumbent staff positions. However, the contractor accepts the performance risk of any employee and the government has the right to accept and/or reject any proposed personnel based on past performance under any contract that the government is aware of or becomes aware of, and/or lack of qualifications.

Management Plan work divisions for Joint Ventures, Partnerships and other teaming arrangements. Offerors that are part of a Joint Venture, Partnership or other teaming arrangement shall submit a clear explanation on the division of effort among the members. The explanation should identify all key personnel and management and who that person is employed by as well as approximate percentage of work performed by each member. Any GSA agreed to deviation from the original proposed plan will be formalized in a contract modification to the contract.

Management Plan Worksheet Instructions

The Management Plan Worksheet attached to this solicitation **must** be utilized for this purpose. See the Microsoft Excel Attachment, Section J.8, titled,

"Management Plan Worksheet" FIGURE L-1. No other Management Plan Worksheet will be considered.

The Management Plan Worksheet must be filled out according to the following instructions.

(a) The shaded boxes are the only input areas allowed by the Offeror. After inputting the numerical data, the Excel spreadsheet will automatically calculate in the grey boxes. The grey boxes are locked to protect the required calculations.

(b) The Management Plan Worksheet contains three separate sections to classify personnel.

1) Management section is used to identify Corporate Employees and Supervisory Employees involved with this contract. GSA will not include the hours of Management employees as Productive Employees. For positions classified as Supervisory, the Offeror, must include "Supervisory" next to the position title.

2) Collective Bargaining Agreement (CBA) Employees section shall be used to identify productive employees that are covered by a CBA. The labor DISCIPLINE must match the discipline as stated in the CBA. Offerors shall list CBA next to the labor discipline as applicable.

3) Service Contract Act (SCA) Employees section shall be used to identify productive employees that are covered under the SCA and are NOT covered under the CBA. The labor DISCIPLINE must match the discipline as stated in the Department of Labor Wage Determination. Offerors shall list DOL next to the labor discipline as applicable.

(c) Work schedules must be broken out according to LOCATION – See Section C.1. Scope of Work

(d) WORK SCHEDULE must be provided for each discipline. See Core Coverage Hours under Section C.2.1.

(e) 2080 Hours is considered 1 Full Time Equivalent (FTE). This is the maximum number of work hours per year. Provide the lines of authority and responsibility to act and to commit for timely problem identification and quick mitigation.

Factor 2: Past Performance

The offeror must submit past performance information on a minimum of **3 different projects executed within the last 5 years of the closing date of this solicitation** that cumulatively demonstrate that the offeror has successfully performed contracts for similar services. The Offeror should outline their overall past performance by providing relevant information regarding the Offeror's actions under the previously awarded contract. This includes the Offeror's overall quality of performance, record of conforming to contract requirements and to standards of good workmanship; the offeror's adherence to contract schedules, including the administrative aspects of performance; the responsiveness of management; the offeror's history of reasonable and cooperative behavior and commitment to customer satisfaction, including the offer's business-like concern for the interest of the customer; and the offeror's overall performance on their contracts.

Past performance will be considered relevant if it meets all of the following criteria:

(1) The contract was for Mechanical Operations and Full Maintenance services (custodial and/or grounds maintenance) in a commercial or government owned facility.
(2) The contract is/was in place for at least two consecutive years.
(3) For previous contracts, the contract was completed within five years from the closing date of this solicitation.

As a minimum, Past Performance information must be submitted on the projects that were submitted for evaluation under Experience. The Past Performance will be evaluated using the Past Performance Questionnaire using the directions below. The offeror may submit Past Performance information on additional projects for a maximum of 5 Past Performance projects.

In addition to those references provided directly by the offeror, the Contracting Officer may identify and analyze the past performance of the offeror on any other relevant contract they currently have or had of which the Contracting Officer has knowledge or obtains knowledge, including but not limited to projects listed in the Past Performance Information Retrieval System (PPIRS), Contractor Performance Assessment Reporting System (CPARS) or any other available Government database. Because of the wide variety of past performance history of individual offerors, the Government is not required to ensure that an equal number of references be obtained for each offeror (other than the minimum requirement of 3 as stated in this section).

For offers from Joint Venture, Partnerships, and other teaming arrangements, projects shall be submitted from all firms listed in offerors submittal for **L.14 Joint Ventures, Partnerships and other teaming arrangements.** A minimum of 1 of the maximum 5 Past Performance projects shall be submitted from each member of the joint venture. An offeror shall also submit a Past Performance record for a Joint Venture, Partnership or other teaming arrangements in which they were a party; however, they must clearly specify their role and contribution to the joint venture.

In accordance with FAR 15.305(a)(2)(iii), the evaluation will take into account Past Performance information regarding predecessor companies, key personnel who have relevant experience, or subcontractors that will perform major or critical aspects of the requirement when such information is relevant as long as it is properly identified.

For any contract that was terminated, or where there were severe performance problems, the offeror bears the burden to provide all relevant information regarding the facts and circumstances surrounding the default termination or performance problems. Absent adequate explanations regarding such

termination(s), the Government shall presume that the termination(s) resulted from the contractor's failure to meet its contractual obligations. For performance issues, the offeror shall provide information regarding the steps taken by the offeror to correct the problem(s). This information should be listed as an attachment to the contract information sheet.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror will not be evaluated favorably or unfavorably on past performance.

Past Performance Questionnaires

The offeror must submit a Past Performance Questionnaire on the 3 projects used for the Experience factor. The offeror may submit an additional 3 Past Performance Questionnaires they deem similar to the size, scope, and complexity of this solicitation. The "Past Performance Questionnaire" attached to this solicitation **must** be utilized for this purpose. See the Attachment titled, "Past Performance Questionnaire" FIGURE L-2. If the projects being submitted have been evaluated in CPARS, the offeror will complete the CONTRACT IDENTIFICATION section of the questionnaire and submit with their proposal, no further action is required.

Past Performance Questionnaires must be received by the Contract Specialist by the due date for receipt of proposals.

The Offeror shall **e-mail** the Past Performance Questionnaires to the Past Performance references and instruct the references to **e-mail** their responses directly to the GSA Contract Specialist, Carmen Weathers at carmen.weathers@gsa.gov. The offer must submit a copy of the Past Performance questionnaire with the Contract Identification and Respondent Identification completed.

An optional e-mail instruction is provided below to assist in requesting this information from the references:

We are preparing a Proposal for Full Maintenance Services in Laredo, TX to include Land Ports of Entry, and the Laredo Federal Building/Courthouse. The solicitation requires submission of Past Performance Questionnaires. See attached Past Performance Questionnaire.

The following information is requested based on your prior experiences with the individual/firm. Please complete the questionnaire and email directly to the CO to maintain the confidentiality of your responses. Your responses will be reviewed solely by a selection committee composed of associates of the General Services Administration.

*In accordance with the solicitation instructions, the following Past Performance Questionnaire must be filled out **and e-mailed to the** Contract Specialist, Carmen Weathers at carmen.weathers@gsa.gov.*

If you have questions you may contact the following individual by telephone or e-mail at the following location.

General Services Administration (GSA)
Public Building Service
Attn: Carmen Weathers
E-mail: carmen.weathers@gsa.gov
Ph: 817-850-8142

Please ensure the Past Performance Questionnaire is received by the Contract Specialist on or before January 4, 2021. The e-mail subject line should be marked "Past Performance Questionnaire – Solicitation 47PH0220R0014".

Factor 3: Experience

The Offeror must include sufficient information to identify and describe the experience and qualifications of the Offeror as it relates to the requirements of this solicitation. The offeror must submit a minimum of **3 separate projects executed within the last 5 years of the closing date of this solicitation** that cumulatively demonstrate detail experience that is similar to scope and magnitude of this requirement. The offeror must demonstrate experience providing contract services for the management, supervision, labor, materials, equipment and supplies in the services described in Section C that are similar in nature to the size, scope, and complexity of the services required by this solicitation. To be considered similar, the projects provided should cumulatively (of the 3 projects) demonstrate:

- Performing required services as described in this solicitation for building(s) with approximately 125,000 square feet or greater
- Perform required services for multi-storied/multi-tenant facilities
- Ability to perform schedule and unscheduled maintenance and repair of equipment and systems
- Ability to operate and maintain Electrical Systems & Equipment
- Ability to operate and maintain mechanical, plumbing, BAS, HVAC (Boilers, Chillers, AHU's)
- Ability to operate and maintain fire protection and life safety systems and equipment
- Experience with building automation control systems such as Schneider, Niagara Tridium JACE (Java Application Control Engine), Public Address, and Computerized Lighting Systems
- Ability to operate and maintain architectural and structural systems, fixtures and equipment
- Ability to conduct Service Request Desk Operation to include NCMMS

- Maintenance of landscape irrigation systems
- Ability to operate and maintain egress and access systems to include: Locks, keys, keycard system, vehicle barrier system, static and dynamic bollard systems, dock levelers and bumpers, roll-up and sliding garage doors.
- Experience with Storm Drainage System
- Ability to operate and maintain sanitary sewage equipment and systems
- Custodial and Grounds Maintenance
- Ability to maintain or clean facilities designated as Historic by the Historic Building Society and/or contain historic components.

  For each Project, the Offeror must provide the following information:
  - Contractor's Name
  - Contract Number
  - Dates of Contract Performance
  - Contractor's DUNS
  - Total Contract Value (including options)
  - Contract Type (FFP, Incentive, etc.)
  - For Government Contracts: Indicate if a Contract Performance and Assessment Report was accomplished.
  - Contractor role: [i.e., Prime, Subcontractor, or Joint Venture]
  - Address, City, and State of performance
  - Building description and Type of Services: [Identify each building name, the square footage of each building, and what types of services were provided in each building]
  - Total Square Footage
  - Type of Space Serviced: [i.e., Commercial Office Building, Federal Courthouse, Federal Parking Garage, etc.]
  - Contract Requirements: Describe all services provided under the contract and any special/unique contract requirements.
  - Describe any problems encountered and how they were resolved, and describe the autonomy and authority of the Project Manager
  - Briefly describe how this project met each of the relevancy criteria listed above.

  For offers from Joint Venture, Partnerships, and other teaming arrangements, projects shall be submitted from any firm listed in offerors submittal for **L.14 Joint Ventures, Partnerships and other teaming arrangements.** An offeror shall also submit a project for any ventures in which they were a member of a teaming arrangement, however, they must clearly specify their role and contribution to the project.

Technical Proposal Format
Offerors shall submit their Technical Proposal using the following format:

The format of MUST adhere to the same order, numbering, and format as Paragraph L.12 above and each of the elements of each technical evaluation factor must be identified by the numbering and layout as follows:

(1) Management Plan
   a. Management Approach
      List and address items 1 - 8, and number each item accordingly.
   b. Quality Control Plan
      List and address items 1 - 6, and number each item accordingly.
   c. Management Plan Worksheet
      Use Figure L-1
(2) Past Performance
   List a minimum of 3 projects and identify how they meet the 3 relevance items.
(3) Experience
   List a minimum of 3 projects and identify how they are similar for each item.

Page size shall be 8.5 x 11 inches and shall be single-spaced and the font size shall be no less than eleven (11) point except for tables, charts, graphs and figures, which shall be no smaller than eight (8) point; text in “screen shot”, intended for representation of the actual item, are exempt from font size requirements when there is accompanying text explaining them.

Tables, charts, graphs and figures may be used wherever practical to depict systems and layout, implementation schedules, and plans if necessary.

The electronic copy of the proposal shall be provided via email, using Adobe Reader (.pdf format) and Microsoft Excel 2010 (.xlsx format) for Figure B-3 Pricing of Services and Figure L-1 Management Plan Worksheet. All documents included in the email shall be labeled with the solicitation number, company name and date. Offerors shall ensure that all files are virus free. Nothing may be included in the email except the proposal files.

L.13 Price Proposal Instructions

The Offeror shall submit the following pricing in the format specified herein (See Figure B-3).

The Offeror shall only fill in the shaded areas of the pricing template for the initial Base Period and all option periods.

Failure to propose pricing as specified below will result in a rejection of your offer based on non-responsiveness.

a. Basic (Standard) Services (See Section J (Figure B-3) of the pricing template): The Offeror must propose a price per month for services for facilities listed in Section C. **No other pricing template will be considered.**

Pricing must be submitted for a 5 year contract term.

b. Additional Services (See Section J (Figure B-3) of the pricing template): Propose a fully burdened price per hour for (6:00 am to 6:00 pm) and (6:00 pm to 6:00 am) for each of the skill sets indicated. Additional services are defined in Section C Statement of Work; a fully burdened price per hour is defined as a price that includes wages, overhead, general and administrative expenses, and profit. (Ref C.5.13.2.2) **No other pricing template will be considered.**

c. Markup Coefficient (See SectionJ (Figure B-3) of the pricing template): Markup Coefficient includes all material handling fees, including General and Administrative (G&A) fees, and profit. No additional markup coefficient is allowable under this contract. The markup coefficient rate is fixed, shall not exceed 10%, and applies **only** to parts, materials, and equipment for reimbursable repairs or additional services. See Section C, and Section B.2.3.

The Offeror must propose a fixed markup coefficient for the base and each option period. The proposed material markup rate shall be fixed throughout the life of the contract for reimbursable repairs and additional services.

d. Markup for Construction Services (See SectionJ (Figure B-3) of the pricing template): The Contractor's percentage (in decimal form) shall be an increase or decrease to the RSMeans data. The offeror shall limit the percentage to two (2) decimal places.

L.13.1 SF 33 Offer and Acceptance
Sign and date (Blocks 15, 17 and 18 of the SF 33) to constitute your acceptance of the terms and conditions of the solicitation

The Government requires a minimum acceptance period of not less than **120 calendar days**. The offeror shall complete Block 12 of each SF 33 submitted with full cognizance of the minimum acceptance period established herein. "Acceptance Period" means the number of calendar days available to the Government for awarding a Contract from the date specified in this solicitation for receipt of your offer. Your offer may only specify a longer acceptance period than the Government's minimum requirement.

The offeror must fill out their address, phone number, and authorized representative to commit the offeror to contractual obligations (Block 15A, 15B, and 16 of the SF 33). The address must match the information in the SAM.gov database. The mailing address listed in Block 15A will be the official mailing address used by the Government for letter correspondence.

If any amendments to the solicitation are issued, the offeror must acknowledge the amendment number and date in Block 14 of the SF 33.

L.14 Joint Ventures, Partnerships and other teaming arrangements.
Offerors that are part of a Joint Venture, Partnership or other teaming arrangement must provide documentation supporting their arrangement to include the name, address, and point of contract for each participant. The documentation shall include a description of the roles and responsibilities of each participant to include the employer-employee relationship of key personnel.

L.15 FAR 52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)
This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address: https://www.acquisition.gov/far

FAR	TITLE	DATE
52.204-7	System for Award Management	Oct 2018
52.214-34	Submission of Offers in the English Language	APR 1991
52.214-35	Submission of Offers in U.S. Currency	APR 1991
52.222-24	Preaward On-Site Equal Opportunity Compliance Evaluation (Applies to contracts over $10M)	FEB 1999
52.237-1	Site Visit	APR 1984

L.16 FAR 52.233-2 Service of Protest (SEP 2006)
a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

General Services Administration (GSA)
Public Buildings Service
819 Taylor Street
Fort Worth, Texas 76102
Attention: Carmen Weathers, Contract Specialist
RFP#: 47PH0220R0014

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

SECTION M: EVALUATION FACTORS FOR AWARD

M.1 Award

The Government will make an award to the responsible Offeror whose offer conforms to the solicitation and is most advantageous to the Government, technical factors and cost or price factors listed below considered. The solicitation specifies the Government's minimum requirements. Offerors are evaluated for award based upon the value of their proposal. **Proposals are incorporated into the Contract and are an integral portion of the Contract along with the other sections. Awards are made to the proposals reflecting the greatest value to the Government.**

The Government intends to make an award without negotiations of proposals. Therefore, Offerors are requested to submit proposals to the Government on the most favorable terms from a technical and price standpoint. The award of a firm-fixed price contract will result from this solicitation. If negotiations are necessary prior to award the negotiations will be accomplished as described below.

M.2 Proposal Evaluations

(a) A Source Selection Evaluation Board (SSEB) consisting of GSA professional personnel will convene to review and evaluate all proposals. These evaluations will be based on the Offeror's responses to both the technical evaluation factors and pricing requirements as stated in this solicitation.

(b) Adequacy of Response. The proposal will be evaluated to determine whether the offeror's methods and approach have adequately and completely considered, defined, and satisfied the requirements specified in the solicitation. The proposal will be evaluated to determine the extent to which each requirement has been addressed in the proposal in accordance with the proposal submission section of the solicitation.

(c) Feasibility of Approach. The proposal will be evaluated to determine the extent to which the proposed approach is workable and the end results achievable. The proposal will be evaluated to determine the extent to which successful performance is contingent upon proven devices and techniques. The proposal will be evaluated to determine the extent to which the offeror is expected to be able to successfully complete the proposed tasks and technical requirements within the required schedule.

(d) The Government hereby notifies offerors that taking exception to any term or condition of the solicitation (including submitting any alternate proposal that requires relaxation of a requirement) could make an offer unacceptable. The Government may consider any exception to any term or condition of the solicitation to be a deficiency, as defined in FAR 15.001, which may or may not be subject to correction.

M.3 Negotiations
Following the initial submission and review of proposals, the Contracting Officer may conduct negotiations/discussions with all Offerors who are in the competitive range (unless award is made without negotiations). Only those proposals that are most highly rated and have the best chance of being selected for award will be included in the competitive range; the other Offerors will be notified in writing that their proposals are not in the competitive range.

M.4 Basis for Award
Award will be made to the responsible offeror whose proposal is determined to provide the best value to the Government. Trade-off analysis of price or technical factors will be used in the award determination. After evaluation of any final proposal revisions is completed, the Government will make an award to the responsible Offeror whose offer conforms to the solicitation and is most advantageous to the Government, price and technical factors listed below considered. **For this solicitation, all evaluation factors other than price, when combined, are significantly more important than price.** As proposals become more equal in their technical merit, the evaluation of price becomes more important. The Government shall not make an award to any Offeror whose proposed prices are not considered to be fair and reasonable.

M.5 Technical Evaluation Factors
The Government will use your technical proposal to evaluate your plan and ability for satisfactory accomplishment of the work. Each technical proposal shall be precise, detailed, and complete as to clearly and fully demonstrate a thorough knowledge and understanding of the requirements. Each Offeror must address each factor and discussion under each factor. Your technical proposal must provide sufficient information to show the Government you have the ability to manage and provide the services required by this solicitation.

Weighted Factors

A full description of the submittal requirements for each factor is outlined in **Section L**. The following weighted technical factors are listed in descending order of importance.

<u>Factor 1: Management Plan</u>
This factor refers to the Offeror's technical approach for completing the work as specified in the solicitation with the submission of the Offeror's Management Approach, Quality Control Plan, and the details as outlined in Section L.

(a) Management Approach: The offeror will be evaluated on the areas and requirements identified for submission in Section L. The narrative will be evaluated for understanding and ability to complete the requirements of the solicitation.
(b) Quality Control Plan: The offeror will be evaluated on the areas and requirements identified for submission in Section L. The narrative will be evaluated for understanding and ability to complete the requirements of the solicitation.

(c) Management Plan Worksheet will be evaluated on how well the offeror demonstrates a clear understanding of the service requirements, proposed labor and labor mix, and ability to identify, mitigate, manage, and control risks for successful performance and customer satisfaction. If the offeror deviates from the manpower identified in the government's baseline and submits a Worksheet Narrative, the narrative will be evaluated on the ability to meet the requirements of the solicitation with the proposed manpower.

Factor 2: Past Performance

The Government will evaluate the offeror's record of past and current performance to ascertain the probability of successfully performing the required efforts of the PWS. The offeror's past performance will be evaluated on the services performed to the services required under this solicitation, the record of conforming to contract requirements and standards of good workmanship, and the commitment to customer satisfaction.

The Past Performance evaluation will take into account any past performance information regarding predecessor companies, key personnel who have relevant experience or subcontractors that performed major or critical aspects of the requirement when such information is relevant. For joint ventures, past performance records of both firms will be considered.

In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available, the offeror will not be evaluated favorably or unfavorably on past performance.

Factor 3: Experience

This factor evaluates the offeror's proposed Experience for the basic contract period and all option years. The evaluation will focus on the offeror's experience with projects that are similar in scope and magnitude of this requirement. The offeror will be evaluated on the areas and requirements identified for submission in Section L.

A minimum of three projects must cumulatively demonstrate the experience. At the discretion of the government, additional consideration may be given to projects submitted in excess of the minimum three projects based on similarity to the elements in Section L.

M.6 Price Evaluation

The resulting award will be a Firm Fixed Price contract. Price reasonableness will be utilized in the valuation of the Firm-Fixed Price effort. The Government may use various price analysis techniques and procedures to evaluate price. Prices may be subject to negotiation and reviewed for price realism to determine whether they are so low that they reflect a lack of technical understanding. Such a proposal may be rejected. Prices for Additional Services and pre-priced tasks will not be included in the total evaluated price. Prices for Additional Services and pre-priced tasks, when reviewed in conjunction

with the total evaluated price, should be consistent. Offerors with low total evaluated price and high prices for Additional Services and pre-priced tasks may be considered unbalanced pricing and may result in the offer being rejected.

Total evaluated price will be calculated by adding the total price for the base and option periods combined in accordance with the pricing template submitted by the offeror.

Pricing must be submitted for a 5 year contract term.

NOTE: The awarded option price(s) may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. A price adjustment for supplies, materials, equipment and labor other than prevailing labor rate revisions will not be considered.

M.7 FAR 52.217-5 - Evaluation of Options (Jul 1990)
Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

M.8 Miscellaneous Documents
This is not an evaluation factor. However, failure to submit completed, required documents may result in the offeror being considered non-responsive and eliminated from further consideration.